



SUPREME COURT REPORTS

The Official Law Report
Fortnightly

2026 | Volume 3 | Part 1

Citation Style: [[Year..](#)] [Volume.No..](#) S.C.R. [Page.no..](#)

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Supreme Court of India



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**M/s Eminent Colonizers Private Limited
v.**

Rajasthan Housing Board and Ors.

(Civil Appeal No. 753 of 2026)

04 February 2026

[J.B. Pardiwala and K.V. Viswanathan,* JJ.]

Issue for Consideration

Issue arose for consideration whether dispute with regard to the existence and validity of Clause 23 of the Contract Agreement clause could have been raised before the arbitrator; that the appointment of the arbitrator was during *SBP & Co's* case regime and before the legislative amendments which came into effect from 23.10.2015, were the courts below justified in setting aside the award by holding that the clause 23 of the contract was not an arbitration agreement.

Headnotes[†]

Arbitration and Conciliation Act, 1996 – s.11 – Appointment of arbitrator – Validity of arbitration clause – Contract agreement containing dispute resolution clause – Dispute between the parties regarding non-payment of escalation cost – Application u/s.11 by the appellant-contractor – Allowed by the Single judge and arbitrator was appointed – Respondent-Housing Board accepted the order and it attained finality – Single Judge order was before the introduction of s.11(6A) of the 1996 Act – Arbitrator allowed the claim of the appellant and objection as to validity of the arbitration clause, was held to be unsustainable – Respondents then filed s. 34 application to set aside the award on the ground of non-existence of an arbitration clause, the Clause 23 of the Agreement did not have the character of an arbitration clause – Commercial Court held that the order of s.11 Court did not have precedential value and the order appointing arbitrator was not binding in nature, also the arbitrator faulted for not deciding on the existence of the arbitration agreement – In appeal, the High Court upheld the order of Commercial Court that clause 23 was not an arbitration clause – Correctness:

* Author

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Held: Single Judge, when he entertained s.11 application and interpreted a contractual document had jurisdiction to do so u/s.11 – Right or wrong, that decision should bind – Respondents did not carry the order appointing an arbitrator in appeal – In view thereof, the holding in SBP’s case squarely applies and the respondents could not have challenged the existence and validity of the arbitration clause before the arbitrator – Order appointing the Arbitrator read with the law laid down in SBP’s case that not only will the parties be bound before the Arbitrator with regard to the finding on existence and validity of the arbitration agreement they will also be bound during the subsequent stages of the proceedings which would include the s.34 application stage, the s.37 appeal stage and before this Court, clearly operates as a *res judicata*, as regards the existence of and validity of the arbitration agreement between the parties – Commercial Court missed the conceptual distinction between “Precedent” and “*Res judicata*” and thus, fell into an error – Commercial Court and the High Court erred in going into the existence and validity of clause 23 and pronouncing that the said clause was not an arbitration clause – Judgment of the High Court set aside – Matter remitted to the Commercial Court. [Paras 29-32]

Jurisprudence – Precedent and *Res Judicata* – Distinction:

Held: Decision between two parties which sets out a principle of law will operate as a precedent for disputes between two other parties too – Precedent operates *in rem* – In contrast, *res judicata* operates *in personam* between the same parties either in the later stage of the same litigation between them or in a different litigation between them. [Para 24]

Case Law Cited

SBP & Co. v. Patel Engineering Limited & Anr. [2005] Supp. 4 SCR 688 : (2005) 8 SCC 618 – followed.

State of West Bengal v. Sarkar & Sarkar (2018) 12 SCC 736; *In re Interplay Between Arbitration Agreements under Arbitration and Conciliation Act, 1996 & Stamp Act, 1899* [2023] 15 SCR 1081 : (2024) 6 SCC 1; *State of Rajasthan v. Nemi Chand Mahela and Others* [2019] 18 SCR 995 : (2019) 14 SCC 179; *Canara Bank v. N.G. Subbaraya Setty and Another* [2018] 3 SCR 884 : (2018) 16 SCC 228 – referred to.

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Mohammed Arif Contractor v. State of Rajasthan & Ors., **S.B. Arbitration No.90/2012**; *M/s Marudhar Construction v. Rajasthan Housing Board & Ors.*, **S.B. Arbitration Application No.132/2014 – referred to.**

Books and Periodicals Cited

Salmond on Jurisprudence P.J. Fitzgerald (12th Edition) page 141 – **referred to.**

List of Acts

Arbitration and Conciliation Act, 1996; Arbitration and Conciliation (Amendment) Act, 2015.

List of Keywords

Appointment of arbitrator; Arbitration agreement; Arbitration clause; *Res judicata*; Precedent; Construction business; Non-payment of escalation cost; Validity of arbitration clause; Precedent operates *in rem*; *Res judicata* operates *in personam*; Contract Agreement clause; *SBP & Co. vs. Patel Engineering Limited & Anr's case*.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 753 of 2026

From the Judgment and Order dated 20.02.2020 of the High Court of Judicature for Rajasthan at Jaipur in DBCMA No. 2435 of 2019

With

Civil Appeal No. 754 of 2026

Appearances for Parties

Advs. for the Appellant(s):

Akshat Gupta, Prakhar Saunakiya, Pranav Jain, Ms. Sakshi Tikmany, Ms. Yoothica Pallavi.

Advs. for the Respondent(s):

K. L. Janjani, Kailash J. Kashyap, Pankaj Kumar Singh, Ms. Archla.

Supreme Court Reports**Judgment / Order of the Supreme Court****Judgment****K.V. Viswanathan, J.**

1. Leave granted.
2. The issues that arise in both the appeals are common and they revolve around the interpretation of Clause 23 of the Contract Agreement and, more particularly, the question as to whether a dispute with regard to the existence and validity of the said clause could have been raised before the arbitrator?
3. The Arbitration and Conciliation (Amendment) Act, 2015 did not apply to the arbitral proceedings concerned in these matters. This aspect of the matter has been dealt with in detail hereinbelow.

FACTS IN CIVIL APPEAL ARISING OUT OF SLP(C) NO.8299 OF 2021: -

4. The present appeal calls in question the correctness of the judgment and order dated 20.02.2020 of the High Court of Judicature for Rajasthan, Bench at Jaipur in D.B. Civil Miscellaneous Application No. 2435 of 2019.
5. On 08.07.2009, the appellant, a sole proprietorship concern, engaged in the supply and construction business was awarded the construction work for the structure of 40 HIG-1 houses (High-Income Group) and 10 HIG-2 Flats (Stilt + 10 Storey) at Sector-29, Pratap Nagar, Jaipur, Rajasthan by the respondent. A contract agreement bearing No.11/2009-10 for a total value of Rs. 5,27,00,070/- on a lump sum basis was entered into and the work was to be completed in 12 months' time. It is the claim of the appellant that the work was completed before the stipulated 12 months' deadline for a lower cost of Rs.4,67,72,922/-. The dispute pertained to non-payment of Rs.18,95,123/- towards escalation cost under Clause 45 of the agreement with regard to prices, of labour and material.
6. According to the appellant, since the respondents failed to pay the disputed amount or to alternatively constitute an empowered Standing Committee to adjudicate the dispute in accordance with Clause 23

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of the agreement, despite the appellant's application and payment of fee, a Section 11 Application came to be filed in the High Court.

7. Clause 23 reads as under: -

“Clause-23. Standing Committee for settlement of disputes:
If any question, difference or objection, whatsoever shall arise in any way, in connection with or arising out of this instrument, or the meaning of operation of any part thereof, or the right duties or liabilities of either party then, save in so far as the decision of any such matter, as herein before provided has been otherwise provided for and whether it has been finally decided accordingly, or whether the contract should be terminated, or has been rightly terminated and as regards the rights or obligations of the parties as the result of such termination, shall be referred for decision to the empowered Standing Committee, which would consist of the followings:

- i) Administrative Secretary concerned
- ii) Finance Secretary or his nominee, not below the rank of Dy.Secretary and/or Chief Accounts Officer.
- iii) Law Secretary or his nominee, not below the rank of Joint Legal Remembrancer.
- iv) Chief Engineer-cum-Additional Secretary of the concerned department.
- v) Chief Engineer concerned (Member Secretary)

The Engineer-in-Charge on receipt of application alongwith non refundable prescribed fee, (the fee would be two percent of the amount in dispute, not exceeding Rs.One Lac) from the Contractor shall refer the disputes to the Committee within a period of one month from the date of receipt of application.

Procedure and Application for referring cases or settlement by the Standing Committee shall be as given in Form RPWA 90.”

8. A learned Single Judge allowed the Section 11 Application and appointed a retired High Court Judge, Hon'ble Mr. Justice J.R. Goyal, as the sole arbitrator on the following reasoning:-

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“Counsel for applicant submits that although the non-applicants have constituted the Standing Committee but the same being not in terms of Cl.23 of the contract agreement, the applicant raised objections regarding constitution of the committee and that makes the applicant entitled to get the matter referred to the independent Arbitrator.

Reply to the application has been filed and counsel for non-applicants submits that for resolving the dispute between the Contractor and Rajasthan Housing Board, a committee of five officers of Rajasthan Housing Board has been constituted in terms of Cl.23 of the contract agreement and, therefore, the application is not maintainable and deserves to be dismissed.

Indisputably, the Committee constituted by Rajasthan Housing Board, was not in terms of Cl.23 of the contract agreement executed between the parties and it is also not in dispute that this court has territorial jurisdiction to entertain the present application and that certainly seizes the power of the non-applicants and it is within the jurisdiction of this court and the Chief Justice or the Designated Judge to hold jurisdiction to consider the application for appointment of Arbitrator u/S.11(6) of the Act, 1996.

Consequently, the instant application succeeds & is hereby allowed and this court considers it appropriate to appoint **Hon’ble Mr. Justice J.R. Goyal (Retd.), T-1-10, Paliwal Park, New Sanghi Farm, Tonk Road, Jaipur** as sole Arbitrator to resolve the arbitral dispute. The cost of arbitration & fee of Arbitrator shall be determined in terms of the arbitration manual.”

This order was accepted by the respondents and it attained finality. It is crucial to note that the order of the learned Single Judge was dated 23.05.2014 which is before the introduction of Section 11(6A) in the Arbitration and Conciliation Act, 1996.

9. Section 11(6) which governed the appointment procedure before the 23.10.2025 amendments and Section 11(6A) which was brought in by the 2015 amendment are both extracted hereinbelow:-

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“11 (6): Where, under an appointment procedure agreed upon by the parties.—

(a) A party fails to act as required under that procedure; or

(b) the parties, or the two appointed arbitrators, fail to reach an agreement expected of them under that procedure; or

(c) a person, including an institution, fails to perform any function entrusted to him or it under that procedure.

a party may request the Chief Justice or any person or institution designated by him to take the necessary measure, unless the agreement on the appointment procedure provides other means for securing the appointment.”

w.e.f. 23.10.2015

11(6A): The Supreme Court or, as the case may be, the High Court, while considering any application under sub-section (4) or sub-section (5) or sub-section (6), shall, notwithstanding any judgment, decree or order of any Court, **confine to the examination of the existence of an arbitration agreement.**”

(Emphasis supplied)

AWARD: -

10. The learned Arbitrator entered upon the reference and, on 15.09.2015, allowed the claim of the appellant to the tune of Rs. 17,10,624.70/- along with interest @ 9% per annum from 13.09.2014 till the date of realization. Dealing with the objection with regard to the validity of the arbitration clause, the learned Arbitrator held that, since no appeal was filed against the order appointing the arbitrator, the objection was not sustainable. The Arbitrator relied upon the judgment of this Court in **SBP & Co. vs. Patel Engineering Limited & Anr.¹**.

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ORDER OF THE SECTION 34 COURT: -

11. The respondents filed a Section 34-Application before the Commercial Court No.3, Jaipur seeking to set aside the award. The challenge was pivoted on the point of the non-existence of an arbitration clause, the argument being that Clause 23 of the Agreement did not have the character of an arbitration clause. The Commercial Court accepted the submission and on the finding that the order of the Section 11 Court does not have precedential value, held that the order appointing arbitrator was not binding in nature. The Court further held that the order appointing the arbitrator did not pronounce any opinion on the availability or otherwise of the arbitration agreement in Clause 23 and as such it proceeded on the basis that the point had been kept open to be decided by the Arbitrator. It faulted the Arbitrator for not deciding the point of the existence of the arbitration agreement.
12. The Court relied on two judgments of the Rajasthan High Court in ***Mohammed Arif Contractor Vs. State of Rajasthan & Ors.***² and ***M/s Marudhar Construction Vs. Rajasthan Housing Board & Ors.***³ to hold that Clause 23 of the agreement was not an arbitration clause. So holding, the Commercial Court set aside the award.

APPEAL BEFORE THE HIGH COURT: -

13. The appellant carried the matter in appeal to the High Court. The High Court, while upholding the order of the Commercial Court, maintained that Clause 23 was not an arbitration clause. Aggrieved, the appellant is before us.

CONTENTIONS OF THE PARTIES: -

14. We have heard Mr. Akshat Gupta, learned Counsel for the appellant and Mr. Kailash J. Kashyap, learned Counsel for the respondents, who ably presented their respective points of view. The learned counsel for the appellant contends that the arbitrator was appointed during the ***SBP and Co.*** (*supra*) regime and before the incorporation of the legislative amendments which came into effect from 23.10.2015. Learned counsel submitted that the execution of the contract was

2 S.B. Arbitration No.90/2012

3 S.B. Arbitration Application No.132/2014

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on 08.07.2009 and the Section 11 order was dated 23.05.2014 and the arbitral award was passed on 15.09.2015. Learned counsel, by relying on ***SBP and Co.*** (*supra*), submits that under the said regime, the Section 11 court was obliged to determine the “existence” as well as “validity” of an arbitration agreement before passing an order appointing the arbitrator. Learned counsel contrasted the situation with the introduction of Section 11(6A) w.e.f. 23.10.2015 where only the Section 11 court is obliged to determine the existence of arbitration agreement [Section 11(6A) though deleted, the deletion has not yet been notified].

15. Learned counsel submitted that when the Section 11 court appointed the arbitrator, proceeding on the basis that Clause 23 is an arbitration clause and when the said order was accepted by the respondents, the respondents have waived their right to object to the validity of the arbitration clause. Reliance was placed on Section 4 of the A&C Act, 1996.
16. In response, the learned counsel for the respondents contended by referring to the decision of the Commercial Court that an order under Section 11 could not have precedential value and in any event there is no decision on the existence and validity of the arbitration agreement in the order appointing the arbitrator and, hence, the said question was available to be decided by the arbitral tribunal.
17. We have carefully considered the submissions of the learned counsels for the parties and perused the written submissions.

QUESTION FOR CONSIDERATION:-

18. The question that arises for consideration is considering that the appointment of the arbitrator in this case was in ***SBP & Co.*** (*supra*) regime and before the legislative amendments which came into effect from 23.10.2015, were the courts below justified in setting aside the award by holding that the Clause 23 of the contract was not an arbitration agreement?

ANALYSIS AND CONCLUSION:-

19. In view of the categoric holding by the Seven-Judge Bench in ***SBP (supra)***, we have no hesitation in holding that the Section 34 court erred in going into the existence and validity of Clause 23. The

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appointment of the Arbitrator happened prior to the amendments to the Arbitration Act which came into effect from 23.10.2015. The introduction of Section 11(6A) brought a paradigm shift in the scope of jurisdiction of the Section 11 court. Post the amendment, the only enquiry is about the existence of the arbitration clause. That is very well settled.

20. However, the present case arose during the **SBP (*supra*)** regime. It will be useful to extract relevant passages from **SBP (*supra*)** to understand the scope of the Section 11 court.

“8. We will first consider the question, as we see it. On a plain understanding of the relevant provisions of the Act, it is seen that in a case where there is an arbitration agreement, a dispute has arisen and one of the parties had invoked the agreed procedure for appointment of an arbitrator and the other party has not cooperated, the party seeking an arbitration, could approach the Chief Justice of the High Court if it is an internal arbitration or of the Supreme Court if it is an international arbitration to have an arbitrator or Arbitral Tribunal appointed. **The Chief Justice, when so requested, could appoint an arbitrator or Arbitral Tribunal depending on the nature of the agreement between the parties and after satisfying himself that the conditions for appointment of an arbitrator under sub-section (6) of Section 11 do exist. The Chief Justice could designate another person or institution to take the necessary measures. The Chief Justice has also to have the qualification of the arbitrators in mind before choosing the arbitrator. An Arbitral Tribunal so constituted, in terms of Section 16 of the Act, has the right to decide whether it has jurisdiction to proceed with the arbitration, whether there was any agreement between the parties and the other matters referred to therein.**

9. Normally, any tribunal or authority conferred with a power to act under a statute, has the jurisdiction to satisfy itself that the conditions for the exercise of that power existed and that the case calls for the exercise of that power. Such an adjudication relating to its own jurisdiction which could be called a decision on jurisdictional facts, is not generally

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final, unless it is made so by the Act constituting the tribunal. Here, sub-section (7) of Section 11 has given a finality to the decisions taken by the Chief Justice or any person or institution designated by him in respect of matters falling under sub-sections (4), (5) and (6) of Section 11. **Once a statute creates an authority, confers on it power to adjudicate and makes its decision final on matters to be decided by it, normally, that decision cannot be said to be a purely administrative decision. It is really a decision on its own jurisdiction for the exercise of the power conferred by the statute or to perform the duties imposed by the statute. Unless the authority satisfies itself that the conditions for exercise of its power exist, it could not accede to a request made to it for the exercise of the conferred power.** While exercising the power or performing the duty under Section 11(6) of the Act, the Chief Justice has to consider whether the conditions laid down by the section for the exercise of that power or the performance of that duty exist. **Therefore, unaided by authorities and going by general principles, it appears to us that while functioning under Section 11(6) of the Act, a Chief Justice or the person or institution designated by him, is bound to decide whether he has jurisdiction, whether there is an arbitration agreement, whether the applicant before him is a party, whether the conditions for exercise of the power have been fulfilled, and if an arbitrator is to be appointed, who is the fit person, in terms of the provision. Section 11(7) makes his decision on the matters entrusted to him, final.**

12. We are inclined to the view that the decision of the Chief Justice on the issue of jurisdiction and the existence of a valid arbitration agreement would be binding on the parties when the matter goes to the Arbitral Tribunal and at subsequent stages of the proceeding except in an appeal in the Supreme Court in the case of the decision being by the Chief Justice of the High Court or by a Judge of the High Court designated by him.

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20. But where the jurisdictional issues are decided under these sections, before a reference is made, Section 16 cannot be held to empower the Arbitral Tribunal to ignore the decision given by the judicial authority or the Chief Justice before the reference to it was made. The competence to decide does not enable the Arbitral Tribunal to get over the finality conferred on an order passed prior to its entering upon the reference by the very statute that creates it. That is the position arising out of Section 11(7) of the Act read with Section 16 thereof. The finality given to the order of the Chief Justice on the matters within his competence under Section 11 of the Act are incapable of being reopened before the Arbitral Tribunal. In *Konkan Rly.* what is considered is only the fact that under Section 16, the Arbitral Tribunal has the right to rule on its own jurisdiction and any objection, with respect to the existence or validity of the arbitration agreement. **What is the impact of Section 11(7) of the Act on the Arbitral Tribunal constituted by an order under Section 11(6) of the Act, was not considered. Obviously, this was because of the view taken in that decision that the Chief Justice is not expected to decide anything while entertaining a request under Section 11(6) of the Act and is only performing an administrative function in appointing an Arbitral Tribunal. Once it is held that there is an adjudicatory function entrusted to the Chief Justice by the Act, obviously, the right of the Arbitral Tribunal to go behind the order passed by the Chief Justice would take another hue and would be controlled by Section 11(7) of the Act.**

25. While constituting an Arbitral Tribunal, on the scheme of the Act, the Chief Justice has to consider whether he as the Chief Justice has jurisdiction in relation to the contract, whether there was an arbitration agreement in terms of Section 7 of the Act and whether the person before him with the request, is a party to the arbitration agreement. On coming to a conclusion on these aspects, he has to enquire whether the conditions for exercise of his power under

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Section 11(6) of the Act exist in the case and only on being satisfied in that behalf, could he appoint an arbitrator or an Arbitral Tribunal on the basis of the request. It is difficult to say that when one of the parties raises an objection that there is no arbitration agreement, raises an objection that the person who has come forward with a request is not a party to the arbitration agreement, the Chief Justice can come to a conclusion on those objections without following an adjudicatory process. Can he constitute an Arbitral Tribunal, without considering these questions? If he can do so, why should such a function be entrusted to a high judicial authority like the Chief Justice. Similarly, when the party raises an objection that the conditions for exercise of the power under Section 11(6) of the Act are not fulfilled and the Chief Justice comes to the conclusion that they have been fulfilled, it is difficult to say that he was not adjudicating on a dispute between the parties and was merely passing an administrative order. It is also not correct to say that by the mere constitution of an Arbitral Tribunal the rights of the parties are not affected. Dragging a party to an arbitration when there existed no arbitration agreement or when there existed no arbitrable dispute, can certainly affect the right of that party, and, even on monetary terms, impose on him a serious liability for meeting the expenses of the arbitration, even if it be the preliminary expenses and his objection is upheld by the Arbitral Tribunal. Therefore, it is not possible to accept the position that no adjudication is involved in the constitution of an Arbitral Tribunal.

30. ... We also feel that adequate attention was not paid to the requirement of the Chief Justice having to decide that there is an arbitration agreement in terms of Section 7 of the Act before he could exercise his power under Section 11(6) of the Act and its implication. The aspect, whether there was an arbitration agreement, was not merely a jurisdictional fact for commencing the arbitration itself, but it was also a jurisdictional

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fact for appointing an arbitrator on a motion under Section 11(6) of the Act, was not kept in view. A Chief Justice could appoint an arbitrator in exercise of his power only if there existed an arbitration agreement and without holding that there was an agreement, it would not be open to him to appoint an arbitrator saying that he was appointing an arbitrator since he has been moved in that behalf and the applicant before him asserts that there is an arbitration agreement. Acceptance of such an argument, with great respect, would reduce the high judicial authority entrusted with the power to appoint an arbitrator, an automaton and subservient to the Arbitral Tribunal which he himself brings into existence.

39. It is necessary to define what exactly the Chief Justice, approached with an application under Section 11 of the Act, is to decide at that stage. Obviously, he has to decide his own jurisdiction in the sense whether the party making the motion has approached the right High Court. He has to decide whether there is an arbitration agreement, as defined in the Act and whether the person who has made the request before him, is a party to such an agreement. It is necessary to indicate that he can also decide the question whether the claim was a dead one; or a long-barred claim that was sought to be resurrected and whether the parties have concluded the transaction by recording satisfaction of their mutual rights and obligations or by receiving the final payment without objection.....

47 (i) The power exercised by the Chief Justice of the High Court or the Chief Justice of India under Section 11(6) of the Act is not an administrative power. It is a judicial power.

(iv) The Chief Justice or the designated Judge will have the right to decide the preliminary aspects as indicated in the earlier part of this judgment. These will be his own jurisdiction to entertain the request, the existence of a valid arbitration agreement, the existence or otherwise of a live claim, the existence of the condition for the exercise

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of his power and on the qualifications of the arbitrator or arbitrators. The Chief Justice or the designated Judge would be entitled to seek the opinion of an institution in the matter of nominating an arbitrator qualified in terms of Section 11(8) of the Act if the need arises but the order appointing the arbitrator could only be that of the Chief Justice or the designated Judge.

(vii) Since an order passed by the Chief Justice of the High Court or by the designated Judge of that Court is a judicial order, an appeal will lie against that order only under Article 136 of the Constitution to the Supreme Court.”

(Emphasis supplied)

21. This principle was reiterated in **State of West Bengal vs. Sarkar & Sarkar⁴**.

“8. It was the vehement contention of the learned counsel for the appellant based on a series of judgments rendered by this Court that Clause 12 (extracted above) was not an arbitral clause and that the arbitrator as well as the High Court had erred in determining the same.

9. The learned counsel for the respondent Sarkar & Sarkar contested the claim of the appellant. It was submitted that the appellant could not be permitted even to raise the instant plea so as to assail the order passed either by the arbitrator (on 15-1-2004) or by the High Court (on 16-5-2006). The instant submission of the learned counsel for the respondent was premised on the judgment rendered by this Court in *SBP & Co. v. Patel Engg. Ltd.* Our pointed attention was drawn to the conclusions drawn by the Constitution Bench in the above judgment in para 20. Para 20 is reproduced below: (SCC pp. 649-50)

“20. Section 16 is said to be the recognition of the principle of *Kompetenz-Kompetenz*. *The fact that the Arbitral Tribunal has the competence to rule on its own jurisdiction and to define the contours of its jurisdiction, only means*

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*that when such issues arise before it, the Tribunal can, and possibly, ought to decide them. This can happen when the parties have gone to the Arbitral Tribunal without recourse to Section 8 or 11 of the Act. But where the jurisdictional issues are decided under these sections, before a reference is made, Section 16 cannot be held to empower the Arbitral Tribunal to ignore the decision given by the judicial authority or the Chief Justice before the reference to it was made. The competence to decide does not enable the Arbitral Tribunal to get over the finality conferred on an order passed prior to its entering upon the reference by the very statute that creates it. **That is the position arising out of Section 11(7) of the Act read with Section 16 thereof. The finality given to the order of the Chief Justice on the matters within his competence under Section 11 of the Act are incapable of being reopened before the Arbitral Tribunal.*** In *Konkan Railway* what is considered is only the fact that under Section 16, the Arbitral Tribunal has the right to rule on its own jurisdiction and any objection, with respect to the existence or validity of the arbitration agreement. What is the impact of Section 11(7) of the Act on the Arbitral Tribunal constituted by an order under Section 11(6) of the Act, was not considered. Obviously, this was because of the view taken in that decision that the Chief Justice is not expected to decide anything while entertaining a request under Section 11(6) of the Act and is only performing an administrative function in appointing an Arbitral Tribunal. **Once it is held that there is an adjudicatory function entrusted to the Chief Justice by the Act, obviously, the right of the Arbitral Tribunal to go behind the order passed by the Chief Justice would take another hue and would be controlled by Section 11(7) of the Act.**"

10. It was the submission of the learned counsel for the respondent that proceedings could not have been entertained by the arbitrator under Section 16 of the Arbitration Act in the present controversy because by the orders of the High Court dated 24-5-2002 and 26-9-2002 (extracted above), the appointment of the arbitrator

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was made in exercise of the powers vested in the High Court under Section 11 of the Arbitration Act. The factual position depicted hereinabove as also the orders referred to hereinabove, leave no room for doubt that Justice (Retired) S.S. Ganguly was actually appointed as an arbitrator by the High Court in exercise of the powers vested in the High Court under Section 11 of the Arbitration Act. That being the position, the learned counsel for the respondent is fully justified in her submission that the said order could not be tested by the arbitrator while considering the claim raised by the appellant State of West Bengal under Section 16 of the Arbitration Act. **Thus viewed, irrespective of whether Clause 12 extracted hereinabove postulated the adjudication of dispute between the parties through an arbitrator, it is now not open to the appellant before this Court to raise a challenge to the order passed by the High Court appointing an arbitrator.”**

(emphasis supplied)

22. As held in **SBP (supra)**, a Section 11 court was bound to decide whether there was an arbitration agreement and further that such a finding on the existence of a valid arbitration agreement would be binding on the parties when the matter goes to the Arbitral Tribunal and at subsequent stages of the proceedings. The only exception being when the order appointing the Arbitrator is challenged before this Court. The highlighted portion of SBP (supra), as extracted above, puts this matter beyond any controversy. In the present case, the order appointing the Arbitrator attained finality with no challenge being thrown. The respondents accepted the order and did not challenge the appointment in this Court. We have extracted the findings of the order appointing the Arbitrator. The parties proceeded on the basis that Clause 23 was an arbitration clause and in this scenario, the only conclusion possible is that though not very categorical there is an implied holding in the order appointing the Arbitrator about the existence and validity of the arbitration agreement. For if it were not so, the appointment could not have been and would not have been made. The fact that the respondents accepted the order and did not challenge it only puts the matter beyond any pale of controversy. The further finding of the Commercial Court in the Section 34 application

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that the order of the Section 11 court did not have any precedential value and hence the order will not be binding is in the teeth of the judgment in ***SBP (supra)***.

LEGAL POSITION FROM 23.10.2015: -

23. The scenario would have been totally different if the 2015 (Amendment) Act had applied to the arbitral proceedings. The scope of the inquiry has been clarified in ***In re Interplay Between Arbitration Agreements under Arbitration and Conciliation Act, 1996 & Stamp Act, 1899***⁵, in the following terms : -

“164. The 2015 Amendment Act has laid down different parameters for judicial review under Section 8 and Section 11. Where Section 8 requires the Referral Court to look into the prima facie existence of a valid arbitration agreement, Section 11 confines the Court’s jurisdiction to the examination of the existence of an arbitration agreement. Although the object and purpose behind both Sections 8 and 11 is to compel parties to abide by their contractual understanding, the scope of power of the Referral Courts under the said provisions is intended to be different. The same is also evident from the fact that Section 37 of the Arbitration Act allows an appeal from the order of an Arbitral Tribunal refusing to refer the parties to arbitration under Section 8, but not from Section 11. Thus, the 2015 Amendment Act has legislatively overruled the dictum of Patel Engg. [SBP & Co. v. Patel Engg. Ltd., (2005) 8 SCC 618] where it was held that Section 8 and Section 11 are complementary in nature. Accordingly, the two provisions cannot be read as laying down a similar standard.

165. The legislature confined the scope of reference under Section 11(6-A) to the examination of the existence of an arbitration agreement. The use of the term “examination” in itself connotes that the scope of the power is limited to a prima facie determination.

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Since the Arbitration Act is a self-contained code, the requirement of “existence” of an arbitration agreement draws effect from Section 7 of the Arbitration Act. In *Duro Felguera [Duro Felguera, S.A. v. Gangavaram Port Ltd., (2017) 9 SCC 729]*, this Court held that the Referral Courts only need to consider one aspect to determine the existence of an arbitration agreement — whether the underlying contract contains an arbitration agreement which provides for arbitration pertaining to the disputes which have arisen between the parties to the agreement. Therefore, the scope of examination under Section 11(6-A) should be confined to the existence of an arbitration agreement on the basis of Section 7. Similarly, the validity of an arbitration agreement, in view of Section 7, should be restricted to the requirement of formal validity such as the requirement that the agreement be in writing. This interpretation also gives true effect to the doctrine of competence-competence by leaving the issue of substantive existence and validity of an arbitration agreement to be decided by Arbitral Tribunal under Section 16. We accordingly clarify the position of law laid down in *Vidya Drolia [Vidya Drolia v. Durga Trading Corpn., (2021) 2 SCC 1]* in the context of Section 8 and Section 11 of the Arbitration Act.

167. Section 11(6-A) uses the expression “examination of the existence of an arbitration agreement”. The purport of using the word “examination” connotes that the legislature intends that the Referral Court has to inspect or scrutinise the dealings between the parties for the existence of an arbitration agreement. Moreover, the expression “examination” does not connote or imply a laborious or contested inquiry. [*P. Ramanatha Aiyar, The Law Lexicon (2nd Edn., 1997) 666.*] On the other hand, Section 16 provides that the Arbitral Tribunal can “rule” on its jurisdiction, including the existence and validity of an arbitration agreement. A “ruling” connotes adjudication of disputes after admitting evidence from the parties. Therefore, it

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is evident that the Referral Court is only required to examine the existence of arbitration agreements, whereas the Arbitral Tribunal ought to rule on its jurisdiction, including the issues pertaining to the existence and validity of an arbitration agreement. A similar view was adopted by this Court in *Shin-Etsu Chemical Co. Ltd. v. Aksh Optifibre Ltd.*, (2005) 7 SCC 234].

169. When the Referral Court renders a prima facie opinion, neither the Arbitral Tribunal, nor the Court enforcing the arbitral award will be bound by such a prima facie view. If a prima facie view as to the existence of an arbitration agreement is taken by the Referral Court, it still allows the Arbitral Tribunal to examine the issue in depth. Such a legal approach will help the Referral Court in weeding out prima facie non-existent arbitration agreements. It will also protect the jurisdictional competence of the Arbitral Tribunals to decide on issues pertaining to the existence and validity of an arbitration agreement.”

[Emphasis supplied]

The above is set out only to bring out the contrast. Section 26 of the 2015 Amendment Act also made this very explicit.

“26. Act not to apply to pending arbitral proceedings.— Nothing contained in this Act shall apply to the arbitral proceedings commenced, in accordance with the provisions of Section 21 of the principal Act, before the commencement of this Act unless the parties otherwise agree but this Act shall apply in relation to arbitral proceedings commenced on or after the date of commencement of this Act”

PRECEDENT AND RES JUDICATA – DISTINCTION: -

24. There is a clear conceptual distinction between precedent and res judicata. *Salmond on Jurisprudence* P.J. Fitzgerald (12th Edition) page 141 states “*a judicial precedent speaks in England with authority; it is not merely evidence of the law but a source of it, and the courts are bound to follow the law that is so established*”. A decision between two parties which sets out a principle of law will operate as a precedent

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for disputes between two other parties too. A precedent operates in rem. In contrast, a res judicata operates in personam between the same parties either in the later stage of the same litigation between them or in a different litigation between them. That is the essential distinction between the two.

25. This Court in **State of Rajasthan vs. Nemi Chand Mahela and Others**⁶, held as under:-

“11. The learned counsel for the petitioners had drawn our attention to para 22 of the decision in *Manmohan Sharma case* [*Manmohan Sharma v. State of Rajasthan*, (2014) 5 SCC 782 which refers to the case of one Danveer Singh whose writ petition had been allowed [*Danveer Singh v. Rural Development & Panchyati Raj Deptt.*, WP (C) No. 2200 of 2000 sub nom *Jayanti Sharma v. Rural Development & Panchyati Raj Deptt.*, WP (C) No. 1646 of 2000, order dated 26-2-2001 (Raj)] and the order had attained finality as it was not challenged before the Division Bench or before the Supreme Court. Termination of services in the case of Danveer Singh, it was accordingly held, was not justified and in accordance with law. The reasoning given in paras 22 and 23 in *Manmohan Sharma case* [*Manmohan Sharma v. State of Rajasthan*, (2014) 5 SCC 782 relating to the case of Danveer Singh would reflect the difference between the doctrine of res judicata and law of precedent. Res judicata operates in personam i.e. the matter in issue between the same parties in the former litigation, while law of precedent operates in rem i.e. the law once settled is binding on all under the jurisdiction of the High Court and the Supreme Court. Res judicata binds the parties to the proceedings for the reason that there should be an end to the litigation and therefore, subsequent proceeding inter se parties to the litigation is barred. Therefore, law of res judicata concerns the same matter, while law of precedent concerns application of law in a similar issue. In res judicata, the correctness of the decision is normally immaterial and it does not matter

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whether the previous decision was right or wrong, unless the erroneous determination relates to the jurisdictional matter of that body. [See *Makhija Construction & Engg. (P) Ltd. v. Indore Development Authority*, (2005) 6 SCC 304]”

26. The Commercial Court to hold against the appellant relied on two judgments of the Rajasthan High Court, namely, **Mohammed Arif Contractor** (*supra*) and **M/s Marudhar Construction** (*supra*). The finding of the Commercial Court was that in **Mohammed Arif** (*supra*) (judgment dated 08.04.2015) a learned single judge, while adjudicating a Section 11 Application, held an identical Clause 23 to be not an arbitration clause. **M/s Marudhar Construction** (*supra*) was a short order dated 06.05.2016 in a Section 11 Application which followed **Mohammed Arif** (*supra*).
27. The said judgments will not enure to the support of the respondents. In the present case, while adjudicating a Section 11 Application a learned single judge, who had jurisdiction, interpreted the contractual document and appointed an arbitrator. We have already held hereinabove that in the said order though the finding is not categoric, there is an implied holding about the existence and validity of the arbitration agreement. As held in **Nemi Chand** (*supra*) the correctness of the decision is immaterial and it did not matter whether the previous decision was right or wrong unless their erroneous determination relates to the jurisdiction of the body.
28. In an erudite judgment, speaking for this Court Rohinton Fali Nariman, J. in **Canara Bank** vs. **N.G. Subbaraya Setty and Another²**, summarised the principles thus:-

“34. Given the conspectus of authorities that have been referred to by us hereinabove, the law on the subject may be stated as follows:

34.1. The general rule is that all issues that arise directly and substantially in a former suit or proceeding between the same parties are res judicata in a subsequent suit or proceeding between the same parties. These would include issues of fact, mixed questions of fact and law, and issues of law.

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34.2. To this general proposition of law, there are certain exceptions when it comes to issues of law:

34.2.1. Where an issue of law decided between the same parties in a former suit or proceeding relates to the jurisdiction of the court, an erroneous decision in the former suit or proceeding is not *res judicata* in a subsequent suit or proceeding between the same parties, even where the issue raised in the second suit or proceeding is directly and substantially the same as that raised in the former suit or proceeding. This follows from a reading of Section 11 of the Code of Civil Procedure itself, for the Court which decides the suit has to be a court competent to try such suit. When read with Explanation I to Section 11, it is obvious that both the former as well as the subsequent suit need to be decided in courts competent to try such suits, for the “former suit” can be a suit instituted after the first suit, but which has been decided prior to the suit which was instituted earlier. An erroneous decision as to the jurisdiction of a court cannot clothe that court with jurisdiction where it has none. Obviously, a civil court cannot send a person to jail for an offence committed under the Penal Code. If it does so, such a judgment would not bind a Magistrate and/or Sessions Court in a subsequent proceeding between the same parties, where the Magistrate sentences the same person for the same offence under the Penal Code. Equally, a civil court cannot decide a suit between a landlord and a tenant arising out of the rights claimed under a Rent Act, where the Rent Act clothes a special court with jurisdiction to decide such suits. As an example, under Section 28 of the Bombay Rent Act, 1947, the Small Cause Court has exclusive jurisdiction to hear and decide proceedings between a landlord and a tenant in respect of rights which arise out of the Bombay Rent Act, and no other court has jurisdiction to embark upon the same. In this case, even though the civil court, in the absence of the statutory bar created by the Rent Act, would have jurisdiction to decide such suits, it is the statutory bar created by the Rent Act that must be given effect to as a matter of public policy. [See, *Natraj Studios (P) Ltd. v. Navrang Studios* at SCR p. 482]. An erroneous decision clothing the civil court with

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jurisdiction to embark upon a suit filed by a landlord against a tenant, in respect of rights claimed under the Bombay Rent Act, would, therefore, not operate as *res judicata* in a subsequent suit filed before the Small Cause Court between the same parties in respect of the same matter directly and substantially in issue in the former suit.

34.2.2. An issue of law which arises between the same parties in a subsequent suit or proceeding is not *res judicata* if, by an erroneous decision given on a statutory prohibition in the former suit or proceeding, the statutory prohibition is not given effect to. This is despite the fact that the matter in issue between the parties may be the same as that directly and substantially in issue in the previous suit or proceeding. This is for the reason that in such cases, the rights of the parties are not the only matter for consideration (as is the case of an erroneous interpretation of a statute *inter partes*), as the public policy contained in the statutory prohibition cannot be set at naught. This is for the same reason as that contained in matters which pertain to issues of law that raise jurisdictional questions. We have seen how, in *Natraj Studios*, it is the public policy of the statutory prohibition contained in Section 28 of the Bombay Rent Act that has to be given effect to. Likewise, the public policy contained in other statutory prohibitions, which need not necessarily go to jurisdiction of a court, must equally be given effect to, as otherwise special principles of law are fastened upon parties when special considerations relating to public policy mandate that this cannot be done.

34.3. Another exception to this general rule follows from the matter in issue being an issue of law different from that in the previous suit or proceeding. This can happen when the issue of law in the second suit or proceeding is based on different facts from the matter directly and substantially in issue in the first suit or proceeding. Equally, where the law is altered by a competent authority since the earlier decision, the matter in issue in the subsequent suit or proceeding is not the same as in the previous suit or proceeding, because the law to be interpreted is different.”

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29. The learned single judge, in the present case, when he entertained a Section 11 Application and interpreted a contractual document had jurisdiction to do so under Section 11. Right or wrong, that decision should bind. The respondents did not carry the order appointing an arbitrator in appeal. In view of the same, the holding in **SBP (supra)**, squarely applies and on the present facts the respondents could not have challenged the existence and validity of the arbitration clause before the arbitrator. For the very same reason, the judgments in **Mohammed Arif Contractor (supra)** and **M/s Marudhar Construction (supra)** can have no application to the present facts.
30. In the present case, the order appointing the Arbitrator read with the law laid down in **SBP (supra)**, clearly operates as a res judicata, insofar as the existence of and validity of the arbitration agreement between the parties is concerned. In the **SBP (supra)** regime, this was the legal position.
31. **SBP (supra)** also puts the matter beyond any controversy by holding that not only will the parties be bound before the Arbitrator with regard to the finding on existence and validity of the arbitration agreement they will also be bound during the subsequent stages of the proceedings which will include the Section 34 application stage, the Section 37 appeal stage and before this Court. The Commercial Court had missed the conceptual distinction between “Precedent” and “Res judicata” and consequently fell into an error.

CONCLUSION AND DIRECTIONS: -

32. In view of what we have held hereinabove, the Commercial Court and the High Court clearly erred in going into the existence and validity of Clause 23 and pronouncing that the said clause was not an arbitration clause. We, accordingly, set aside the judgment of the High Court dated 20.02.2020 in D.B. Civil Miscellaneous Appeal No. 2435 of 2019. The appeal stands allowed. The result will be that the proceedings before the Commercial Court in Arbitration Case No. 221 of 2018 will stand set aside and the matter is remitted to the Commercial Court, Judge No.3, Jaipur for hearing Arbitration Case No. 221 of 2018 on grounds other than what has been concluded hereinabove. We say so for the reason that while allowing the Section 34 application on the ground that Section 23 was not an arbitration clause, the Commercial Court recorded that the other objections

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were not considered. It is only fair that the matter should be remitted for consideration of the other objections. Considering the fact that the Award is of the year 2015, we direct the Commercial Court No. 3 to dispose of Arbitration Case No. 221 of 2018 within a period of three months from the date of receipt of this judgment. Parties to bear their own costs.

FACTS IN CIVIL APPEAL ARISING OUT OF SPECIAL LEAVE PETITION (CIVIL) NO. 8331 of 2021:-

33. Leave granted.
34. On 11.10.2007, the appellant was awarded work by the respondents for construction of the structure of 180 LIG skeleton flats (stilt + 10 storey) at Sector 29, Pratap Nagar, Sanganer, Jaipur, Rajasthan and entered into a contract agreement bearing No. 207/2007-08. The contract was for a lump sum value of Rs.4,58,05,217.45. The date of commencement was agreed to be 20.10.2007 and completion was 19.07.2008. Additional work to the tune of Rs. 64,01,689/- was awarded. The appellant raised an Escalation Bill amounting to Rs.55,77,080/- under Clause 45 of the Agreement in order to recover the prices of labour and material which had arisen during the period of completion of the construction work. Since the Escalation Bill was not paid and also penalty levied of Rs.2.5 lakhs was not refunded and claiming that the respondents failed to constitute an empowered Standing Committee under Clause 23 of the Agreement, a Section 11 application came to be filed. By an order of 23.05.2014, a learned Single Judge held that since indisputably the Committee constituted was not in terms of Clause 23, appointed Mr. Justice Anoop Chand Goyal (Retd.) as the sole Arbitrator. The sole Arbitrator entered upon the reference and passed an Award on 25.02.2016 directing refund of Rs. 2.50 lakhs as penalty and awarding escalation charge to the tune of Rs.5,09,468/-. Further interest @ 10% from 13.08.2010 was awarded. Even though the Award was passed on 25.02.2016, the arbitral proceedings commenced before the commencement of the Amendment Act of 2015. Before the Arbitrator, the respondents contended that Clause 23 of the Agreement was not an arbitration clause. The arbitrator held that since the Section 11 application stood allowed, the Arbitral Tribunal cannot sit over the order of the High Court.

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35. The respondents filed a Section 34 application challenging the award. The Commercial Court, by relying on the judgments of the Rajasthan High Court in ***Mohd. Arif Contractor (Supra)*** and ***Marudhar Construction (Supra)*** held that Clause 23 was not an arbitration clause. In appeal before the High Court, the findings of the Commercial Court were confirmed.
36. Our reasoning and conclusion in Civil Appeal arising out of Special Leave Petition (C) No. 8299 of 2021 fully applies to the present set of facts. Applying the same reasoning, the appeal would stand allowed. The order of the High Court dated 20.02.2020 in D.B. Civil Miscellaneous Appeal No. 796 of 2019 stands set aside. The consequence will be that the matter will stand remitted to the Commercial Court, Judge No.3, Jaipur in hearing Arbitration Case No. 114 of 2018 on grounds other than what has been concluded hereinabove. We say so for the reason that while allowing the Section 34 application on the ground that Section 23 was not an arbitration clause, the Commercial Court recorded that the other objections are not considered. In view of our holding hereinabove, it is only fair that the matter should be remitted for consideration of other objections. Considering the fact that the Award is of the year 2016, we direct the Commercial Court No.3 to dispose of Arbitration Case No. 114 of 2018 within a period of three months from the date of receipt of this judgment. Parties to bear their own costs.
37. Both the appeals are disposed of in the above terms.

Result of the case: Appeals disposed of.

[†]Headnotes prepared by: Nidhi Jain

**Ankhim Holdings Pvt. Ltd. & Anr.
v.**

Zaveri Construction Pvt. Ltd.

(Civil Appeal No. 779 of 2026)

04 February 2026

[J.B. Pardiwala and K.V. Viswanathan, JJ.]

Issue for Consideration

Whether the High Court was justified in saying that the proceedings held by the Arbitral Tribunal on the seven relevant dates, *i.e.*, from 17.03.2022 to 25.08.2022 were liable to be declared as nullity on the premise that those proceedings were undertaken during the period of moratorium u/s.14 of the Insolvency and Bankruptcy Code, 2016.

Headnotes[†]

Arbitration and Conciliation Act, 1996 – s.11, s.15(2), s.15(3), s.17 and s.37 – The appellants and respondent (now under liquidation) entered into a partnership firm to develop and construct an SRA project – Dispute arose between them – The High Court appointed an arbitrator to arbitrate the disputes and differences between the parties – The NCLT admitted the respondent to CIRP and imposed a moratorium u/s.14 of IBC – Meanwhile, various applications were filed by both the appellants and respondent under provisions of the Act, 1996 before the Arbitral Tribunal and the High Court – Pursuant thereto, various orders were passed by the Arbitral Tribunal and the High Court – The High Court by its impugned judgment and order appointed substitute arbitrator to adjudicate the disputes and differences between the appellants and the respondent – However, the High Court proceeded to observe the all proceedings undertaken by the Arbitral Tribunal between 26.09.2019 and 26.08.2022 respectively being hit by the moratorium could be said to be a nullity – Correctness:

Held: Since the appointment in the case at hand was made in terms of the Act, 1996, the original provision applicable to the appointment of the arbitrator would be s.11 of the Act, 1996 – The position of law as regards s.11 is well settled – It affords the Court

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with a very limited scope essentially requiring the Court only to make *prima facie* finding that an arbitration agreement exists – The High Court could be said to have travelled beyond its vested jurisdiction including by subsuming jurisdictions expressly made unavailable to it including s.37 of the Act, 1996 – Having regard to the plain language of sub-section (2) and sub-section (4) of s.15 respectively, the High Court exceeded in its jurisdiction while taking the view that the proceedings held by the Arbitral Tribunal between 17.03.2022 and 25.08.2022 are a nullity because of the operation of moratorium – The proper and legal course for the High Court acting u/s.15(2) of the Act, 1996, should have been to appoint a substitute arbitrator to continue from the existing stage of the proceedings – The impugned part of the judgment rendered by the High Court could be said to have resulted in a situation where the arbitration proceedings would have to be restarted *de novo* and the same would have a direct impact on the sale of flats made pursuant to the s.17 orders of the Tribunal – This could be both inequitable and inefficient – Thus, the part of the impugned order by which the High Court declared the proceedings undertaken between 17.03.2022 and 25.08.2022 as a nullity deserves to be interfered with and is hereby set aside. [Paras 34, 35, 37, 44-46]

Case Law Cited

Interplay Between Arbitration Agreements under Arbitration and Conciliation Act, 1996 & Stamp Act, 1899, In re [2023] 15 SCR 1081 : (2024) 6 SCC 1 – followed.

Yashwith Constructions Pvt. Ltd. v. Simplex Concrete Piles India Ltd. & Anr. [2006] Supp. 3 SCR 96 : (2006) 6 SCC 204; *Official Trustee v. Sachindra Nath Chatterjee* [1969] 3 SCR 92 : 1968 SCC Online SC 103 – relied on.

Hindustan Construction Co. Ltd. v. Bihar Rajya Pul Nirman Nigam Ltd., 2025 SCC OnLine SC 2578; *Shailesh Dhairyawan v. Mohan Balkrishna Lulla* [2015] 12 SCR 70 : (2016) 3 SCC 619 – referred to.

List of Acts

Arbitration and Conciliation Act, 1996; Constitution of India; Insolvency and Bankruptcy Code, 2016.

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List of Keywords

Home-buyers; Jurisdiction; Section 11(6) of Arbitration and Conciliation Act, 1996; Section 15(2) of Arbitration and Conciliation Act, 1996; Section 15(3) of Arbitration and Conciliation Act, 1996; Section 14 of Insolvency and Bankruptcy Code, 2016; Minimal Judicial Intervention; Self-Contained Code; Doctrine of Nullity; SRA Project; Corporate Insolvency Resolution Process; Third-Party Rights; Article 142 of Constitution; Substitute Arbitrator.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 779 of 2026

From the Judgment and Order dated 12.04.2024 of the High Court of Judicature at Bombay in CAP(L) No. 30650 of 2023

Appearances for Parties

Advs. for the Appellant(s):

Ashim Sood, Saahil Memon, Senu Nizar, Ekansh Gupta, Kartikeya Jaiswal, Prateek Kundu, Karan Kumar, Ms. Pallavi Pratap.

Adv. for the Respondent(s):

Tushar Mehta, S.G., Sanjay Kapur, Surya Prakash, Ms. Shubhra Kapur, Ms. Santha Smruthi, Shakti Kanta Pattanaik, Santosh Kumar.

Judgment / Order of the Supreme Court

Order

1. Leave granted.
2. This appeal arises from the judgment and order passed by the High Court of Bombay dated 12.04.2024 in Commercial Arbitration Petition (L) No. 30650/2023 by which the petition filed by the appellants herein before the High Court under Section 15(2) of the Arbitration and Conciliation Act, 1996 (for short, “the Act, 1996”) came to be disposed of by substituting the earlier Arbitrator appointed by the High Court, however, with a rider that the arbitral proceedings that took place on seven particular dates, i.e., from 17.03.2022 to 25.08.2022 could be said to be a nullity as those proceedings were undertaken at the time when the respondent company was under a moratorium as envisaged under Section 14 of the IBC, 2016.

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3. The short facts giving rise to this appeal may be summarized as under:-
- (i) The appellants and respondent (now under liquidation) entered into a partnership firm named “M/s Anmol Alliance” to develop and construct an SRA project of Andheri Shiv Shakti CHS Limited admeasuring 4514 square metres along with 203 tenements standing thereon situated at CTS No. 195(pt) and 825(pt), Ambivali Village at Indira Nagar, Jay Prakash Road, Andheri (West), Mumbai.
 - (ii) It appears that disputes cropped up between the appellants and the respondent. In such circumstances, the appellants preferred an application under Section 9 of the Act, 1996, i.e., Commercial Arbitration Petition No.347/2019 against the respondent. Pursuant to the filing of Section 9 petition, an interim arrangement was worked out and based on the same, the parties proceeded with the project.
 - (iii) On 09.07.2019, the Bombay High Court passed an order in Commercial Arbitration Petition No.347/2019 referred to above accepting the minutes of order recording them as consent terms between the parties.
 - (iv) The High Court proceeded to appoint Hon’ble Mr. Justice J.N. Patel (former Chief Justice of the Calcutta High Court) to act as the Arbitrator to arbitrate the disputes and differences between the parties.
 - (v) It appears from the materials on record that on 26.09.2019, the NCLT Mumbai passed an order in Company Petition (I.B.) No.411/2019 admitting the respondent to CIRP and imposing a moratorium under Section 14 of the IBC.
 - (vi) On 03.11.2020, the appellants filed I.A. No.(L) 6167/2020 under Section 9 of the Act, 1996, before the High Court whereby they sought to restrain the RP of the respondent from obstructing the sale of certain flats and further sought permission to sell those flats in the light of the consent terms recorded in the order dated 09.07.2019 referred to above. The RP filed its written submissions to oppose the reliefs which were prayed for in I.A.(L) 6167/2020 referred to above.

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- (vii) On 14.10.2021, the appellants preferred one another Section 9 petition, i.e., I.A. No.(L) 24302/2021 seeking permission to execute the agreement for sale with respect to flat numbers 1001, 1302 and 704, respectively.
- (viii) On 15.03.2022, the High Court passed an order in I.A. No.(L) 24302/2021 and I.A. No.(L) 6167/2020 respectively referred to above recording a finding that the Interim Resolution Professional had become *functus officio* and no order for liquidation was passed by the NCLT.
- (ix) The High Court proceeded to dispose of the Section 9 petitions while granting liberty to the appellants herein to move the applications under Section 17 of the Act, 1996, before the Arbitrator.
- (x) In pursuance of the order dated 15.03.2022 referred to above, the appellants herein preferred Section 17 applications on 17.03.2022 before the Arbitrator. The Arbitrator proceeded to pass an order, scheduling the hearing for Section 17 applications.
- (xi) On 25.03.2022, the respondent preferred an application under Section 16 of the Act, 1996, seeking to challenge the jurisdiction of the Arbitral Tribunal on the ground of the moratorium under Section 14 of the IBC.
- (xii) By order dated 29.03.2022, the Arbitral Tribunal rejected the Section 16 application referred to above, filed by the IRP of the respondent, seeking stay of the arbitration proceedings in light of the moratorium imposed under Section 14 of the IBC.
- (xiii) On 29.03.2022, by a separate order, the Arbitral Tribunal proceeded to pass an order in I.A. No.(L) 24302/2021, permitting the appellants herein to execute agreements for sale in respect of flat numbers 1001, 1302 and 704 respectively.
- (xiv) On 20.04.2022, the Arbitral Tribunal passed an order in I.A. No.(L) 6167/2020, permitting the appellants to sell the flat numbers 907 and 908 respectively.
- (xv) In pursuance of the orders dated 29.03.2022 and 20.04.2022 respectively, the appellants between July, 2022 and February, 2023 entered into agreements for sale with third parties for the flat numbers 907, 908, 1001, 1302 and 704 respectively. While

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we were recording the facts as aforesaid, the learned counsel appearing for the appellants brought to our notice that these flats referred to above have not been sold.

4. On 26.08.2022, the NCLT proceeded to pass an order in I.A. No.2278/2020 initiating liquidation proceedings against the respondent.
5. On 24.04.2023, the respondent through the Liquidator filed a Statement of Defence. On 24.04.2023, the Arbitral Tribunal passed an order directing the Liquidator to seek clarification from the High Court in respect of the continuation of the Arbitration proceedings.
6. On 25.08.2023, the High Court passed an order dismissing I.A. No.(L) 14336/2023 filed by the Liquidator seeking a declaration that the disputes between the parties were non-arbitrable.
7. On 11.10.2023, the Arbitral Tribunal passed an order terminating the arbitration proceedings.
8. On 01.11.2023, the appellants herein filed Commercial Arbitration Petition No.30650/2023 before the High Court seeking appointment of substitute Arbitrator and for extension of time for passing arbitral award.
9. The High Court by its impugned judgment and order appointed Hon'ble Mr. Justice R.M. Savant (Retired Judge of the Bombay High Court) as sole arbitrator to adjudicate the disputes and differences between the appellants and the respondent. However, the High Court proceeded to observe the all proceedings undertaken by the Arbitral Tribunal between 26.09.2019 and 26.08.2022 respectively being hit by the moratorium could be said to be a nullity.
10. The relevant observations of the High Court read thus:-

"14] The submission of Ms. Singhania, by relying upon Section 12 prescribing timeline for completion of IRP and her submission that the CIRP shall be completed within the period of 180 days and since there is no extension sought by the RP, it has come to end, do not deserve any consideration in light of the proviso to sub section (4) of Section 14. The effect of proviso is crystal clear, that the order of moratorium shall have effect till completion of CIRP, but during the CIRP period, if the adjudicating authority approves the resolution plan under sub section

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(1) of Section 31, or if it passes the order of liquidation under Section 33, the moratorium shall ceased to have effect, either from the date of such approval or liquidation order, as the case may be.

The order passed by the NCLT on 26.08.2022 clearly indicates that since resolution plan could not be approved, and CoC resolved to liquidate the company, the Liquidator is appointed under Section 34 and a fresh moratorium is declared to have commenced under Section 33 (5).

15] In the wake of aforesaid situation, which emerges from the facts placed before me, the moratorium imposed under Section 14 by order dated 26.09.2019, continued to be in operation till 26.08.2022, when it is declared to cease to have its effect and the company is put into fresh moratorium under Section 33(5) of the IBC, by the NCLT.

After this date, the ongoing arbitration proceedings which were in abeyance can continue, but all those which are held between 26.09.2019 and 26.08.2022, are hit by the moratorium, and this remains the position, despite this Court on 15.03.2022 permitting its revival, as it was misled to believe that on 15.03.2022, the IP has become functus officio. It is in fact only on 26.08.2022, the Tribunal appointed the Liquidator and directed him to proceed with the process of liquidation in the manner laid down in Chapter 3 of Part II of the IBC, 2016, when the Interim Application filed by the RP for liquidation of the Corporate Debtor was allowed.

16] It is for the aforesaid reason, the proceedings held by the Arbitral Tribunal on the 7 dates i.e. from 17.03.2022 to 25.08.2022, are liable to be declared as nullity, but needless to state that the proceedings can be revived before the substituted arbitrator, as now there is no embargo in continuing the arbitration proceedings and by conferring the liberty upon the parties to revive its application and by permitting the arbitral tribunal to pass appropriate orders thereupon including application filed under Section 17 by the Petitioner, I deem it appropriate to substitute the Arbitrator who has terminated the proceedings.”

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11. In such circumstances referred to above, the appellants are here before this Court with the present appeal.

SUBMISSIONS ON BEHALF OF THE APPELLANTS :-

12. Mr. Ashim Sood, the learned counsel appearing for the appellants would submit that the High Court in exercise of its jurisdiction under Section 15(2) of the Act, 1996, could not have declared the proceedings undertaken by the Arbitral Tribunal between 17.03.2022 and 25.08.2022 as a nullity on the ground that those proceedings were undertaken while the respondent was under a moratorium under Section 14 of the IBC. He would submit that all that was required was to substitute the Arbitrator.
13. He would further submit that the jurisdiction of the High Court under Section 15(2) of the Act, 1996, is circumscribed compared to the jurisdiction that may be exercised under Section 11 of the Act, 1996.
14. Mr. Sood invited our attention to the language employed under sub-section (2) of Section 15 of the Act, 1996. He laid much emphasis on the expression "*a substitute arbitrator shall be appointed according to the rules that were applicable to the appointment of the arbitrator being replaced*".
15. By relying on the expression referred to above, Mr. Sood would submit that the powers of the Court under Section 15(2) of the Act must be defined with reference to the Court's powers under Section 11 of the Act, 1996.
16. To fortify the aforesaid submission, he placed reliance on the decision of this Court in the case of *Yashwith Constructions Pvt. Ltd. v. Simplex Concrete Piles India Ltd. & Anr.* reported in (2006) 6 SCC 204.
17. Thereafter, Mr. Sood invited our attention to sub-section (4) of Section 15 of the Act, 1996. Relying on the same, he would submit that the plain reading of the provision itself makes it clear that any order or ruling of the Arbitral Tribunal prior to the replacement of an Arbitrator under Section 15 would not be rendered invalid, solely because of some change in the composition of the Arbitral Tribunal, unless otherwise agreed between the parties.
18. Mr. Sood submitted that if what has been held by the High Court is to be given effect, it will have its own implications in so far as all those flats which have already stood transferred to the third parties.

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19. In the last, Mr. Sood submitted that the High Court in exercise of its jurisdiction under the Act, 1966, could not have nullified orders which it had otherwise no jurisdiction to consider. In this context, the learned counsel relied on the decision of this Court in *Official Trustee v. Sachindra Nath Chatterjee*, reported in 1968 SCC Online SC 103.
20. In such circumstances referred to above, the learned counsel prayed that there being merit in the appeal, the same may be allowed appropriately.

SUBMISSIONS ON BEHALF OF THE SBI :-

21. Mr. Tushar Mehta, the learned Solicitor General assisted by the learned counsel, Mr. Sanjay Kapur appeared for the State Bank of India. According to Mr. Mehta, the flats referred to above were mortgaged with the Bank. In such circumstances, Mr. Mehta would submit that the interest of the Bank be protected.
22. At this stage, Mr. Sood, on instructions from his client, made a statement that the flats which have been referred to above were never mortgaged with the State Bank at any point of time. There was no charge of the Bank over those flats.

SUBMISSIONS ON BEHALF OF THE OFFICIAL LIQUIDATOR :-

23. We also heard Mr. Santosh Kumar, the learned counsel appearing for the Liquidator. According to the learned counsel for the Liquidator, no error, not to speak of any error of law could be said to have been committed by the High Court in passing the impugned order.
24. He would submit that the High Court is justified in taking the view that all the proceedings/transactions which took place between 17.03.2022 and 25.08.2022, i.e., during the moratorium period could be said to be a nullity.
25. He seeks to rely upon the provisions of Section 14(4) of the IBC including the *proviso* to sub-section (1) of Section 23 of the IBC.

ANALYSIS :-

26. Having heard the learned counsel appearing for the parties and having gone through the materials on record, the only question that falls for our consideration is whether the High Court was justified in saying that the proceedings held by the Arbitral Tribunal on the

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seven relevant dates, i.e., from 17.03.2022 to 25.08.2022 were liable to be declared as nullity on the premise that those proceedings were undertaken during the period of moratorium under Section 14 of the IBC.

27. We must look into the provisions of Section 15 of the Act, 1996. Section 15 reads thus:-

*“15. Termination of mandate and substitution of arbitrator. —
(1) In addition to the circumstances referred to in section 13 or section 14, the mandate of an arbitrator shall terminate—*

(a) where he withdraws from office for any reason; or

(b) by or pursuant to agreement of the parties.

(2) Where the mandate of an arbitrator terminates, a substitute arbitrator shall be appointed according to the rules that were applicable to the appointment of the arbitrator being replaced.

(3) Unless otherwise agreed by the parties, where an arbitrator is replaced under sub-section (2), any hearings previously held may be repeated at the discretion of the arbitral tribunal.

(4) Unless otherwise agreed by the parties, an order or ruling of the arbitral tribunal made prior to the replacement of an arbitrator under this section shall not be invalid solely because there has been a change in the composition of the arbitral tribunal.”

28. A bare perusal of Section 15 referred to above indicates that Section 15(2) is not a standalone provision and should be read with Section 15(3) and Section 15(4) respectively.
29. Section 15(2) states that when mandate of an arbitrator is terminated under Section 14, a substitute arbitrator has to be appointed. It further states that such an appointment must be made according to the rules that were made applicable to the appointment of the arbitrator being replaced.
30. Further, Section 15(3) provides the course of action after the arbitrator has been replaced under sub-section (2). The essential ingredients of the provision are thus:-

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- i. Any hearing previously held may be repeated;
- ii. The repetition of the hearing is at the discretion of the arbitral tribunal;
- iii. However, such repetition of the hearing is subject to the agreement between the parties;

If the parties agree for repetition of hearing, the term “may” transforms into “shall”. Whereas, if the parties agree for non-repetition of hearing, the term “may” transforms into “shall not”. In case the parties fail to arrive at a conclusion, the arbitral tribunal would decide whether the hearing already conducted before his substitution would be repeated.

31. With a view to dispel any doubt and lend clarity, we deem it appropriate to state that the parties can come to an agreement on the question of re-hearing either prior to the stage of substitution being reached or after the arbitrator has been substituted.
32. At this stage, we must look into the dictum as laid by this Court in *Yashwith Constructions Pvt. Ltd. (supra)*. In the said case, this Court held that under Section 15(2) of the Act, 1996, the appointment of the substitute Arbitrator must be in accordance with the original agreement or provision applicable to the appointment of the Arbitrator at the initial stage.
33. We quote the relevant observations made by this Court in *Yashwith Constructions Pvt. Ltd. (supra)*:-

“4. In our view, the learned Chief Justice and the Division Bench have rightly understood the scope of Section 15 of the Act. When the arbitrator originally appointed in terms of the arbitration agreement withdrew for health reasons, the Managing Director, as authorised originally by the arbitration agreement, promptly appointed a substitute arbitrator. It is true that in the arbitration agreement there is no specific provision authorising the Managing Director to appoint a substitute arbitrator if the original appointment terminates or if the originally appointed arbitrator withdraws from the arbitration. But, this so-called omission in the arbitration agreement is made up by the specific provision contained in Section 15(2) of the Act. The withdrawal of an arbitrator from the office for any reason is within

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the purview of Section 15(1)(a) of the Act. Obviously, therefore, Section 15(2) would be attracted and a substitute arbitrator has to be appointed according to the rules that are applicable for the appointment of the arbitrator to be replaced. Therefore, what Section 15(2) contemplates is an appointment of the substituted arbitrator or the replacing of the arbitrator by another according to the rules that were applicable to the appointment of the original arbitrator who was being replaced. The term "rules" in Section 15(2) obviously referred to the provision for appointment contained in the arbitration agreement or any rules of any institution under which the disputes were referred to arbitration. There was no failure on the part of the party concerned as per the arbitration agreement, to fulfil his obligation in terms of Section 11 of the Act so as to attract the jurisdiction of the Chief Justice under Section 11(6) of the Act for appointing a substitute arbitrator. Obviously, Section 11(6) of the Act has application only when a party or the person concerned had failed to act in terms of the arbitration agreement. When Section 15(2) says that a substitute arbitrator can be appointed according to the rules that were applicable for the appointment of the arbitrator originally, it is not confined to an appointment under any statutory rule or rule framed under the Act or under the scheme. It only means that the appointment of the substitute arbitrator must be done according to the original agreement or provision applicable to the appointment of the arbitrator at the initial stage. We are not in a position to agree with the contrary view taken by some of the High Courts."

(Emphasis supplied)

34. Since the appointment in the case at hand was made in terms of the Act, 1996, the original provision applicable to the appointment of the arbitrator would be Section 11 of the Act, 1996.
35. The position of law as regards Section 11 is well settled. It affords the Court with a very limited scope essentially requiring the Court only to make *prima facie* finding that an arbitration agreement exists.

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36. The High Court could be said to have travelled beyond its vested jurisdiction including by subsuming jurisdictions expressly made unavailable to it including Section 37 of the Act, 1996.
37. Having regard to the plain language of sub-section (2) and sub-section (4) of Section 15 respectively referred to above, we are in agreement with the submission of Mr. Sood, the learned counsel appearing for the appellants that the High Court exceeded in its jurisdiction while taking the view that the proceedings held by the Arbitral Tribunal between 17.03.2022 and 25.08.2022 are a nullity because of the operation of moratorium.
38. In *Interplay Between Arbitration Agreements under Arbitration and Conciliation Act, 1996 & Stamp Act, 1899*, In re, (2024) 6 SCC 1, a five-Judge Bench of this Court held that:-

“92. The Arbitration Act is a self-contained code inter alia with respect to matters dealing with appointment of arbitrators, commencement of arbitration, making of an award and challenges to the arbitral award, as well as execution of such awards. [Pasl Wind Solutions (P) Ltd. v. GE Power Conversion (India) (P) Ltd., (2021) 7 SCC 1 : (2021) 3 SCC (Civ) 702; Kandla Export Corpn. v. OCI Corpn., (2018) 14 SCC 715 : (2018) 4 SCC (Civ) 664]. When a self-contained code sets out a procedure, the applicability of a general legal procedure would be impliedly excluded. [Subal Paul v. Malina Paul, (2003) 10 SCC 361]. Being a self-contained and exhaustive code on arbitration law, the Arbitration Act carries the imperative that what is permissible under the law ought to be performed only in the manner indicated, and not otherwise. Accordingly, matters governed by the Arbitration Act such as the arbitration agreement, appointment of arbitrators and competence of the Arbitral Tribunal to rule on its jurisdiction have to be assessed in the manner specified under the law. The corollary is that it is not permissible to do what is not mentioned under the Arbitration Act. Therefore, provisions of other statutes cannot interfere with the working of the Arbitration Act, unless specified otherwise.”

(Emphasis supplied)

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39. We may refer to the decision in *Hindustan Construction Co. Ltd. v. Bihar Rajya Pul Nirman Nigam Ltd.*, reported in 2025 SCC OnLine SC 2578, wherein while dealing with an application seeking review of appointment of arbitrator made after extending the mandate of the arbitrator twice, the High Court directed the arbitrator not to continue the arbitral proceedings. This was in view of the fact that the arbitrator was appointed as a President of the State Consumer Dispute Redressal Commission. The Court held that when an arbitrator is unable to act owing to recusal, the proper course would be to invoke Section 15(2) and appoint a substitute arbitrator to continue from the existing stage of the proceedings. The observations of the Court succinctly capture that substitution preserves continuity, and prior proceedings remain valid unless either party objects. The observations read thus:-

“16. Once the High Court had accepted the existence of a valid arbitration agreement and appointed an arbitrator, its later interference on the same question of the validity of Clause 25 amounted, in substance, to an appeal disguised as supervisory review. If the arbitrator had become unable to act owing to recusal or disqualification, the proper course was to invoke Section 15(2) and appoint a substitute arbitrator to continue from the existing stage of the proceedings.

17. Sections 15(1) and 15(2) clearly provide that an arbitrator’s mandate terminates upon withdrawal or by agreement of the parties, and that a substitute arbitrator must be appointed following the same procedure as the original appointment. The judgments in Yashwith Constructions (P) Ltd. v. Simplex Concrete Piles (India) Ltd.³⁶, ACC Ltd. v. Global Cements Ltd.³⁷, and Union of India v. Pradeep Vinod Construction Company³⁸, reaffirm that such substitution preserves continuity, and prior proceedings remain valid unless either party objects. In light of the same, the High Court’s decision to suspend the arbitration altogether, instead of ordering substitution, was contrary to settled law. The exercise of jurisdiction therefore calls for correction under Article 136 of the Constitution. Accordingly, the impugned judgment and order of the High Court is set aside.”

(Emphasis supplied)

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40. The aforesaid dictum of law makes it clear that where the Act, 1996, provides procedures for assailing orders, or prohibits such orders of a Tribunal from being assailed, then no alternate procedure can be adopted by a court whose jurisdiction derives from a provision of the Act, 1996, itself. Section 37 of the Act, 1996, provides for appeals against orders under Section 17 of the Act, 1996, and also against orders accepting pleas under Section 16 of the Act, 1996, though orders rejecting Section 16 applications are not subject to judicial interference under the Act, 1996.
41. Following the dictum as laid in *Interplay* (supra), it would be impermissible for a court acting under Section 15(2) to adopt a procedure whereby it exercises jurisdiction barred to it by the Act, 1996 as has occurred in the present case: (i) the High Court has set aside an order rejecting an application under Section 16 – which the Act, 1996, does not countenance in any provision; (ii) the High Court has set aside Section 17 orders but not in a proceeding under Section 37; and (iii) the High Court has set aside further procedural orders, which again is not a power vested in any court exercising jurisdiction under the Act, 1996.
42. We also find merit in the submission of Mr. Sood that the High Court is not empowered to nullify orders which it had no jurisdiction to consider. In this context, we may refer to and rely upon the decision of this Court in *Official Trustee* (supra). The relevant observations read thus:-

“15. From the above discussion it is clear that before a Court can be held to have jurisdiction to decide a particular matter it must not only have jurisdiction to try the suit brought but must also have the authority to pass the orders sought for. It is not sufficient that it has some jurisdiction in relation to the subject-matter of the suit. Its jurisdiction must include the power to hear and decide the questions at issue, the authority to hear and decide the particular controversy that has arisen between the parties...”

X X X X

17.[...]The jurisdiction conferred on the court under Section 34 is a limited jurisdiction. Under that provision, the court has not been conferred with overall jurisdiction

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in matters arising under a Trust deed. The statute has prescribed what the court can do and inferentially what it cannot do. From the fact that the court has been conferred power to grant only certain reliefs it follows as a matter of law that the court has been prohibited from granting any other relief.[...]

X

x

x

x

29. From whatever angle we may examine the validity of the order made by Ramfry, J., it appears clear to us, that the said order was outside the jurisdiction of the learned judge. It was not merely a wrong order, or an illegal order, it was an order which he had no competence to make. It is not merely an order that he should not have passed but it is an order that he could not have passed and therefore a void order."

(Emphasis supplied)

43. There is no doubt that the High Court assumed and exercised power which has clearly not been conferred by the Act, 1996, more particularly, wherein the statute itself envisages minimal judicial intervention.
44. We are of the view that the proper and legal course for the High Court acting under Section 15(2) of the Act, 1996, should have been to appoint a substitute arbitrator to continue from the existing stage of the proceedings. The impugned part of the judgment rendered by the High Court could be said to have resulted in a situation where the arbitration proceedings would have to be restarted *de novo* and the same would have a direct impact on the sale of flats made pursuant to the Section 17 orders of the Tribunal. This could be both inequitable and inefficient. This Court has time and again said that the object of speedy resolution of disputes by arbitration would best be subserved by a substitute arbitrator continuing at the point at which the earlier arbitrator has left off. [See: *Hindustan Construction Co. Ltd. v. Bihar Rajya Pul Nirman Nigam Ltd.*, 2005 SCC OnLine SC 2578; *Shailesh Dhairyawan v. Mohan Balkrishna Lulla*, (2016) 3 SCC 619]

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45. For all the foregoing reasons, we are of the view that the part of the impugned order by which the High Court declared the proceedings undertaken between 17.03.2022 and 25.08.2022 as a nullity deserves to be interfered with.
46. In the result, this appeal succeeds in part. The impugned order to the extent it says that the proceedings held by the Arbitral Tribunal on the seven dates, i.e., from 17.03.2022 to 25.08.2022, are a nullity is hereby set aside.
47. Considering the long lapse of time and also the fact that third party rights have been created (home buyers rights have come into play) we, in exercise of our jurisdiction under Article 142 of the Constitution of India declare these transactions to be lawfully valid.
48. The impugned judgment and order of the High Court stands modified to the aforesaid extent.
49. The appeal stands disposed of accordingly.
50. Pending application(s), if any, also stand disposed of.

Result of the case: Appeal disposed of.

[†]Headnotes prepared by: Ankit Gyan

Dr. Anand Rai
v.
State of Madhya Pradesh & Anr.

(Criminal Appeal No. 814 of 2026)

10 February 2026

[Sanjay Karol* and Nongmeikapam Kotiswar Singh, JJ.]

Issue for Consideration

Issue arose as regards the correctness of the judgment of High Court wherein it dismissed the accused's appeal against the order of the Special Judge whereby his prayer for discharge u/s.227 CrPC was allowed in part arising out of proceedings wherein charges were framed against him under IPC and s.3(2)(v), 3(2)(va) SC/ST Act.

Headnotes[†]

Code of Criminal Procedure, 1973 – s.227 – Discharge under – Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 – ss.3(1)(r), 3(1)(s), 3(2)(va) – Altercation and scuffle in a gathering – Registration of FIR – Discharge application filed by the accused – Trial court partly allowed the application – However, the High Court dismissed the appeal – Correctness:

Held: For a charge u/ss.3(1)(r), 3(1)(s), 3(2)(va) of the SC/ST Act to be established, several elements must be present – Accused must first commit an offence under the IPC, which are punishable with ten or more years of imprisonment, the act must be directed against a member of a Scheduled Caste or Scheduled Tribe, or against property that belongs to them, reflecting the special protection the law affords to them, and the accused must have knowledge that the victim belongs to a Scheduled Caste or Scheduled Tribe or that the property belongs to such a person – On facts, no material on record to establish knowledge on part of the accused – Impugned judgment of the High Court, does not deal at all with the charge under SC/ST Act, it only stated that the trial court 'assigned elaborate reasons' – Those reasons are lacking and insufficient – Only for

* Author

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the reason that on a facial analysis of the evidence placed on record, some of the charges of the IPC, appear to be met, the SC/ST Sections have also been charged against the accused – Apparent evidence on record no way sufficient for facial analysis of the case at hand, or enough to distinguish suspicion from grave suspicion – No averment whatsoever that the complainant was a member of the SC/ST Community – Complaint, and subsequent statements u/s.161 CrPC, both, appear to be lacking in averments for caste motivated acts allegations, one where intent is absent, and the other where knowledge is apparently present, seems difficult to accept – High Court in deciding the appeal against the partial order of discharge, not carried out its duty as the first court of appeal – Charges upon the accused in so far as the SC/ST Act quashed – Matter remitted back to the trial court. [Paras 10, 14-16, 20]

Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 – s.14A – Appeal – Powers of High Court as appellate court:

Held: s.14A does not curtail or dilute the ordinary appellate powers of the High Court – High Court does not function as a revisional or supervisory Court while exercising jurisdiction u/s.14-A but assumes the role of a first appellate court – Mechanical affirmation of the order of the Special Court, without independent scrutiny, would thus, be inconsistent with settled appellate jurisprudence and would amount to a failure to exercise jurisdiction – When the generally applicable principles are applied to an appeal u/s.14-A arising from a threshold order, the High Court's role, though appellate in nature, stands circumscribed by the limits governing discharge – High Court may examine whether the allegations disclose the basic statutory ingredients of the offence under the Act, including whether the alleged act was committed on account of the victim's caste and whether other foundational requirements are satisfied – Where these ingredients are conspicuously absent, interference is justified, as continuation of proceedings would amount to an abuse of the process of law – Even while exercising first appellate jurisdiction, High Court cannot, at the discharge or *prima facie* stage, adjudicate upon disputed questions of fact, assess the reliability of witnesses, or compare the prosecution case with the defence version – To do so would collapse the distinction between trial and

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threshold scrutiny and would result in a premature determination of guilt or innocence – Appellate power u/s.14-A must be exercised in harmony with the broader framework of criminal procedure – High Court duty bound, as a first appellate Court, to independently apply its mind and correct errors committed by the Special Court, it must remain conscious of the stage of the proceedings and the corresponding limits of judicial scrutiny – This calibrated approach ensures that the protective object of the SC/ST Act is preserved, while simultaneously safeguarding against mechanical application of its provisions in cases where the statutory ingredients are not even *prima facie* disclosed. [Paras 18-19]

Criminal law – Stage of framing of charge or discharge – Power of court:

Held: At the stage of framing of charge or considering discharge, the Court is not dealing with an abstract legal exercise, rather with real people, real anxieties, and real weight of criminal prosecution – Judicial responsibility at this stage calls for care, balance, and an honest engagement with the facts on record – Power to frame a charge is not meant to be exercised by default or out of caution alone – When the material placed before the Court, taken at face value, does not disclose the ingredients of an offence, the law expects the Court to keep such a case aside – Discharge is not a technical indulgence but an essential safeguard – Court must consciously distinguish between a genuine case that warrants a trial and one that rests only on suspicion or assumption or for that matter without any basis – To allow a matter to proceed despite the absence of a *prima facie* case is to expose a person to the strain, stigma, and uncertainty of criminal proceedings without legal necessity – Fidelity to the rule of law requires the Court to remember that the process itself can become the punishment if this responsibility is not exercised with care – This responsibility weighs heaviest on trial courts, which are the first courts – Sensitivity, fairness, and legal discipline shown at this stage shape how ordinary citizens understand justice – Impression a trial court creates, through its approach to facts and law, often becomes the impression people carry of the entire judicial system, thus, at every stage and especially at the threshold, trial courts to remain alive to the human consequences of their decisions and to the trust that society places in them. [Para 21]

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Bharatiya Nagarik Suraksha Sanhita, 2023 – Discharge – Change in procedure:

Held: BNSS changes the procedural setting within which this discretion is exercised – New statute introduces express timelines for the filing of discharge applications and for framing of charges, and it expressly recognises the possibility of the accused being heard or examined through electronic means – Changes are regulatory in nature, aimed at structuring the process and reducing delay – Court’s obligation to apply its mind to the record, to hear both sides, to record reasons where discharge is ordered remains exactly as before, as does the caution against weighing evidence or conducting a mini trial at the preliminary stages – Jurisprudence developed under the Cr.P.C. on the scope and limits of consideration at the stages of discharge and framing of charge continues to hold the field under the BNSS – Legislature has retained the same substantive balance between the rights of the accused and the interest of prosecution, while seeking to impose greater procedural discipline and expedition – Thus, the power remains the same; only the manner of its exercise has been more tightly structured. [Para 11]

Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 – Object of – Elucidated. [Paras 8, 9]

Case Law Cited

State of Bihar v. Anil Kumar [2017] 6 SCR 711 : (2017) 14 SCC 304; *Vinay Tyagi v. Irshad Ali* [2012] 13 SCR 1005 : (2013) 5 SCC 762; *Ram Prakash Chadha v. State of U.P.* [2024] 7 SCR 1155 : (2024) 10 SCC 651; *State of Maharashtra v. Kashirao* [2003] Supp. 2 SCR 1060 : (2003) 10 SCC 434; *State of M.P. v. Ram Kishna Balothia* [1995] 1 SCR 897 : (1995) 3 SCC 221; *Sajjan Kumar v. CBI* [2010] 11 SCR 669 : (2010) 9 SCC 368; *Ghulam Hassan Beigh v. Mohd. Maqbool Magrey* [2022] 13 SCR 34 : (2022) 12 SCC 657; *Sanjay Kumar Rai v. State of U.P.* [2021] 7 SCR 143 : (2022) 15 SCC 720; *Bani Singh v. State of Uttar Pradesh* [1996] Supp. 3 SCR 247 : (1996) 4 SCC 720; *Chandrappa v. State of Karnataka* [2007] 2 SCR 630 : (2007) 4 SCC 415; *State of Bihar v. Ramesh Singh* [1978] 1 SCR 257 : (1977) 4 SCC 39; *Union of India v. Prafulla Kumar Samal* [1979] 2 SCR 229 : (1979) 3 SCC 4 – referred to.

Dr. Anand Rai v. State of Madhya Pradesh & Anr.**List of Acts**

Code of Criminal Procedure, 1973; Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989; Bharatiya Nagarik Suraksha Sanhita, 2023; Penal Code, 1860; Constitution of India.

List of Keywords

Discharge; Appellate powers of the High Court; Revisional or supervisory Court; Re-appreciation of evidence; Appellate jurisdiction; Power to frame charge; Scheduled Caste; Scheduled Tribe; Change in procedure; Stage of framing of charge or discharge.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 814 of 2026

From the Judgment and Order dated 03.07.2025 of the High Court of Madhya Pradesh at Indore in CRA No. 3945 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Kapil Sibal, Sr. Adv., Sumeer Sodhi, Varun Tankha, Harshit Bari, Inder Dev Singh, Vipul Tiwari, Ms. Divyani Deepti, Ms. Divya Goyal, Chaitanya Sharma.

Advs. for the Respondent(s):

Pashupathi Nath Razdan, Kushagra Singh, Ms. Maitreyee Jagat Joshi, Astik Gupta, Ms. Akanksha Tomar.

Judgment / Order of the Supreme Court**Judgment**

Sanjay Karol, J.

Leave Granted.

2. This appeal at the instance of the accused calls into question the correctness of the final judgment and order in Criminal Appeal No. 3945 of 2025, dated 3rd July 2025 by the High Court of Madhya Pradesh at Indore. In terms of the impugned judgment, the High

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Court dismissed the accused's appeal arising out of the proceedings before the learned Special Judge¹, Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989² whereby his prayer for discharge under Section 227³ of the Code of Criminal Procedure, 1973⁴, was allowed only in part. The chargesheet that was filed upon completion of the investigation in FIR No. 0653 of 2022 dated 15th November 2022 registered at PS Bilpank, District Ratlam. The said chargesheet, being Chargesheet No.1 of 2023 dated 16th February 2023, sent the matter up for trial against the accused on charges under Sections 294, 341, 383, 332, 146, 147, 336, 506, 333, 188, 326 of the Indian Penal Code, 1860⁵ and Sections 3(1)(r), 3(2)(va) of the SCST Act as amended in 2015 and 2018, whereas charges were framed against him under the following Sections 147, 341, 427, 353, 332, 333, 326, 323, 352 read with 149 IPC and 3(2)(v), 3(2)(va) of the SCST Act.

3. The facts that culminated in the position as above were that on 15th November 2022 while a large congregation of persons had gathered at Bachhadapara, to witness the unveiling and installation of a statue of *Bhagwan Birsa Munda* - the complainant, namely, Vikas, had witnessed members of JAYS organisation intercept the vehicles of the members of Parliament and Legislative Assembly, as also other district officials, who were arriving at the event, and when they were attempted to be removed by the security, the said persons initiated an altercation and scuffle with them along with pelting stones at the vehicles. One security personnel namely Sandeep Chandel suffered injuries as a result. In the FIR, the persons involved were described as follows:-

“....due to snatching and pelting of stone by these persons Gunman of Collector sir has suffered injuries near his nose and due to that injury blood oozed out. These persons were not ready to understand anybody's advice and these were misbehaving with police personnel and were causing hurdle in government work and they were

1 Hereinafter referred to as 'Trial Court'

2 Hereinafter referred to as 'SCST Act'

3 SC ATR No. 28/2023

4 Hereinafter referred to as 'CrPC'

5 Hereinafter referred to as 'IPC'

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speaking irrelevant things and extending threats of life. Then me and other police personnel present there have made a video of all these persons. Out of these persons I know and identify D. Abhay Ohari Resident of Ratlam, D. Anand Rai Resident of Ratlam, Kamal Bhuriya Resident of Dharad, Manoj Parmar Resident of Dharad, Kishan Sighad Resident of Amleti, Dilip Bhuria Resident of Dharad, Anil Ninama, Resident of Satrunda, Sanjay Girwal Resident of Bhati Badodiya, Ajay Son of Kailash Bheel Resident of Dharad, Vijay Son of Shambhu Lal Bhuria Resident of Nalkui, Chhagan Lal Son of Choga Lal Meena Resident of Patrakar Colony Jawra, Mohan Singh Son of Mann Singh Dewda Resident of Lambi Sadadi Rani Singh Vilesh Kharadi Resident of Lambi Sadadi Baazna, Gopal Waghel Resident of Nagra, Gopal Ninama, Resident of Kundal, Deepak Ninama Resident of Vinobha Nagar, Ratlam, Chhotu Bhabhar Resident of Jamthun, Jitendra Katariya Resident of Surajpur and Kalu Baarot Resident of Shubham Shri Colony Ratlam, 40-50 more persons were also accompanying them. These persons have jammed the road for about 01 hours...”

It is also important to note the role of these persons as described in the chargesheet, which, obviously, is a document that signals the completion of the investigation. It essentially is a recapitulation of the statement of the complainant, and it records that during the investigation statement of the complainant and witnesses was recorded and after which the accused persons were separately interrogated and taken into custody upon confession to the crime. It is important to note that the present accused's vehicle, a Scorpio that was allegedly used in the incident, was also seized. Another essential aspect is that the complainant had allegedly video-graphed the incident and such video was submitted to the police.

4. The accused sought bail which was rejected by the Trial Court. Such conclusion was affirmed by the High Court, but then he was granted bail by this Court on 13th January 2023. Disciplinary proceedings were also initiated against him, and he received notice thereof from the Regional Manager, Health Services, Indore Division. These facts have only been mentioned for completing the factual arc and are not in issue before us.

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5. The Trial Court, as we have already observed, partly allowed the application. The High Court dismissed the appeal thereagainst. The findings of the High Court are summarised as below along with the relevant case laws cited by the Court below:
- First addressed was the appellant's objection regarding the legality of the investigation, which was alleged to be vitiated on the ground that it was conducted by an Inspector instead of a Deputy Superintendent of Police⁶. Upon examining Section 9 of SCST Act along with the State Government Notification dated 13th October 2017 and the consequential circular issued by the Director General of Police, the Court held that the State Government is expressly empowered to confer powers of investigation on officers below the rank of DSP for specified categories of offences. Since the offences registered against the appellant fell within the ambit of those notified, the investigation conducted by an Inspector was held to be legally authorised and not in violation of Rule 7 of the SC/ST Rules, 1995. The challenge to the investigation was, therefore, found to be without merit. (***State of Bihar v. Anil Kumar***⁷)
 - Thereafter, the Court reiterated the settled legal position governing the scope of judicial scrutiny at the stage of framing of charges. It held that, at this preliminary stage, the Court is not required to conduct a detailed appreciation of evidence or adjudicate upon the probable defence of the accused. The exercise is limited to examining whether the material placed by the prosecution, if taken at face value, discloses sufficient ground to presume that the accused has committed the alleged offences. The degree of satisfaction required is only that of a strong suspicion and not proof beyond reasonable doubt. A meticulous analysis of contradictions, credibility of witnesses, or likelihood of conviction would amount to a mini trial, which is impermissible at this stage. (***Vinay Tyagi v. Irshad Ali;*** ***Ram Prakash Chadha v. State of U.P.***⁸.)

6 Hereinafter referred to as 'DSP'

7 (2017) 14 SCC 304

8 (2024) 10 SCC 651

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- While dealing with the applicability of Section 149 of the IPC, the Court observed that the appellant has been implicated as a member of an unlawful assembly, and the offences alleged are stated to have been committed in prosecution of the common object of such assembly. The Court clarified that, at the stage of framing of charges, it is not necessary that a specific overt act be attributed to each individual accused. What is required is *prima facie* material indicating membership of the unlawful assembly and the likelihood that the accused shared the common object or had knowledge that such offences were likely to be committed. The Court noted that multiple witnesses, including injured police personnel, have categorically stated that the appellant was a participant in the JAYS rally and was present at the place of occurrence when public officials were restrained and assaulted. Whether the appellant merely happened to be present, or whether he shared the common object of the assembly, are matters that can only be conclusively determined after evidence is led during trial. At this stage, the prosecution material was held sufficient to attract Section 149 IPC. (***State of Maharashtra v. Kashirao***⁹.)
- The Court further held that challenges raised by the appellant concerning his exact presence at the spot, the credibility of the medical evidence, the qualifications of the doctor who conducted the radiological examination, and the precise role attributed to him, all involve disputed questions of fact. Such issues necessarily require appreciation of evidence and cannot be conclusively adjudicated either at the stage of framing of charges or while exercising appellate jurisdiction against an order framing charge. These matters were held to fall squarely within the domain of trial.
- Upon an overall consideration of the impugned order, the High Court found that the Special Judge had applied the correct legal principles, considered the material available on record, and assigned cogent reasons while framing charges against the appellant. The order was found to be free from perversity, procedural impropriety, or patent illegality. Consequently, the

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High Court held that no case was made out for interference in exercise of appellate jurisdiction under Section 14(A)(1) of the SCST Act, and affirmed the order framing charges. (**Amit Kapoor** (*supra*); **Vinay Tyagi**, (*supra*))

6. We have heard Mr. Kapil Sibal, learned Senior Counsel for the accused and Mr. Pashupati Nath Razdan, learned Advocate-on-Record for the State. The sole point of challenge raised before this Court is the subsistence of charges under the SCST Act against the accused.

7. As such, let us look at the relevant provisions thereof-

“3. Punishments for offences atrocities.—3 [(1) Whoever, not being a member of a Scheduled Caste or a Scheduled Tribe,—

xxx-----xxx-----xxx

(2) Whoever, not being a member of a Scheduled Caste or a Scheduled Tribe,—

xxx-----xxx-----xxx

(v) commits any offence under the Indian Penal Code (45 of 1860) punishable with imprisonment for a term of ten years or more against a person or property 1 [knowing that such person is a member of a Scheduled Caste or a Scheduled Tribe or such property belongs to such member], shall be punishable with imprisonment for life and with fine;

(va) commits any offence specified in the Schedule, against a person or property, knowing that such person is a member of a Scheduled Caste or a Scheduled Tribe or such property belongs to such member, shall be punishable with such punishment as specified under the Indian Penal Code (45 of 1860) for such offences and shall also be liable to fine;...”

8. At this stage, it is important to take note of the objects and reasons for the enactment of the SCST Act. Sujata Manohar J, in **State of M.P. v. Ram Kishna Balothia**¹⁰, while dealing with the constitutionality

¹⁰ (1995) 3 SCC 221

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of Section 18 thereof which takes the applicability of the provisions of anticipatory bail housed in the provisions of the Cr.P.C. for offences under this Act, as follows:

“6... In this connection we may refer to the Statement of Objects and Reasons accompanying the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Bill, 1989, when it was introduced in Parliament. It sets out the circumstances surrounding the enactment of the said Act and points to the evil which the statute sought to remedy. In the Statement of Objects and Reasons it is stated:

“Despite various measures to improve the socio-economic conditions of the Scheduled Castes and the Scheduled Tribes, they remain vulnerable. They are denied number of civil rights. They are subjected to various offences, indignities, humiliations and harassment. They have, in several brutal incidents, been deprived of their life and property. Serious crimes are committed against them for various historical, social and economic reasons

2. ... When they assert their rights and resist practices of untouch-ability against them or demand statutory minimum wages or refuse to do any bonded and forced labour, the vested interests try to cow them down and terrorise them. When the Scheduled Castes and the Scheduled Tribes try to preserve their self-respect or honour of their women, they become irritants for the dominant and the mighty. Occupation and cultivation of even the Government allotted land by the Scheduled Castes and Scheduled Tribes is resented and more often these people become victims of attacks by the vested interests. Of late, there has been an increase in the disturbing trend of commission of certain atrocities like making the Scheduled Caste persons eat inedible substances like human excreta and attacks on and mass killings of helpless Scheduled Castes and Scheduled Tribes and rape of women belonging to the Scheduled Castes and the Scheduled Tribes.... A special legislation to check and deter crimes against them committed by non-Scheduled Castes and non-Scheduled Tribes has, therefore, become necessary.”

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The above statement graphically describes the social conditions which motivated the said legislation. It is pointed out in the above Statement of Objects and Reasons that when members of the Scheduled Castes and Scheduled Tribes assert their rights and demand statutory protection, vested interests try to cow them down and terrorise them....”

9. While the Constitution guarantees equality, freedom from discrimination, and the right to live with dignity, these ideals often remained abstract for SC and ST communities because of centuries of social exclusion, oppression, and violence. Recognizing this gap, the Act provides targeted legal protection, ensuring that the constitutional promises of equality and justice are realized in practice. At its core, the Act embodies the principle of equality before the law, as enshrined in Article 14 of the Constitution. It goes beyond formal equality, acknowledging that SC/ST communities face unique social vulnerabilities. By defining specific offences such as physical assault, sexual abuse, humiliation, and social ostracism, and prescribing stricter punishments, the law ensures substantive equality, allowing these individuals to live with safety, respect, and dignity in a society that has historically denied them these rights. The Act also reinforces the constitutional mandate under Article 17, which prescribed the abolishment of untouchability. Modern forms of caste-based indignity, like forcing individuals into menial or degrading labour, denying them access to public spaces, or socially boycotting them, are specifically criminalized. These provisions help translate the ideals of the Constitution, of freedom from untouchability into actionable legal protection, restoring both social and personal dignity to victims. Furthermore, the Act embodies Article 15's prohibition against discrimination, ensuring that SCST persons can access education, employment, and civic life without fear of prejudice. By shielding these communities from targeted harassment and violence, the law turns the promise of non-discrimination into a lived reality. At the same time, it safeguards the right to life and dignity under Article 21, recognizing that life is not merely about survival, but about living with respect, security, and freedom from humiliation. Relief, rehabilitation, and special protective measures under the Act directly uphold this principle. Finally, the SCST Act advances the broader goals of social justice and positive discrimination, reflected in Articles 38 and 46. By

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creating a safe and supportive environment, the Act enables SCST communities to participate fully in social, educational, and economic opportunities, helping to break cycles of historical oppression. In this sense, the Act is a transformative instrument, bridging the gap between constitutional ideals and everyday realities, ensuring that SC/ST citizens can live as equal, dignified, and empowered members of society.

10. We must turn back to the application for discharge and examine the averment regarding charges under the SCST Act. The relevant portion of the application is extracted as under:-

“h) Charges levied under SC/ST Act – Applicant was charged under Section 3(1)(r) 3(1)(s) and 3(2)(va) of the SC/ST Act. The essential ingredient to constitute this offence are-

There must be victim of Scheduled Caste or Scheduled Tribe.

iii Use of casteist or derogatory word in Public place against the victim

iii. Knowledge of accused regarding the caste of the victim.

iv. Physical Presence of accused at the time of Incident.

That, it is essential to mention here that the FIR and Final Report both are silent pertaining to use of derogatory word or casteist term. Further, there is no specific averment pertaining to use of casteist word against the original complainant. None of the above mentioned ingredient is available in the present matter, hence the applicant may kindly be discharged from this charge.”

In its judgment on the application, the learned Trial Court dealt with the proposed charge under the SCST Act alongside a number of provisions of IPC. For a charge under the above quoted provisions of the SCST Act to be established, several elements must be present. The accused must first commit an offence under the IPC, such as assault, robbery, or any other crime punishable with ten or more years of imprisonment. The act must be directed against a member of a Scheduled Caste or Scheduled Tribe, or against property that belongs to them, reflecting the special protection the law affords

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to historically marginalized communities. In addition, the accused must have knowledge that the victim belongs to a Scheduled Caste or Scheduled Tribe or that the property belongs to such a person. This requirement of awareness is essential to the application of the law. Finally, the punishment prescribed under this sub-section is life imprisonment along with a fine, underscoring the gravity of offences committed against vulnerable communities.

Section 3(va) deals with specific atrocities listed in the Schedule of the Act, including forced labour, harassment, social exclusion, or damage to property that target SC or ST persons. To attract liability under this provision, the accused must commit one of the scheduled offences against a member of a Scheduled Caste or Scheduled Tribe or their property. The offender must know the caste identity of the victim or that the property belongs to them, ensuring that the law applies to deliberate acts of caste-based harm. The punishment for these offences is as specified under the Indian Penal Code along with an additional fine, providing flexibility to address a range of atrocities that may not carry ten years or more of imprisonment but still require special protection for the victim.

The question that then arises, is - who were present before the learned Trial Court that, in its appreciation of the material on record, met the standard required for framing of charge?

11. Section 227 and 228 of the CrPC are as below:

“227. Discharge.—If, upon consideration of the record of the case and the documents submitted therewith, and after hearing the submissions of the accused and the prosecution in this behalf, the Judge considers that there is not sufficient ground for proceeding against the accused, he shall discharge the accused and record his reasons for so doing.

228. Framing of charge.—(1) If, after such consideration and hearing as aforesaid, the Judge is of opinion that there is ground for presuming that the accused has committed an offence which—

(a) ...

(b) is exclusively triable by the Court, he shall frame in writing a charge against the accused.

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(2) Where the Judge frames any charge under clause (b) of sub-section (1), the charge shall be read and explained to the accused and the accused shall be asked whether he pleads guilty of the offence charged or claims to be tried.”

Even though the instant case is governed by the prior regime of substantive and procedural criminal laws, we may observe that in the new legislation, now occupying the field, the position remains the same. On a close reading of the statutory text of the Cr.P.C. and the Bharatiya Nagarik Suraksha Sanhita, 2023, the position is one of continuity rather than change in relation to the Court’s power at the stages of discharge and framing of charge. In both enactments, the governing standards are framed in materially the same language. At the stage of discharge, the Court is required to consider whether there is any sufficient ground for proceeding against the accused in sessions cases, or whether the charge is groundless in Magistrate warrant cases. At the subsequent stage, charges are to be framed only if the Court forms an opinion that there is a ground for presuming that the accused has committed an offence. These formulations, which have long anchored the exercise of judicial discretion under the Cr.P.C., are carried forward in substance in the corresponding provisions of the BNSS, without any textual indication that the level of scrutiny is intended to be either heightened or diluted.

What the BNSS does is to change the procedural setting within which this discretion is exercised. The new statute introduces express timelines for the filing of discharge applications and for the framing of charges, and it expressly recognises the possibility of the accused being heard or examined through electronic means. These changes are regulatory in nature. They are aimed at structuring the process and reducing delay, not at transforming the judicial task itself. The Court’s obligation to apply its mind to the record, to hear both sides, and to record reasons where discharge is ordered remains exactly as before, as does the caution against weighing evidence or conducting a mini trial at these preliminary stages.

Accordingly, the established jurisprudence developed under the Cr.P.C. on the scope and limits of consideration at the stages of discharge and framing of charge continues to hold the field under the BNSS. The statutory language supports the conclusion that the Legislature has retained the same substantive balance between the

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rights of the accused and the interest of prosecution, while seeking to impose greater procedural discipline and expedition. In substance, the power remains the same; only the manner of its exercise has been more tightly structured.

12. ***Sajjan Kumar v. CBI***¹¹, which has been relied upon a bench of three judges in ***Ghulam Hassan Beigh v. Mohd. Maqbool Magrey***¹², formulated the following principles regarding the scope of the above quoted sections:

21. ...

(i) The Judge while considering the question of framing the charges under Section 227 CrPC has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out. The test to determine prima facie case would depend upon the facts of each case.

(ii) Where the materials placed before the court disclose grave suspicion against the accused which has not been properly explained, the court will be fully justified in framing a charge and proceeding with the trial.

(iii) The court cannot act merely as a post office or a mouthpiece of the prosecution but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the court, any basic infirmities, etc. However, at this stage, there cannot be a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial.

(iv) If on the basis of the material on record, the court could form an opinion that the accused might have committed offence, it can frame the charge, though for conviction the conclusion is required to be proved beyond reasonable doubt that the accused has committed the offence.

(v) At the time of framing of the charges, the probative value of the material on record cannot be gone into but before

11 (2010) 9 SCC 368

12 (2022) 12 SCC 657

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framing a charge the court must apply its judicial mind on the material placed on record and must be satisfied that the commission of offence by the accused was possible.

(vi) At the stage of Sections 227 and 228, the court is required to evaluate the material and documents on record with a view to find out if the facts emerging therefrom taken at their face value disclose the existence of all the ingredients constituting the alleged offence. For this limited purpose, sift the evidence as it cannot be expected even at that initial stage to accept all that the prosecution states as gospel truth even if it is opposed to common sense or the broad probabilities of the case.

(vii) If two views are possible and one of them gives rise to suspicion only, as distinguished from grave suspicion, the trial Judge will be empowered to discharge the accused and at this stage, he is not to see whether the trial will end in conviction or acquittal.

13. Having discussed the sections proposed to be charged against the appellant, let us now examine the discussion of the Trial Court. In part D of its order, the learned Trial Court deals with the charges under Sections 341, 146, 147, 353, 333, 326, 332, 336, IPC and charges under the SCST Act. Having considered the above said sections from Paras 26 to 37, para 38 records thus:

“38. Consequently, on the basis of the above discussion, in the light of the evidence collected by the investigation officer on record and the documents presented by the prosecution, the accused were charged under Section 147, 341, 427, 353, 332, 333, 326, 352, 323 of IPC read with Section 149 and Section 3(2)(v) and Section 3(2)(va) of the Scheduled Caste and Scheduled Tribes (Prevention of Atrocities) Act, 1989, there being sufficient grounds for framing charges under these Sections charges were framed separately against the accused under the said Sections. It is noteworthy that apart from accused Dr Anand Rai, other accused have produced their caste certificate declaring themselves to be members of Scheduled Caste or Scheduled Tribes. In such a situation, provisions of the Act, 1989 are attracted only in respect of Dr Anand Rai...”

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Here itself it be noted that in Part C of the judgment, the learned Trial Court recorded as follows in respect of Section 3(1)(r) of the SCST Act:-

“23. It is a well settled principle that Section 149 of IPC is not applicable in respect of Section 294 of IPC and 506 of IPC invoked in relation to the Act of giving threat to kill. Sections 294 and 506 of IPC (Part 2) read with Section 3(1) (F) and 3(1)(s) of the Act, 1989 are applicable in respect of the person who has used abusive language or who has threatened to kill or who has used abusive caste-specific words with the intent of insult.

24. In the evidence collected by the Investigation Officer and in the statement recorded under Section 161 of Cr.P.C., none of the witnesses have specifically stated as to which of the accused persons used casteist slurs to insult, abuse and threaten to kill.

25. Consequently, on the basis of the above discussion, sections 294 and 506 (part-2) of IPC read with sections 3(1) (r) and 3(1) (s) of the Prevention of Corruption Act, 1989 are not attracted against the accused and hence, all the accused are acquitted under the said sections.”

14. In view of the requirements of the sections proposed to be charged, as discussed in para 9 of this Judgment, we are at a loss to understand that when the Trial Court itself acknowledges that none of the statements under Section 161 CrPC, state the specific slurs uttered by the accused with the intent to insult threaten or kill, then how is it found, on the same bundle of evidence, and with the same level of scrutiny thereof, that the alleged acts of the accused were informed by caste awareness. There does not appear to be any other material on record either, to establish knowledge on part of the accused. Once the knowledge on part of the alleged offender is in question, it is but certain that the charge cannot stand.
15. Curiously, the impugned judgment/order of the High Court, although running into eighteen pages, does not deal at all with the charge under SCST Act. All that is said, is that the Trial Court has ‘*assigned elaborate reasons*’. As demonstrated above, those reasons are lacking and insufficient. Only for the reason that on a facial analysis of the

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evidence placed on record, some of the charges of the IPC, appear to be met, the SCST Sections have also been charged against the accused. However, we are of the considered view that the apparent evidence on record is in no way sufficient for a facial analysis of the case at hand, or for a '*prima facie*' view to be taken, or enough to distinguish suspicion from grave suspicion, in so far as the knowledge is concerned that would inform the accused's alleged misdeeds. That apart, it may also be observed that there is no averment whatsoever that the complainant was a member of the SCST Community. Still further, when the complaint, and the subsequent statements under Section 161 CrPC, both, appear to be lacking in averments for caste motivated acts allegations, one where intent is absent, and the other where knowledge is apparently present, seems difficult to accept.

16. Further, it may be observed that the High Court in deciding the appeal against the partial order of discharge, has not carried out its duty as the first court of appeal. The Section of the Act pertaining to appeals is:

“[14-A. Appeals. — (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an appeal shall lie, from any judgment, sentence or order, not being an interlocutory order, of a Special Court or an Exclusive Special Court, to the High Court both on facts and on law.

(2) Notwithstanding anything contained in sub-section (3) of Section 378 of the Code of Criminal Procedure, 1973 (2 of 1974), an appeal shall lie to the High Court against an order of the Special Court or the Exclusive Special Court granting or refusing bail.

(3) Notwithstanding anything contained in any other law for the time being in force, every appeal under this section shall be preferred within a period of ninety days from the date of the judgment, sentence or order appealed from:

Provided that the High Court may entertain an appeal after the expiry of the said period of ninety days if it is satisfied that the appellant had sufficient cause for not preferring the appeal within the period of ninety days:

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Provided further that no appeal shall be entertained after the expiry of the period of one hundred and eighty days.

(4) Every appeal preferred under sub-section (1) shall, as far as possible, be disposed of within a period of three months from the date of admission of the appeal.]

(emphasis supplied)

17. Even though ***Sanjay Kumar Rai v. State of U.P.***¹³, holds that orders framing charge or refusing discharge are neither interlocutory nor final, an appeal thereagainst would fall under Section 14-A above, since the words used are “*any judgment, sentence or order, not being an interlocutory order*”. An appeal under Section 14-A of the SCST Act is a statutory first appeal. It is well settled that a first appellate Court in criminal matters is a Court of both fact and law and is obliged to independently evaluate the material on record before either affirming or reversing the findings of the Courts below. This Court has consistently emphasised that such an appeal is a valuable right and that its disposal must reflect due application of mind. In ***Bani Singh v. State of Uttar Pradesh***¹⁴, the Court held that the appellate Court cannot dispose of a criminal appeal in a cursory manner and must itself examine the evidence and the reasoning of the Trial Court. Similarly, in ***Chandrappa v. State of Karnataka***¹⁵, this Court reiterated that the appellate Court has full power to reappraise, reconsider, and review the evidence upon which the order of the lower court is founded and to arrive at its own conclusions.
18. This principle applies with equal force to appeals under Section 14-A of the SC/ST Act. The provision does not curtail or dilute the ordinary appellate powers of the High Court. Consequently, the High Court does not function as a revisional or supervisory Court while exercising jurisdiction under Section 14-A but assumes the role of a first appellate court. A mechanical affirmation of the order of the Special Court, without independent scrutiny, would therefore be inconsistent with settled appellate jurisprudence and would amount to a failure to

13 (2022) 15 SCC 720

14 (1996) 4 SCC 720

15 (2007) 4 SCC 415

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exercise jurisdiction. Even where the appellate Court ultimately agrees with the reasoning of the Courts below, the judgment must disclose that the material was independently examined. However, the width of the appellate power under Section 14-A must be understood in the context of the nature of the order under challenge. The Supreme Court has repeatedly drawn a distinction between appellate scrutiny of final judgments and judicial intervention at threshold stages of criminal proceedings. Where an appeal arises from a conviction or acquittal, the appellate Court is entitled to undertake a comprehensive reappraisal of evidence and to reassess witness credibility. This flows from the settled principle that the first appellate Court is the final Court of fact, subject of course to self-imposed restraint in appeals against acquittal.

19. A different discipline governs cases arising at the stage of discharge, framing of charge, or *prima facie* satisfaction. The Court has consistently held that at this stage the Court is not concerned with proof of guilt or the sufficiency of evidence for conviction. In ***State of Bihar v. Ramesh Singh***¹⁶ and later in ***Union of India v. Prafulla Kumar Samal***¹⁷, the Court clarified that the test is whether the material on record, taken at face value, discloses the essential ingredients of the alleged offence and gives rise to a strong or grave suspicion against the accused. The Court is expressly cautioned against conducting a roving inquiry or weighing the evidence as if at trial. When these generally applicable principles are applied to an appeal under Section 14-A of the SC/ST Act arising from a threshold order, the High Court's role, though appellate in nature, stands circumscribed by the limits governing discharge. The High Court may examine whether the allegations disclose the basic statutory ingredients of the offence under the Act, including whether the alleged act was committed on account of the victim's caste and whether other foundational requirements are satisfied. Where these ingredients are conspicuously absent, interference is justified, as continuation of proceedings would amount to an abuse of the process of law. This form of scrutiny does not amount to appreciation of the material but is an exercise in legal evaluation of the allegations as they stand.

16 (1977) 4 SCC 39

17 (1979) 3 SCC 4

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At the same time, even while exercising first appellate jurisdiction, the High Court cannot, at the discharge or *prima facie* stage, adjudicate upon disputed questions of fact, assess the reliability of witnesses, or compare the prosecution case with the defence version. To do so would collapse the distinction between trial and threshold scrutiny and would result in a premature determination of guilt or innocence. The Supreme Court has repeatedly cautioned that defences available to the accused are matters for trial and cannot ordinarily form the basis for discharge unless the material relied upon is of sterling and unimpeachable character.

Thus, the appellate power under Section 14-A of the SC/ST Act must be exercised in harmony with the broader framework of criminal procedure. While the High Court is duty-bound, as a first appellate Court, to independently apply its mind and correct errors committed by the Special Court, it must remain conscious of the stage of the proceedings and the corresponding limits of judicial scrutiny. This calibrated approach ensures that the protective object of the SC/ST Act is preserved, while simultaneously safeguarding against mechanical application of its provisions in cases where the statutory ingredients are not even *prima facie* disclosed.

20. In that view of the matter, the charges upon the accused in so far as the SCST Act stand quashed. The matter is remitted back to the Trial Court to proceed in accordance with law regarding the other charges framed against the accused. It stands clarified that no part of the consideration made herein shall be construed as a comment on any of the charges other than the provisions of the SCST Act. The Criminal appeal is allowed to the above extent.
21. Before parting with the matter, it is observed that at the stage of framing of charge or considering discharge, the Court is not dealing with an abstract legal exercise. It is dealing with real people, real anxieties, and the real weight of criminal prosecution. Judicial responsibility at this stage calls for care, balance, and an honest engagement with the facts on record. The power to frame a charge is not meant to be exercised by default or out of caution alone. When the material placed before the Court, taken at face value, does not disclose the ingredients of an offence, the law expects the Court to have the clarity and courage to say so and to keep such a case aside.

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Discharge, in that sense, is not a technical indulgence but an essential safeguard. The Court must consciously distinguish between a genuine case that warrants a trial and one that rests only on suspicion or assumption or for that matter without any basis. To allow a matter to proceed despite the absence of a *prima facie* case is to expose a person to the strain, stigma, and uncertainty of criminal proceedings without legal necessity. Fidelity to the rule of law requires the Court to remember that the process itself can become the punishment if this responsibility is not exercised with care.

This responsibility weighs heaviest on Trial Courts, which are the first courts most people ever step into. For a litigant or an accused, the Trial Court is not just one level in a hierarchy. It represents the face of the judiciary itself. The sensitivity, fairness, and legal discipline shown at this stage shape how ordinary citizens understand justice. The impression a Trial Court creates, through its approach to facts and law, often becomes the impression people carry of the entire judicial system. That is why, at every stage and especially at the threshold, Trial Courts must remain alive to the human consequences of their decisions and to the trust that society places in them.

Pending applications, if any, shall stand closed.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Nidhi Jain

K. Rajaiah
v.
The High Court for the State of Telangana

(Civil Appeal No. 1560 of 2026)

11 February 2026

[K.V. Viswanathan* and Vipul M. Pancholi, JJ.]

Issue for Consideration

Issue arose whether the appellant made out a case for interference with the order passed in the disciplinary proceedings, as upheld by the High Court.

Headnotes[†]

Service law – Dismissal from service – Fabrication of documents – Appellant-court attender remained absent from his duties, and subsequently produced handwritten medical certificate issued by a doctor – Doctor on verification denied having issued the medical certificate, though admitted that the appellant had approached him and received some tablets but he did not remember the date of treatment – Charges of misconduct proved in the disciplinary proceedings and the appellant was dismissed from service, later upheld in the departmental appeal – High Court also upheld the order of dismissal – Correctness:

Held: Parameters for judicial review against orders passed in disciplinary proceedings are limited – However, where the findings are based on no evidence a court of law perfectly justified in interfering with the orders in disciplinary proceedings – Having failed to verify the disputed and the undisputed signature, the finding of the Inquiry Officer that the medical certificate was not genuine, is perverse and based on no credible evidence – Signature on the Medical Certificate also not identical though broadly similar to what is in the acknowledgement and on the statement given by the doctor to the Presiding Judge – When nothing conclusive emerges one way or the other, prudence would dictate and common sense would command that the inquiry officer referred the matter

* Author

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to a handwriting expert, before recording a finding of fabrication and forgery – Failure to do so on facts, constrains to hold that the charge of forgery not been proved – Also there are many other inexplicable peculiarities in the case – Appellant was facing a grave charge of fabrication of the documents – When charges are grave, the caution and circumspection that should be exercised by the authorities should be greater – Charge in the present disciplinary inquiry, being not established, can have no bearing – Equally, the submission that the rules provided for a mandatory penalty of dismissal also does not require further consideration since the charges themselves have not been established – Impugned judgment of the High Court set aside – Order of dismissal and the order of the Appellate Authority dismissing the appeal set aside – Appellant to be reinstated in service forthwith with all consequential benefits. [Paras 36, 41, 43-45]

Case Law Cited

V.M. Saudagar (Dead) through Legal Heirs v. Divisional Commercial Manager, Central Railway and Another, **2025 SCC OnLine SC 2277**; *Sawai Singh v. State of Rajasthan* [1986] **2 SCR 957** : **(1986) 3 SCC 454**; *Nirbhay Singh Suliya v. State of Madhya Pradesh and Another* [2026] **1 SCR 91** : **2026 SCC OnLine SC 8 – referred to.**

List of Acts

Central Civil Service (Classification, Control and Appeal) Rules, 1965.

List of Keywords

Disciplinary proceedings; Inquiry Officer; Medical Certificate; Disputed writing in Medical Certificate; Dismissal from service; Handwritten medical certificate; Misconduct; Departmental appeal.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 1560 of 2026

From the Judgment and Order dated 12.02.2024 of the High Court for The State of Telangana at Hyderabad in WP No. 40486 of 2022

Supreme Court Reports**Appearances for Parties**

Advs. for the Appellant(s):

Pratap Narayan Sanghi, Sr. Adv., Avadesh Narayan Sanghi, Sumit Kumar, Akhilesh Loya, Krishna Kumar Singh.

Adv. for the Respondent(s):

Ms. Sindoor Vnl.

Judgment / Order of the Supreme Court**Judgment**

K.V. Viswanathan, J.

1. Leave granted.
2. The present appeal calls in question the correctness of the judgment of the Division Bench of the High Court for the State of Telangana at Hyderabad dated 12.02.2024 in Writ Petition No.40486 of 2022. By the said judgment, the High Court dismissed the Writ Petition of the appellant and confirmed the order of his dismissal from service.

FACTS OF THE CASE:-

3. The appellant was recruited as an attender in the Court of Additional Senior Civil Judge, Karimnagar on 09.11.1998. According to the appellant, since he was indisposed with high fever, vomiting and motion from 03.08.2017 to 07.08.2017, he telephonically informed about his absence to the Office Superintendent.
4. The Additional Senior Civil Judge, Karimnagar, by a letter dated 05.08.2017, wrote to the Principal District & Sessions Judge, Karimnagar, stating that the appellant was unauthorizedly absent from 03.08.2017 to 05.08.2017; that he had not applied for any kind of leave; that his unauthorized absence caused inconvenience to the Court and that the Court was not able to function properly. It was requested that action be taken against the individual for his unauthorized absence.
5. On 07.08.2017, the Principal District & Sessions Judge, Karimnagar, instructed the Additional Senior Civil Judge, Karimnagar, to initiate action as per the CCA Rules against the appellant and submit compliance report.

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6. On 09.08.2017, an explanation was called for from the appellant. On 22.08.2017, the appellant furnished his explanation stating that on 03.08.2017, he had high fever, vomiting and motion and he consulted one Dr. Bommaraveni Swamy Mudiraj, a Medical Practitioner at Manakondur, who treated him and advised him to be admitted in the hospital; that he was admitted in the said hospital from 03.08.2017 to 07.08.2017 and submitted a certificate issued by the doctor. He stated that since he was unable to move, he informed the office over telephone on 03.08.2017 and prayed for mercy by dropping action against him. Thereafter, he applied for grant of casual leave from 03.08.2017 to 05.08.2017 (both days inclusive) and 07.08.2017 and with permission to avail public holiday for 06.08.2017.
7. It transpires from the record that after submission of the explanation and the medical certificate, the appellant requested the Presiding Officer of the Court to drop further proceedings, and the Presiding Officer kept the file aside and orally stated to the appellant not to repeat the same in future. The salary for the period of absence was deducted.
8. It further transpires from the record that in October, 2017, since the appellant failed to attend office for 2-3 days, the Presiding Officer of the Court decided to get a notice issued to Dr. Bommaraveni, whose purported certificate was produced by the appellant in August, 2017. It is not clear from the record whether the absence in October, 2017 was also unauthorized since there is no such recording. Nothing is on record to show as to whether any action was taken against the appellant for absence in October, 2017. The absence in October, 2017 appears to have acted as a trigger to summon the doctor.
9. On 26.10.2017, after a gap of two months, an explanation was called for from Dr. Bommaraveni by the Additional Senior Civil Judge, Karimnagar to answer whether the admission slip was issued from the clinic of the said doctor and, if issued, to appear on 28.10.2017 with complete record of treatment offered to the appellant for the period from 03.08.2017 to 07.08.2017. The doctor was informed that failure to do so would entail proceedings as per rules. Along with the notice calling for explanation, the document which the appellant claimed was the prescription issued by the doctor was annexed. One Sh. Devaraj, Police Constable, Manakondur P.S. was directed to cause service of notice on the doctor.

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10. On 28.10.2017, Dr. Bommaraveni appeared and gave a statement to the effect that the medical certificate in question was not issued by him; that he was not authorized to issue such Medical Certificate certifying admission of the patient and that he has no nursing home to admit patients. He further added that the Medical Certificate might have been fabricated by using his old letter pad.
11. In this statement, Dr. Bommaraveni did not state about the appellant having consulted him and receiving some tablets. This is significant because in the enquiry proceedings when he was examined as PW-2, Dr. Bommaraveni did admit that the appellant approached him and received some tablets though he did not remember the date on which the appellant approached him.
12. On 15.12.2017, the Additional Senior Civil Judge, Karimnagar, wrote to the Principal District & Sessions Judge, Karimnagar, setting out the entire background and requested that necessary action be taken against the appellant. On 03.03.2018, the appellant was served with the Statement of imputation of misconduct and the Articles of charge.
13. The Statement of imputation sets out that the appellant, in spite of his explanation being sought, did not submit his explanation resulting in the deduction of salary for the said period from 03.08.2017 to 07.08.2017 and that the Medical Certificate was submitted only on 22.08.2017. The other background facts were also set out and the following charges were framed and served on the appellant:-

“ARTICLE-I:-

That you, Sri K. Rajaiah, Office Subordinate, Court of the Addl. Senior Civil Judge, Karimnagar have remained absent from attending duty from 3.8.2017 to 7.8.2017 and it is without applying casual leave or without prior permission of the Officer and it is intentionally, thereby causing much inconvenience to the day to day office work and in spite of giving explanation memo, you did not submit any explanation within the stipulated time, which shows your gross negligence and dereliction of duties and such behaviour is of (sic.) unbecoming of a Government servant much less in Judicial Department, which also amounts to misconduct and that you behaved in a derogative manner and you thereby liable for punishment under Rule 20 of the APCS (CC&A) Rules, 1991.

K. Rajaiah v. The High Court for the State of Telangana**ARTICLE – II:-**

That you, Sri K. Rajaiah, Office Subordinate, Court of the Addl. Senior Civil Judge, Karimnagar have submitted explanation on 22.08.2017 with a fabricated Medical Certificate of Bommanaveni Swamy, Medical Practitioner stating that you have taken treatment with him, which shows your gross mischief towards the Court and such behaviour is of unbecoming of a Government servant much less in Judicial Department, which also amounts to misconduct and that you behaved in a derogative manner and you thereby liable for punishment under Rule 20 of the APCS (CC&A) Rules, 1991.”

14. At the enquiry, the appellant though requested for the services of a lawyer, the same was denied on the ground that the Presenting Officer was not a legal practitioner. However, permission was accorded to take the assistance of any other government servant as per Rule 20(5)(d) of the CCA Rules. From the counter affidavit of the respondent, it emerges that the appellant told the Inquiry Officer that he would cross-examine the witnesses himself and will not take the assistance of anyone since no one was ready to come forward to help him.
15. During the enquiry, the Presenting Officer examined four witnesses. PW-1 – V. Radha Krishna Sharma was the Office Superintendent. He deposed that the salary for the period of absence of the appellant was deducted on the direction of the Presiding Judge of the Court. The same was recorded in a note (Ex. P-4) and communicated to the appellant. He further deposed to the effect that after the appellant submitted his explanation on 22.08.2017 and on the request of the appellant to drop further proceedings, the Presiding Officer of the Court kept the file aside and orally stated to the appellant not to repeat the same in future. PW-1 deposed that in October, 2017 the appellant did not attend the office for two days. As explained earlier, there is nothing on record to show that the absence in October, 2017 was unauthorized nor was this part of the present disciplinary proceedings.
16. However, what PW-1 further deposed is crucial. It was stated by PW-1 that the Presiding Officer directed him to issue notice to Dr. Bommaraveni, who was purported to have issued the Medical

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Certificate (Ex. P-7). The doctor appeared before the Presiding Officer on 28.10.2017 and gave the following statement (Ex. P-9): -

**“STATEMENT OF DR. BOMMARAVENI SWAMY
MUDIRAJ, MEDICAL PRACTITIONER”**

I have received notice from Hon'ble Additional Senior Civil Judge, Karimnagar to appear before the court on 28-10-2017 at 10:30 Am, accordingly, I attended before the court. The Medical Certificate dated 07-08-2017 bearing the name of SAI TEJA CLINIC was confronted to me. I further submit that the said medical certificate is not Issued by me. I am not authorized to issue such Medical Certificate certifying the admission of patient as In-Patient. In fact, I have no Nursing Home to join patients. The Medical Certificate might have been fabricated by my old letter pad.

Sd/-

DR. BOMMARAVENI SWAMY MUDIRAJ
MEDICAL PRACTITIONER”

17. PW-1 further deposed that when he approached the Presiding Officer with a query as to whether pay bill of the appellant had to be prepared, the Presiding Officer addressed a letter to the Principal District and Sessions Judge, which ultimately resulted in the show cause notice of 08.02.2018 to the appellant and the initiation of the disciplinary proceedings. He further deposed that he did not receive any intimation from the appellant on 03.08.2017 and that he did not remember whether he received any phone call in the morning from the appellant with the intimation that the appellant was not feeling well with a request to convey the same to the Presiding Officer.
18. Dr. Bommaraveni was examined as PW-2 before the Inquiry Officer. His deposition is crucial. We are conscious of the fact that we are in a judicial review proceeding against the orders passed in a disciplinary enquiry. We are setting out the deposition only to take the deposition as it is and to see whether the charge against the appellant stood proved. What is crucial to notice in the deposition of the doctor is his admission that the appellant did approach him and receive tablets, though he does not remember the date on which

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the appellant approached him. The doctor, however, denied having issued the Medical Certificate (Ex. P-7). The deposition is in the following terms: -

“I am practicing as R.M.P doctor at Manakondur from past 3 years. I have not issued Ex.P7 i.e., medical certificate dated 07-08-2017 in the name of K.Rajaiah. I am not authorized to admit the patients as in patients in my clinic. I own Sai Teja Clinic at Manakondur. **The medical shop owners will provide us the letter heads and the letter head of Ex.P7 is one of such and I have not issued the same.** Witness is confronted with EX.P7 and witness says that the signature on Ex.P7 is not of him. Once in another Court the Officer called me and recorded my statement in respect of Ex.P7. **Once K.Rajaiah approached me and received some tablets I do not remember the date on which K.Rajaiah approached me. Somebody took away blank letter head of mine and fabricated Ex.P7. But I have not issued Ex.P7 to K.Rajaiah at any point of time.**

Cross examination by Sri K. Rajaiah (party in person):-

It is not true to suggest that the handwriting on Ex.P7 is mine and I issued Ex.P7 to K.Rajaiah and now I am deposing false. Witness is confronted with Ex.P7 and P9 and posed a question stating that the signature on Ex.P7 and P9 pertaining to witness is one and the same. The witness stated that the signature on Ex.P9 is of him and signature on Ex.P7 do not pertains to him. It is not true to suggest that as K.Rajaiah is illiterate he cannot read and write and Ex.P7 was issued by me and now I am deposing false.”

(Emphasis supplied)

19. It is crucial to note that in the cross-examination by the appellant, it was suggested to the doctor that the signature on Medical Certificate (Ex. P-7) and Statement of Doctor (Ex. P-9) dated 28.10.2017 were one and the same. It was also suggested that the witness was deposing falsely. In the chief-examination, the doctor admitted that the appellant approached him and received some tablets though he did not remember the date on which the appellant approached

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him. More importantly, the doctor did not dispute that the letterhead belonged to him. The doctor did not deny that the rubber stamp on the Medical Certificate was not his. His explanation was that someone took away the letterhead and fabricated Ex. P-7. It is also crucial to note that the doctor on his own did not produce any register in proof of the date on which the appellant approached and consulted him. PW-3 was the then Additional Senior Civil Judge and PW-4 was holding full additional charge of Addl. Senior Civil Judge's Court at the relevant time.

20. The Inquiry Officer found both the charges proved by recording the following findings: -

“As per the evidence of P.W.1 and P.W.3 a perusal of Exs. P.1 to P.7. Ex.P1 is the letter dated 05-08-2017. Ex.P2 is the Official Memorandum dated 07-08-2017. Ex.P3 is the Explanation Memo dated 09-08-2017. Ex.P4 is the Office note dated 19-08-2017. Ex.P5 is the Explanation dated 22-08-2017. Ex.P6 is the four days casual leave application. Ex.P7 is the medical certificate. Ex.P8 is the notice to doctor dated 26-10-2017. Ex.P9 is the statement of medical practitioner. It is crystal clear that Sri K.Rajaiah, Attender in the Court of Hon'ble Addl. Senior Civil Judge, Karimnagar i.e., charged employee was absent to his duties from 03-08-2017 to 07-08-2017 without intimating to the concerned and due to which inconvenience has been caused to the official work in the office of Hon'ble Addl. Senior Civil Judge, Karimnagar and further failed to give explanation within time to the memo served on individual as per Exs. P10 to P17 i.e., Ex.P10 is the order dated 28-10-2017. Ex.P11 is the letter to Hon'ble Prl. District and Sessions Judge, Karimnagar dated 15-12-2017. Ex.P12 is the show cause notice dated 08-02-2018. Ex.P13 is the explanation dated 12-02-2018. Ex.P14 is the letter dated 20-02-2018. Ex.P15 is the proceedings dated 03-03-2018. Ex.P16 is the letter dated 07-03-2018. **Ex.P17 is the letter dated 22-03-2018. The said Sri K. Rajaiah failed to disprove the articles of charge framed against him,** thus the allegations leveled against charged employee i.e., Sri K. Rajaiah in charge No.1 is proved.

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As per evidence of P.W.1, P.W.2 and P.W.3. it is crystal clear that Sri K. Rajaiah, Attender submitted his explanation i.e., Ex.P5 is the Explanation dated 22-08-2017 and applied for 4 days causal leave through Ex.P6 and by enclosing **Ex.P7 medical certificate dated 07-08-2017, but P.W.2 categorically stated that Ex.P7 was not issued by him and Ex.P7 dated 07-08-2017 do not bear the signature of P.W.2 and K. Rajaiah, Attender once approached P.W.2 and received some tablets and he do not remember the date on which said K.Rajaiah approached him. P.W.2 categorically stated that somebody took away blank letter head of P.W.2 and fabricated Ex.P7 and P.W.2 has not issued Ex.P7 to K.Rajaiah at any point of time and when P.W.2 was confronted with the signatures on Ex.P.7 and P.9, P.W.2.specifically stated that the signature on Ex.P.9 is of P.W.2 and the signature on Ex.P.7 do not pertains to P.W.2. Thus, as the P.W.2 is appropriate person to state whether Ex.P7 medical certificate dated 07-08-2017 was issued by P.W.2 to K.Rajaiah or not and P.W.2 categorically stated that he has not got issued said Ex.P7. Hence, I can safely conclude that the said Ex.P7 which is enclosed to Ex.P6 i.e., application seeking grant of casual leave from 03-08-2017 to 07-08-2017 is not genuine and not issued by P.W.2 and Sri K. Rajaiah, Office Subordinate failed to prove that Ex.P7 is genuine medical certificate issued by P.W.2. Hence, charge No.2 leveled against Sri K.Rajaiah, Office Subordinate is proved.**

Thus, articles of Charge No.1 and II framed against Sri K. Rajaiah, office Sub-ordinate in the court of Hon'ble Addl. Senior Civil Judge, Karimnagar is proved in enquiry. Hence, submitting the enquiry report accordingly."

(Emphasis supplied)

21. After issuance of show cause for imposition of major penalty, by order dated 13.11.2018, the appellant was dismissed from service. An appeal filed to the administrative side of the High Court resulted in a dismissal on 08.01.2021. The appellant's writ petition challenging the dismissal has come to be dismissed by the impugned order. Hence, the appellant is before us by way of appeal by special leave.

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CONTENTIONS OF THE PARTIES:-

22. We have heard Mr. Pratap Narayan Sanghi, learned Senior Advocate for the appellant and Ms. Sindoor VNL, learned counsel for the respondent.
23. Mr. Pratap Narayan Sanghi, learned Senior Advocate, submitted that the charges in this case have not been established since the illness of the appellant and the treatment by the doctor is not in dispute. Learned Senior Counsel further submitted that it has not been established that the Medical Certificate (Ex. P-7) was fabricated. Learned Senior Counsel submitted that the statement of the doctor recorded on 28.10.2017 was behind the back of the appellant. Lastly, learned Senior Advocate submitted that the punishment is grossly disproportionate.
24. Ms. Sindoor VNL, learned Advocate, who very ably presented the case for the respondent, submitted that at the preliminary enquiry it was established that the certificate purported to have been issued by Dr. Bommaraveni was not actually issued by him and that the doctor deposed that the nursing home did not have any provision for admitting patients. Learned counsel submitted that the findings of the Inquiry Officer could not be substituted and that court in a judicial review ought not to function as a court of appeal. All that the court in judicial review is concerned is whether the inquiry was held by a competent authority, in accordance with the procedure prescribed and in consonance with the principles of natural justice and whether any extraneous considerations or evidence has been taken into account. According to the learned counsel, none of the parameters applied to the present case. Learned counsel submitted that the employee attached to a judicial department must maintain absolute integrity and discipline.
25. Dealing with the quantum, learned Advocate has submitted that punishment for forgery has been specifically provided and punishment ought to be dismissal in accordance with Rule 9 (x) proviso which reads as under: -

“Provided that in all proved cases of misappropriation, bribery, bigamy, corruption, moral turpitude, forgery and outraging the modesty of women, the penalty of dismissal from service shall be imposed.”

(Emphasis supplied)

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26. We have carefully considered the submissions of the learned counsel for the parties and have perused the records including the written submissions filed by the parties. We have also called for and perused the original file of the disciplinary inquiry.

QUESTION FOR CONSIDERATION:-

27. The question that arises for consideration is, whether the appellant has made out a case for interference with the order passed in the disciplinary proceedings, as upheld by the High Court?

ANALYSIS AND CONCLUSION:-

28. The primary case against the appellant revolves around the allegation that the appellant fabricated the Medical Certificate (Ex. P-7). The first charge of submitting a delayed explanation need not detain us long. We do not find that a delay of thirteen days' time for furnishing the explanation of facts is unreasonable. The other facets of the charge are intrinsically linked to the second charge which we have discussed hereinbelow.
29. While maintaining the parameters of judicial review, the undisputed facts, however, need to be set out. The Medical Certificate (Ex. P-7) is a fully handwritten Certificate which the appellant alleged was given by Dr. Bommaraveni to him. The fully handwritten certificate carries the purported signature of PW-2 as well as the rubber stamp and was also on the letterhead of PW-2.
30. It should also be borne in mind that it is an admitted position that the appellant had consulted the doctor (PW-2) and the doctor (PW-2) had given him few tablets though PW-2 says, he does not remember the date on which that happened. The doctor also admitted that the letterhead belonged to him. The date on the certificate is 07.08.2017 which was the last day of absence of the appellant. There is no denial that the rubber stamp on the Medical Certificate was not his.
31. In this scenario, the real question that arises is, whether the Inquiry Officer was justified in accepting the word of the doctor and rejecting outright the plea of the appellant to conclude that Ex. P-7 was not genuine and Ex. P-7 was not issued by PW-2? Should the Inquiry Officer have verified the disputed writing in Ex. P-7 with the undisputed signature in Ex. P-9 and/or whether the Inquiry Officer should have referred the matter to a handwriting expert?

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GRAVER THE CHARGE – GREATER THE NEED FOR CAUTION AND CIRCUMSPECTION: -

32. Even though it was a case of word against a word, the doctor admitted that the appellant consulted him. He admitted that the letterhead belonged to him. He did not dispute about the rubber stamp. He further admitted that he gave appellant some tablets, however, he does not remember the date and also stated that someone took away his blank letterhead and fabricated Ex. P-7 and he has not issued Ex. P-7 to the appellant at any point of time. The appellant not only suggested to the doctor that the handwriting was his, but he also confronted the doctor with Ex. P-9 (the statement given by the doctor to the Presiding Judge on 28.10.2017) and suggested that the signature is of one and the same person.
33. The appellant is a Court Attender and PW-2 is a Medical Practitioner. When the doctor admits having treated the appellant, the least that was expected from the doctor is to provide the date on which he treated him to contradict the case of the appellant. Further the Inquiry Officer ought to have verified the disputed and the undisputed writings and if any doubt persisted the matter ought to have been referred to the handwriting expert. We say so because Ex. P-7 is not a printed form certificate but a fully handwritten certificate.
34. Reference to handwriting experts and examination of handwriting experts is not a procedure alien to disciplinary inquiries. In **V.M. Saudagar (Dead) through Legal Heirs vs. Divisional Commercial Manager, Central Railway and Another¹**, while restoring the order of the Central Administrative Tribunal, which interfered with the penalty of the dismissal and after setting aside the order of the High Court, this Court held as under: -

“17.4 ... No evidence has been adduced to prove the charge of forgery and only the authenticity of the pass has been verified by the Enquiry Officer with the statement of the S.M. Gole, then Office Superintendent Pass Section. CAT noted that even the alleged forged signature has not been sent to handwriting expert.”

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35. In a similar case where there was a charge of forgery and the delinquent denied the charge, this Court in **Sawai Singh vs. State of Rajasthan**², set aside the judgment of the High Court and granted complete relief to the appellant therein. This Court, speaking through Sabyasachi Mukharji, J. (as the learned Chief Justice then was), made the following telling observations: -

“6. Perusal of the enquiry report makes perfunctory reading — comparing the evidence of Chaturbhuj and the appellant it is difficult to accept on what basis the enquiry officer accepted the Chaturbhuj version. The enquiry officer did not discuss the inherent improbabilities of the statements of Chaturbhuj which will be noted later.

12.The second charge was about committing forgery effecting erasion of the word ‘panch’ on the nomination paper of Shri Chaturbhuj. This allegation was sought to be proved by the evidence of handwriting expert. The handwriting expert was not available for cross-examination on the ground that at that time he was dead. But if the evidence of handwriting expert was necessary to prove the guilt of the appellant, then it was necessary on the part of the department to adduce evidence to call another handwriting expert to corroborate their charge.”

[Emphasis supplied]

36. Thereafter, highlighting the need for how investigations to the charges must be consistent with the requirement of the situation and how there must be fair play in action where consequences could be loss of job and loss of livelihood, this Court in **Sawai Singh (supra)** held as follows:-

“16. It has been observed by this Court in Surath Chandra Chakrabarty v. State of W.B. [(1970) 3 SCC 548] that charges involving consequences of termination of service must be specific, though a departmental

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enquiry is not like a criminal trial as was noted by this Court in the case of *State of A.P. v. S. Sree Rama Rao* [AIR 1963 SC 1723] and as such there is no such rule that an offence is not established unless it is proved beyond doubt. But in a departmental enquiry entailing consequences like loss of job which nowadays means loss of livelihood, there must be fair play in action; in respect of an order involving adverse or penal consequences against an employee, there must be investigations to the charges consistent with the requirement of the situation in accordance with the principles of natural justice insofar as these are applicable in a particular situation.”

(Emphasis supplied)

This holding is extremely vital for the case at hand for the reason that as was contended by learned Counsel Ms. Sindoor VNL, that the penalty for a proved charge of forgery is mandatory dismissal from service. Having failed to verify the disputed and the undisputed signature, we find that the finding of the Inquiry Officer that Ex. P-7 was not genuine, is perverse and based on no credible evidence.

37. We did not want to stop here. To satisfy ourselves, we called for the original file of the disciplinary inquiry from the High Court and perused the writings and signature in Ex. P-7 as well as signature in Ex. P-9. During the examination of the original file, we also observed that apart from Ex. P-9, Dr. Bommaraveni (PW-2) had acknowledged receipt of notice dated 26.10.2017 sent from the office of the Additional Senior Civil Judge directing him to appear on 28.10.2017.
38. On the reverse side of this notice which is available in the file, Dr. Bommaraveni had acknowledged the receipt of the notice with his signature, date and his rubber stamp. The notice dated 26.10.2017 in original has been exhibited as Ex. P-8. Immediately after the original is a photocopy of the notice carrying the acknowledgement in the reverse. This document, though not specifically exhibited, it is the document on which Dr. Bommaraveni acknowledged and thereafter appeared on 28.10.2017. The original of Ex. P-8 also has the following endorsement in the bottom.

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“Through Sh. Devaraj, Police Constable, Manakondur P.S. with a direction to cause service of the notice to through Dr. Bommaraveni Swamy Mudiraj and file the acknowledgment before the undersigned.”

39. What is however crucial is the rubber stamp on Ex. P-7 is identical with the rubber stamp on the reverse of the copy of the notice dated 26.10.2017.
40. What is also significant is that the two undisputed signatures of Dr. Bommaraveni, one in exhibit P9 and the other while acknowledging receipt of notice are themselves not identical, though broadly similar. The signature on the Ex. P-7 Medical Certificate is also not identical though broadly similar to what is in the acknowledgement and what is on Ex. P-9. In this state of affairs, when nothing conclusive emerges one way or the other, prudence would dictate and common sense would command that the inquiry officer referred the matter to a handwriting expert, before recording a finding of fabrication and forgery. Failure to do so on facts, constrains us to hold that the charge of forgery has not been proved.

INEXPLICABLE PECULIARITIES:-

41. There are so many other inexplicable peculiarities in this case. When the appellant absented himself from 03.08.2017 to 07.08.2017 and reported on 08.08.2017, pay was deducted for the period of absence. The appellant was already made to suffer with loss of pay. Not only this, there is evidence on record of V. Radha Krishna Sharma (PW-1), that on the request of the appellant to drop further proceedings after furnishing explanation on 22.08.2017, the Presiding Officer had relented and told the appellant not to repeat the same in future and kept the file aside. What appears to have triggered the reopening of the issue was the purported absence of the appellant for two days in October, 2017. It is not the case of the respondent that the absence in October, 2017 was unauthorized. At this stage, the Presiding Officer decided to summon the doctor by sending a police constable- Sh. Devaraj to his clinic. The doctor appeared on 28.10.2017 and gave a statement that the Medical Certificate was not issued by him. In this statement, no reference was made about the consultation done and the medicine given. The statement was also recorded behind the back of the appellant which the respondent, no doubt, labels

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as a preliminary inquiry. Be that as it may, we need not pronounce on the validity of the procedure adopted in recording this statement considering the final decision that we propose to take.

42. What further emerges is that in December, 2017, PW-1 approached the Presiding Officer of the Court for preparation of pay-bills and enquired as to whether the monthly pay-bill of the appellant has to be prepared. At that stage on 15.12.2017, a letter was written by the Presiding Officer to the Principal District and Sessions Judge setting out that the action of the appellant amounted to negligence and dereliction of duties due to unauthorized absence and a request was made to take necessary action.

PARAMETERS FOR JUDICIAL REVIEW:-

43. No doubt, as rightly contended by Ms. Sindoor VNL, learned counsel for the respondent, the parameters for judicial review against orders passed in disciplinary proceedings are limited. However, it is well settled that where the findings are based on no evidence a court of law is perfectly justified in interfering with the orders in disciplinary proceedings. Recently, this Court in **Nirbhay Singh Suliya vs. State of Madhya Pradesh and Another²**, while interfering with the findings in a disciplinary proceeding held that if the findings in the enquiry report are perverse and not supported by the evidence on record, the Court in judicial review can interfere. This Court held as under: -

“41. The High Court has erred in not interfering with the order. A valiant attempt was made by Mr. Arjun Garg to sustain the impugned order by contending that a writ court or this Court cannot act as an appellate court over the inquiry report and the only consideration was whether the inquiry had been fairly conducted. We are unable to accept the said contention. **In our opinion, for the reasons stated above, the findings in the inquiry report are perverse and are not supported by the evidence on record. We make bold to record a finding that on the available material, no reasonable person would have reached the conclusion that enquiry officer reached.**

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42. In *Yoginath D. Bagde v. State of Maharashtra and Another* 9, Saghir Ahmad, J. lucidly explained the principle thus:-

“51. It was lastly contended by Mr Harish N. Salve that this Court cannot reappraise the evidence which has already been scrutinised by the enquiry officer as also by the Disciplinary Committee. It is contended that the High Court or this Court cannot, in exercise of its jurisdiction under Article 226 or Article 32 of the Constitution, act as the appellate authority in the domestic enquiry or trial and it is not open to this Court to reappraise the evidence. The proposition as put forward by Mr Salve is in very broad terms and cannot be accepted. **The law is well settled that if the findings are perverse and are not supported by evidence on record or the findings recorded at the domestic trial are such to which no reasonable person would have reached, it would be open to the High Court as also to this Court to interfere in the matter.** In *Kuldeep Singh v. Commr. Of Police* [(1999) 2 SCC 10], this Court, relying upon the earlier decisions in *Nand Kishore Prasad v. State of Bihar* [(1978) 3 SCC 366], *State of Andhra Pradesh v. Rama Rao* [AIR 1963 SC 1723], *Central Bank of India Ltd. v. Prakash Chand Jain* [AIR 1969 SC 983], *Bharat Iron Works v. Bhagubhai Balubhai Patel* [(1976) 1 SCC 518] as also *Rajinder Kumar Kindra v. Delhi Admn.* [(1984) 4 SCC 635] laid down that although the court cannot sit in appeal over the findings recorded by the disciplinary authority or the enquiry officer in a departmental enquiry, it does not mean that in no circumstance can the court interfere. It was observed that the power of judicial review available to a High Court as also to this Court under the Constitution takes in its stride the domestic enquiry as well and the

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courts can interfere with the conclusions reached therein if there was no evidence to support the findings or the findings recorded were such as could not have been reached by an ordinary prudent man or the findings were perverse.”

(Emphasis supplied)

44. In this case, the appellant was facing a grave charge of fabrication of the documents. When charges are grave, the caution and circumspection that should be exercised by the authorities should be greater. The appellant had joined service in 1998 as an attender. Ms. Sindoor, learned Counsel, has produced the copies of the service record of the appellant which shows that in 2011, he was awarded punishment of stoppage of two increments with cumulative effect. It is not clear as to what was the charge that led to the penalty but whatever it is, the charge in the present disciplinary inquiry, being not established, that can have no bearing. Equally, the argument of Ms. Sindoor, that the rules provided for a mandatory penalty of dismissal also does not require further consideration since the charges themselves have not been established.

CONCLUSION AND DIRECTIONS:-

45. For the reasons stated above, we set aside the impugned judgment of the High Court dated 12.02.2024 in WP No.40486 of 2022 and allow the appeal. Consequently, the order of dismissal from service dated 13.11.2018 and the order of the Appellate Authority dismissing the appeal dated 08.01.2021 will all stand set aside. The appellant shall be reinstated in service forthwith with all consequential benefits including all arrears of salary and emoluments since the non-employment was not due to the appellant's fault. The order should be implemented within three weeks from today. The appeal is allowed. No order as to costs.

Result of the case: Appeal allowed.

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v.
State of U.P. & Anr.**

(Criminal Appeal No. 830 of 2026)

09 February 2026

[J.B. Pardiwala* and K.V. Viswanathan,* JJ.]

Issue for Consideration

Whether the High Court was well within its reasons to grant the anticipatory bail by restricting it upto the stage of filing of the chargesheet; What will be the position, when an accused has been released on bail, pending the investigation, and later upon completion of the investigation, chargesheet is filed with addition of new cognizable and non-bailable offences.

Headnotes[†]

Bail – Rejection of Anticipatory Bail – Dowry death – An FIR was registered u/s.80(2)/85 BNS and ss.3 and 4 respectively of the Dowry Prohibition Act, 1961 – The appellant/brother-in-law of the deceased, apprehending arrest applied for anticipatory bail – High Court granted anticipatory bail but it was limited only upto filing of the chargesheet – Once the chargesheet was filed, the protection earlier granted came to an end – Appellant again prayed for anticipatory bail by way of a fresh application – High Court rejected the application – Correctness:

Held: Either the Court may grant anticipatory bail or may decline – However, once having exercised its discretion in favour of the accused upon consideration of the overall matter, there was no good reason for the High Court to restrict it upto the stage of filing of the chargesheet – The position of law is well settled: once anticipatory bail is granted, it ordinarily continues without fixed expiry – The filing of a charge-sheet, taking of cognizance, or issuance of summons does not terminate protection unless special reasons are recorded – Risk management can be taken care of

* Author

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by way of imposing conditions of cooperation, attendance, and non-tampering, not by imposing time limits – Where circumstances change, modification or cancellation may be sought under the BNSS, 2023, but expiry clauses inserted at inception are unsustainable – Impugned order passed by the High Court is set aside – The appellant is directed to be released on anticipatory bail subject to the terms and conditions that the Investigating Officer deem fit to impose. [Paras 13, 25-28]

Bail – A circumstance whereafter the grant of bail to an accused, further cognizable and non bailable offences are added – Position of law:

Held: The accused can surrender and apply for bail for newly added cognizable and non-bailable offences – In the event of refusal of bail, the accused can certainly be arrested ; (ii) The investigating agency can seek order from the court u/ss.437(5) or 439(2) of Cr.P.C. respectively for arrest of the accused and his custody; (iii) The Court, in exercise of its power u/ss.437(5) or 439(2) of Cr.P.C. respectively, can direct for taking into custody the accused who has already been granted bail after cancellation of his bail – The Court in exercise of its power u/s.437(5) as well as s.439(2) respectively can direct the person who has already been granted bail to be arrested and commit him to custody on addition of graver and non-cognizable offences which may not be necessary always with order of cancelling of earlier bail; (iv) In a case where an accused has already been granted bail, the investigating authority on addition of an offence or offences may not proceed to arrest the accused, but for arresting the accused on such addition of offence or offences it needs to obtain an order to arrest the accused from the Court which had granted the bail. [Para 34]

Case Law Cited

Shri Gurbaksh Singh Sibbia and Others v. State of Punjab [1980] 3 SCR 383 : (1980) 2 SCC 565; *Sushila Aggarwal & Ors. v. State (NCT of Delhi) & Anr.* [2020] 2 SCR 1 : (2020) 5 SCC 1 – followed.

Prahlad Singh Bhati v. NCT Delhi and Another [2001] 2 SCR 684 : (2001) 4 SCC 280 – relied on.

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Bharat Chaudhary and Anr. v. State of Bihar and Anr. (2003) 8 SCC 77; *Ravindra Saxena v. State of Rajasthan* [2009] 16 SCR 433 : (2010) 1 SCC 684; *Siddharth v. State of Uttar Pradesh & Anr.* (2022) 1 SCC 676; *Satender Kumar Antil v. CBI* [2022] 10 SCR 351 : (2022) 10 SCC 51; *Md. Asfak Alam v. State of Jharkhand and Another* [2023] 10 SCR 1184 : 2023 SCC OnLine SC 892; *Siddharam Satlingappa Mhetre v. State of Maharashtra* [2010] 15 SCR 201 : (2011) 1 SCC 694; *Pradeep Ram v. State of Jharkhand and Another* [2019] 8 SCR 824 : 2019 CrI. L.J. 3801 – referred to. *High Court of Delhi v. CBI*, 2004 SCC OnLine Del 53 – referred to.

List of Acts

Dowry Prohibition Act, 1961; Bharatiya Nyaya Sanhita, 2023; Code of Criminal Procedure, 1973.

List of Keywords

Bail; Anticipatory Bail; Dowry death; Personal liberty; Filing of chargesheet; Anticipatory bail limited upto filing of the chargesheet; Surrender; Addition of new cognizable and non-bailable offences; Arrest; Cancellation of bail; Addition of an offence; Risk management; Arbitrary timelines; Judicial discretion; Investigation.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 830 of 2026

From the Judgment and Order dated 07.01.2026 of the High Court of Judicature at Allahabad in CRMABAU482BNSS No. 11038 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Shiv Sagar Tiwari, Varinder Kumar Sharma, Mata Prasad Singh, R.D. Rathore, Vinay Rajput, Ms. Ashiya Bano, Ms. Aakansha Tiwari, Ms. Shweta Bhadauria, Yugal Kishor Prasad, Bikash Chandra, Bishan Dass, Ms. Gitesh Kumari, Rajesh Ranjan Kumar, Rajesh Kumar.

Advs. for the Respondent(s):

Ankit Goel, Mayank Tiwari.

Supreme Court Reports**Judgment / Order of the Supreme Court****Order****J.B. Pardiwala & K.V. Viswanathan, JJ.**

1. Leave granted.
2. This appeal arises from the order passed by the High Court of Allahabad dated 07.01.2026 in Criminal Misc. Anticipatory Bail Application No.11038/2025 by which the anticipatory bail application preferred by the appellant came to be rejected.
3. We heard Mr. Varinder Kumar Sharma, the learned counsel appearing for the appellant and Mr. Ankit Goel, the learned counsel appearing for the respondent-State.
4. It appears from the materials on record that the First Information Report bearing No.560/2024 came to be registered with the Akbarpur Police Station, District Kanpur Dehat, State of Uttar Pradesh for the offence punishable under Section 80(2)/85 BNS and Sections 3 and 4 respectively of the Dowry Prohibition Act, 1961.
5. The appellant before us is the brother-in-law (devar) of the deceased.
6. The deceased was married to the brother of the appellant past 7 months.
7. The deceased died under mysterious circumstances at her matrimonial home. Accordingly, the FIR came to be lodged by the mother of the deceased.
8. The case at hand as alleged seems to be one of dowry death.
9. The appellant before us apprehending arrest had earlier preferred an application before the High Court seeking anticipatory bail being application no.3992/2025.
10. The High Court while granting anticipatory bail passed a very unusual order which reads thus:-

“(1) The present Criminal Miscellaneous Anticipatory Bail Application has been filed on behalf of the applicant Sumit in FIR No. 560 of 2024, under Section 85/80 BNS and 3/4 Dowry Prohibition Act, Police Station Akbarpur,

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District Kanpur Dehat, seeking anticipatory bail with the prayer that in case of arrest, the applicant may be released on bail.

(2) Heard the learned counsel for the applicant and the learned Additional Government Advocate and perused the file.

(3) The applicant's learned counsel argued that the applicant is innocent and has been implicated in the aforementioned sections with malicious intent to harass and intimidate him. He fears that he may be arrested in the aforementioned case, despite the lack of credible evidence against him. The applicant has been accused of the crime simply because he is her brother-in-law. The First Information Report contains no direct allegations against the applicant. The deceased was allegedly beaten and strangled on October 21, 2024, but no complaint was filed at any police station, nor was a medical examination conducted. The deceased committed suicide after staying at her parents' home for a month. He also stated that the applicant has no criminal history and no coercive proceedings have yet been initiated against him. He further states that the applicant undertakes to cooperate during the trial and investigation and that he will be present at the time required by the investigating agency or the Court and it is assured on behalf of the applicant that he is ready to cooperate in the process of law and he will honestly make himself available before the Court as and when required and he is also ready to accept all the conditions which the Court may impose on him.

(4) The learned Additional Government Advocate argued against the accused anticipatory bail, arguing that the offense committed by the applicant is of a serious nature. Considering the facts and circumstances of the case, there is no sufficient basis for the accused release on anticipatory bail. Therefore, the accused should not be released on anticipatory bail.

(5) It may be stated that in the case of Siddharam Satlingappa Mhetre vs. State of Maharashtra, (2011) 1

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SCC 694, it has been held by the Hon'ble Supreme court that while adjudicating on an anticipatory bail application, the Court must consider the nature and gravity of the charges, the possibility of the accused fleeing the judicial process and that the Court must carefully evaluate all the material available against the accused and also consider the actual role of the accused.

(6) In the present case, having regard to the settled principles of law relating to anticipatory bail and having regard to the submissions of learned counsel for the parties, the nature of the allegations, the role of the applicant and all the facts and circumstances of the case, the prayer for anticipatory bail is liable to be allowed without any further consideration of the merits of the case. Accordingly, the anticipatory bail application is allowed.

(7) In case of arrest of the applicant involved in the above case crime number, he will be released on anticipatory bail (till the filing of the police charge sheet) on furnishing a personal bond of Rs. 50,000/- and two sureties of the same amount to the satisfaction of the officer in charge of the concerned police station, subject to the following conditions:-

- 1. The applicant shall, if required, be present at the required time for examination by the police officer.*
- 2. The applicant shall not make any threat, promise or inducement, directly or indirectly, to any person acquainted with the facts of the case, or to any police officer to agree not to disclose such facts before the Court or to any police officer.*
- 3. The applicant will cooperate during the investigation and trial and will not misuse the freedom of bail. In case of violation of the above conditions, the Investigating Officer/Prosecutor shall issue notice to the applicant shall be at liberty to file an appropriate application for cancellation of the anticipatory bail granted.*

(8) Accordingly, this anticipatory bail application is finally disposed of with the above observations.

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11. A plain reading of the order referred to above would indicate that the anticipatory bail was granted by the High Court as prayed for but the same was limited only upto filing of the chargesheet. Once the chargesheet was filed, the protection earlier granted came to an end and in such circumstances, the appellant once again prayed for anticipatory bail by way of a fresh application which came to be rejected by the High Court.
12. We fail to understand what is the idea in restricting the grant of anticipatory bail upto the stage of completion of investigation and filing of the chargesheet.
13. Either the Court may grant anticipatory bail or may decline. However, once having exercised its discretion in favour of the accused upon consideration of the overall matter, there was no good reason for the High Court to restrict it upto the stage of filing of the chargesheet.
14. In the earlier order passed by the High Court referred to above in para 10 the High Court observed that having regard to the nature of the allegations, the role of the applicant and all the facts and circumstances of the case, the accused could be said to have made out a case for grant of anticipatory bail.
15. If the aforesaid be so, then the High Court should have indicated while declining to grant anticipatory bail by way of the impugned order as to what was so particular or what was so gross that the High Court thought fit not to grant anticipatory bail.

POSITION OF LAW

16. In *Bharat Chaudhary and Anr. vs. State of Bihar and Anr.* reported in (2003)8 SCC 77, this Court held that there is no restriction in Section 438 Cr.P.C. to grant anticipatory bail even when charge sheet has been filed and cognizance is taken. The relevant part of the said decision reads as thus:-

“7. From the perusal of this part of Section 438 of CrPC, we find no restriction in regard to exercise of this power in a suitable case either by the Court of Session, High Court or this Court even when cognizance is taken or a charge-sheet is filed. The object of Section 438 is to prevent undue harassment of the accused persons by pre-trial arrest and detention. The fact, that a court has

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either taken cognizance of the complaint or the investigating agency has filed a charge-sheet, would not by itself, in our opinion, prevent the courts concerned from granting anticipatory bail in appropriate cases. The gravity of the offence is an important factor to be taken into consideration while granting such anticipatory bail so also the need for custodial interrogation, but these are only factors that must be borne in mind by the courts concerned while entertaining a petition for grant of anticipatory bail and the fact of taking cognizance or filing of a charge-sheet cannot by itself be construed as a prohibition against the grant of anticipatory bail. In our opinion, the courts i.e. the Court of Session, High Court or this Court has the necessary power vested in them to grant anticipatory bail in non-bailable offences under Section 438 of CrPC even when cognizance is taken or a charge-sheet is filed provided the facts of the case require the court to do so.”...

[Emphasis supplied]

17. The very same view as aforesaid came to be reiterated in *Ravindra Saxena vs. State of Rajasthan*, reported in (2010) 1 SCC 684. In the said case the High Court had rejected the application seeking anticipatory bail on the ground that the chargesheet had been filed, such approach was held to be erroneous. The Court observed that a Constitution Bench in *Shri Gurbaksh Singh Sibbia and Others vs. State of Punjab*, reported in (1980) 2 SCC 565, clearly held that the anticipatory bail can be granted at any time so long as the applicant has not been arrested:

“7. We are of the considered opinion that the approach adopted by the High Court is wholly erroneous. The application for anticipatory bail has been rejected without considering the case of the appellant solely on the ground that the challan has now been presented.

8. We may notice here that the provision with regard to the grant of anticipatory bail was introduced on the recommendations of the Law Commission of India in its Forty-first Report dated 24-9- 1969. The recommendations were considered by this Court in a Constitution Bench

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decision in Gurbaksh Singh Sibbia v. State of Punjab [(1980) 2 SCC 565 : 1980 SCC (Cri) 465]. Upon consideration of the entire issue this Court laid down certain salutary principles to be followed in exercise of the power under Section 438 CrPC by the Sessions Court and the High Court. It is clearly held that the anticipatory bail can be granted at any time so long as the applicant has not been arrested. When the application is made to the High Court or the Court of Session it must apply its own mind on the question and decide when the case is made out for granting such relief.”

[Emphasis supplied]

18. In *Sushila Aggarwal & Ors. vs. State (NCT of Delhi) & Anr.* reported in (2020) 5 SCC 1, the following questions were referred to the larger Bench of five judges:
 - i. Whether the protection granted to a person under Section 438 CrPC should be limited to a fixed period so as to enable the person to surrender before the trial court and seek regular bail?
 - ii. Whether the life of an anticipatory bail should end at the time and stage when the accused is summoned by the court?
19. The Constitution Bench answered the reference as under:

“91.1. Regarding Question 1, this Court holds that the protection granted to a person under Section 438 CrPC should not invariably be limited to a fixed period; it should enure in favour of the accused without any restriction on time. Normal conditions under Section 437(3) read with Section 438(2) should be imposed; if there are specific facts or features in regard to any offence, it is open for the court to impose any appropriate condition (including fixed nature of relief, or its being tied to an event), etc.

91.2. As regards the second question referred to this Court, it is held that the life or duration of an anticipatory bail order does not end normally at the time and stage when the accused is summoned by the court, or when charges are framed, but can continue till the end of the

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trial. Again, if there are any special or peculiar features necessitating the court to limit the tenure of anticipatory bail, it is open for it to do so."

[Emphasis supplied]

20. The following observations made by the Constitution Bench in paras 77.3 and 77.4 respectively of *Sushila Aggarwal (supra)* are also relevant which reads as under:

"77.3. In these circumstances, the mere fact that an accused is given relief under Section 438 at one stage, per se does not mean that upon the filing of a charge-sheet, he is necessarily to surrender or/and apply for regular bail. The analogy to "deemed bail" under Section 167(2) with anticipatory bail leads this Court to conclude that the mere subsequent event of the filing of a charge-sheet cannot compel the accused to surrender and seek regular bail. As a matter of fact, interestingly, if indeed, if a charge-sheet is filed where the accused is on anticipatory bail, the normal implication would be that there was no occasion for the investigating agency or the police to require his custody, because there would have been nothing in his behaviour requiring such a step. In other words, an accused, who is granted anticipatory bail would continue to be at liberty when the charge-sheet is filed, the natural implication is that there is no occasion for a direction by the court that he be arrested and further that he had cooperated with the investigation.

77.4. At the same time, however, at any time during the investigation were any occasion to arise calling for intervention of the court for infraction of any of the conditions imposed under Section 437(3) read with Section 438(2) or the violation of any other condition imposed in the given facts of a case, recourse can always be had under Section 439(2)."

[Emphasis supplied]

21. In the *High Court of Delhi vs. CBI* reported in 2004 SCC OnLine Del 53, somewhat similar question arose whether Section 170 Cr.P.C.

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prevents the Trial Court from taking a charge-sheet on record unless the accused is taken into custody. The Delhi High Court observed as under:

“15. Word “custody” appearing in this section does not contemplate either police or judicial custody. It merely connotes the presentation of accused by the investigating officer before the Court at the time of filing of the charge-sheet whereafter the role of the Court starts. Had it not been so the investigating officer would not have been vested with powers to release a person on bail in a bailable offence after finding that there was sufficient evidence to put the accused on trial and it would have been obligatory upon him to produce such an accused in custody before the Magistrate for being released on bail by the Court.

16. In case the police/investigating officer thinks it unnecessary to present the accused in custody for the reason that the accused would neither abscond nor would disobey the summons as he has been cooperating in investigation and investigation can be completed without arresting him, the IO is not obliged to produce such an accused in custody.

xxxx xxxx xxxx

19. It appears that the learned Special Judge was labouring under a misconception that in every non-bailable and cognizable offence the police is required to invariably arrest a person, even if it is not essential for the purpose of investigation.

20. Rather the law is otherwise. In normal and ordinary course the police should always avoid arresting a person and sending him to jail, if it is possible for the police to complete the investigation without his arrest and if every kind of cooperation is provided by the accused to the investigating officer in completing the investigation. It is only in cases of utmost necessity, where the investigation cannot be completed without arresting the person, for instance, a person may be required for recovery of incriminating articles or weapon of offence or for eliciting

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some information or clue as to his accomplices or any circumstantial evidence, that his arrest may be necessary. Such an arrest may also be necessary if the investigating officer concerned or officer in charge of the police station thinks that presence of the accused will be difficult to procure because of grave and serious nature of crime as the possibility of his absconding or disobeying the process or fleeing from justice cannot be ruled out.”

[Emphasis supplied]

22. The aforesaid decision of the Delhi High Court received *imprimatur* of this Court in *Siddharth vs. State of Uttar Pradesh & Anr.*, reported in (2022) 1 SCC 676, wherein it was observed as under:

“9. We are in agreement with the aforesaid view of the High Courts and would like to give our imprimatur to the said judicial view. It has rightly been observed on consideration of Section 170 CrPC that it does not impose an obligation on the officer-in-charge to arrest each and every accused at the time of filing of the charge-sheet. We have, in fact, come across cases where the accused has cooperated with the investigation throughout and yet on the charge-sheet being filed nonbailable warrants have been issued for his production premised on the requirement that there is an obligation to arrest the accused and produce him before the court. We are of the view that if the investigating officer does not believe that the accused will abscond or disobey summons he/she is not required to be produced in custody. The word “custody” appearing in Section 170 CrPC does not contemplate either police or judicial custody but it merely connotes the presentation of the accused by the investigating officer before the court while filing the chargesheet.

10. We may note that personal liberty is an important aspect of our constitutional mandate. The occasion to arrest an accused during investigation arises when custodial investigation becomes necessary or it is a heinous crime or where there is a possibility of influencing the witnesses or accused may abscond. Merely because an arrest can

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be made because it is lawful does not mandate that arrest must be made. A distinction must be made between the existence of the power to arrest and the justification for exercise of it [Joginder Kumar v. State of U.P., (1994) 4 SCC 260 : 1994 SCC (Cri) 1172]. If arrest is made routine, it can cause incalculable harm to the reputation and self-esteem of a person. If the investigating officer has no reason to believe that the accused will abscond or disobey summons and has, in fact, throughout cooperated with the investigation we fail to appreciate why there should be a compulsion on the officer to arrest the accused.

xxxx xxxx xxxx

12. In the present case when the appellant has joined the investigation, investigation has completed and he has been roped in after seven years of registration of the FIR we can think of no reason why at this stage he must be arrested before the chargesheet is taken on record. We may note that the learned counsel for the appellant has already stated before us that on summons being issued the appellant will put the appearance before the trial court.”

23. Further, this Court in *Satender Kumar Antil vs. CBI* reported in (2022) 10 SCC 51 said in clear terms that the mandate laid down in *Siddharth (supra)* should be strictly complied with.
24. In *Md. Asfak Alam vs. State of Jharkhand and Another* reported in 2023 SCC OnLine SC 892 under a similar situation where the appellant therein had been granted interim protection by the High Court under Section 438 CrPC and the charge-sheet was filed before the application seeking pre-arrest bail was finally heard, the High Court rejected the pending anticipatory bail and directed the appellant to surrender before the competent authority and seek regular bail. In this backdrop, this Court observed as under:

“14.What appears from the record is that the appellant cooperated with the investigation both before 8-8-2022, when no protection was granted to him and after 8-8-2022, when he enjoyed protection till the filing of the charge-sheet and the cognizance thereof on 1-10-2022. Thus, once the charge-sheet was filed and there was no impediment, at

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least on the part of the accused, the court having regard to the nature of the offences, the allegations and the maximum sentence of the offences they were likely to carry, ought to have granted the bail as a matter of course. However, the court did not do so but mechanically rejected and, virtually, to rub salt in the wound directed the appellant to surrender and seek regular bail before the trial court. Therefore, in the opinion of this Court, the High Court fell into error in adopting such a casual approach. The impugned order of rejecting the bail and directing the appellant, to surrender and later seek bail, therefore, cannot stand, and is hereby set aside.....”

[Emphasis supplied]

25. Thus, the position of law is well settled: once anticipatory bail is granted, it ordinarily continues without fixed expiry. The filing of a charge-sheet, taking of cognizance, or issuance of summons does not terminate protection unless special reasons are recorded. The Constitution Bench in the case of *Sushila Aggarwal (supra)* held that duration is a matter of judicial discretion and cannot be confined by arbitrary timelines. In the case of *Siddharam Satlingappa Mhetre vs. State of Maharashtra*, reported in (2011)1 SCC 694, this Court similarly cautioned that anticipatory bail should not hinge on procedural milestones.
26. Risk management can be taken care of by way of imposing conditions of cooperation, attendance, and non-tampering, not by imposing time limits. Where circumstances change, modification or cancellation may be sought under the BNSS, 2023, but expiry clauses inserted at inception are unsustainable.
27. In such circumstances referred to above, the impugned order passed by the High Court is set aside.
28. We order that in the event of arrest of the appellant in connection with the offence enumerated above, he shall be released on anticipatory bail subject to the terms and conditions that the Investigating Officer deem fit to impose.
29. Once the appellant is released by the Investigating Officer, he shall thereafter appear before the Trial Court and furnish fresh bail bond.

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30. Before we close this matter, we would like to clarify something important. Take a case, wherein an accused has been released on bail, pending the investigation, and later upon completion of the investigation, chargesheet is filed with addition of new cognizable and non-bailable offences, then what would be the position?
31. The aforesaid question was looked into and answered by this Court in *Pradeep Ram vs. State of Jharkhand and another* reported in 2019 CrI. L.J. 3801, wherein this Court after discussing various decisions, more particularly, the decision in *Prahlad Singh Bhati vs. NCT Delhi and another* reported in (2001) 4 SCC 280 held that with the addition of a new cognizable and non-bailable offence more particularly of a serious nature, the accused becomes disentitled to the liberty earlier granted to him in relation to the offences for which the FIR came to be registered.
32. In such circumstances, the correct approach of the Court concerned should be to apply its mind afresh as to whether the accused is entitled for grant of bail in the changed circumstances.
33. In *Prahlad Singh Bhati* (supra), the FIR initially was registered under Sections 306 and 498A of the IPC respectively. But, subsequently, the chargesheet showed that the accused had committed offence under Sections 302 of the IPC. This Court took the view that with the change of the nature of the offence, the accused could be said to have become disentitled to the liberty granted to him in relation to the offence for which the FIR was registered, more particularly, if the offence is altered for an aggravated crime.
34. In such circumstances referred to above, we arrive at following conclusions in respect of a circumstance whereafter the grant of bail to an accused, further cognizable and non-bailable offences are added:-
 - (i) The accused can surrender and apply for bail for newly added cognizable and non-bailable offences. In the event of refusal of bail, the accused can certainly be arrested.
 - (ii) The investigating agency can seek order from the court under Sections 437(5) or 439(2) of Cr.P.C. respectively for arrest of the accused and his custody.
 - (iii) The Court, in exercise of its power under Sections 437(5) or 439(2) of Cr.P.C. respectively, can direct for taking into custody

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the accused who has already been granted bail after cancellation of his bail. The Court in exercise of its power under Section 437(5) as well as Section 439(2) respectively can direct the person who has already been granted bail to be arrested and commit him to custody on addition of graver and non-cognizable offences which may not be necessary always with order of cancelling of earlier bail.

- (iv) In a case where an accused has already been granted bail, the investigating authority on addition of an offence or offences may not proceed to arrest the accused, but for arresting the accused on such addition of offence or offences it needs to obtain an order to arrest the accused from the Court which had granted the bail.

- 35. The appeal is accordingly, disposed of.
- 36. Pending application(s), if any, also stand disposed of.
- 37. Registry shall forward a copy of this order to the Registrar General, High court of Allahabad, who in turn shall place this order before Hon'ble the Chief Justice of High Court.

Result of the case: Appeal disposed of.

[†]Headnotes prepared by: Ankit Gyan

State of Odisha & Ors.
v.
Managing Committee of Namatara Girls High School

(Special Leave Petition (C) Diary No. 54941 of 2025)

09 February 2026

[Dipankar Datta and Satish Chandra Sharma, JJ.]

Issue for Consideration

Issue arose as regards the applications for condonation of delay in filing the special leave petition and condonation of delay in re-filing the same.

Headnotes[†]

Limitation Act, 1963 – Condonation of delay – Respondent-Managing Committee of the School filed application for release of grant-in-aid – Tribunal allowed the application by directing the State and the Director to release grant-in-aid in favour of the teaching and non-teaching staff of the school – State filed appeal which was time-barred as also not accompanied by the certified copy of the impugned order – For a period of 8 years, the State did not file the certified copy of the impugned order – High Court dismissed the appeal for failure to file the certified copy of the tribunal’s order – Thereafter, the State obtained the certified copy of the tribunal’s order and filed application seeking recall of the order by the High Court, alongwith the application for condonation of delay of 291 days – High Court rejected the application for condonation of delay resulting in the application for recall being dismissed as time-barred – Challenge to:

Held: Condonation of delay cannot be claimed as a matter of right – It is entirely the discretion of the Court whether or not to condone delay – No cause, much less sufficient cause, has been shown for exercise of discretion in favour of the State of Odisha – Nature of explanation in the application for condonation of delay is such that with much ado, the proceedings could be closed – However, since the expression ‘sufficient cause’ employed by the legislature in s.5 is adequately elastic to enable the courts to apply the law in a meaningful manner which subserves the ends of justice and in view of the submission made, the matter was considered in some

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depth – State of Odisha utterly lethargic, tardy and indolent not only before the High Court but also before this Court – Notwithstanding that its appeal was dismissed as time-barred by the High Court, this Court was approached by the State of Odisha four months after expiry of the period of limitation – Despite all the latitude shown to a “State”, the cause sought to be shown here by the State of Odisha is not an explanation but a lame excuse – No case for exercise of discretion set up – Applications for condonation of delay in filing the special leave petition and condonation of delay in re-filing the same, rejected, and the special leave petition dismissed as time-barred – Odisha Education Act, 1969. [Paras 12, 13, 20-22]

Case Law Cited

Collector, Land Acquisition, Anantnag v. Mst Katiji [1987] 2 SCR 387 : (1987) 2 SCC 107; *G. Ramegowda v. Land Acquisition Officer* [1988] 3 SCR 198 : (1988) 2 SCC 142; *Postmaster General v. Living Media India Limited* [2012] 1 SCR 1045 : (2012) 3 SCC 563; *University of Delhi v. Union of India* [2019] 16 SCR 1259 : (2020) 13 SCC 745; *Pathapati Subba Reddy v. Collector(LA)* [2024] 4 SCR 241 : (2024) 12 SCC 336; *Sheo Raj Singh v. Union of India* [2023] 13 SCR 743 : (2023) 10 SCC 531; *Commissioner of Wealth Tax, Bombay v. Amateur Riders Club, Bombay* (1994) Supp. 2 SCC 603 – referred to.

List of Acts

Odisha Education Act, 1969; Limitation Act, 1963.

List of Keywords

Condonation of delay in filing the special leave petition; Condonation of delay in re-filing; Release of grant-in-aid; Certified copy of the order; Recall of the order by High Court; Expression ‘sufficient cause’.

Case Arising From

CIVIL APPELLATE JURISDICTION: Special Leave Petition (C)
Diary No. 54941 of 2025

From the Judgment and Order dated 21.02.2025 and 26.04.2023 of the High Court of Orissa at Cuttack in IA No. 126 of 2025 in FAO No. 582 of 2015, respectively

**State of Odisha & Ors. v.
Managing Committee of Namatara Girls High School**

Appearances for Parties

Advs. for the Petitioner(s):

Ms. Sanjana Saddy, Ms. Shailja Singh.

Advs. for the Respondent(s):

Nagendra Kasana, Mahendra Kumar Sahoo, A Deb Kumar,
Mrs. A Deepa, Mrs. Neeta Kasana, Mrs. Anjana Kasana,
Binod Ch Sabat.

Judgment / Order of the Supreme Court

Order

1. Respondent-Managing Committee of Namatara Girls' High School¹ had approached the State Education Tribunal², Bhubaneswar, Odisha with an application³ under Section 24B of the Odisha Education Act, 1969 for release of grant-in-aid.
2. By an order dated 30th December, 2013, the Tribunal allowed the application by directing the State of Odisha and the Director of Secondary Education, Odisha to release grant-in-aid in favour of the teaching and non-teaching staff of the school in the manner as directed.
3. The order dated 30th December, 2013 was carried in appeal⁴ by the State of Odisha before the High Court of Orissa at Cuttack⁵ on 16th October, 2015. The appeal was time-barred. Not only that, the appeal was not accompanied by the certified copy of the impugned order. Since presentation of the appeal, for a period of 8 years to be precise, the State of Odisha had not filed the certified copy of the impugned order. By an order dated 26th April, 2023, the High Court dismissed the appeal citing failure to file the certified copy of the Tribunal's order as the reason.
4. Stung by such order, the State of Odisha woke up from its slumber. It obtained the certified copy of the Tribunal's order dated 30th December, 2013 on 13th February, 2024. A week later, the State of

1 school

2 Tribunal

3 G.I.A. Case No.623 of 2011

4 FAO No. 582 of 2015

5 High Court

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Odisha filed an application⁶ seeking recall of the order dated 26th April, 2023. Together with such application was filed an application for condonation of delay⁷ seeking condonation of 291 days' delay.

5. The application for condonation of delay was taken up for consideration by the High Court on 21st February, 2025. Having noted that the certified copy of the impugned order was filed only on 13th February, 2024, the High Court correctly observed that the appeal filed on 16th October, 2015 was inherently defective and the delay in presenting the appeal is in excess of 11 years. Considering the aforesaid position, the application for condonation of delay was rejected resulting in the application for recall being dismissed as time-barred.
6. The order of the High Court dated 21st February, 2025 is challenged by the State of Odisha in this special leave petition.
7. It is noted that there is a delay of 123 days in filing the special leave petition and a further delay of 96 days in re-filing the same after curing defects. In the application for condonation of delay⁸, the State of Odisha seeks to explain the delay by pleading as follows:

“3. It is submitted that the Petitioner on receipt of order of the Hon'ble High Court vide order dated 26.04.2023 and order dated 21.02.2025 in F.A.O. No. 582 of 2015 and in I.A. No. 126 of 2025 in F.A.O. No. 582 of 2015 the petitioner considered the matter and sent it to the law department opined that it is a fit case for filing the present SLP against the impugned judgements dated 26.04.2023 and order dated 21.02.2025.

4. That the delay in filing the appeal was on account of procedural delay in obtaining approval from the higher authority. The delay caused is not deliberate and intentional.”

8. Ms. Sanjana Saddy, learned counsel appearing for the State of Odisha, submits that the delay in presenting the special leave petition is not deliberate and having regard to the long line of decisions of

6 I.A. No.165 of 2024

7 I.A. No.126 of 2025

8 I.A No.34867 of 2026

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this Court advocating a liberal approach when an authority under Article 12 of the Constitution is the petitioner seeking condonation of delay, she urges that the delay be condoned and this Court may direct the High Court to examine the challenge to the order dated 30th December, 2013 of the Tribunal on merits, upon revival of the appeal.

9. We had, upon hearing Ms. Sanjana, started dictating an order of dismissal of the special leave petition. It was then that she prayed for withdrawal of the special leave petition. We had so recorded. However, when we were about to rise for the day, Ms. Sanjana prayed for recall of the order of dismissal of the special leave petition as withdrawn; she also submitted, on instructions, that the State of Odisha would invite a detailed order with reasons in support of dismissal of the special leave petition.
10. We recalled the order dismissing the special leave petition as withdrawn and, instead, dismissed the same as time-barred considering paragraphs 3 and 4 of the application for condonation of delay, excerpted above, with the observation that reasons would follow.
11. We now proceed to assign our reasons.
12. No cause, much less sufficient cause, has been shown for exercise of discretion in favour of the State of Odisha. The nature of explanation in the application for condonation of delay is such that with much ado, the proceedings could be closed.
13. However, since there is a long line of decisions of this Court propounding the law that the expression 'sufficient cause' employed by the legislature in Section 5 of the Limitation Act, 1963 is adequately elastic to enable the courts to apply the law in a meaningful manner which subserves the ends of justice and in view of the submission of Ms. Sanjana, we have considered it appropriate to consider the matter in some depth.
14. Almost four decades back, in ***Collector, Land Acquisition, Anantnag v. Mst Katiji***⁹, a coordinate Bench noting that the justifiably liberal approach which this Court has been adopting in matters

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instituted before it is not being followed by the courts lower in the hierarchy, mandated that a justice oriented approach is indeed called for when a 'State' seeks condonation of delay as distinguished from 'a private party'.

15. Close on the heels of *Katiji* (supra), Hon'ble Justice M.N. Venkatachaliah speaking for the coordinate Bench in *G. Ramegowda v. Land Acquisition Officer*¹⁰ had referred to *Katiji* (supra) in paragraph 14 and quoted the following passage therefrom:

"When substantial justice and technical considerations are pitted against each other, cause of substantial justice deserves to be preferred for the other side cannot claim to have vested right in injustice being done because of a non-deliberate delay ...

It must be grasped that judiciary is respected not on account of its power to legalise injustice on technical grounds but because it is capable of removing injustice and is expected to do so."

Immediately thereafter, in paragraphs 15 to 17, it was held as under:

15. In litigations to which Government is a party there is yet another aspect which, perhaps, cannot be ignored. If appeals brought by Government are lost for such defaults, no person is individually affected; but what, in the ultimate analysis, suffers is public interest. The decisions of Government are collective and institutional decisions and do not share the characteristics of decisions of private individuals.

16. The law of limitation is, no doubt, the same for a private citizen as for governmental authorities. Government, like any other litigant must take responsibility for the acts or omissions of its officers. But a somewhat different complexion is imparted to the matter where Government makes out a case where public interest was shown to have suffered owing to acts of fraud or bad faith on the part of its officers or agents and where the officers were clearly at cross-purposes with it.

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17. Therefore, in assessing what, in a particular case, constitutes “sufficient cause” for purposes of Section 5, it might, perhaps, be somewhat unrealistic to exclude from the considerations that go into the judicial verdict, these factors which are peculiar to and characteristic of the functioning of the government. Governmental decisions are proverbially slow encumbered, as they are, by a considerable degree of procedural red tape in the process of their making. A certain amount of latitude is, therefore, not impermissible. It is rightly said that those who bear responsibility of Government must have “a little play at the joints”. Due recognition of these limitations on governmental functioning — of course, within reasonable limits — is necessary if the judicial approach is not to be rendered unrealistic. It would, perhaps, be unfair and unrealistic to put government and private parties on the same footing in all respects in such matters. Implicit in the very nature of governmental functioning is procedural delay incidental to the decision-making process. In the opinion of the High Court, the conduct of the law officers of the Government placed the Government in a predicament and that it was one of those cases where the mala fides of the officers should not be imputed to Government. It relied upon and trusted its law officers. ...

16. **Katiji** (supra) and **Ramegowda** (supra) were consistently followed by this Court until adoption of a different and seemingly strict approach while dealing with applications for condonation of delay during the last decade and a half became discernible starting with the decision in **Postmaster General v. Living Media India Limited**¹¹, where a delay of 427 days in filing the relevant special leave petition was not condoned. **University of Delhi v. Union of India**¹² is another decision (of a three-Judge Bench of this Court) where delay of 916 days was not condoned. While upholding the decision of the relevant high court under challenge refusing to condone the delay of 5659 days in presentation of an appeal under Section 54 of the

¹¹ (2012) 3 SCC 563

¹² (2020) 13 SCC 745

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Land Acquisition Act, 1894 by the heirs of a deceased landowner, a coordinate Bench in ***Pathapati Subba Reddy v. Collector(LA)***¹³ very recently reiterated that the law of limitation is founded on public policy, the object is that a legal remedy is put to an end so that no litigation remains pending for an indefinite period. It was also held, departing from the earlier view, that the merits of the case cannot be considered at the stage of considering the application for condonation of delay.

17. Indeed, one of us [Dipankar Datta] in ***Sheo Raj Singh v. Union of India***¹⁴ authoring the judgment for a coordinate Bench adopted the view taken in ***Katiji*** (supra), ***Ramegowda*** (supra) and a host of other decisions following the same while not interfering with an order of condonation of delay passed by the relevant high court. However, it was observed that a distinction ought to be drawn between an ‘explanation’ and an ‘excuse’ that is proffered as cause for condonation of delay. It was also emphasized that a different approach has to be adopted while this Court is considering an application for condonation of delay in presentation of an appeal/application and when it sits in appeal over a discretionary order of the high court granting the prayer for condonation of delay. In the case of the former, whether to condone or not would be the only question whereas in the latter, whether there has been proper exercise of discretion in favour of grant of the prayer for condonation has to be examined.
18. However, what perhaps remained unnoticed in any of the decisions post ***Katiji*** (supra) and ***Ramegowda*** (supra) adopting a liberal approach is the exasperation and consequent lament expressed by none other than Hon’ble M.N. Venkatachaliah, CJI. in course of authoring a brief order in ***Commissioner of Wealth Tax, Bombay v. Amateur Riders Club, Bombay***¹⁵ and admonishing officers of the “revenue” in not acting with promptitude. This order was made within six years of the decision in ***Ramegowda*** (supra). We can do no better than quoting the same in its entirety hereunder:

1. We have heard Shri S.C. Manchanda, learned senior counsel for the Revenue.

¹³ (2024) 12 SCC 336

¹⁴ (2023) 10 SCC 531

¹⁵ (1994) Supp. 2 SCC 603

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2. This special leave petition filed on November 16, 1993 is delayed by 264 days. For quite some time in the past, this Court has been making observations as to the grave prejudice caused to public interest by appeals brought on behalf of the Government being lost on the point of limitation. Such observations have been made for over a few years in the past. But there seems to be no conspicuous improvement as is apparent in the present petition which is filed in November 1993. The explanation for the delay, had better be set out in petitioner's own words:

“(g) The Advocate-on-Record got the special leave petition drafted from the drafting Advocate and sent the same for approval to the Board on June 24, 1993 along with the case file.

(h) The Board returned the case file to the Advocate-on-Record on July 9, 1993 who re-sent the same to the Board on September 20, 1993 requesting that draft SLP was not approved by the Board. The Board after approving the draft SLP sent this file to CAS on October 1, 1993.”

3. This explanation is incapable of furnishing a judicially acceptable ground for condonation of delay. After the earlier observations of this Court made in several cases in the past, we hoped that the matters might improve. There seems to be no visible support for this optimism. There is a point beyond which even the courts cannot help a litigant even if the litigant is Government which is itself under the shackles of bureaucratic indifference. Having regard to the law of limitation which binds everybody, we cannot find any way of granting relief. It is true that Government should not be treated as any other private litigant as, indeed, in the case of the former the decisions to present and prosecute appeals are not individual but are institutional decisions necessarily bogged down by the proverbial red-tape. But there are limits to this also. Even with all this latitude, the explanation offered for the delay in this case merely serves to aggravate the attitude of indifference of the Revenue in protecting its common interests. The affidavit is again one of the stereotyped affidavits making it susceptible to the criticism that the Revenue does not seem to attach

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any importance to the need for promptitude even where it affects its own interest.

4. The application for condonation of delay is, accordingly, dismissed. The special leave petition is, therefore, dismissed as barred by time.

(emphasis ours)

19. Reading **Ramegowda** (supra) and **Amateur Riders** (supra), one after the other, leaves none in doubt that it did not take much time for this Court to lose hope. It is absolutely clear that the law was laid down in **Ramegowda** (supra), following **Katiji** (supra), with much optimism that matters would improve. Their Lordships, however, found no visible support for such optimism and the Court's patience having been tested to the extreme limit, held that there is a point beyond which even the courts cannot help a litigant even if the litigant labouring under the shackles of bureaucratic indifference is the Government.
20. We have found the State of Odisha to be utterly lethargic, tardy and indolent not only before the High Court but also before this Court. Notwithstanding that its appeal was dismissed as time-barred by the High Court, this Court has been approached by the State of Odisha four months after expiry of the period of limitation.
21. Condonation of delay cannot be claimed as a matter of right. It is entirely the discretion of the Court whether or not to condone delay. Despite all the latitude that is shown to a "State", we are of the clear opinion that the cause sought to be shown here by the State of Odisha is not an explanation but a lame excuse. No case for exercise of discretion has been set up.
22. The applications for condonation of delay in filing the special leave petition and condonation of delay in re-filing the same, thus, stand rejected, with the result that the special leave petition stands dismissed as time-barred.

Result of the case: Special Leave Petition dismissed.

R. Savithri Naidu
v.
M/s The Cotton Corporation of India Limited
and Another

(Civil Appeal No. 1602 of 2026)

12 February 2026

[Pankaj Mithal and S.V.N. Bhatti,* JJ.]

Issue for Consideration

Whether in the facts and circumstances of the case, the sale in favour of the Appellant was without notice; whether the sale in favour of the Appellant can be brought within the purview of *pendente lite*, given that the arbitral award is for the recovery of money; whether the Appellant is a transferee *pendente lite*/post arbitral award purchaser, and is barred by Or.XXI r.102, CPC from resisting the execution.

Headnotes[†]

Code of Civil Procedure, 1908 – Or.XXI r.102 – Transferee *pendente lite*/post arbitral award purchaser barred by Or.XXI r.102 from resisting execution – A sale agreement was entered into between the first and second respondents for the sale of cotton bales – On account of a dispute in recovery of the sale price of cotton bales supplied, first respondent raised arbitral dispute for recovery of money – Arbitrator passed award in favour of first respondent – Challenged by Respondent No. 2-Company, dismissed in 2013 – In 2019, first respondent filed execution petition (EP) for executing the award – In the meantime, a tripartite agreement was entered into between ICICI Bank, Respondent No.2 (borrower of ICICI Bank which initiated recovery proceedings under SARFAESI Act for default of payment of the sums borrowed and attached the properties of Respondent No.2) and the Appellant-mother of the Company’s MD, resulting in a Sale Deed in 2015 executed by Respondent No.2 in favour of the Appellant for one of the EP Schedule Property – Executing court ordered the conditional attachment of EP Schedule

* Author

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Property – Appellant claiming to be a third party sought removal of the attachment order stating that through the registered sale deed executed by Respondent No.2, she had become the absolute owner of the EP Schedule Property – Executing court dismissed the claim petition of the Appellant *inter alia* holding that the third-party claimant took the risk of the execution petition, and the objection is hit by r.102 of Or.XXI; revision thereagainst was also dismissed by High Court:

Held: Impugned order upheld – The non-production of tripartite agreement, which is the genesis for discharging the claim of ICICI Bank, as has been rightly held by the Executing Court, shows that the sale in favour of Appellant, even if for consideration cannot be without notice of the existing liability of the Company/Respondent No. 2 – The recovery proceedings under SARFAESI Act are independent and does not give any shield of protection to other claims against the Judgment Debtor/Borrower in default – In the circumstances of the case, the argument that the sale in favour of the Appellant is without notice, rejected – Appellant is a purchaser post-arbitral award for recovery of the amount – The execution proceeding was pending when the sale deed was entered into between Respondent No. 2 and the Appellant – Appellant is a transferee *pendente lite*/post arbitral award purchaser, and is barred by Or.XXI r.102 from resisting the execution – Moreover, the Appellant failed to discharge the onus on the sale being without notice of the existing claim – The arbitral award remains unrealised till date – Therefore, in the circumstances of this case, and by following the ratio in *Danesh*, the claim petition of the Appellant was rightly dismissed by the courts below – If the argument of the appellant is accepted allowing *pendente lite* purchasers or third parties to bypass the strict procedural safeguards and institute separate suits or raise belated objections long after the execution processes (like attachment and sale) have advanced, it would completely derail the statutory machinery – Judgment-debtors would be incentivized to systematically defeat decrees by transferring properties or planting surrogate objectors to initiate endless collateral litigation – Transfer of Property Act, 1882 – s.52 – Arbitration and Conciliation Act, 1996. [Paras 10, 13, 13.1, 14]

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M/s The Cotton Corporation of India Limited and Another**

Code of Civil Procedure, 1908 – Or.XXI r.102 – On facts, Appellant is a transferee *pendente lite*/post arbitral award purchaser, and is barred by Or.XXI r.102 from resisting the execution:

Held: In the facts and circumstances of the present case, the arbitral proceeding was instituted in 1999, and the award is dated 11.06.2001 – U/s.36 of the Arbitration and Conciliation Act, 1996, an arbitral award is enforceable in the same manner as if it were a decree of a court, essentially, a deemed decree – Or.XXI r.102 of the CPC explicitly states that the protections available to *bona fide* claimants under rr.98 and 100 do not apply to a transferee *pendente lite* – A transferee *pendente lite* is someone to whom the property is transferred after the institution of the suit in which the decree was passed – The suit, *i.e.*, the arbitration proceeding, was instituted in 1999, and the Appellant purchased the property on account of a sale deed dated 23.04.2015 – Since the transfer occurred after the institution of the proceedings and the passing of the award, the Appellant is a transferee *pendente lite*/post arbitral award purchaser, and is barred by Or.XXI r.102 from resisting the execution – Arbitration and Conciliation Act, 1996 – s.36. [Para 10]

Code of Civil Procedure, 1908 – Order XXI:

Held: A suit may take 5 years to conclude, but its execution takes 10 years – Or.XXI was comprehensively amended in 1976 specifically to cure this mischief, operating as a self-contained code that strictly bars separate suits (u/s.47, rr.92(3), and 101) and imposes rigid limitation periods for raising objections – If the argument of the appellant is accepted allowing *pendente lite* purchasers or third parties to bypass these strict procedural safeguards and institute separate suits or raise belated objections long after the execution processes (like attachment and sale) have advanced, it would completely derail the statutory machinery – Judgment-debtors would be incentivized to systematically defeat decrees by transferring properties or planting surrogate objectors to initiate endless collateral litigation – Consequently, execution proceedings would not merely take 10 years, but would get trapped in an infinite loop and practically never get completed, reducing the hard-won decrees of competent courts to mere “paper tigers” – The provisions in the CPC must be employed to secure actual relief, not just a formal decree. [Paras 13, 13.1]

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Case Law Cited

Danesh Singh and Others v. Har Pyari (Dead) Thr. LRs., 2025 INSC 1434; *Usha Sinha v. Dina Ram* [2008] 4 SCR 1192 : (2008) 7 SCC 144 : AIR 2008 SC 1997 – relied on.

Jini Dhanrajgir v. Shibu Mathew [2023] 5 SCR 551 : (2023) 20 SCC 76 – referred to.

General Manager of the Raj Durbhunga v. Coomar Ramaput Singh (1871-72) 14 MIA 605; 1872 SCC OnLine PC 16 – referred to.

List of Acts

Code of Civil Procedure, 1908; Transfer of Property Act, 1882; Arbitration and Conciliation Act, 1996.

List of Keywords

Order XXI Rule 102, CPC; Transferee *pendente lite*/post arbitral award purchaser; Transferee *pendente lite*/post arbitral award purchaser barred by Order XXI Rule 102, CPC from resisting execution; Sale was not without notice; Purchaser post-arbitral award for recovery of the amount; Sale *pendente lite*; Arbitral award for the recovery of money; Section 52, Transfer of Property Act, 1882; Third-party stranger; Judgment-debtor; Execution petition; Execution of award.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 1602 of 2026

From the Judgment and Order dated 12.07.2024 of the High Court of Judicature at Madras in CRP No. 469 of 2022

Appearances for Parties

Advs. for the Appellant(s):

Gopal Sankarnarayanan, Sr. Adv., Udian Sharma, Anirudh Sriram, Manav Mitra, Ms. Harsha Sadhwani, Sahil Saraswat.

Adv. for the Respondent(s):

Ms. Sunita Singh, Abhigya Kushwah, Pradeep Kumar Dubey, Siddharth Rajkumar Murarka, Rohan Rohatgi, Ms. Shubhangini Rohatgi, Rohan Dewan, Rudra Deosthali, Ms. Garima Jain.

**R. Savithri Naidu v.
M/s The Cotton Corporation of India Limited and Another**

Judgment / Order of the Supreme Court

Judgment

S.V.N. Bhatti, J.

1. Leave granted.
2. M/s Lakshmi Ganesh Textiles Limited, Avinashi Road, Peelamedu, Coimbatore/Respondent No. 2 was a Public Limited Company, and on 30.06.2011, was incorporated as a Private Limited Company. The Cotton Corporation of India Limited, Ramanathapuram, Coimbatore (“CCI”)/Respondent No. 1 primarily engages in the business of sale and purchase of cotton/cotton bales. On 22.01.1998, a sale agreement was entered into between the first and second respondents for the sale of cotton bales. On account of a dispute in recovery of the sale price of cotton bales supplied under the sale agreement dated 22.01.1998, the first respondent raised an arbitral dispute in AP No. 9 of 1999 for recovery of Rs. 37,51,380/- with interest and cost. On 11.06.2001, the learned arbitrator passed an award for a sum of Rs. 26,00,572.90/- with future interest at 18% per annum and cost. On 25.09.2001, Respondent No. 2 filed AOP No. 10 of 2006 before the Court of Principal District Judge, Coimbatore under Section 34 of the Arbitration and Conciliation Act, 1996.
3. The Appellant is the mother of the Managing Director of Respondent No. 2, wife of ex-director, and was also a non-executive director of the Respondent No. 2/Company from 2007 to 2012.
4. On 21.01.2013, AOP 10 of 2006 was dismissed, and has become final, since no appeal was filed by Respondent No. 2.
5. Respondent No. 2 is a borrower of ICICI Bank. For default of payment of the sums borrowed, ICICI Bank initiated recovery proceedings on 11.11.2013 under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (“SARFAESI Act”) and attached the properties of Respondent No. 2. The Execution Petition (“EP”) Schedule Properties are among the properties brought for sale by ICICI Bank. A tripartite agreement was entered into between ICICI Bank, Respondent No. 2 and the Appellant, resulting in a Sale Deed dated 23.04.2015, executed by Respondent No. 2

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in favour of the Appellant. OA No. 120 of 2013, filed by ICICI Bank, was closed pursuant to a compromise evidenced by the tripartite agreement dated 29.12.2014.

6. On 16.07.2019, Respondent No. 1 filed EP before the Court of Principal District Judge, Coimbatore, for executing the award dated 11.06.2001. EP was transferred to the Court of Principal District Judge, Tirupur. On 19.08.2021, in EP No. 300 of 2019, the executing court ordered the conditional attachment of EP Schedule Property. The Appellant, claiming to be a third party, filed EA No. 141 of 2021 under Order XXI Rule 58 of the Code of Civil Procedure, 1908, praying for the removal of the attachment ordered in EP No. 300 of 2019 of the EP Schedule Property. The Appellant states that on 23.04.2015, through a registered sale deed executed by Respondent No. 2 to the Appellant, she has become the absolute owner of the EP Schedule Property. The sale in favour of Appellant is for valid consideration and without notice, namely, the existing liability arising out of the arbitral award. The EP was filed in 2019, and attachment was effected on 19.08.2021.
 - 6.1 On the date of attachment, the judgment-debtor is not the owner of the property. Therefore, the attachment of the EP Schedule and the consequent realisation steps for the sum due under the arbitral award dated 11.06.2001 are unsustainable and illegal. The EP schedule is, therefore, not available for either attachment or sale by the executing court in EP No. 300 of 2019 for realisation of the arbitral award. The EP was filed in 2019 and is therefore not maintainable against the property purchased by the Appellant under the sale deed dated 23.04.2015. To sum up, it is alleged that the Appellant is the absolute owner of the EP Schedule, paid consideration, and is without knowledge of the ongoing dispute between Respondent No. 1 and Respondent No. 2.
 - 6.2 Respondent No. 1 alleges collusion between the Appellant and Respondent No. 2 and brought into existence the sale deed dated 23.04.2015. The completion of the sale under the SARFAESI Act will not affect the right of the decree holder in AOP No. 10 of 2006. The Appellant is a purchaser subsequent to the arbitral award in favour of the first respondent. The executing court recorded the claimant's evidence and dismissed

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the claim petition. A finding relevant to the Appellant's claim is that the AOP had been pending since 1999 and concluded in 2013. Respondent No. 2 is under an obligation to disclose the award, as well as the pending AOP proceedings to the Appellant. The tripartite agreement preceding the sale deed has not been exhibited to establish the absence of collusion or ignorance of ongoing proceedings. The third-party claimant has taken the risk of the execution petition, and the objection is hit by Rule 102 of Order XXI of the Code of Civil Procedure Code, 1908 ("CPC"). The claim petition was thus dismissed by order dated 03.01.2022. The Appellant carried the order in revision before the High Court in CRP No. 469 of 2022. By the impugned order dated 12.07.2024, the said revision was dismissed.

7. Hence, the appeal at the instance of the purported third-party claimant.
8. Mr. Gopal Sankaranarayanan, Senior Advocate, contends that in the execution of the arbitral award, the property of the Judgment Debtor can be attached and brought for sale. The Appellant is the absolute owner under the registered document sale deed dated 23.04.2015. The Appellant cannot be treated as a *pendente lite* purchaser, inasmuch as, on the date of the purchase, neither a suit nor a legal proceeding was pending. The arbitral award is for the recovery of money. In other words, the subject matter of the arbitration does not concern the EP property. From the admitted circumstances, the Appellant is treated as an independent purchaser for consideration without notice. Therefore, the attachment of the Appellant's property purchased through a sale deed dated 23.04.2015 is *ex facie* illegal and liable to be set aside. The arguments have been substantially made based on the chronology of events, as admitted by the parties.
9. Advocate Sunita Singh appearing for Respondent No. 1 argues that the basis of the claim petition is that the purchase of Appellant is for valid consideration and without notice. In the peculiar facts, the plea is too broad inasmuch as the Appellant is the mother of the Managing Director of Respondent No. 2/Company. At the time of sale, Respondent No. 2 was a private limited company. The claim for realisation of unpaid sale consideration for the purchase of cotton bales from CCI has been pending since 2001, and the property available with Respondent No. 2 is available for realisation of the arbitral award amount, subject to the claims of other secured creditors.

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The non-production of the tripartite agreement is crucial, and the courts below have correctly inferred that it was not produced, while refusing to remove the attachment on the EP Schedule property. The subject matter of the arbitral award, though not concerning the immovable property, still is the immovable property of the judgment debtor, which is available for realising the arbitral award. The Appellant cannot defeat the right of the first respondent, being a post-arbitral award purchaser. The first respondent relies on the judgment of Madras High Court in CMSA No. 13 of 2019 dated 26.04.2021, which has been referred to and approved by this Court in *Danesh Singh and others v. Har Pyari (Dead) Thr. LRs.*¹ for the proposition that the principle of *lis pendens* cannot, in terms, be excluded for money decrees.

10. In the facts and circumstances of the present case, the arbitral proceeding was instituted in 1999, and the award is dated 11.06.2001. Under Section 36 of the Arbitration and Conciliation Act, 1996, an arbitral award is enforceable in the same manner as if it were a decree of a court, essentially, a deemed decree. Order XXI Rule 102 of the CPC explicitly states that the protections available to *bona fide* claimants under Rules 98 and 100 do not apply to a transferee *pendente lite*. A transferee *pendente lite* is defined as someone to whom the property is transferred after the institution of the suit in which the decree was passed. The suit, i.e., the arbitration proceeding, was instituted in 1999, and the Appellant purchased the property on account of a sale deed dated 23.04.2015. Since the transfer occurred after the institution of the proceedings and the passing of the award, the Appellant is a transferee *pendente lite*/ post arbitral award purchaser, and is barred by Order XXI Rule 102 from resisting the execution. The Appellant, *per contra*, argues that the Section 34 challenge was dismissed in 2013, and the sale was in 2015, implying no litigation was pending. However, the argument under Order XXI Rule 102 does not depend on the pendency of the Section 34 challenge, but on the fact that the transfer occurred after the institution of the suit in 1999, and after the arbitral award (decree) came into existence in 2001. A judgment debtor cannot defeat a decree by alienating the property after the decree is passed but before the decree is realised. In other words, the steps taken

1 2025 INSC 1434.

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defeat the very fruits of the money decree. The ratio of this Court in *Usha Sinha v. Dina Ram*,² is kept in perspective while appreciating the claim which falls under Rule 102 of Order XXI of the CPC. The excerpt is noted here:

“Bare reading of the Rule makes it clear that it is based on justice, equity and good conscience. A transferee from a judgment-debtor is presumed to be aware of the proceedings before a court of law. He should be careful before he purchases the property which is the subject-matter of litigation. It recognises the doctrine of lis pendens recognised by Section 52 of the Transfer of Property Act, 1882. Rule 102 of Order 21 of the Code thus takes into account the ground reality and refuses to extend helping hand to purchasers of property in respect of which litigation is pending. If unfair, inequitable or undeserved protection is afforded to a transferee pendente lite, a decree-holder will never be able to realise the fruits of his decree. Every time the decree-holder seeks a direction from a court to execute the decree, the judgment-debtor or his transferee will transfer the property and the new transferee will offer resistance or cause obstruction. To avoid such a situation, the Rule has been enacted.”

11. We have taken note of the rival submissions. At first glance, it appeared to us that to realise the amount due under an arbitral award, a third party's property is attached. We have to arrive at an available finding examining the record and the foremost circumstances we preface are from 1999 till 2013, when the arbitration proceedings are pending against Respondent No. 2. From 2014 till date, the proceedings in execution are pending against Respondent No. 2. The EP has been filed before the Court of Principal District Judge, Coimbatore, and was transferred to Tirupur. The transferee court, within whose jurisdiction the properties are situated ordered attachment for realisation of the arbitral award dated 11.06.2001. The Appellant presents the case as a third-party stranger. We may not hasten to conclude that there is fraud between the Appellant and Respondent No. 2 in the transfer of the EP Schedule Properties by sale deed dated 23.04.2015. But

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the non-production of tripartite agreement, which is the genesis for discharging the claim of ICICI Bank, as has been rightly held by the Executing Court, enables this Court to safely conclude that the sale in favour of Appellant, even if for consideration cannot be without notice of the existing liability of the Company/Respondent No. 2. The recovery proceedings under SARFAESI Act are independent and does not give any shield of protection to other claims against the Judgment Debtor/Borrower in default. In the circumstances of the case, we reject the argument that the sale in favour of the Appellant is without notice.

12. The next question for consideration is whether the sale in favour of the Appellant can be brought within the purview of *pendente lite*, given that the arbitral award is for the recovery of money. The question need not be treated as *res integra*; the valid reasoning of the Madras High Court, affirmed by this court in *Danesh (supra)*, is a complete answer. The operative portions of the judgment:

“63. To substantiate our reasoning, we may also look into the decision of the High Court of Madras in Annakkili v. Murugan & Anr., reported in 2021 SCC OnLine Mad 1673, wherein the plaintiff had filed a suit for the recovery of money, and also sought for a direction to be given to the judgment-debtor to furnish security for the suit claim, failing which the court must direct that the properties mentioned in the plaint, be attached. Before any direction could be passed, the appellant therein purchased one of the properties mentioned in the plaint. It was then argued that Section 52 of the 1882 Act cannot be invoked in case of a simple money suit. The Court held that Section 52 does not state that it is not applicable to suits for recovery of money, and the provision would not say so, because the Explanation to the provision states that the pendency of any suit continues until the suit or proceeding has been disposed of by a final decree or order and complete satisfaction or discharge of such decree or order has been obtained. It was further held that the parties must not create new rights in the property till the execution proceedings are discharged. The Court underscored that if Section 52 was read as always excluding money suits, despite a specific prayer in the plaint as regards the attachment of

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the property, a decree passed therein would be rendered meaningless, since the party would be free to alienate the property and there would be no property available to execute the money decree.”

13. It is a well-worn proverb in litigation, echoing the Privy Council’s century-old observation, that the true difficulties of a litigant begin only after they have obtained a decree.³ It is generally stated that a suit may take 5 years to conclude, but its execution takes 10 years. Order XXI of the CPC was comprehensively amended in 1976 specifically to cure this mischief, operating as a self-contained code that strictly bars separate suits (under Section 47, Rule 92(3), and Rule 101) and imposes rigid limitation periods for raising objections. If the argument of the appellant is accepted allowing pendente lite purchasers or third parties to bypass these strict procedural safeguards and institute separate suits or raise belated objections long after the execution processes (like attachment and sale) have advanced, it would completely derail the statutory machinery. Judgment-debtors would be incentivized to systematically defeat decrees by transferring properties or planting surrogate objectors to initiate endless collateral litigation. Consequently, execution proceedings would not merely take 10 years, but would get trapped in an infinite loop and practically never get completed, reducing the hard-won decrees of competent courts to mere “paper tigers.”
- 13.1 This Court emphasized in *Jini Dhanrajgir v. Shibu Mathew*,⁴ that winning a case is meaningless unless the winner actually gets the relief they sought. We need a shift in mindset: the goal of the legal system should not just be to dispose of cases, but to ensure that the litigant enjoys the reliefs. The provisions in the CPC must be employed to secure actual relief, not just a formal decree. We must ensure that the legal process results in justice not just appearing to be done, but justice actually being done.
14. To sum up, we note that the Appellant is a purchaser post-arbitral award for recovery of the amount. The execution proceeding was

3 *General Manager of the Raj Durbhunga v. Coomar Ramaput Singh*, (1871-72) 14 MIA 605; 1872 SCC OnLine PC 16.

4 (2023) 20 SCC 76.

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pending when the sale deed was entered into between Respondent No. 2 and the Appellant. Moreover, the Appellant failed to discharge the onus on the sale being without notice of the existing claim. The arbitral award remains unrealised till date. Therefore, in the circumstances of this case, and by following the ratio in *Danesh (supra)* we hold that the claim petition of the Appellant is rightly dismissed by the courts below.

15. In the circumstances of the case and for the above reasons, we agree with the order impugned, and the Civil Appeal fails and is dismissed. The executing court disposes of Execution Proceedings within two months from today.
16. No order as to costs. Pending applications, if any, stand disposed of.

Result of the case: Appeal dismissed.

†Headnotes prepared by: Divya Pandey

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(Civil Appeal No. 1620 of 2026)

13 February 2026

[K.V. Viswanathan and Vipul M. Pancholi,* JJ.]

Issue for Consideration

Issue arose for consideration whether r.6(2)(24)(iii) of Chapter XXXII of the Kerala Education Rules mandates that the State Eligibility Test-SET qualification must be in the concerned subject only for appointment as Higher Secondary School Teachers-HSST or in any subject would suffice for eligibility, and if so, whether the appellant satisfies the said requirement or qualifies for exemption u/r.10(4) of Chapter XXXII of the Rules.

Headnotes[†]

Kerala Education Rules – Chapter XXXII, r.6(2)(24)(iii) – Interpretation – Essential qualifications for appointment as Higher Secondary School Teachers-HSST – Appellant having Bachelor’s degree and Master’s degree in Economics, B.Ed. in Social Sciences and State Eligibility Test-SET qualification in Malayalam appointed as Higher Secondary School Teacher-HSST (Economics) by competent authority– Respondent-authorities declined to approve the appointment of the appellant as HSST (Economics) on the ground that the appellant neither had the requisite SET qualification in Economics nor had ten years of experience as a High School Teacher to avail the exemption of mandatory SET qualification in the concerned subject – Writ petition by the appellant seeking quashing of the order and direction to respondent-authorities to approve his appointment as HSST – Single Judge dismissed the petition and declared that the appellant was not qualified for appointment to the post of HSST (Economics) and directed the authorities to consider the claim of respondent no. 4 for appointment as HSST (Economics) if found entitled – Upheld by the Division Bench – Correctness:

* Author

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Held: When r.6.2(24)(iii) is read with the prospectus of the SET examination, particularly Clause 2 of the prospectus, it can be safely said that the candidate is required to pass SET in the concerned subject to qualify for the appointment to the post of HSST in the said concerned subject – Even though in r.6.2(24) (iii), the words “in the concerned subject” are missing, the said Rule cannot be interpreted in isolation and the textual omission has to be inferred from context, purpose and scheme of the provision – Thus, the said clause is required to be interpreted in the said manner and possession of SET qualification in any other subject unrelated to the teaching post, does not suffice the statutory eligibility criteria – Concerned candidate is required to pass SET in the concerned subject – Appellant, though having Bachelor’s Degree as well as Master’s Degree in Economics, passed SET in Malayalam, whereas, respondent no. 4 is having the degrees of Bachelor’s and Master’s in Economics as well as the SET qualification in Economics – Thus, respondent no. 4 is fulfilling all the required eligibility criteria including the SET qualification in the concerned subject – Also, the appellant has completed 09 years 10 months and 14 days service, *i.e.*, less than ten years which is the minimum prescribed by the Rules and, thus, the appellant not entitled to seek an exemption u/r.10(4) of Chapter XXXII – Thus, the High Court did not commit any error in affirming the decision of the Single Judge, wherein it was declared that the appellant is not qualified for appointment to the post of HSST (Economics) in a vacancy that arose in the concerned school and respondent no. 4 is eligible for appointment as HSST (Economics) in the school w.e.f. 01.06.2021, with all consequential benefits, if found entitled. [Paras 25-27]

Case Law Cited

Union of India v. Pushpa Rani [2008] 11 SCR 440 : (2008) 9 SCC 242; *Kunjunamma v. State of Kerala* (2015) 11 SCC 440; *Reserve Bank of India v. Peerless General Finance and Investment Co. Ltd.* [1987] 2 SCR 1 : (1987) 1 SCC 424 – referred to.

Geetha v. State of Kerala, 2012 (1) KLT 829; *Manager, MPVHS School v. Girija* (2003) 1 KLT 935 – referred to.

List of Acts

Kerala Education Rules, 1959; Constitution of India.

Zubair. P v. State of Kerala & Ors.**List of Keywords**

State Eligibility Test-SET qualification; Appointment as Higher Secondary School Teacher-HSST(Economics); Essential qualifications for appointment as Higher Secondary School Teachers-HSST; Bachelor's degree in Economics; Master's degree in Economics; B.Ed. in Social Sciences; State Eligibility Test-SET qualification in Malayalam; High School Teacher; Mandatory SET qualification; Purposive and harmonious interpretation of the statute.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 1620 of 2026

From the Judgment and Order dated 18.07.2024 of the High Court of Kerala at Ernakulam in WA No. 733 of 2024

With

Civil Appeal No. 1621 of 2026

Appearances for Parties

Advs. for the Appellant(s):

Nikhil Goel, Sr. Adv., Haris Beeran, Azhar Assees, Anand B. Menon, Ms. Rizwana R. Raj, Shaswat Jena, Radha Shyam Jena.

Advs. for the Respondent(s):

Harshad V. Hameed, Dileep Poolakkot, Ms. Ashly Harshad, Mahabir Singh, Dr. Arunender Thakur, Anshul Saharan, Zulfiker Ali P.S., Augustine Peter, Faisal M. Aboobacker, Shifaz R. Dheen, Ms. Lebina Baby, Ms. Anne Mathew, P.S. Sudheer, Rishi Maheshwari, Bharat Sood, Jai Govind M.J., Jashan Vir Singh.

Judgment / Order of the Supreme Court**Judgment**

Vipul M. Pancholi, J.

1. Leave granted.
2. Both these appeals are preferred by the appellant, challenging the common impugned judgment and order dated 18.07.2024 passed by the Division Bench of the High Court of Kerala in Writ Appeal No.

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733 of 2024 and Writ Appeal No. 769 of 2024, whereby the High Court affirmed the rejection of approval to the appointment of the appellant as Higher Secondary School Teacher (Economics) on the ground that he did not possess the requisite State Eligibility Test qualification in the concerned subject.

3. As the issue in both these appeals is the same and as the Division Bench of High Court has passed a common judgment and order, both these appeals are being disposed of together by the present order.

FACTUAL MATRIX

4. The brief facts of the case are as under:
 - 4.1. The appellant had entered the service as an Upper Primary School Teacher on 01.11.2002 and was promoted as High School Teacher on 15.07.2004. Thereafter, on 15.07.2021, he was appointed as a Higher Secondary School Teacher (hereinafter referred as “*HSST*”) (Economics) by the competent authority. At the time of his appointment as HSST, the appellant was having a Bachelor’s degree in Economics, a Master’s degree in Economics and a B.Ed. in Social Sciences and State Eligibility Test (hereinafter referred as “*SET*”) qualification in Malayalam.
 - 4.2. On the other hand, respondent no. 4, entered the service as an Upper Primary School Assistant on 01.11.1997 and was promoted as High School Assistant (English) from 16.07.2005 onwards. She was having a degree in B.A. (Economics), M.A. (Economics) and B. Ed. (Social Sciences) and SET qualification in Economics.
 - 4.3. Aggrieved by the appointment of the appellant, respondent no. 4 raised objections alleging that the appellant neither had mandatory SET qualification in Economics as prescribed under Rule 6.2(24) of Chapter XXXII of the Kerala Education Rules (hereinafter referred as “*the Rules*”) nor he had ten years of high school teaching experience to fall within the exemption of mandatory SET under Rule 10(4) of Chapter XXXII of the Rules.
 - 4.4. Acting upon the objections, respondent-authorities *vide* its order dated 18.06.2022 declined to approve the appointment of the

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appellant on the ground that the appellant neither had SET qualification in Economics nor he had ten years of experience as a High School Teacher to avail the exemption of mandatory SET qualification in the concerned subject. Reliance was placed on the Government Order dated 18.01.2021 which clarified that it is mandatory to pass the SET exam in the concerned subject to become a Higher Secondary school teacher.

- 4.5. Being aggrieved by the decision of the respondent-authorities, the appellant preferred a Writ Petition (C.) No. 20130/2022 seeking quashing of order dated 18.06.2022 and direction to respondent-authorities to approve his appointment as HSST with effect from 15.07.2021.
- 4.6. On the other hand, respondent no. 4 also preferred a Writ Petition (C.) No. 11190/2023 seeking direction to respondent-authorities to consider her claim for appointment as HSST (Economics).
- 4.7. Learned Single Judge *vide* common judgment and order dated 14.05.2024 dismissed the petition preferred by the appellant and allowed the petition preferred by the respondent no. 4. Accordingly, it was declared that the appellant is not qualified for appointment to the post of HSST (Economics) in a vacancy that arose on 01.06.2021 in the concerned school. Further, the learned Single Judge gave direction to the respondent-authorities to consider the claim of respondent no. 4 for appointment as HSST (Economics) in the school w.e.f. 01.06.2021 with all consequential benefits, if respondent no. 4 is found entitled.
- 4.8. Appellant, being aggrieved and dissatisfied with the order passed by the learned Single Judge, preferred Writ Appeal No(s). 733 of 2024 and 769 of 2024.
- 4.9. *Vide* the impugned judgment, the Division Bench of the High Court dismissed both the appeals filed by the appellant and thereby confirmed the judgment and order rendered by the learned Single Judge.
- 4.10. Aggrieved by the impugned judgment, the appellant has preferred the present appeals.

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5. Mr. Nikhil Goel, learned Senior Counsel and Mr. Haris Beeran, learned counsel appearing on behalf of the appellant, challenged the impugned judgment, which upheld the rejection of the appointment of the appellant as HSST (Economics) on the ground that he did not possess a SET qualification in Economics and made multifold submissions as under:
 - 5.1. It is submitted that the appellant is qualified for the post of HSST (Economics) under the Rules. The appellant holds the Bachelor's Degree in Economics, Master's Degree in Economics and B.Ed. in Social Sciences. Further, the appellant is having SET qualification in Malayalam.
 - 5.2. Learned Counsel referred to Rule 6.2(24) of Chapter XXXII of the Rules which expressly requires the postgraduate degree and B.Ed. to be in the concerned subject. However, so far as SET is concerned, it is provided that the concerned candidate must have passed SET for the post of HSST conducted by the Government of Kerala or by an agency authorized by the State Government. Thus, it is submitted that the said rule does not specify any subject requirement for the SET qualification and the deliberate omission of subject-specific language in the SET qualification demonstrates the intent of the legislature that the SET qualification need not be subject-specific.
 - 5.3. Learned Counsel, therefore, contended that the High Court in the impugned judgment erroneously interpreted Rule 6.2(24) (iii) of Chapter XXXII of the Rules and erred in reading into the Rule a condition which the Rule itself does not contain, thereby impermissibly adding words to a statutory provision and such an approach is contrary to settled principles of statutory interpretation. It is further submitted that the High Court wrongly relied on Government orders and circulars prescribing subject-specific SET, as executive instructions cannot amend, override or supplement statutory rules.
 - 5.4. It is also contended that the interpretation adopted by the High Court contradicts the long understanding and the application of Rule 6.2(24) of the Rules across educational institutions in Kerala.

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- 5.5. Learned Counsel further submitted that Rule 10(4) of Chapter XXXII of the Rules provides exemption from SET for certain candidates based on other qualifications like NET, Ph.D., M.Phil., without requiring these qualifications in any specific subject. This reinforces that SET is intended as a general eligibility benchmark, not a subject-exclusive qualification. In addition, teachers with ten years of approved teaching certificates are also exempted from SET, regardless of the subject of their experience. It is submitted that the appellant was appointed as Upper Primary School Assistant on 01.11.2002 and promoted as High School Assistant (English) on 15.07.2004, whereas, the respondent no. 4 was promoted as High School Assistant (English) from 16.07.2005.
- 5.6. Learned Counsel for the appellant, therefore, urged that though the appellant was qualified to be appointed as HSST, his appointment was not approved by the authority and, therefore, the appellant had preferred the captioned writ petition. Learned Counsel submitted that the learned Single Judge as well as the Division Bench of the High court have committed serious error by interpreting provisions contained in Rule 6.2(24) of Chapter XXXII of the Rules.
- 5.7. Learned Counsel, therefore, urged that the impugned judgment passed by the High Court is liable to be set aside, and appropriate direction be issued to the respondent-authorities to appoint the appellant on the post in question by granting necessary approval.

SUBMISSIONS ON BEHALF OF RESPONDENT NO. 1 (State of Kerala)

6. Mr. Dileep Poolakkot, learned counsel appearing on behalf of the State, submitted that the impugned judgment is legal, valid and based on correct appreciation of facts and law, warranting no interference under Article 136 of the Constitution. Following submissions were made on behalf of respondent no. 1:
- 6.1. It is submitted that the appellant was appointed by transfer as HSST (Economics) on 15.07.2021. Accordingly, the Manager of the respondent-school submitted a proposal for the approval of the appointment of the appellant before the competent authority. Thereafter, the respondent no. 4 submitted a complaint in the

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office of Regional Deputy Director regarding the appointment and qualification of the appellant. It was pointed out by the respondent no. 4 that the appellant was not qualified for the post of HSST (Economics), as the appellant does not have SET in the relevant subject or ten years of high school teaching experience.

- 6.2. It is submitted that the appellant admittedly possesses BA and MA in Economics, B.Ed. in Social Studies and SET qualification in Malayalam, not in Economics and Rule 6(2)(24)(iii) of Chapter XXXII of the Rules requires SET in the concerned subject, namely Economics, for appointment as HSST (Economics). The appellant further does not possess ten years of approved High School teaching service, having only 9 years, 10 months and 14 days of such service after excluding periods of deputation and leave without allowance, and therefore, was not entitled for the exemption under Rule 10(4) of Chapter XXXII of the Rules.
- 6.3. The State submitted that the Government Order dated 18.06.2022 (G.O.(Rt) No. 3672/2022/G.Edn) rejecting approval of the appointment of the appellant was passed strictly in accordance with the Rules and pursuant to directions issued by the High Court. The subsequent grant of lower scale salary to the appellant was only an interim arrangement in compliance with court directions and does not confer any right of approval or regular appointment.
- 6.4. It is therefore submitted that the appellant lacks the essential statutory qualifications, the High Court has correctly interpreted Rules 6 and 10 of Chapter XXXII of the Rules.
- 6.5. Learned counsel therefore urged that the High Court has not committed any error while passing the impugned judgment and order. Thus, it is submitted that the present appeals are liable to be dismissed.

SUBMISSIONS ON BEHALF OF RESPONDENT NO. 3 (Manager, PTM Higher Secondary School)

7. Mr. Zulfiker Ali P.S., learned counsel appearing for respondent no. 3, submitted that under the Kerala Education Act and the Rules, the Manager is the statutorily recognised appointing authority and has exclusive control over staff management. The Manager has the

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inherent right to appoint teachers by transfer from the feeder category of High School Assistants (HSA) on a seniority-cum-suitability basis. Following submissions were made on behalf of respondent no. 3:

- 7.1. It is submitted that upon the vacancy of HSST (Economics) on 01.06.2021, the Manager validly appointed the appellant, who was the senior-most qualified teacher in the school, strictly in accordance with the Rules.
- 7.2. Learned Counsel submitted that a literal and harmonious reading of Rule 6 of Chapter XXXII of the Rules would reveal a deliberate distinction regarding qualifications. While the Master's and B.Ed. degrees must be in the concerned subject, the rule merely mandates a pass in the SET without any subject-specific restriction. It is further submitted that the omission of subject-specific language for SET is intentional and indicates that the rule-making authority did not intend SET to be confined to the subject of appointment.
- 7.3. It is submitted that the appellant holds a Post Graduation in Economics and a B.Ed. in Social Science and an SET in Malayalam, satisfies the statutory eligibility for HSST (Economics) because the SET is intended as an assessment of general teaching aptitude rather than a repetitive assessment of subject expertise, which is already verified by the post-graduate degree.
- 7.4. Learned Counsel further submitted that respondent no. 4 possessing SET in Economics would not supersede the appellant's seniority and valid qualifications as per the statutory rules.
- 7.5. Reliance is placed on ***Geetha v. State of Kerala, (2012 (1) KLT 829)***, wherein it was held that general teaching service is the criteria for exemption under Rule 10(4) of the Rules and that the Rules should not be re-written to insert subject-specific restrictions where none exist. It is asserted that across Kerala, numerous HSSTs appointed with SET in subjects different from their teaching subject are presently in service, reflecting a consistent administrative interpretation of Rule 6. It is submitted that disturbing this settled understanding would jeopardise the careers of countless teachers and unsettle long-standing appointments.

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- 7.6. Reliance is placed on the Full Bench judgment of the High Court of Kerala in ***Manager, MPVHS School v. Girija, (2003) 1 KLT 935***, to contend that executive orders or circulars, including the Government letter dated 18.01.2021, cannot override or supplement the statutory provisions of the Rules.
- 7.7. It is therefore submitted that the respondent no. 3 acted strictly within the four corners of the Rules in appointing the appellant and the impugned judgment, by importing a subject-specific requirement for SET, rewrites the statutory rule and is legally unsustainable.
- 7.8. It is therefore urged that the impugned judgement and order is liable to be set-aside and it is prayed that the appointment of the appellant made by the Management to be upheld.

SUBMISSIONS ON BEHALF OF RESPONDENT NO. 4 (Competing candidate for HSST (Economics))

8. Ms. Anne Mathew, learned counsel appearing for respondent no. 4, supported the interpretation adopted by the High Court that Rule 6(2) (24)(iii) of Chapter XXXII of the Rules mandates passing of SET in the concerned subject for appointment as HSST and made multifold submissions as under:
- 8.1. Learned Counsel submitted that to ensure maintenance of academic standards at the Higher Secondary level, the legislature decided to conduct SET examination for the post of HSST for the concerned subject as mandated in Rule 6 of Chapter XXXII of the Rules. Thus, the interpretation placed by the High Court is purposive, contextual and consistent with the scheme of the Rules and does not amount to adding words to the statute. Reliance is placed on ***Union of India v. Pushpa Rani, (2008) 9 SCC 242***, to argue that insisting on SET in the concerned subject is a policy choice aimed at maintaining academic standards and the courts should not dilute or re-interpret qualification requirements contrary to the understanding of the rule-making authority.
- 8.2. It is contended that the Government Letter dated 18.01.2021 clarifying the requirement of SET in the concerned subject is legal, valid and within the competence of the rule-making authority. Reliance is placed on ***Kunjunjamma v. State of***

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Kerala, (2015) 11 SCC 440, to support the validity of Government action and clarifications relating to SET qualification requirements and to contend that the Government's interpretation of Rule 6 of Chapter XXXII of the Rules is within its competence and cannot be lightly interfered with. It is further submitted that the appellant never challenged the validity of the said Government Letter before the High Court and therefore cannot dispute its applicability in the present proceedings.

- 8.3. It is further submitted that the appellant possesses SET only in Malayalam, not in Economics and further, the appellant does not have ten years of approved High School teaching service, having only 9 years, 10 months and 14 days of eligible service after excluding periods of deputation and leave without allowance. Consequently, the appellant is ineligible both under Rule 6(2) (24)(iii) (absence of SET in Economics) and under Rule 10(4) of Chapter XXXII (failure to satisfy service-based exemption) of the Rules.
- 8.4. It is submitted that respondent no. 4 is fully qualified under the statutory rules, possessing BA and MA in Economics, B.Ed. in Social Science and SET qualification in Economics. Respondent no. 4 attended the interview, produced all requisite documents and was wrongfully overlooked when the Manager appointed the appellant, despite her superior statutory eligibility.
- 8.5. Learned Counsel referred to the prospectus issued for conducting the SET examination in July 2021, a copy of which is placed on record at Page 162 of the Counter Affidavit filed on behalf of respondent no. 4. Clause 2 of the said prospectus provides for the scheme of the test which includes two papers and further provides that Paper II shall be a test based on the subject of specialisation of the candidate at the Post Graduate (PG Level).
- 8.6. The Full Bench decision of the Kerala High Court in **Girija (supra)**, is distinguished by learned counsel, arguing that the said decision dealt with Chapter XXXI of the Rules (High School Assistants), not Chapter XXXII of the Rules (Higher Secondary Teachers) and the interpretative issue in the said decision concerned B.Ed. subject requirement, whereas, the present case concerns SET for HSST, a distinct cadre with higher academic standards.

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- 8.7. It is submitted that accepting the interpretation of the appellant would undermine academic standards in Higher Secondary education, permit appointment of teachers lacking subject-specific eligibility, unsettle settled appointments and encourage avoidable litigation.
- 8.8. Learned Counsel, therefore, urged that the High Court has correctly interpreted the Rules, the appellant is statutorily ineligible and the directions to consider respondent no. 4 for appointment are lawful and just under Rule 6.2(24) of Chapter XXXII of the Rules. The present appeals are therefore liable to be dismissed and the impugned judgment deserves to be upheld.

ANALYSIS AND FINDINGS

9. Having heard learned counsel for the parties at length and having carefully perused the material on record, the Rules as well as the prospectus of the SET examination, it would emerge that the appellant had entered the service as an Upper Primary School Teacher on 01.11.2002 and was promoted as High School Teacher on 15.07.2004 and, thereafter, on 15.07.2021, the appellant was appointed as HSST (Economics) by the competent authority. It would further reveal that respondent no. 4 entered the service as an Upper Primary School Assistant on 01.11.1997 and was promoted as High School Assistant (English) from 16.07.2005 onwards.
10. Now, it is not in dispute that the appellant possesses the Bachelor's Degree in Economics, Master's Degree in Economics, B.Ed. in Social Sciences and passed SET in Malayalam. It is also not in dispute that respondent no. 4 possesses a degree in B.A. (Economics), M.A. (Economics), B.Ed. (Social Sciences) and passed the SET examination in Economics.
11. Keeping in view the aforesaid factual aspects, the question which is posed for our consideration is whether Rule 6(2)(24)(iii) of Chapter XXXII of the Rules mandates that the SET qualification must be in the concerned subject only for appointment as HSST or in any subject would suffice for eligibility, and if so, whether the appellant satisfies the said requirement or qualifies for exemption under Rule 10(4) of Chapter XXXII of the Rules.
12. The facts being undisputed, the controversy turns entirely on the correct interpretation of the statutory rules governing eligibility.

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Chapter XXXII of the Rules governs appointment to the cadre of Higher Secondary School Teachers, a cadre distinct from High School Assistants and governed by a separate statutory framework.

13. The answer of the question posed before us will depend on the interpretation of Rule 6 of Chapter XXXII of the Rules which prescribes the essential qualifications for appointment as HSST. The said Rule is reproduced as under:

“6. Qualifications:- No person shall be eligible for appointment to the category in column (2) in the table below under the method specified in column (3) unless he possesses the qualifications prescribed in the corresponding entry in column (4) thereof.

Sl. No.	Category	Method of Appointment	Qualifications
(1)	(2)	(3)	(4)
(21)	xxxxxxx	By Transfer and by direct recruitment	(i) Master's Degree in the concerned subject will not less than 50% marks from any of the Universities in Kerala or a qualification recognised as equivalent thereto in the respective subject by a University in Kerala.
(22)	xxxxxxx		
(23)	xxxxxxx		
(24)	Economics		
(25)	xxxxxxx		(ii) (1) B.Ed. in the concerned subject acquired after a regular course of study from any of the Universities in Kerala or a qualification recognised as equivalent thereto by a University in Kerala.
(26)	xxxxxxx		
(27)	xxxxxxx		(2) In the absence of persons with B.Ed. Degree in the concerned subject, B.Ed. Degree acquired in anyone of the subject under the concerned Faculty as specified in the Acts/Statutes of any of the Universities in Kerala.

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(3) In the absence of persons with B.Ed. degree as specified in terms (1) and (2) above, persons with B.Ed. Degree in any subject acquired after a regular course of study from any of the Universities in Kerala or a qualification recognised as equivalent thereto by any of the Universities in Kerala.

(iii) Pass in the State Eligibility Test for the post of Higher Secondary School Teacher conducted by Government of Kerala or by the Agency authorized by the State Government.

(emphasis supplied)

14. Thus, from the perusal of Rule 6, it transpires that the said Rule provides for qualification for appointment as HSST. Clause 24 deals with the subject 'Economics'. The Rule provides that the post in question requires a Master's Degree in the concerned subject with a particular percentage of marks and a B.Ed. qualification. Sub-clause (iii) provides that the candidate shall "*pass in the State Eligibility Test (SET) for the post of Higher Secondary School Teacher (HSST) conducted by the Government of Kerala or by the agency authorized by the State Government.*"
15. The argument advanced on behalf of the appellant and respondent no. 3 rests on the absence of the words "*in the concerned subject*" in clause (iii). However, we are of the view that a statutory provision cannot be interpreted in isolation or by placing undue emphasis on textual omission divorced from context, purpose and scheme.
16. In ***Reserve Bank of India v. Peerless General Finance and Investment Co. Ltd., (1987) 1 SCC 424***, this Court authoritatively held that interpretation must depend on the text and the context and that the statute must be read as a whole so as to advance its object and suppress the mischief. It was observed that a construction which leads to absurdity or defeats the purpose of the enactment

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must be avoided. The relevant paragraph of the said decision is reproduced as under:

“33. Interpretation must depend on the text and the context. They are the bases of interpretation. One may well say if the text is the texture, context is what gives the colour. Neither can be ignored. Both are important. That interpretation is best which makes the textual interpretation match the contextual. A statute is best interpreted when we know why it was enacted. With this knowledge, the statute must be read, first as a whole and then section by section, clause by clause, phrase by phrase and word by word. If a statute is looked at, in the context of its enactment, with the glasses of the statute-maker, provided by such context, its scheme, the sections, clauses, phrases and words may take colour and appear different than when the statute is looked at without the glasses provided by the context. With these glasses we must look at the Act as a whole and discover what each section, each clause, each phrase and each word is meant and designed to say as to fit into the scheme of the entire Act. No part of a statute and no word of a statute can be construed in isolation. Statutes have to be construed so that every word has a place and everything is in its place. It is by looking at the definition as a whole in the setting of the entire Act and by reference to what preceded the enactment and the reasons for it that the Court construed the expression “Prize Chit” in Srinivasa [(1980) 4 SCC 507 : (1981) 1 SCR 801 : 51 Com Cas 464] and we find no reason to depart from the Court’s construction.”

17. The Government Letter dated 18.01.2021 further clarifies that SET must be in the concerned subject to become a Higher Secondary teacher. The relevant part of the said Letter is reproduced as under:

“Your attention is drawn to the notification. Since it is mandatory to pass the SET exam in the respective subject to become a Higher Secondary teacher, it is informed that the SET qualification in Sociology cannot be considered for appointment to the HSST (English) post.”

18. At this stage, we would also like to refer to the prospectus for the SET examination. The relevant paragraphs and the scheme of the test is extracted as below:

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“1. Introduction

In order to ensure the standards of teaching in Higher Secondary Course, the Government have decided to conduct the State Eligibility Test for the candidates to be selected as Higher Secondary School Teachers and Non-Vocational Teachers in VHSE. A pass in the State Eligibility Test (SET) is stipulated as a mandatory requirement for appointment as Higher Secondary School Teachers in the State as per the Special Rules in force.

XXX

XXX

XXX

2. Scheme of the Test.

2.1 There shall be two papers for the SET-JULY-2021.

Paper I

Paper I is common for all candidates. It consists of two parts, Part(A) General Knowledge and Part(B) Aptitude in Teaching.

Paper II

Paper II shall be a test based on the subject of specialisation of the candidate at the Post Graduate (PG) Level.”

19. On perusal of the aforesaid scheme of the test, it transpires that the test consists of two papers where Paper II is based on the subject of specialisation of the candidate at Post Graduate Level. Thus, it is not in dispute that SET is conducted subject-wise and it includes a paper testing postgraduate-level subject expertise, therefore, a candidate cannot qualify in SET without choosing a specific subject of specialisation. Hence, when SET qualification is itself subject-specific, it is immaterial whether or not Rule 6.2(24)(iii) of Chapter XXXII of the Rules provides for SET “*in the concerned subject*” or not.
20. The specific case of respondent no. 1 and respondent no. 4 that the legislature decided to conduct SET examination for the post of HSST in order to ensure the academic and teaching standards in the Higher Secondary level and thus, the SET qualification must be in the same subject as that of the HSST post, is well founded, as

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the said submission is supported by the object and scheme of the test laid down in the prospectus as well.

21. It is clear that the object of introducing SET for Higher Secondary Teachers is to ensure subject competence and pedagogical suitability at the Higher Secondary level, which is qualitatively distinct from lower teaching cadres. Thus, in this backdrop, to accept the interpretation of the appellant would result in a situation where a candidate tested for eligibility in an entirely unrelated discipline could claim appointment to teach another specialised subject and such an interpretation would defeat the very object of prescribing the SET qualification at the Higher Secondary level and would lead to manifestly absurd results.
22. Therefore, a purposive and contextual reading of Rule 6 of Chapter XXXII of the Rules compels the conclusion that the SET qualification must necessarily correspond to the subject of appointment, even if the Rule does not expressly reiterate the phrase “*concerned subject*” in clause (iii) of the said Rule. We are unable to accept the submission that such an interpretation amounts to “adding words” to the Rule, as this Court is duty bound to undertake a purposive and harmonious interpretation of the statute.
23. The reliance placed by the appellant and respondent no. 3 on **Girija (supra)** is misplaced and the High Court rightly distinguished the said decision, as it concerned the cadre of High School Assistants and the B.Ed. qualification and the issue in the present case involves Higher Secondary cadre and the SET qualification, which stands on a distinct footing with higher academic standards. The relevant paragraph of the impugned judgment is reproduced as under:

“7. Before going into the said issue, it will be better to bear in mind the well settled principles of interpretation. If the rule is clear and unambiguous, the intention of the legislature need not be gathered with reference to the other rules. We must remember that Chapter XXXI Rule 2 of KER deals with appointment of the High School Assistants, whereas Chapter XXXII is concerning the Higher Secondary School Teachers. The judgment of the Full Bench in Girija (Supra) was concerned with the interpretation of Rule 2 of Chapter XXXI of KER. On a reading of the said Rule, it becomes evident that there is no insistence to obtain B.Ed in the concerned subject for appointment as HSA. However coming to Rule 6.2(24) of Chapter XXXII K.E.R,

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that is not the case. Therefore, we are of the view that interpretation placed by the Full Bench of this Court in Girija (Supra) cannot come to the aid of the appellant in this case. Therefore, we find that the learned Single Judge was perfectly justified in finding that the Rule 6 of Chapter XXXII KER is differently worded from Rule 2 of Chapter XXXI KER. It is also pertinent to note that, the post to which these two Rules apply are also different.”

24. Further reliance placed by respondent no. 3 on the decision of a learned Single Judge of the High Court of Kerala in the case of **Geetha (supra)** is distinguishable, as it concerned Rule 10 of Chapter XXXII of the Rules which provides for exemption for the SET qualification in case of ten years teaching experience. However, the present case is concerned about the very foundation of the SET qualification and thus, the same cannot be treated lightly.
25. From the aforesaid detailed discussion, it can be said that the concerned candidate is required to pass SET in the concerned subject. In the present case, it is not in dispute that the appellant, though having Bachelor's Degree as well as Master's Degree in Economics, passed SET in Malayalam, whereas, respondent no. 4 is having the degrees of Bachelor's and Master's in Economics as well as the SET qualification in Economics. We are, therefore, of the view that when respondent no. 4 is fulfilling all the required eligibility criteria including the SET qualification in the concerned subject, the High Court has not committed any error while passing the impugned judgment and order.
26. At this stage, it is also relevant to observe that it is the case of the appellant that Rule 10(4) of Chapter XXXII of the Rules provides that “*teachers who have completed ten years of approved teaching service at the High School level shall be exempted from passing the State Eligibility Test*”. Admittedly, the appellant has completed 09 years 10 months and 14 days service, i.e., less than ten years which is the minimum prescribed by the Rules and, therefore, the appellant is not entitled to seek an exemption under the said Rule. Thus, we are of the view that the said contention of the appellant is also misconceived.

CONCLUSION

27. Therefore, from the above detailed analysis, the answer to the question posed for our determination is as under:

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- 27.1. When Rule 6.2(24)(iii) of Chapter XXXII of the Rules is read with the prospectus of the SET examination, particularly Clause 2 of the prospectus, it can be safely said that the candidate is required to pass SET in the concerned subject to qualify for the appointment to the post of HSST in the said concerned subject. Even though in Rule 6.2(24)(iii), the words “*in the concerned subject*” are missing, the said Rule cannot be interpreted in isolation and the textual omission has to be inferred from context, purpose and scheme of the provision. Thus, the said clause is required to be interpreted in the aforesaid manner. and possession of SET qualification in any other subject unrelated to the teaching post, does not suffice the statutory eligibility criteria.
- 27.2. Therefore, the High Court has not committed any error in affirming the decision of the learned Single Judge, wherein it was declared that the appellant is not qualified for appointment to the post of HSST (Economics) in a vacancy that arose on 01.06.2021 in the concerned school and respondent no. 4 is eligible for appointment as HSST (Economics) in the school w.e.f. 01.06.2021, with all consequential benefits, if respondent no. 4 is found entitled and the findings in the present judgment regarding the eligibility of respondent no. 4 shall also be considered while considering her claim for appointment to the post.
- 27.3. Necessary orders shall be issued by the respondent-authorities within a period of two months from the date of this judgment.
28. It is further clarified that in pursuance to the appointment made to the post in question, no recovery of excess amount paid to the appellant, if any, shall be carried out by the respondent-authorities.
29. For the aforesaid reasons, we are of the view that the present appeals deserve to be dismissed and accordingly, both the present appeals are dismissed.

Result of the case: Appeals dismissed.

**Manoj
v.
State of Maharashtra & Anr.**

(Criminal Appeal No. 1630 of 2015)

13 February 2026

[B.V. Nagarathna and R. Mahadevan,* JJ.]

Issue for Consideration

In the absence of any subsisting statutory control or saving provision operative on the date of the alleged incident, whether the prosecution of the appellants under the Essential Commodities Act, 1955 is legally tenable.

Headnotes[†]

Essential Commodities Act, 1955 – s.3 r/w. s.7 – Cement Control (Amendment) Order 1989 – Cement Control Order, 1967 – Maharashtra Cement (Licensing and Control) Order, 1973 – The prosecution case is that the Public Works Department of the State Government had awarded the work of construction of a Khar passage in cement concrete – As per the terms of the contract, the PWD was required to supply 850 bags of cement from Government quota to the contractor (A3) – According to the prosecution, the second indent of 400 bags of cement released from the PWD godown did not reach the work site – Raids were conducted and Trucks were intercepted – During the raid, the appellants were allegedly found in possession of 365 bags of cement of Government quota – The remaining 25 bags of cement were allegedly recovered on 28.04.1994 from a shop and it was alleged that 10 cement bags were received by A5 for delivering the cement bags to the appellants – Upon appreciation of the evidence on record, the trial Court convicted Accused Nos. 1, 2, 3 and 5 for the offences u/s.3 r/w. s.7 of the E.C. Act and sentenced each of them to undergo rigorous imprisonment for one year – Conviction and sentence was affirmed by the High Court – Correctness:

Held: By notification dated 24.11.1962, cement was declared an “essential commodity” u/s.2(a) of the E.C. Act, thereby

* Author

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subjecting it to statutory control in public interest – In exercise of powers conferred u/s. 3 of the E.C. Act, the Central Government promulgated the Cement Control Order, 1967, which laid down an exhaustive framework for regulation of production, supply, distribution and pricing of cement – In terms of s.5 of the E.C. Act, the Central Government delegated its powers in respect of cement being a commodity other than foodstuffs to the State Governments – Pursuant thereto, the State of Maharashtra issued the Maharashtra Cement (Licensing and Control) Order, 1973 – Subsequently, by S.O. 168(E) dated 01.03.1989, the Central Government substantially withdrew price and distribution control over cement and deleted several operative clauses of the Cement Control Order, 1967 – Further, by notification dated 07.08.1990, the delegation of powers to the State Government to regulate retail distribution of cement through licenses or permit was expressly rescinded – In the present case, the alleged offence is stated to have occurred on 24.03.1994 – On that date, neither the Cement Control Order, 1967 nor the Maharashtra State licensing regime under the 1973 Order operated so as to attract penal consequences u/s.7 of the E.C. Act – Significantly, the prosecution has failed to place on record any subsisting control order, notification, or statutory restriction in force on the relevant date – Therefore, the prosecution launched against the appellants under the E.C. Act was wholly misconceived – Both the trial Court and the High Court failed to examine the legal effect of decontrol and proceeded solely on an appreciation of evidence, ignoring the absence of a statutory foundation for the offence – The judgment of conviction and sentence passed by the Courts below are set aside. [Paras 15.1, 15.3, 15.4, 15.5, 16, 17, 28]

Penal Code, 1860 – Code of Criminal Procedure, 1973 – s.222 – Bharatiya Nagarik Suraksha Sanhita, 2023 – s.245 – Essential Commodities Act, 1955 – s.3 r/w. s.7 – Lapse in investigation – Failure of investigating agency to invoke appropriate provisions of Penal Code, 1860:

Held: Both the trial Court and the High Court held that the appellants failed to furnish any satisfactory explanation or documentary justification for possession of cement bags – These findings are essentially factual and are supported by the evidence on record– In the absence of any subsisting statutory order u/s.3 of the E.C. Act on the date of the alleged occurrence, a conviction u/s.7 thereof is legally impermissible – This was a case where the investigating

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agency ought to have invoked appropriate provisions of the Indian Penal Code, having regard to the nature of the allegations and the evidence collected – In a given case, where the facts proved disclose commission of a minor offence, the trial Court is empowered u/s.222 of the CrPC (corresponding to Section 245 of the Bharatiya Nagarik Suraksha Sanhita, 2023) to record a conviction for such minor offence even in the absence of a specific charge, provided the essential ingredients thereof are established beyond reasonable doubt and no prejudice is caused to the accused – The prosecution, however, did not culminate in any such exercise, nor can the High Court, in an appeal against conviction under a distinct statutory offence, substitute the conviction by invoking provisions of the Indian Penal Code for the first time – The lapse, therefore, lies squarely at the door of the investigating agency. [Paras 25, 26, 27]

Case Law Cited

Kolhapur Canesugar Works Ltd. v. Union of India [2000] 1 SCR 518 : (2000) 2 SCC 536 – relied on.

Prakash Babu Raghuvanshi v. State of Madhya Pradesh [2004] Supp. 4 SCR 390 : (2004) 7 SCC 490; *Salekh Chand and Another v. State of Uttar Pradesh*, AIR 1960 SC 283; *Malkiat Singh and Another v. State of Punjab* [1969] 2 SCR 663 : (1969) 1 SCC 157 – referred to.

List of Acts

Essential Commodities Act, 1955; Cement Control (Amendment) Order 1989; Cement Control Order, 1967; Maharashtra Cement (Licensing and Control) Order, 1973; Penal Code, 1860; Code of Criminal Procedure, 1973; Bharatiya Nagarik Suraksha Sanhita, 2023.

List of Keywords

Section 3 of Essential Commodities Act, 1955; Section 7 of Essential Commodities Act, 1955; Control order; *Nullum Crimen Sine Lege*; Distinct statutory offence; Minor offence; Commission of a minor offence; Documentary justification; Lawful authority; Regulatory control; Cement; Storage of cement; Unauthorised purchase; Possession of cement; Statutory framework; Subsisting statutory control; Statutory foundation of offence; Statutory restriction; Notification; Distribution of cement; Licences; Permit.

Manoj v. State of Maharashtra & Anr.**Case Arising From**

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 1630 of 2015

From the Judgment and Order dated 09.10.2014 of the High Court of Judicature at Bombay at Aurangabad in CRA No. 166 of 2000

With

Criminal Appeal No. 1631 of 2015

Appearances for Parties

Advs. for the Appellant(s):

Sudhanshu Chaudhary, Dr. Aditya Sondhi, Sr. Advs., Samarjit G Pattnaik, Rahul Totala, Gaurav Vutts, Nikhil Runwal, Ms. Kashish Seth, Anubhav Kumar, Rijuk Sarkar, Faisal Sherwani.

Advs. for the Respondent(s):

Aaditya Aniruddha Pande, Siddharth Dharmadhikari, Shrirang B. Varma, Bharat Bagla, Sourav Singh, Aditya Krishna, Adarsh Dubey, Ms. Chitransha Singh Sikarwar.

Judgment / Order of the Supreme Court**Judgment**

R. Mahadevan, J.

1. The appellants herein, Manoj (A1) and Prakash (A2), who are related to each other as nephew and uncle, were tried and convicted for the offences punishable under Section 3 read with Section 7 of the Essential Commodities Act, 1955¹ and were sentenced to undergo rigorous imprisonment for one year and to pay a fine of Rs. 100/-, in default thereof to undergo further rigorous imprisonment for one month, by judgment dated 03.04.2000 passed by the Special Judge, Aurangabad² in Special Case No. 22 of 1994. Aggrieved thereby, the appellants preferred Criminal Appeal No. 166 of 2000 before the High Court of Judicature at Bombay, Bench at Aurangabad³.

¹ For short, "E.C. Act"

² Hereinafter referred to as "the trial Court"

³ Hereinafter referred to as "the High Court"

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The High Court dismissed the appeal and affirmed the judgment of conviction and sentence passed by the trial Court. Hence, the present criminal appeals.

2. The prosecution case is that the Public Works Department⁴ of the State Government had awarded the work of construction of a Khar passage in cement concrete along the Kannad – Bahirgaon Road, Aurangabad to Bharat Majdoor Credit Cooperative Society. After obtaining the work order, the Chairman of the said Society, Madhukar (A3) is alleged to have sublet the work to Prakash Vyankatrao (A4). At the relevant time, Sadashiv (A5) and one more accused (A6) were working as peons in the PWD godown at Aurangabad.
3. As per the terms of the contract, the PWD was required to supply 850 bags of cement from Government quota to the contractor (A3) for execution of the work. Accordingly, the Deputy Engineer of PWD, Ramesh Jaiswal (P.W.8) issued the first indent for supply of 400 bags of cement in the first week of March 1994. However, according to the prosecution, the second indent of 400 bags of cement released from the PWD godown did not reach the work site.
4. It is further alleged that on 24.03.1994, P.S.I. Kadam (P.W.2) of Kranti Chowk Police Station, Aurangabad received secret information that two trucks carrying Government quota cement were stationed near Hari Masjid at Mondha, Aurangabad and that the cement bags were being unloaded at Mistri Traders with the intention of black-marketing them. Acting on the said information, P.S.I. Kadam conducted a raid and intercepted two trucks bearing registration Nos. MHF-6625 and MHB-5061 which were found parked on the road between two shops, namely, Mistri Traders and Maharashtra Agro Industries, allegedly belonging to the appellants.
5. During the raid, the appellants were allegedly found in possession of 365 bags of cement of Government quota. The remaining 25 bags of cement were allegedly recovered on 28.04.1994 from the shop of Maharashtra Agro Industries. During investigation, it was further alleged that Sadashiv (A5) had delivered the cement bags to the appellants and had received 10 bags of cement as commission.
6. P.S.I. Kadam lodged a complaint with Kranti Chowk Police Station for the offences punishable under Section 3 read with Section 7 of

4 For short, "PWD"

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the E.C. Act against the appellants and four other accused persons. Upon completion of investigation, a chargesheet was filed and the case was taken on file as Special Case No. 22 of 1994.

7. During trial, the prosecution examined 17 witnesses and relied upon oral and documentary evidence as well as material objects. Upon appreciation of the evidence on record, the trial Court convicted Accused Nos. 1, 2, 3 and 5 for the offences under Section 3 read with Section 7 of the E.C. Act and sentenced each of them to undergo rigorous imprisonment for one year and to pay a fine of Rs.100/-, in default thereof to undergo further rigorous imprisonment for one month. Accused Nos. 4 and 6 were acquitted of the charges.
8. The conviction and sentence so recorded by the trial Court were affirmed by the High Court in the appeal filed by the appellants. Consequently, the appellants have approached this Court by way of the present criminal appeals.
9. The learned senior counsel appearing for the appellants submitted that the appellants were prosecuted for offences under Sections 3 and 7 of the E.C. Act for the alleged violation of the Maharashtra Cement (Licensing and Control) Order, 1973. It was urged that Section 3(c) and (d) of the E.C. Act empowers the Central Government to regulate the production, supply, price and distribution of essential commodities by issuing appropriate orders, while Section 7 provides for penalties only in cases of contravention of such orders. The Central Government in exercise of powers under Section 5 of the E.C. Act, delegated certain powers to the State Government in respect of commodities other than foodstuffs and fertilisers *vide* S.O. 1844 dated 18.06.1966 and S.O. 2314 dated 30.07.1966, pursuant to which, the State of Maharashtra framed the Maharashtra Cement (Licensing and Control) Order, 1973⁵. The said Order provided for licensing under Clauses 3, 4, 5, and 7, restriction on storage under Clause 8, and prohibition of selling or buying cement at a higher price under Clause 21.
 - 9.1. The learned senior counsel contended that Clause 21 of the 1973 Order cannot operate independently and has to be read with Clause 10 of the Cement Control Order, 1967, which alone provided for fixation of wholesale and retail prices. In the

5 For short, "1973 Order"

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present case, the prosecution has not produced any material to demonstrate what the controlled price of cement was on the relevant date. There is also no evidence of any purchase, sale or intention to sell, nor even proof of the exact quantity of cement in terms of weight alleged to have been stored.

- 9.2. It was further submitted that the delegation of powers made in 1966 stood rescinded and was replaced by fresh delegations *vide* S.O.681 dated 10.11.1974 and S.O.682 dated 30.11.1974. It was pointed out that the Cement Control Order, 1967 underwent amendment by S.O.105 dated 28.02.1982, and thereafter, by S.O. 168 dated 01.03.1989, the Central Government substantially deregulated price and distribution control of cement with effect from 01.03.1987 by omitting the preamble (paras 1 and 1A), Clauses (d) and (e) of paragraph 2, paragraphs 3, 3A, 4, 5, 7, 8, 9, 10 and 12 and the Schedule to the Cement Control Order, 1967. Consequently, Clause 21 of the 1973 Order, which depended entirely upon Clause 10 of the Cement Control Order, 1967 for price fixation, became unenforceable. It was further submitted that by S.O. 624 dated 07.08.1990, the Central Government withdrew the powers of the State Government relating to regulation of retail cement distribution through licensing.
- 9.3. The learned senior counsel further contended that there is no evidence to establish that the cement allegedly found in the godown and shop was levy cement or part of any government quota. Without admitting the prosecution case, it was argued that the levy on cement was introduced only in 1982 under Sections 18G and 25 of the Industries (Development and Regulation) Act, 1951, and therefore issue of levy or non-levy cement would not attract the provisions of the E.C. Act unless a valid and operative order under Section 3 was shown to have been violated. Reliance was placed on Sections 78 and 81 of the Indian Evidence Act, 1872, regarding the presumption of genuineness of Gazette notifications, and on the decision of this Court in ***Prakash Babu Raghuvanshi v. State of Madhya Pradesh***⁶ to contend that a conviction under Section 7 of the E.C.

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Act necessarily requires proof of the existence and contravention of an operative order under Section 3. It was submitted that no such order was either in force or proved in the present case. Reliance was also placed on ***Salekh Chand and another v. State of Uttar Pradesh***⁷, wherein this Court held that in the absence of proof of the controlled price prevailing on the date of sale, a conviction under the E.C. Act cannot be sustained.

- 9.4. It was submitted that the ratio of the aforesaid judgments squarely applies to the present case as neither was the 1973 Order shown to be operative on the relevant date nor was any controlled price of cement proved by the prosecution.
- 9.5. It was further contended that both the trial Court and the High Court failed to appreciate the admissions of P.S.I. Kadam (P.W.2) and Balaji (P.W.17) that no order under the E.C. Act relating to cement was filed along with the chargesheet. Reliance was also placed on the admission of the Store Keeper Ashruba Natha Ubale (P.W. 9) who stated that cement was freely available in the open market at the relevant time. With regard to Accused No. 2 – Prakash Jain, it was submitted that he was neither the owner nor in possession of the cement, and there is no evidence of his involvement except a vague allegation of having assisted Accused No. 1. His statement under Section 313 of the Code of Criminal Procedure, 1973 (CrPC) and the sales tax registration certificate relating to his tea shop clearly establish that he had no connection with the alleged offence, and that his conviction merely on account of relationship with Accused No. 1 is wholly unsustainable.
- 9.6. On the aforesaid grounds, the learned senior counsel prayed for setting aside the judgments dated 03.04.2000 passed by the trial Court and 09.10.2014 passed by the High Court and for acquittal of the appellants. In the alternative, it was submitted that Section 7 of the E.C. Act penalises only attempt or abetment and not mere preparation as held in ***Malkiat Singh and another v. State of Punjab***⁸ and that in the absence of proof of purchase or sale, mere possession of cement bags in a

7 AIR 1960 SC 283

8 (1969) 1 SCC 157

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godown would not attract penal consequences. Even otherwise, considering the advanced age of the appellants, absence of criminal antecedents and the long lapse of time, it was prayed that the appellants be extended the benefit of the Probation of Offenders Act, 1958.

10. *Per contra*, the learned counsel appearing for the State of Maharashtra submitted that the High Court has rightly concluded that the possession of cement by the appellants stood duly proved on the basis of the evidence on record. It was contended that the cement supplied by the Government to Accused No. 3 for execution of Government work was diverted and sold to the appellants, and that once possession of cement in such quantity was established, the burden shifted upon the appellants to satisfactorily explain the legality of such possession.
 - 10.1. It was further submitted that the appellants admittedly did not possess any valid licence for storage or sale of cement, and therefore the contravention of the statutory provisions stood established, attracting the rigours of Sections 3 and 7 of the E.C. Act. The learned counsel argued that the High Court, upon proper appreciation of the evidence, rightly held that it was incumbent upon the appellants to demonstrate either their authority to possess the cement or their right to store it.
 - 10.2. The learned counsel contended that having regard to the nature of the offence and the admitted fact that the appellants had no connection whatsoever with the Government contract under which cement was supplied at concessional rates, no plausible explanation could be offered by them. It was submitted that the High Court correctly concluded that the prosecution evidence establishes that the cement was Government cement meant exclusively for public works, and that its diversion and unauthorised possession by the appellants was proved beyond reasonable doubt.
 - 10.3. It was therefore submitted that the High Court was fully justified in confirming the judgment of conviction and sentence passed by the trial Court, which does not call for any interference by this Court.
11. We have considered the rival submissions and perused the materials available on record.

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12. Admittedly, there was a contract for construction of a *Mori* in cement concrete on the Kannad - Bahirgaon Road, which was allotted to Accused No.3, who was the Chairman of Bharat Mazdoor Cooperative Society. According to the prosecution, the said Society further entrusted execution of the work to Accused No 4. Accused Nos. 5 and 6 were working as Peons in the Public Works Department godown at Aurangabad.
13. The specific allegation against the appellants (Accused Nos. 1 and 2) is that they purchased cement at a concessional or controlled rate from Accused Nos. 3 and 4 which was meant exclusively for execution of Government work, with the intent to sell the same at a higher price and that such cement was unauthorisedly stored in their godown. On this basis, it is alleged that the appellants committed offences punishable under Section 3 read with Section 7 of the E.C. Act. The criminal proceedings initiated against them culminated in their conviction and sentence of one year rigorous imprisonment with a fine of Rs. 100/-, which was affirmed by the High Court. Therefore, the appellants are before this Court.
14. The principal contention urged by the learned senior counsel for the appellants is that in view of the Cement Control (Amendment) Order 1989, all restrictions on sale, purchase, possession and storage of cement stood lifted with effect from 01.03.1989. Consequently, dealing in cement did not constitute any offence on the date of the alleged incident, i.e., 24.03.1994. It was further contended that once statutory control over cement was withdrawn, there was no surviving order under Section 3 of the E.C. Act whose contravention could attract penal consequences under Section 7, rendering the prosecution fundamentally unsustainable.
15. To appreciate the aforesaid submission, it is necessary to briefly notice the statutory framework governing control and regulation of cement at the relevant point of time.
 - 15.1. Cement is a commodity of vital importance to economy and infrastructure development. Under the Industries (Development and Regulation) Act, 1951, cement is a "Scheduled Industry" within the meaning of Section 3(1). By notification dated 24.11.1962, cement was declared an "essential commodity" under Section 2(a) of the E.C. Act, thereby subjecting it to statutory control in public interest.

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- 15.2. In exercise of powers conferred under Section 3 of the E.C. Act, the Central Government promulgated the Cement Control Order, 1967, which laid down an exhaustive framework for regulation of production, supply, distribution and pricing of cement. The object of the said Order was to ensure equitable distribution of cement at fair prices and to prevent hoarding, diversion and black-marketing, particularly during periods of scarcity.
- 15.3. In terms of Section 5 of the E.C. Act, the Central Government delegated its powers in respect of cement being a commodity other than foodstuffs to the State Governments. Pursuant thereto, the State of Maharashtra issued the 1973 Order providing for licensing, regulation of storage and sale of cement, and penal consequences under Section 7 of the E.C. Act for contravention thereof.
- 15.4. Subsequently, by S.O. 168(E) dated 01.03.1989, the Central Government substantially withdrew price and distribution control over cement and deleted several operative clauses of the Cement Control Order, 1967. The relevant notification expressly brought the said decontrol into effect from 01.03.1989. For better appreciation, the same is reproduced below:

***“MINISTRY OF INDUSTRY AND COMPANY
AFFAIRS***

(Department of Industrial Development)

ORDER

New Dehi, the 1st March, 1989

S.O. 168€. – whereas the Central Government has decided for the removal of price and distribution control of cement with effect from the first day of March, 1989:

Now, therefore, in exercise of the powers conferred by sections 18G and 25 of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby makes the following amendment in the Cement Control Order, 1967, namely:-

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1.(1) This Order may be called the Cement Control (Amendment) Order, 1989;

(2) It shall come into force on the First day of March, 1989.

2. Paragraph 1 to the Preamble, Paragraph -1A, clauses (d) and (e) of paragraph 2, paragraph 3, 3A, 4, 5, 7, 8, 9, 10 and 12 and Schedule to the Cement Control Order, 1987, shall be omitted:

Provided that such deletion shall not affect –

- (a) the previous operation of the said paragraphs or anything duly done or suffered thereunder;*
- (b) any right, privilege, obligation or liability acquired, accrued or incurred under the said paragraphs; or*
- (c) any penalty, forfeiture or punishment incurred in respect of any offence committed against the said paragraphs; or*
- (d) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid, and*
- (e) any such investigation, legal proceeding or remedy may be instituted, continued, or enforced, and any such penalty, forfeiture or punishment may be imposed as if the said paragraph had not been omitted.*

[No. 1-5/89-Cem.]

R. K. SINHA, Jt. Secy.

Note: The principal order was notified vide S.O. 4590-IDRA/18GI67 dt. 23rd December 1967."

- 15.5. Further, by notification dated 07.08.1990, the delegation of powers to the State Government to regulate retail distribution of cement through licenses or permit was expressly rescinded. As a result, State-level licensing and regulatory controls

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over cement distribution also stood withdrawn. For ease of reference, the same reads as under:

“MINISTRY OF FOOD AND CIVIL SUPPLIES

(Department of Civil Supplies)

ORDER

New Delhi, the 7th August, 1990

S.O. 624(E). – In exercise of the powers conferred by Section 5 of the Essential Commodities Act, 1955 (10 of 1955), the Central Government makes the following Order to amend Order No. S.O. 681(E) dated the 30th November 1974 issued by the erstwhile Ministry of Industry and Civil Supplies (Department of Civil Supplies and Cooperation), as follows: -

(i) that the delegation of powers under clause (d) of sub-section (2) of section 3 of the Essential Commodities Act, 1955 in so far as it relates to the regulation of retail cement distribution by licences or permits shall stand rescinded with immediate effect;

(ii) that all orders (hereinafter referred to as the said orders) issued by a State Government or a Union Territory Administration in exercise of the powers delegated to them by the aforesaid Order shall stand modified to the extent specified in (i) above.

Provided that such modification shall not affect-

(a) the previous operation of the said Order or anything duly done or suffered thereunder;

(or)

(b) any right, privilege, obligation or liability acquired, accrued or incurred under the said Order; or

(c) any penalty or punishment incurred in respect of any offence committed against the said order; or

(d) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty or punishment as aforesaid,

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And any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty or punishment may be imposed as if the said Order has not been modified.

[F.No. 26(3)/90-ECR&E]
B.N. BAHADUR, Jt. Secy.”

16. In the present case, the alleged offence is stated to have occurred on 24.03.1994. On that date, neither the Cement Control Order, 1967 nor the Maharashtra State licensing regime under the 1973 Order operated so as to attract penal consequences under Section 7 of the E.C. Act. Significantly, the prosecution has failed to place on record any subsisting control order, notification, or statutory restriction in force on the relevant date, violation of which could constitute an offence under Section 3 of the E.C. Act.
17. Therefore, the prosecution launched against the appellants under the E.C. Act was wholly misconceived. Both the trial Court and the High Court failed to examine the legal effect of decontrol and proceeded solely on an appreciation of evidence, ignoring the absence of a statutory foundation for the offence. Such an approach strikes at the root of the conviction and renders the same unsustainable in law.
18. The legal position is no longer *res integra*. In **Kolhapur Canesugar Works Ltd. v. Union of India**⁹, this Court authoritatively held that where a statutory provision is unconditionally omitted without a saving clause, all proceedings founded upon such provision must lapse. The relevant observation reads as under:

“The position is well known that at common law, the normal effect of repealing a statute or deleting a provision is to obliterate it from the statute book as completely as if it had never been passed, and the statute must be considered as a law that never existed. To this rule, an exception is engrafted by the provisions of Section 6(1). If a provision of a statute is unconditionally omitted without a saving clause in favour of pending proceedings, all actions must stop where the omission finds them, and if final relief has not been granted before the omission goes into effect, it cannot

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be granted afterwards. Savings of the nature contained in Section 6 or in special Acts may modify the position. Thus the operation of repeal or deletion as to the future and the past largely depends on the savings applicable. In a case where a particular provision in a statute is omitted and in its place another provision dealing with the same contingency is introduced without a saving clause in favour of pending proceedings then it can be reasonably inferred that the intention of the Legislature is that the pending proceeding shall not continue but a fresh proceeding for the same purpose may be initiated under the new provision."

19. Applying the aforesaid principle, in the absence of any subsisting statutory control or saving provision operative on the date of the alleged incident, the prosecution of the appellants under the E.C. Act is legally untenable. On this ground alone, the conviction and sentence imposed upon the appellants are liable to be set aside.
20. In view of the foregoing conclusion, it is unnecessary for this Court to examine the remaining contentions raised on behalf of the appellants.
21. Before parting with the matter, we deem it appropriate to record certain observations. This case is illustrative of a prosecution founded on an incorrect appreciation of the statutory framework. The gravamen of the allegation against the appellants was unauthorised purchase, possession and storage of cement allegedly procured through Government or controlled supply channels meant exclusively for public works.
22. It must however be clarified that although regulatory control over cement stood rescinded at the time of the alleged offence, and the appellants could not, therefore, be prosecuted under the provisions of the Essential Commodities Act, 1955, acts such as diversion of Government-supplied cement meant for public works, dishonest retention thereof, or unauthorised dealing in such Government property may still attract penal consequences under the Indian Penal Code, depending upon the nature of the evidence led and the specific ingredients of the offences that are established.
23. In the present case, the prosecution examined seventeen witnesses including truck drivers, officers of the Public Works Department, and police officials forming part of the raiding party. The Courts below have concurrently recorded findings that cement earmarked for

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Government work and supplied at concessional rates was diverted from the Government godown and found stored in premises connected with the appellants, without any lawful authority.

24. Both the trial Court and the High Court further held that the appellants failed to furnish any satisfactory explanation or documentary justification for such possession. These findings are essentially factual and are supported by the evidence on record.
25. Nevertheless, in the absence of any subsisting statutory order under Section 3 of the E.C. Act on the date of the alleged occurrence, a conviction under Section 7 thereof is legally impermissible. That said, this was a case where the investigating agency ought to have invoked appropriate provisions of the Indian Penal Code, having regard to the nature of the allegations and the evidence collected.
26. In a given case, where the facts proved disclose commission of a minor offence, the trial Court is empowered under Section 222 of the CrPC (corresponding to Section 245 of the Bharatiya Nagarik Suraksha Sanhita, 2023) to record a conviction for such minor offence even in the absence of a specific charge, provided the essential ingredients thereof are established beyond reasonable doubt and no prejudice is caused to the accused.
27. The prosecution, however, did not culminate in any such exercise, nor can the High Court, in an appeal against conviction under a distinct statutory offence, substitute the conviction by invoking provisions of the Indian Penal Code for the first time. The lapse, therefore, lies squarely at the door of the investigating agency.
28. With the above observations, the Criminal Appeals are allowed. The judgment of conviction and sentence passed by the Courts below are set aside. The bail bonds, if any, executed by the appellants shall stand cancelled and the fine amount, if paid, shall be refunded to them.
29. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeals allowed.

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v.**

Anna Nagar Cricket Club & Anr. Etc.

(Civil Appeal No(s). 1613-1614 of 2026)

13 February 2026

[Pamidighantam Sri Narasimha and Alok Aradhe, JJ.]

Issue for Consideration

Issue as regards the applicability of the judgments in *S.Nithya* to the cricket associations; applicability of BCCI Constitution to the Appellant-District Cricket Association.

Headnotes[†]

Sports – Cricket – Cricket Associations – Applicability of the judgments in *S.Nithya* to the cricket associations – Respondent no.2-ex-office bearer of the appellant-association filed writ petition seeking directions that the appellant should conduct a free and fair election after preparation of a fresh voters list and impugned the decisions taken by appellant associations in not complying with the norms as laid down by the High Court in previous judgments in *S.Nithya v. Union of India and Secretary; Tamil Nadu Olympics Association v. S. Nithya* (*'S. Nithya'*) directing that every state sport federation will comply with the direction regarding mandatory presence of eminent sport person in the federation – Writ petition allowed relying upon the judgments in *S.Nithya* observing that directions in *Nithya's* case in respect of all sports organisations/clubs/associations ought to be strictly adhered to – Challenge to:

Held: Petition in *S.Nithya* was only concerned with reforms in athletics governance and championships – Judgments in *S. Nithya* are not applicable to the factual conspectus of the present case – When the judgment in *S. Nithya* was delivered, the judgment in *BCCI* was already holding the field with the Constitution of BCCI having received the stamp of approval by this Court – There being no prescription or direction in the *BCCI* judgments on 75% membership in an association to be filled by eminent sports persons, coupled with no such direction providing that the qualification to be member of district association will be concomitant on a person being an eminent sportsperson, the directions in *S. Nithya* would

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not be applicable to the fact of the present case concerning sport of cricket – Judgment of the High Court set aside to the extent indicated. [Paras 15, 26]

Sports – Cricket – Cricket Associations – Functioning of the appellant-District Cricket Association in the existing legal regime – Applicability of BCCI Constitution to the Appellant-Association – Plea of the respondents that the appellant must amend its Constitution in conformity with the Constitution of the BCCI:

Held: The judgment in *BCCI* does not warrant District Associations to model their regulations and bye-laws on exact lines of the BCCI Constitution – No judgment or document was brought on record to demonstrate any understanding across the cricketing associations at the District Level to make their Constitution on exact lines as of the BCCI, nor any judgment which directs such a prescription – Impugned order, which directs the appellant association, also does not place reliance on *BCCI* per se, but rather on the judgment in *S. Nithya* which is distinguishable – Thus, the argument that the appellant must be asked to restructure its functioning and laws in terms of the BCCI Constitution, not accepted. [Para 20]

Sports – Cricket – Cricket Associations – Reformative measures – Necessary for State Association to initiate reforms to ensure that District Associations operate as professional, transparent, and in the best interests of the sport:

Held: Though enforcement of reform as contemplated in the *BCCI* judgment cannot be done through judicial review, it is open, rather necessary, for the State Association to initiate reforms to ensure that District Associations operate as professional, transparent, and in the best interests of the sport – Such reforms may include transparency in the selection of players and also the execution of contracts – In fact, District Associations must volunteer to adopt reformative measures such as good governance, refined management, transparency, and the exclusion of conflicts of interest. [Paras 21, 22]

Tamil Nadu Societies Registration Act, 1975 – Election of the appellant-association – Issues concerning membership and composition of the appellant pending before High Court and the statutory authority:

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Held: Such questions to be resolved as expeditiously as possible – Judgment and order of the High Court set aside to the extent indicated – High Court to dispose of the writ appeal(s) as expeditiously as possible in order to enable the statutory authorities to complete the enquiry, if necessary, and arrive at its logical conclusion, so that the election of the appellant can be conducted at the earliest. [Para 26]

Case Law Cited

BCCI v. Cricket Assn. of Bihar [2014] 6 SCR 322 : CA No. 4235/2014; *AIFF v. Rahul Mehra*, 2025 INSC 1131 – referred to.

S. Nithya v. Union of India, W.P. (MD) No. 3447 of 2019; *Secretary, Tamil Nadu Olympics Association v. S. Nithya*, W.A. No. 1202 of 2022 – distinguished.

List of Acts

Tamil Nadu Societies Registration Act, 1975; Constitution of India.

List of Keywords

Cricket; Cricket associations; District Cricket Association; Applicability of the judgments in *S. Nithya* to cricket associations; *S. Nithya* judgments; Applicability of BCCI Constitution to District Cricket Association; Reforms in athletics governance and championships; Judgments in *S. Nithya* not applicable to cases concerning sport of cricket; Presence of eminent sport person in federation; *BCCI* judgment; Constitution of BCCI; Sports organisations/clubs/associations; Eminent sportsperson; State sport federation; National Sports Development Code, 2011; Election of District Cricket Association; Tamil Nadu Cricket Association.

Case Arising From

CIVILAPPELLATE JURISDICTION: Civil Appeal No(s). 1613-1614 of 2026

From the Judgment and Order dated 12.06.2024 of the High Court of Judicature at Madras at Madurai in WAMD Nos. 896 and 915 of 2024

Appearances for Parties

V. C. Shukla, Amicus Curiae.

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Advs. for the Appellant(s):

Amol Chitale, Mrs. Pragya Baghel, Ms. Shweta Singh Parihar,
Sarthak Sharma.

Advs. for the Respondent(s):

Mayank Mishra, Raghav Sabharwal, Kunwar Surya Pratap, Harsh
Vardhan Singh, Akshaj Chaturvedi.

Judgment / Order of the Supreme Court

Judgment

1. Leave granted.
2. The present appeal(s) are preferred by the appellant Cricket Association against the final judgment and order of the Madurai Bench of the Madras High Court dated 12.06.2024 disposing of a clutch of Writ Appeals, namely Writ Appeal (MD) No. 896 of 2024 and Writ Appeal (MD) No. 915 of 2024.
3. The appellant is a district cricket association formed in 1958, registered as a society under the Tamil Nadu Societies Registration Act, 1975, and governed by its rules and bye-laws and is affiliated with the Tamil Nadu Cricket Association ('TNCA'), the State association. The facts in both the appeals before the High Court were distinct in content but analogous in form in the manner in which they sought to impugn the alleged lapses in the workings of the appellant, and are canvassed below in brief.
4. **Facts in Writ Appeal (MD) No. 896 of 2024:** The facts in this appeal are that the respondent no. 1 cricket club preferred a writ petition seeking direction against the appellant to grant the respondent no. 1 membership of the appellant association alongside voting rights and also allow respondent no. 1 to participate in the knockout tournament for the year 2021-2022. The appellant entered appearance and brought on record the fact that the respondent no. 1 has already been permitted to participate in the tournament, and in this view, the cause does not survive. Noting the fact of the respondent no. 1's participation, the learned single judge disposed of the writ petition.
5. Since the writ petition was disposed of as allowed, on the issue of voting and membership rights, the appellant herein impugned the findings of the single judge in the writ appeal, which has been

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dismissed by the division bench, observing that the Respondent No. 1 club has the right to vote and membership in the appellant association. Since then, the respondent club has actively participated in tournaments organised by the appellant. The learned counsel appearing for the appellant has submitted, on instruction, that insofar as respondent no. 1's voting rights are concerned, the appellant has no objection towards the same, and the respondent no. 1 may be allowed to vote. In view of these submissions, the issues in appeal(s) are confined to the reliefs granted by the High Court qua respondent no. 2 only, as outlined below.

6. **Facts in Writ Appeal (MD) No. 915 of 2024:** The facts relevant to this appeal are that respondent no. 2, an ex-office bearer of the appellant association, approached the High Court via writ petition, seeking directions that the appellant should conduct a free and fair election after preparation of a fresh voters list and sought to impugn the decisions taken by appellant associations in not complying with the norms as laid down by the High Court in previous judgments in ***S. Nithya v. Union of India***¹ and ***Secretary, Tamil Nadu Olympics Association v. S. Nithya***² ('S. Nithya') directing that every state sport federation will comply with the direction regarding mandatory presence of eminent sport person in the federation and other directions, so far as amending the appellant association's Constitution is concerned, to bring them in line with the Constitutions of other similarly situated federations. The said prayer(s) were allowed by the High Court in the impugned order. Aggrieved, the appellant association has preferred the instant appeal.
7. We heard Mr. Amol Chitale, learned counsel appearing for the appellant, Mr. Mayank Mishra, learned counsel appearing for the respondents, in the present appeal(s) and perused the records. Mr Vikash Chandra Shukla, learned counsel, ably assisted the Court as Amicus Curiae.
8. The learned counsel appearing for the appellant district association has fairly submitted that, insofar as specific prayers of respondent no. 1 and respondent no. 2 are concerned, the appellant association has no objections to them. In this view, while the respondent no. 1 club

1 W.P. (MD) No. 3447 of 2019.

2 W.A. No. 1202 of 2022.

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would be permitted to vote in the appellant association, the prayer of respondent no. 2 with respect to oversight of the future election of the appellant association can also be allowed.

9. The appellant is aggrieved by the reliance of the High Court in judgments in *S. Nithya* (supra) while allowing the writ proceedings, which, in the view of the appellant, stand on a different factual-legal conspectus and are inapplicable to cricket associations like the appellant herein. It is learnt from the records as well as submissions made before us that there are certain proceedings pending before the High Court concerning membership of the appellant association, and it was urged that the issue regarding membership of the appellant association may not be dealt in the present appeals, and rather the appropriate authorities can take up the pending proceedings and decide them as expeditiously as possible. Since the primary grievance of the appellant is restricted to the applicability of judgments in *S. Nithya* (supra) to the cricket associations, we take up the very issue first.
10. **On applicability of Judgments in *S. Nithya*:** The judgment in *S. Nithya* (supra) was an outcome of a Writ Petition preferred before the High Court of Judicature at Madras by an athlete, who had won several medals in numerous Discus Throw events. The athlete's grievance was that, despite her noteworthy performance, she was denied entry to participate in the Open National Championships in 2017 and 2018. The writ petitioner, in turn, asked for the issuance of numerous writs seeking the institution of multiple reform measures, including, inter alia, strict implementation of National Sports Development Code, 2011, constitution of a Special Committee with eminent sports persons for regularising athletics Championships, competitions, meets and events in Tamil Nadu, direction to authorities to make appropriate safety arrangements and provide proper places of accommodation to women athletes for all State Level and National Level Athletics Championships, Competitions, Meets and Event, and various other transparency measures.
11. As apparent from the various prayers sought in the writ petition, the petition in *S. Nithya* (supra) was only concerned with reforms in athletics governance and championships. The learned Single Judge allowed the writ petition on 19.01.2022 by passing a range of directions in terms of the prayers of the writ petition, placing reliance

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on judgments of this court in BCCI and the mandate and objectives of the National Sports Code, 2011. A writ appeal was preferred through the Secretary, Tamil Nadu Olympics Association, in W.A. No. 1202 of 2022, which was dismissed by the division bench on 26.04.2022.

12. The judgments in *S. Nithya (supra)* have been relied upon in the order impugned before us, observing that directions in *Nithya's* case in respect of all sports organisations/clubs/associations ought to be strictly adhered to, thereby confirming the judgment and order of the learned single judge. Before advertng to the contentions raised by the appellant, it would be beneficial to extract the relevant directions in *S. Nithya (supra)*, which are as under:

- i. *“The State government should consider for creating a legal framework that imposes statutory regulation on the functioning of every sports organisation/clubs/association, including the state unit of the National Sports Federation in respect of every field of sports. The said legal framework should include as far as possible all the following aspects and directions and which shall continue to be in force until the passing of such a statute by the state legislature.*
- ii. *Every Sports Association/organisation shall be compulsorily registered with the State Government and it shall be mandatory for the said organisation to provide its complete details including its constitution and details of its members, the sports persons registered with the said association, its financial status as well as the contributions/funds received by the said association, the number and details of events conducted by the Association and the credentials of the sports persons participating in every such event.*
- iii. *Every Sports Association should have a record of all the above stated details and it shall be within the power of the State Government to inspect such records at any given point of time.*
- iv. *The State Government as well as the state unit of the National Sports Federation of every sport which is recognised by the Central Government shall have a grievance cell, in order that deserving sports persons may contact them directly in cases where the recognised sports*

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Association/affiliate does not forward a deserving athlete/sports person's name for participation at the national level to the concerned National Sports Federation.

- v. ***The positions of President, Vice President and Secretary of every sports Association/organisation as well as important functionaries of such organisations including that of the state unit of the National sports Federation shall be held only by sports persons and it must be ensured that a minimum of 75% of the members of any sports body/organisation/association/ NSF shall be composed of eminent sports persons and they shall have voting rights.***
- vi. *The selection of athletes shall be within the purview of the decision-making powers of the selection committee consisting only of sports persons in the respective association as well as the sports Federation.*
- vii. *No person shall be entitled to hold the position of President, Vice President, Secretary or any other important functionary in any association as well as Federation on the only ground that he or she has contributed financially to the said organisation. The holding of such a position shall be strictly governed by the Constitution of the respective organisation which shall clearly set out the procedure for election to the office of President, Vice-President and Secretary and other important functionaries, in accordance with the previous direction in clause vi. above that such positions can only be held by sports persons.*
- viii. ***Any reference to the term "sports persons" for the purpose of holding the positions of any of the important functionaries in any organisation/association or Federation, would mean a person who has participated in sports at least at the State level, with participation at the national level and winning of awards and accolades at the national level being a desirable qualification.***
- ix. *An online registration system for all district level, state level and national level athletic championships, competitions, meets and events, similar to the model followed in the Federation Cup Athletics Championships, shall be*

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effectuated immediately, which shall publish online the amount allotted and spent on each athlete for such events.

- x. *It shall be mandatory for every association to have a website where all its financial aid as sanctioned and granted by the sports development authority of the respective State as well as by the Union Government must be furnished and the details of all the applicants with their respective credentials must also be mentioned in a transparent manner in the website.*
- xi. *In cases where it is found after an enquiry that any association/organisation or state unit of the National sports Federation has acted against merit in respect of the selection of participants, the State Government can take penal action against such an organisation including blacklisting of such an organisation for a minimum period of two years during which the association/organisation will not be in a position to sponsor candidates for national events or receive grant from the State Government.*
- xii. *In the event of any grievance made by any athlete/sports person to the state unit of the National sports Federation, the same shall be disposed of within a period of one week from the date on which such a grievance has been raised or before the upcoming event in respect of which the grievance is made, whichever is earlier, in order that the concerned athlete/sports person does not lose their chance for the concerned year.*
- xiii. *In the event of any grievance made with respect to any state unit of the National sports Federation, the state government shall dispose of the same within a period of one week from the date on which such a grievance has been raised or before the upcoming event in respect of which the grievance is made, whichever is earlier.*
- xiv. *The suggestions placed by the sixth respondent, which are extracted in para 9(vi) of this order shall be considered by the respondents 1, 4 and 5. Such compliance report be filed within a period of three months."*

(emphasis supplied)

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13. Mr. Chitale, learned counsel for the appellant has forcefully submitted that the directions in judgment in *S. Nithya (supra)* as made applicable on appellant by virtue of the single judge's order and confirmed by the impugned order by the division bench are inapplicable and unviable as they cannot be applied to the sport of Cricket, with respect to which the decision of this Court in ***BCCI v. Cricket Assn. of Bihar***³ would apply. It was argued that the judgment in *BCCI (supra)*, which holds the field of regulation in the context of cricket, does not prescribe that the post of President, Vice President and Secretary, as well as important functionaries of the BCCI and affiliated State Associations, shall be held only by sports persons and that 75% of members shall be eminent sportspersons. In this view, the directions in *S. Nithya (supra)* do not apply. It was further argued that the direction no. (viii) in *S. Nithya (supra)*, regarding the eligibility criteria for '*sports persons*' is onerous and disproportionate to the object sought to be achieved, given that posts at the district association should not be expected to be filled by persons who have participated in sports at the State level. Such a mandate would be counterproductive to localisation and democratisation of sports, it was argued.
14. The learned amicus has supported the arguments of the appellant and submitted that the law laid down in *BCCI (supra)* is a special law governing the field of Cricket, and the judgment in *S. Nithya (supra)* arising in peculiar facts and circumstances of athletics governance may not be applied in the instant case.
15. We agree with the submissions advanced at the Bar regarding the inapplicability of the judgments in *S. Nithya (supra)* to the factual conspectus of the present case. When the judgment in *S. Nithya (supra)* was delivered, the judgment in *BCCI (supra)* was already holding the field with the Constitution of BCCI having received the stamp of approval by this Court. There being no prescription or direction in the BCCI judgments on 75% membership in an association to be filled by eminent sports persons, coupled with no such direction providing that the qualification to be member of district association will be concomitant on a person being an eminent sportsperson, the directions in *S. Nithya (supra)* would not be applicable to the fact of the present case concerning sport of cricket.

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16. Having clarified the legal position, our next inquiry concerns the functioning of the appellant association in the existing legal regime informed by the applicable regulatory framework. Mr Mayank Mishra, learned counsel appearing for the respondents, has submitted that, in any event, the appellant must amend its Constitution in conformity with the Constitution of the BCCI, the structure of the sport being pyramidal. We now take up this issue.
17. **On applicability of BCCI Constitution to the Appellant, District Cricket Association:** Learned Amicus has highlighted the final directions in BCCI (supra) to the effect that after registration of the Constitution of BCCI, each of the members (State Associations) was directed to bring their Constitutions in conformity with BCCI's Constitution by way of suitable amendments. The amicus submits that while there was no direction in BCCI (supra) regarding the amendment of Constitutions to be done by District Associations, there was a consensus among the State Associations that their district association would also amend their Constitution in conformity with the BCCI's Constitution. Stating so, it was submitted that the appellant should grant membership only to its full members, as done by TNCA and BCCI, and also make minor corrections, such as mentioning the names of its members in its Constitution/bye-laws, which remain unclear and are part of pending proceedings as well.
18. The appellant opposes the submission advanced by amicus and respondents, arguing that the judgment in BCCI (supra) only concerns the BCCI and its member associations and is not in any manner applicable to the District Association. To this end, the appellant places strong reliance on the judgment in BCCI itself, wherein the Court concluded that the proposed Constitution of the BCCI did not stifle upon the rights and internal composition of State associations and, in turn, District Association⁴ and hence the argument advanced by associations regarding violation of Article 19 of the Constitution was rejected. The relevant extract of the said judgment is as under:

"55. With the above two aspects in mind, let us now examine whether the recommendations of the Committee have the tendency to violate Article 19(1)(c) or any other provision of the Constitution.

(...)

4 (2016) 8 SCC 535, Para 57.

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58. We regret our inability to accept the submission so vehemently urged before us by the learned counsel for BCCI and the State Cricket Associations. We say so, firstly because no citizen has come forward in the present proceedings or in the earlier round to complain of the violation of any fundamental right guaranteed under Article 19(1)(c) of the Constitution. Secondly and more importantly because the recommendations do not, in our opinion, affect the composition of the State Cricket Associations in any manner. Citizens who have come together to form the State Associations continue to associate as before with no change in their internal composition. If that be so as it indeed is the right guaranteed under Article 19(1)(c) stands exercised, which exercise would continue to enjoy the protection of the constitutional guarantee till the association/union or cooperative society, as the case may be, continues to exist. What is, however, important is that the right under Article 19(1)(c) does not extend to guaranteeing to the citizens the concomitant right to pursue their goals and objects uninhibited by any regulatory or other control. The legal position in this regard is settled by several decisions of this Court to which we may gainfully refer at this stage.

(...)

64. There is, in the light of the above authoritative pronouncements, no room for any doubt that the right guaranteed under Article 19(1)(c) cannot be claimed by an association or union or a cooperative society as is sought to be done in the case at hand, even when the right to form an association or union or cooperative society extends to the continued existence of such association or union or cooperative society with its original voluntary composition. But the right does not extend so far as to include the right of any such association or union or cooperative society to achieve its objects or to conduct its business unhindered by any regulatory or other control. Anything beyond the protection of the original composition of the association or union or cooperative society would fall outside Article 19(1)(c) and shall be governed by other clauses of Article 19 of the Constitution. For instance, the right of the association

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or union or cooperative society to conduct its business or pursue its objects shall be regulated under Article 19(1) (g) read with clause (6) of the Constitution. So also, the right to move freely throughout the territory of India shall be governed by Article 19(1)(d) read with clause (5) of the Constitution. Suffice it to say that so long as the initial voluntary composition of the State Cricket Associations which are complaining of the breach of their right under Article 19(1)(c) remains unaffected, there is no violation of what is guaranteed by Article 19(1)(c).

65. Seen in the backdrop of the above, the recommendations made by the Committee in the instant do not interfere with or alter the composition of the State Associations. Individual citizens who came together to form the State Associations have not been asked to discontinue their association nor do the recommendations impose upon their members an obligation to associate with others with whom they do not wish to associate. Composition of the State Cricket Associations remain unaffected, and so does the right of those forming such associations under Article 19(1)(c). That being so, the grievance sought to be made on behalf of citizens who have formed the State Associations does not stand scrutiny no matter none of those on whose behalf the argument is advanced is before this Court to make any such grievance. We have, in the light of the above, no difficulty in rejecting the first limb of the submissions made by the learned counsel opposing the recommendation of the Committee that BCCI shall have the Cricket Association from each State as a full member”.

19. In the recent judgment of this Court in **AIFF v. Rahul Mehra**,⁵ while answering a similar argument, that the Constitution of All India Football Federation shall not be made applicable to the State and District Association, this Court has distinguished the judgment in BCCI with the pyramidal structure of football and the International legislative framework to the effect that the judgment in BCCI arose out of a peculiar nature of Cricket as distinguished from Football and therefore is not applicable on the football regime.⁶

⁵ 2025 INSC 1131.

⁶ AIFF (supra), paras 64-71.

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20. In simple words, the appellant wants the argument on the applicability of BCCI's Constitution on its functioning to be rejected in terms of the ratio in BCCI itself. We have no difficulty in accepting this argument. The relevant portions in BCCI extracted above are clear to the effect that the judgment in BCCI does not warrant District Associations to model their regulations and bye-laws on exact lines of the BCCI Constitution. No judgment or document has been brought on record to demonstrate any understanding across the cricketing associations at the District Level to make their Constitution on exact lines as of the BCCI, nor any judgment which directs such a prescription. The impugned order, which directs the appellant association, also does not place reliance on BCCI per se, but rather on the judgment in *S. Nithya (supra)*, which we have already distinguished and clarified in the preceding section. In this view, the argument that the appellant must be asked to restructure its functioning and laws in terms of the BCCI Constitution cannot be accepted.
21. However, though enforcement of such a reform as contemplated in the BCCI judgment cannot be done through judicial review, we must clarify that it is open, rather necessary, for the State Association to initiate reforms to ensure that District Associations operate as professional, transparent, and in the best interests of the sport.
22. Such reforms may include transparency in the selection of players and also the execution of contracts. In fact, District Associations must volunteer to adopt reformative measures such as good governance, refined management, transparency, and the exclusion of conflicts of interest. Recognising the importance of sport to national life, this Court has an occasion to observe that, National, international, regional or even mohalla sports in India serve as the *Karmabhumi* where cohesion and collective purpose take tangible form. They bring together individuals from diverse social, linguistic, and cultural backgrounds under a common pursuit, embodying the Constitutional value of fraternity. Here, individual and collective aspirations find a way to coalesce. On the field, teamwork compels individuals to set aside personal distinctions and work together, cultivating habits of cooperation, solidarity, and mutual respect. Accessibility of sports is important, for when opportunities to participate are open to all—irrespective of race, caste, religion, sex, or economic status—the unifying power of sport is amplified. This inclusiveness ensures that sports become not a privilege of the few but a medium through

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which fraternity is strengthened across society. In this way, sports operationalise what the framers envisioned: an intangible yet indispensable force that holds us together through shared effort and common purpose.

23. It is high time we recognize that sporting “*facilities and opportunities*” are “*material resources of the community*”⁷, and their organizers are “*the institutions of the national life*”⁸. As “*places of public resort*”⁹, sporting institutions and bodies must remain accessible, not just for pursuing sport, but also for its administration. It should be the deeper Sadhana (endeavour) of the State, and it is also our Constitutional duty to ensure that sporting facilities and opportunities flourish with institutional efficiency, integrity, professionalism, and expertise. It is also necessary to ensure that sporting facilities and opportunities are not concentrated in the hands of the urban economic elite and that the revenues from sporting events, intellectual property and media rights are so distributed to subserve and encourage accessible and affordable sport in our country.¹¹
24. Returning to the facts of the present case, Mr. Amol Chitale has submitted that the appellant association’s rules and bye-laws include provisions for disqualification and dispute resolution, and in fact promote fairness and accountability. He would further submit that the association is inclined to carry out amendments to the following affect:
 - a) Any new inductee in the category of life member will not have the right to vote for a period of 3 years from the date of induction.
 - b) The number of “life members” shall be frozen at 179, which is the current strength of “Life Members” in the appellant association. The number of “Life Members” shall not be increased beyond 179.
 - c) In order to give adequate representation to the Clubs/ Institutions, there would be no capping on the number of Clubs/ Institutions that can be conferred voting rights in accordance with the provisions of the rules and regulations of the appellant association.

7 Article 38(2), Indian Constitution.

8 Article 39(b), Indian Constitution.

9 Article 38, Indian Constitution.

10 Article 15(2), Indian Constitution.

11 2025 INSC 1131 : All India Football Federation v. Rahul Mehra.

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- d) The category of “Family Members of the existing Life Members” shall be deleted from the clause which prescribes the categories/ qualifications for grant of “Life Membership” in the rules and regulations of the appellant association.
25. We have noted the submission of Mr. Amol Chitale, but have chosen not to comment in view of the fact that certain proceedings are pending before the High Court and the concerned authorities under the Tamil Nadu Societies Registration Act. Through an affidavit dated 13.12.2025 filed by the Respondent, we are informed that certain members of the appellant association initiated proceedings under Section 36 of the Tamil Nadu Societies Registration Act against the appellant, and while the enquiry was pending, they filed writ petition(s), primarily seeking direction to forbear the appellant from approving certain persons as life members of the Association. We are also informed that the Registrar had initiated a suo-motu inquiry, challenge to which is pending before the division bench of the High Court, where there is an interim order. It is not necessary to refer to the pending proceedings any further.
26. Since the issues concerning membership and composition of the appellant association are pending before the High Court and the statutory authority, we are of the opinion that such questions should be resolved as expeditiously as possible. In this view, we allow the appeal in part, set aside the judgment and order of the High Court to the extent indicated hereinabove, and further direct that the High Court shall dispose of the writ appeal(s) as expeditiously as possible in order to enable the statutory authorities to complete the enquiry, if necessary, and arrive at its logical conclusion, so that the election of the appellant can be conducted at the earliest. The High Court, as well as the authorities, shall take into account the spirit of our order.
27. The appeal(s) are disposed of accordingly. Pending applications, if any, also stand disposed of.

Result of the case: Appeal partly allowed.

Jane Kaushik
v.
Union of India & Ors.

(Miscellaneous Application No. 196 of 2026

In

Writ Petition (Civil) No. 1405 of 2023)

06 February 2026

[J.B. Pardiwala and R. Mahadevan, JJ.]

Issue for Consideration

Miscellaneous Application was filed seeking inclusion of Ms. Aparna Mehrotra, Senior Associate, Centre for Law and Policy Research as a member of the Advisory Committee formed by this Court *vide* judgment dated 17.10.2025 to address the concerns of the transgender community.

Headnotes[†]

Appointment of a member of the Advisory Committee – Miscellaneous Application was filed by the *Amicus Curiae* seeking inclusion of Ms. Aparna Mehrotra, Senior Associate, Centre for Law and Policy Research as a member to the Advisory Committee formed by this Court *vide* judgment dated 17.10.2025 to address the concerns of the transgender community:

Held: *Vide* judgment dated 17.10.2025, an Advisory Committee was constituted to address the concerns of the transgender community with Ms. Nithya Rajshekhar as a member to represent the Centre for Law and Policy Research – However, she is no longer an Associate with the Centre but, taking into consideration the extensive work undertaken by her with regard to the transgender rights, she would continue as one of the members of the Advisory Committee – Further, in the interest of functioning of the Advisory Committee, Ms. Aparna Mehrotra, Senior Associate, Centre for Law and Policy Research is also appointed as a member of the said Advisory Committee to represent the Centre and its scholarship in the field of transgender rights. [Paras 2-4]

Jane Kaushik v. Union of India & Ors.**List of Keywords**

Advisory Committee; Advisory Committee appointed to address the concerns of the transgender community; Centre for Law and Policy Research; Member to the Advisory Committee; Miscellaneous Application; Miscellaneous Application filed by *Amicus Curiae*.

Case Arising From

ORIGINAL CIVIL JURISDICTION: Miscellaneous Application No. 196 of 2026

In

Writ Petition (Civil) No. 1405 of 2023

From the Judgment and Order dated 17.10.2025 of the Supreme Court of India at Delhi in WC No. 1405 of 2023.

Appearances for Parties

Adv. for the Petitioner(s):

Ms. Jayna Kothari, Amicus Curie.

Advs. for the Respondent(s):

Ms. Aishwarya Bhati, A.S.G., Santosh Kr., Durga Dutt, Noor Rampal, Varun Chugh, B.L.N. Shivani, Ishaan Sharma, Dr. N. Visakamurthy, Ms. Deepanwita Priyanka, Vishwa Pal Singh, Mukesh Kumar, Srikant Singh, Ms. Aishwarya Sharma, Suraj Pal Singh Mina, Varun Singh, Atul Kumar, Mohit Negi.

Judgment / Order of the Supreme Court**Order**

1. By this Miscellaneous Application, Ms. Jayna Kothari, the learned Amicus Curiae has prayed for the following:-

“Kindly allow the present application filed by the Amicus Curiae and pass appropriate directions to include Ms. Aparna Mehrotra, Senior Associate, Centre for Law and Policy Research as a member to the Advisory Committee formed by the order dated 17.10.2025.”

2. Vide our judgment and order dated 17.10.2025, we had constituted the Advisory Committee with Ms. Nithya Rajshekhar as a member

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to represent the Centre for Law and Policy Research ("**Centre**"). We take note of the fact that Ms. Nithya Rajshekhar is no longer an Associate with the Centre.

3. However, taking into consideration the extensive work undertaken by Ms. Nithya Rajshekhar with regard to the transgender rights, we clarify that she would continue as one of the members of the Advisory Committee.
4. In the interest of functioning of the Advisory Committee, we also appoint Ms. Aparna Mehrotra, Senior Associate, Centre for Law and Policy Research as member of the Advisory Committee formed by us vide our judgment and order dated 17.10.2025, to represent the Centre and its scholarship in the field of transgender rights.
5. With the aforesaid directions, this Miscellaneous Application stands disposed of accordingly.

Result of the case: Miscellaneous application disposed of.

[†]Headnotes prepared by: Divya Pandey

Harbinder Singh Sekhon & Ors.

v.

The State of Punjab & Ors.

(Civil Appeal No. 2331 of 2026)

13 February 2026

[Vikram Nath* and Sandeep Mehta, JJ.]

Issue for Consideration

Issue arose for consideration whether change of land use-CLU dated 13.12.2021 could have been granted for the proposed unit when the land use under the Master Plan for Sangrur treated the site as falling in rural agricultural zone; whether “approval” recorded in the 43rd meeting of the Punjab Regional and Town Planning and Development Board dated 05.01.2022 could lawfully cure the admitted defect in the CLU and whether such approval is capable in law of operating as an alteration or amendment of the Master Plan under the PRTPD Act; whether the siting norms and environmental safeguards, including the PPCB notification dated 02.09.1998 and the relevant regulatory framework, were complied with in relation to the proximity of habitations and the school; and whether the revised industrial sector categorisation issued by CPCB in January, 2025, insofar as it reclassifies the activity described as “stand-alone grinding unit without CPP” from “Red” category to “Orange” category, together with the consequential relaxation of siting and regulatory safeguards brought about by Notifications GSR 84E dt 29.01.2025 and GSR 85E dt 30.01.2025, can be sustained in law.

Headnotes[†]

Punjab Regional and Town Planning and Development Act, 1995 – Legality of the change of land use-CLU – Respondent no. 9 purchased land for establishing cement related industrial unit in close proximity to the agricultural lands and residential houses of the appellants-group of agriculturists, and the School located in the immediate vicinity of the proposed site – CLU issued in favour of respondent no.9 for the proposed unit – Appellant’s case that CLU was granted in a manner not

* Author

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contemplated by the Act, and the proposed site falls within rural agricultural zone under the Master Plan for Sangrur and that red category polluting industry could not have been permitted at the said location – Writ petitions thereagainst, dismissed by the High Court holding that as on 13.12.2021, CLU did not have statutory backing in the form contemplated by the Act, however, upheld CLU since the Regional and Town Planning and Development Board granted approval in its meeting dt 05.01.2022 and treated the said approval as curing the defect and accepted the stand that the land use permissibility stood validated thereafter – Justification:

Held: CLU dated 13.12.2021 could not have been granted for the proposed unit when, under the operative Master Plan for Sangrur, the site fell in a rural agricultural zone where the proposed activity was not permissible – Permission must be lawful when it is granted – It cannot be rendered lawful by a later event unless the PRTPD Act itself so provides – “Approval” recorded on 05.01.2022 could not lawfully cure the defect in the CLU dated 13.12.2021, and it is not capable, in law, of operating as an alteration or amendment of the Master Plan under the PRTPD Act – Approach adopted by the High Court, which treated the subsequent approval as curing the illegality of the CLU, cannot be accepted when the statutory structure does not permit legality to be supplied to an act which was unlawful when done, by a later administrative approval which does not itself satisfy the mandatory requirements governing alteration or revision of the Master Plan – High Court’s approach, which proceeded on the premise that an act lacking statutory backing on the date of its issuance may nonetheless be sustained by a subsequent *ex post facto* approval, is inconsistent with this statutory structure – Siting norms and safeguards, including the PPCB notification dated 02.09.1998 and the regulatory discipline underlying prior environmental clearance under the EIA Notification, 2006, not complied with in the manner required by law – Proposed control systems and future-stage compliances cannot substitute the obligation to satisfy siting norms and the discipline underlying prior environmental clearance at the relevant time – Nor can subsequent material or later regulatory developments be invoked to retrospectively validate the legality of permissions already found to be without statutory foundation – Thus, judgment and order passed by the High Court set aside – Change of Land Use granted in favour of respondent no.9 quashed. [Paras 9-36]

Harbinder Singh Sekhon & Ors. v. The State of Punjab & Ors.

Environmental law – Reclassification from “Red” category to “Orange” category – Revised industrial sector categorisation issued by the CPCB in January, 2025 – Reclassification of “stand-alone grinding unit without CPP (Captive Power Plant) from “Red” category to “Orange” category with the consequential relaxation of siting and regulatory safeguards brought about by Notifications GSR 84E dt 29.01.2025 and GSR 85E dt 30.01.2025 – Sustainability:

Held: Revised categorisation and the consequential regulatory relaxations elevate a generic classification methodology to a position where it overrides preventive environmental safeguards, without adequate regard to exposure risks, local conditions, or the constitutional obligation to protect life and health – Such an approach is inconsistent with the precautionary principle, the doctrine of sustainable development, and the content of Art. 21 – Revised categorisation and consequential relaxation of siting safeguards materially affect the level of protection available to civilians, including residents and school-going children, against exposure to industrial pollution – By lowering the regulatory threshold applicable to an activity with known particulate emission characteristics, revised framework permits such units to be located closer to habitations and educational institutions – Impact is not speculative, it directly implicates public health and safety – Thus, the present intervention warranted because the impugned actions have the effect of lowering the constitutional minimum of protection guaranteed to affected communities – Revised industrial sector categorisation issued by the CPCB in January, 2025, insofar as it reclassifies the activity described as a “stand-alone grinding unit without CPP” from the “Red” category to the “Orange” category, cannot be sustained in law – Said reclassification, read together with the consequential relaxation of siting and regulatory safeguards brought about by Notifications GSR 84E and GSR 85E has the effect of diluting preventive environmental protections in a manner that infringes the constitutional guarantees u/Arts.14 and 21 – Revised industrial sector categorisation issued by the CPCB in January, 2025 quashed insofar as it reclassifies the activity described as a “stand-alone grinding unit without CPP” from the “Red” category to the “Orange” category – Notifications GSR 84E and GSR 85E quashed insofar as they relax the applicable siting and regulatory safeguards for such units on the basis of the said reclassification – Any consent, approval or permission that has been granted solely

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on the basis of the said reclassification of “stand-alone grinding unit without CPP” as an “Orange” category activity or on the basis of the relaxed siting and regulatory safeguards introduced by Notifications GSR 84E and GSR 85E will not survive and stands withdrawn – CPCB or MoEF & CC not precluded from undertaking fresh exercise of classification or regulatory review in accordance with law – Constitution of India – Arts.14 and 21. [Paras 65-68]

Environmental law – Environmental protection and development – Constitutional balance – Explanation:

Held: Economic development and industrial growth are legitimate and important objectives of the State – However, in a constitutional framework founded on the rule of law, development is not an abstract or absolute goal – It is conditioned by the non-derogable obligation to protect life, health, and environmental integrity – Development that undermines these foundational values ceases to be constitutionally permissible development – Doctrine of sustainable development is not a slogan of compromise but a principle of prioritisation – It requires that when developmental activity poses a credible risk to human health or environmental safety, regulatory frameworks must err on the side of protection – Constitution does not permit a trade-off where civilian life and health are exposed to foreseeable harm on the assumption that economic benefit or industrial facilitation justifies such exposure – Arts.14 and 21 do not tolerate a regulatory calculus that treats environmental safety as negotiable – If regulatory dilution were to be accepted, it would mark a fundamental shift in environmental governance – Sector-level reclassification, divorced from exposure realities and local sensitivities, would become a ready instrument to justify siting of polluting activities in close proximity to habitations, schools, and other sensitive receptors – It would operate as a precedent, enabling progressive erosion of preventive safeguards across regions, with cumulative and irreversible consequences – Law does not permit environmental protection to be weakened incrementally until harm becomes inevitable – Environmental harm, once caused, is often irreversible or incapable of full remediation – Public health consequences, degradation of air quality, and long-term ecological damage cannot be undone by subsequent regulatory correction – Thus, environmental regulation is designed to be preventive rather than reactive – Regulatory framework that allows risk to materialise first and seeks to address consequences later is fundamentally

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incompatible with constitutional environmental jurisprudence – This Court does not ordinarily interfere with technical classifications or policy determinations made by expert bodies, however, judicial restraint cannot extend to abdication – Where regulatory action results in lowering of the constitutional minimum of protection guaranteed to citizens, particularly in matters affecting life and health, judicial intervention becomes a constitutional obligation. [Paras 60-64]

Punjab Regional and Town Planning and Development Act, 1995 – ss.70, 75, 76, 79-81 – Preparation and approval of Master Plans – Master Plan, its binding force, and the procedure for alteration/revision – Control of development and “change of land use” permissions – Explained. [Paras 7.1-7.10]

Environment (Protection) Act, 1986 – Environment (Protection) Rules, 1986 – EIA Notification dated 14.09.2006 – Environmental clearance and siting safeguards – Explained. [Paras 7.11-7.13]

Case Law Cited

K. Ramadas Shenoy v. Town Municipal Council, Udipi [1975] 1 SCR 680 : (1974) 2 SCC 506; *Bangalore Medical Trust v. B.S. Muddappa* [1991] 3 SCR 102 : (1991) 4 SCC 54; *Vellore Citizens' Welfare Forum v. Union of India* [1996] Supp. 5 SCR 241 : (1996) 5 SCC 647; *M.C. Mehta v. Union of India* [1996] Supp. 7 SCR 465 : (1997) 3 SCC 715; *Hospitality Assn. of Mudumalai v. In Defence of Environment & Animals* [2020] 10 SCR 273 : (2020) 10 SCC 589; *M.C. Mehta v. Union of India (Shriram - Oleum Gas)* [1987] 1 SCR 819 : (1987) 1 SCC 395; *Indian Council for Enviro-Legal Action v. Union of India* [1996] 2 SCR 503 : (1996) 3 SCC 212; *A.P. Pollution Control Board v. Prof. M.V. Nayudu* [1999] 1 SCR 235 : (1999) 2 SCC 718 – referred to.

List of Acts

Punjab Regional and Town Planning and Development Act, 1995; Constitution of India; Environment (Protection) Act, 1986; Environment (Protection) Rules, 1986.

List of Keywords

Land use under the Master Plan for Sangrur; Rural agricultural zone; Approval recorded in 43rd meeting of the Punjab Regional and Town

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Planning and Development Board dated 05.01.2022; Alteration or amendment of the Master Plan; Siting norms and environmental safeguards; PPCB notification dated 02.09.1998; Regulatory framework; Revised industrial sector categorisation; Stand-alone grinding unit without CPP; “Red” category; “Orange” category; Relaxation of siting and regulatory safeguards; Notifications GSR 84E dated 29.01.2025; GSR 85E dated 30.01.2025; Principles of environmental jurisprudence; Change of land use; Cement related industrial unit; Close proximity to agricultural lands and residential houses; Change of land use-CLU dated 13.12.2021; Environmental clearance under EIA Notification, 2006; Preparation and approval of Master Plans; Master Plan, its binding force, and procedure for alteration/revision; Control of development and change of land use permissions; Environmental clearance and siting safeguards; Reclassification of “stand-alone grinding unit without CPP” from “Red” category to “Orange” category; Precautionary principle; Doctrine of sustainable development; Environmental protection and development.

Case Arising From

CIVIL APPELLATE/ORIGINAL JURISDICTION: Civil Appeal No. 2331 of 2026

From the Judgment and Order dated 29.02.2024 of the High Court of Punjab & Haryana at Chandigarh in CWP No. 20134 of 2022

With

SLP (C) No. 8495 of 2024 and Writ Petition (C) No(s). 481 and 551 of 2025

Appearances for Parties

Advs. for the Petitioner(s):

Mukul Rohatgi, Parthiv Goswami, Sr. Advs., Purushottam Sharma Tripathi, Ms. Diksha Rai, Abhishek Tripathi, Amit, Ms. Vani Vyas, Keshav Seghal, Ravi Chandra Prakash.

Advs. for the Respondent(s):

Ms. Aishwariya Bhati, A.S.G., Rajat Bhardwaj, A.A.G., Harin P Raval, Rakesh Dwivedi, Anand Chibber, Ms. Ruchi Kohli, Sr. Advs., Siddhant Sharma, Ms. Shreya Bansal, Ms. Shrestha Narayan, Apoorv Shukla, Ms. Ishita Farsaiya, Ms. Prabhleen

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A. Shukla, Ayush Acharjee, Apoorv Shukla, Ms. Ishita Farsaiya, Ms. Prabhleen A. Shukla, Ayush Acharjee, Ateevraj Sandhu, Ms. Shradha Deshmukh, Ms. Rajeshwari Shankar, Ms. Sherya Jain, Ms. Riddhi Jad, Ms. Anuradha, Gurmeet Singh Makker, Sriram P., Ms. Richa Kapoor, Ms. Udipti Chopra, Ms. Aditi Rathore, Sudeep Kumar, Gaurav Dhama, Ms. Sushre Sirpa Sahu, Sumit Gaur.

Judgment / Order of the Supreme Court**Judgment**

Vikram Nath, J.

1. At the outset, it may be noted that the present judgment is structured in two parts. The first part addresses the civil appeals arising out of the Special Leave Petitions and examines the legality of the change of Land Use and the impugned judgment of the High Court. The second part separately considers the writ petitions under Article 32 of the Constitution of India, which raise an independent challenge to subsequent regulatory actions taken during the pendency of the appeals.

Part I: For SLP (Civil) No. 8316 of 2024 and SLP (Civil) No. 8495 of 2024

2. Leave granted.
3. The present appeals arise from the common judgment and order dated 29.02.2024 passed by the High Court of Punjab and Haryana at Chandigarh in CWP No. 20134 of 2022 and CWP No. 18676 of 2022. By the impugned judgment, the High Court dismissed the writ petitions and upheld the change of Land Use dated 13.12.2021 granted in favour of “Shree Cement North Private Limited”. Civil Appeal arising out of SLP (Civil) No. 8316 of 2024 has been filed by the writ petitioners in CWP No. 20134 of 2022. Civil Appeal arising out of SLP (Civil) No. 8495 of 2024 has been filed by Vasant Valley Public School, which was the writ petitioner in CWP No. 18676 of 2022. For ease of reference, the parties shall be referred to as per their status in SLP (Civil) No. 8316 of 2024. Accordingly, Respondent No. 9 is Shree Cement North Private Limited, the main contesting respondent, before this Court.

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4. The facts giving rise to the present appeals are as follows:
- 4.1. The Appellant in Civil Appeal arising out of SLP (Civil) No. 8316 of 2024 is a group of agriculturists residing in and around Sangrur, Punjab. The Appellants state that Respondent No. 9 purchased land admeasuring about 47.82 acres for establishing a cement related industrial unit in close proximity to their agricultural lands and residential houses. The Appellant in Civil Appeal arising out of SLP (Civil) No. 8495 of 2024 is Vasant Valley Public School. The School claims that its premises are located in the immediate vicinity of the proposed site and that the proposed activity would adversely affect the health and safety of students and staff.
- 4.2. On 13.12.2021, the Punjab Bureau of Investment Promotion issued a Change of Land Use¹ in favour of Respondent No. 9 for the proposed unit. On 14.12.2021, consent to establish/No Objection Certificate from the pollution angle was granted under the Single Window mechanism on the basis of Punjab Pollution Control Board's² consideration. The Appellants contend that the CLU was granted in a manner not contemplated by the Punjab Regional and Town Planning and Development Act, 1995³. The Appellants also contend that the proposed site falls within a rural agricultural zone under the Master Plan for Sangrur and that a red category polluting industry could not have been permitted at the said location.
- 4.3. The agriculturist Appellants, therefore, instituted CWP No. 20134 of 2022 before the High Court challenging the CLU dated 13.12.2021 and the consequent approvals. Vasant Valley Public School instituted CWP No. 18676 of 2022 raising similar objections and specifically relied upon the proximity of the school and other habitations to the proposed site. During the pendency of the writ proceedings, the High Court passed an interim order dated 20.09.2022, and the interim arrangement continued till the writ petitions were finally decided.

1 In short "CLU"

2 In short "PPCB"

3 In short "PRTPD Act"

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- 4.4. By the common judgment and order dated 29.02.2024, the High Court dismissed both writ petitions. The High Court noted that as on 13.12.2021, the CLU did not have statutory backing in the form contemplated by the PRTPD Act. The High Court, however, upheld the CLU on the reasoning that the Punjab Regional and Town Planning and Development Board granted approval in its 43rd meeting dated 05.01.2022. The High Court treated the said approval as curing the defect and accepted the stand that the land use permissibility stood validated thereafter.
- 4.5. The High Court also proceeded on the basis that the decision taken by the Planning Board on 05.01.2022 was relatable to the power of amendment of the Master Plan. The High Court relied upon Section 76 of the PRTPD Act and held that the approval recorded in the 43rd meeting dated 05.01.2022 could operate to support the CLU and to sustain the proposed industrial activity. The High Court further proceeded on the premise that the competent authorities had considered the relevant siting aspects and that the CLU itself contained conditions and restrictions. The High Court observed that if the conditions stipulated in the CLU were violated, the affected persons would be at liberty to pursue appropriate remedies.
5. Aggrieved by the dismissal of their writ petitions and by the upholding of the CLU dated 13.12.2021, the Appellants have preferred the present civil appeals.
6. We have heard the learned counsel for the parties, and we have gone through the comprehensive material on record. In our considered opinion, the following questions arise for determination in the present appeals:
 - I. Whether the CLU dated 13.12.2021 could have been granted for the proposed unit when the land use under the Master Plan for Sangrur treated the site as falling in a rural agricultural zone.
 - II. Whether the “approval” recorded in the 43rd meeting of the Punjab Regional and Town Planning and Development Board dated 05.01.2022 could lawfully cure the admitted defect in the CLU and whether such approval is capable in law of operating as an alteration or amendment of the Master Plan under the PRTPD Act.

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- III. Whether the siting norms and environmental safeguards, including the PPCB notification dated 02.09.1998 and the relevant regulatory framework, were complied with in relation to the proximity of habitations and the school, and whether the process adopted by the authorities satisfies the requirements of the prevailing legal norms.
7. It is apparent that the controversy before us turns principally on the statutory scheme governing the Master Plan and control of development under the PRTPD Act; and the environmental and siting safeguards applicable to a cement grinding unit as in the present case.

A. PRTPD Act, the Master Plan, its binding force, and the procedure for alteration/revision

- 7.1. Chapter X of the PRTPD Act deals with '*Preparation and Approval of Master Plans.*' Under the same, Section 70 of the PRTPD Act lays down the foundational statutory scheme for the preparation, approval, and legal operation of a Master Plan. The same has been reproduced hereunder:

"70. Outline Master Plan. - (1) As soon as may be after the declaration of a planning area and after the designation of a Planning Agency for that area, the Designated Planning Agency shall, not later than one year after such declaration or within such time as [the State Government may, from time to time, extend, prepare and submit to the State Government for its approval a plan (hereinafter called the "Master Plan")] for the planning area or any of its part and the Master Plan so prepared shall –

(a) indicate broadly the manner in which the land in the area should be used;

(b) allocate areas or zones of land for use for different purposes;

(c) indicate, define and provide the existing and proposed highways, roads, major streets and other lines of communication;

[(cc) indicate areas covered under heritage site and the manner in which protection, preservation and

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conservation of such site including its regulation and control of development, which is either affecting the heritage site or its vicinity, shall be carried out.]

(d) include regulations (hereinafter called “Zoning Regulations”) to regulate within each zone the location, height, number of storeys and size of buildings and other structures, open spaces and the use of buildings, structures and land.

(2) Subject to the provisions of the rules made under this Act for regulating the form and contents of the Master Plan, any such plan shall include such maps and such descriptive matters as may be necessary to explain and illustrate the proposals in the Master Plan.

(3) [As soon as after the Master Plan has been prepared under sub – section (1) ,by the Designated Planning Agency, the State Government, not later than such time, as may be prescribed, shall direct the Designated Planning Agency to publish the existing land use plan and master plan and the place or places, where the copies of the same may be inspected, for inviting objections in writing from any person with respect to the existing land use plan and master plan within a period of thirty days from the date of publication.]

(4) [The State Government, after considering the objections and in consultation with the Board, may, direct the Designated Planning Agency to modify the Master Plan or approve it as such.]

(5) [The Designated Planning Agency, after approval of the State Government, shall publish the final Master Plan in the Official Gazette, after carrying out the modifications if any, under intimation to the State Government within a period of thirty days from the date of according approval by the State Government.]”

7.2. The provision makes it clear that the Master Plan is not a mere policy document or an internal administrative guideline.

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It is a statutory instrument which governs how land in the planning area is to be used and regulated. The Act places the primary responsibility for preparing the Master Plan upon the Designated Planning Agency, which is required to prepare the plan and submit it to the State Government for approval. The contents of the Master Plan, as reflected in the statutory scheme, include the identification and allocation of land into different zones for specified purposes and the regulatory norms that will govern development and land use within those zones. Equally significant is the procedure that Section 70 mandates before a Master Plan can acquire enforceable effect. The Act requires that the proposed Master Plan be brought into the public domain, that the public be afforded an opportunity to submit objections and suggestions within the prescribed period, and that such objections and suggestions be considered by the Designated Planning Agency before the plan is placed for approval. This is not a procedural formality. It is a statutory safeguard intended to ensure transparency, participatory planning, and reasoned decision making, particularly because zoning and land use decisions have a direct bearing on property rights, local habitations, public amenities, and environmental and health concerns.

- 7.3. The Act then ties enforceability to publication in the Official Gazette. In other words, the Master Plan becomes operational, and thereby binding for land use regulation, only upon its publication in the Official Gazette in the manner contemplated by the statute. Section 75 of the PRTPD Act reinforces this principle by reiterating that the Master Plan comes into operation from the date of such publication, and the same reads as follows:

“75. [Coming into operation of Master Plan,- The Master Plan come into operation from the date of publication, referred in sub-section(5) of section 70.]”

The combined statutory scheme indicates that once the Master Plan is published and comes into operation, it binds both the authorities and the public, and land use permissibility is to be determined with reference to its zoning prescriptions unless the statute is duly followed to alter or revise the plan.

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- 7.4. The same statutory discipline governs review and revision. Section 76 of the PRTPD Act contemplates periodic review of the Master Plan, and it permits revision where the statutory authority considers it necessary. Section 76 reads as follows:

“76(1) At any after time after the date on which the Master Plan for an area comes into operation, and atleast once after every ten years, after that date, the Designated Planning Agency shall after carrying out such fresh surveys as may be considered necessary or as directed by the [State Government], prepare and submit to the Board, a Master Plan after making alterations or additions as it considers necessary.

*(2) The provisions of *[Sections 70 and 75] shall mutatis mutandis as for as may be possible, apply to the Master Plan submitted under sub-section (1).”*

However, the Act does not treat review as a mechanism by which land use norms can be altered informally or on a case by case basis. The provision expressly applies the publication, objection, consideration, and gazette publication requirements to a revised Master Plan as well. This legislative design ensures that revision of the Master Plan, even when undertaken as part of a periodic review cycle, remains subject to the same safeguards of notice, participation, and formal publication which give the Master Plan its legal force in the first place.

- 7.5. The Act also provides for the making of minor changes, but even that power is not arbitrary. Where changes are proposed to the Master Plan, including changes described as minor, the statutory scheme requires that the State Government’s direction and the fact of change be brought to the notice of the public in the manner contemplated by the Act. The underlying principle is that a change in zoning or land use permissibility cannot rest only upon internal file notings, minutes, or administrative approvals. Where the change alters the operative land use framework that binds the public and the authorities, the statute insists upon transparency and public notice so that the Master Plan continues to remain a legally certain and publicly knowable instrument of planning regulation.

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B. Control of development and “change of land use” permissions

- 7.6. Once a Master Plan has come into operation in the manner contemplated by the PRTPD Act, the statutory command is that land use and development within the planning area must conform to the zoning and regulatory prescriptions of the Plan. Section 79 to 81 in Chapter XI of the PRTPD Act provides for the same and has been reproduced hereunder:

79. After the coming into operation of any Master Plan in any area, no person shall use or permit to be used any land or carry out any development in that area otherwise than in conformity with such Master Plan:

Provided that the Competent Authority may allow the continuance of any use of any land, for a period not exceeding ten year, upon such terms and conditions as may be provided by regulations made in this behalf for the purpose and to the extent, for and to which it was being used on the date on which such a Master Plan came into operation.

80. After coming into operation of any Master Plan in any area and subject to the other provisions of this Act, no development in respect of, or change of use of, any land shall be undertaken or carried out, in that area –

(a) without obtaining the permission in writing as provided for hereafter; and

(b) without obtaining a certificate from the Competent Authority certifying that the development charge or betterment charge as leviable under this Act has been paid or that no such charges are leviable:

[Provided that except in the case of development, affecting heritage site or its vicinity, no such permission shall be necessary-]

(i) for operational constructions and constructions in the area comprised in the abadi-deh of any village falling inside its Lal Lakir or Phirni;

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(ii) for carrying out such works for the maintenance, improvement or other alteration of any building which affect only its interior or which do not materially affect the external appearance of the building ;

(iii) [...] for the carrying out by the Central Government or the State Government or any local authority of,-

(a) any work required for the maintenance or improvement of a high way, road or public street, being work carried out on land within the boundaries of such highway, road or public street;

(b) any work for the purpose of inspecting, repairing or renewing any drains, sewers, mains, pipes, cables or other apparatus including the breaking open of any street or other land for that purpose ;

(iv) for the excavations (including wells and tubewells) made in the ordinary course of agricultural operation or for such constructions which are made for agricultural purposes subservient to agriculture :

Provided that such excavation or constructions are situated in the areas in which agriculture is permitted land use as per the Master Plan ;

(v) for the construction of unmetalled roads intended to give access to land solely meant for agricultural purpose.

81.(1) Any person intending to carry out any development in respect of, or a change of use of any land or intending to sub-divide his plot or to layout a private street shall make an application in writing to the Competent Authority for permission in such form and containing such particulars and accompanied by such documents and plans as may be prescribed.

(2)(a) In the case of a Department of the State Government or the Central Government or a local authority intending to carry out any development in respect of, or, change of use of, any land, the concerned Department or the local authority, as the

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case may be, shall notify in writing to the Competent Authority of its intention to do so giving full particulars thereof and accompanied by such documents and plans as may be prescribed, at least, two months prior to the undertaking of such development or change, as the case may be.

*(b) Where the Competent Authority has raised any objection in respect of the conformity or the proposed development either to any Master Plan under preparation or to any rules in force at that time, or due to any other material consideration, the Department of the State Government or the Central Government or the local authority, as the case may be, shall either make necessary modifications in the proposals for such development or change of use to meet the objections raised by the Competent Authority or submit *[to the State Government the proposal for such development or change of use together with the objections raised by the Competent Authority for decision.]*

*(c) The **[State Government] on receipt of such proposal together with the objections of the Competent Authority shall either approve the proposals with or without modifications or direct the Department of the State Government or the Central Government or the local authority, as the case may be, to make such modifications in the proposals as it considers necessary in the circumstances.*

(3) Every application under sub-section (1) shall be accompanied by such fee as may be prescribed:

Provided that no fee shall be payable in the case of an application made by a Department of the State Government or the Central Government.

(4) On an application having being duly made under sub-section (1) and on payment of the development charge or betterment charges if any, as may be assessed under Chapter XIII, the Competent Authority may,-

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(a) pass an order –

(i) granting permission unconditionally ; or

(ii) granting permission subject to such conditions as it may think necessary to impose ; or

(iii) refusing permission ;

(b) without prejudice to the generality of clause (a) impose conditions –

(i) to the effect that the permission granted is only for a specified period and after the expiry of that period, the land shall be restored to its previous condition or the use of the land so permitted shall be discontinued; or

(ii) for regulating the development or use of any land under control of the applicant or for the carrying out of works on any such land as may appear to the Competent Authority expedient.

(5) The Competent Authority in considering the application for permission shall ensure that it is in conformity with the provisions of the Master Plan prepared or under preparation under this Act and where the development or change or use of any land is likely in the opinion of the Competent Authority to interfere with the operation of the Master Plan or to be prejudicial to planned development, or any plan for development of the Authority, the Competent Authority may refuse such permission.

(6) Where permission is granted subject to conditions or is refused, the grounds of imposing such conditions or such refusal shall be recorded in the order and such order shall be communicated to the applicant in the prescribed manner.

*(7) *If the Competent Authority does not communicate its decision to grant or refuse permission to the applicant within a period of sixty days from the date of receipt of his application in case other than the heritage site, and within a period of one*

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hundred twenty days in the case of heritage site and development affecting such site, or within a period of sixty days from the date of receipt of reply from the applicant in respect of any requisition made by the Competent Authority, whichever is later, then such permission shall be deemed to have been granted to the applicant on the date immediately following the date of expiry of the later date without prejudice to the provisions of this Act, rules and regulations made thereunder:

Provided that any development carried out in pursuance of such deemed permission, which is in contravention of the provisions of the Act, rules and regulations made thereunder, shall be deemed to be an unauthorised development for the purposes of sections 86, 87, 88, 89 and 90.]”

- 7.7. Section 79 is a prohibition in mandatory terms. It does not leave the matter to administrative discretion on a case to case basis. It interdicts the use of land and the carrying out of development in a manner inconsistent with the operative Master Plan. The legislative intent is to ensure certainty, uniformity, and enforceability in planning control, so that the zoning framework is not diluted by ad hoc departures that would defeat the Plan’s public purpose.
- 7.8. Section 80 then provides the complementary statutory control. Even where a proposed activity is otherwise permissible under the Plan, the statute mandates that development or change of use can be undertaken only upon written permission of the competent authority. This written permission is not conceived as a substitute for, or an override of, the Master Plan. It is a regulatory permission which must operate within the discipline of the Plan and the statute. In other words, Section 80 does not create a untrammelled executive power to authorise land use contrary to the Master Plan. It creates a permission regime which presupposes conformity with the planning framework, and which is intended to regulate the manner, conditions, and safeguards subject to which permissible development may proceed.
- 7.9. Section 81 sets out the structured decision-making process for grant or refusal of permission. The provision contemplates an

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application by the person intending to carry out development, a time bound decision by the competent authority, the power to impose conditions while granting permission, and an obligation to record reasons where permission is refused. The scheme is designed to ensure that permissions are granted on relevant considerations, that the decision is not arbitrary, and that the affected party is informed of the basis of refusal. The deemed permission clause is also part of this discipline. It operates as a statutory consequence where the authority fails to act within the prescribed period. It does not dispense with the substantive requirements of conformity with the Master Plan or compliance with other applicable laws.

- 7.10. The appellate remedy is similarly part of the statutory architecture. It provides a supervisory forum within the executive framework, but it does not dilute the binding force of the Master Plan or the mandatory nature of the statutory controls in Sections 79 and 80.

C. Environmental clearance and siting safeguards

- 7.11. Environmental clearance and siting safeguards stand on a distinct but overlapping legal plane. Under the Environment (Protection) Act, 1986 and the Environment (Protection) Rules, 1986, the EIA Notification dated 14.09.2006 (hereinafter referred to as the EIA Notification, 2006) is a delegated legislation which creates a regime of prior environmental clearance for specified projects and activities. The requirement of prior environmental clearance is triggered before commencement of construction activity or preparation of land at the site. The statutory design is preventive. It ensures that environmental impacts, mitigation measures, and site-specific concerns are assessed at a stage when the project can still be meaningfully evaluated, conditioned, modified, or declined.
- 7.12. The EIA Notification, 2006 also prescribes a stage wise process which includes screening, scoping, public consultation, and appraisal. These stages are not interchangeable. Each stage serves a distinct function within the regulatory design, and public consultation has a specific role in ensuring that persons likely to be affected can place their concerns on record and that the appraisal is informed by local conditions and stakeholder

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inputs. Where the project is treated as falling within Category “B” under the relevant schedule entry, the appraisal is at the State level through the institutional mechanism of the State Level Environment Impact Assessment Authority⁴ and the State Expert Appraisal Committee⁵. This classification determines the forum and the process for appraisal. It does not dilute the core requirement that the environmental clearance must be prior and must be obtained before construction or preparation of land.

- 7.13. Siting and proximity norms operate as an additional layer of safeguards, particularly where habitations and sensitive receptors such as educational institutions are involved. The PPCB notification dated 02.09.1998 prescribes minimum siting distances for cement plants and grinding units, including minimum buffers from residential clusters and educational institutions, and it also requires development of a green belt along the boundary. These norms reflect a regulatory framework prescribing that certain minimum separations and buffers are required to reduce risk of exposure and nuisance from dust, emissions, noise, and traffic. They function as minimum protective standards for the purpose of grant of consent and related pollution control permissions. Compliance with these standards is relevant to evaluate whether the regulatory authorities have applied the correct yardsticks and whether the safeguards imposed are adequate having regard to the site conditions and the proximity of habitations and the school.
8. Having set out the statutory scheme governing planning control and the environmental and siting safeguards, we now turn to the three issues that arise for determination in these appeals as framed in the earlier part of this judgment.

Issue I: Whether the CLU dated 13.12.2021 could have been granted when the site fell in a rural agricultural zone under the Master Plan for Sangrur.

4 In short “SEIAA”

5 In short “SEAC”

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9. At the outset, it is necessary to notice the legal character of the Master Plan for Sangrur and the zoning prescription governing the site in question. The material on record, including the reports and communications relied upon by the parties, proceeds on the consistent premise that the land purchased by Respondent No. 9 fell in a rural agricultural zone under the notified Master Plan for Sangrur. It is also not in dispute that, as per the zoning permissibility then prevailing, a red category industry was not permissible at the said site.
10. In this backdrop, the CLU dated 13.12.2021 has to be tested on its own legal footing. This Court has consistently held that a statutory development plan is not a mere policy statement. It has binding force and regulates land use in the larger public interest. Any development contrary to the operative plan is impermissible unless the plan itself is altered in the manner known to law. The principle has been reiterated in decisions of this Court in **K. Ramadas Shenoy v. Town Municipal Council, Udipi**⁶ and **Bangalore Medical Trust v. B.S. Muddappa**⁷, where this Court emphasised that zoning and planned development norms cannot be diluted by ad hoc departures at the cost of public interest. The relevant portion from **Bangalore Medical Trust** (*Supra*) is reproduced hereunder:

“48. Much was attempted to be made out of exercise of discretion in converting a site reserved for amenity as a civic amenity. Discretion is an effective tool in administration. But wrong notions about it results in ill-conceived consequences. In law it provides an option to the authority concerned to adopt one or the other alternative. But a better, proper and legal exercise of discretion is one where the authority examines the fact, is aware of law and then decides objectively and rationally what serves the interest better. When a statute either provides guidance or rules or regulations are framed for exercise of discretion then the action should be in accordance with it. Even where statutes are silent and only power is conferred to act in one or the other manner, the Authority cannot act whimsically or arbitrarily. It

6 (1974) 2 SCC 506, para nos.26-30

7 (1991) 4 SCC 54

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should be guided by reasonableness and fairness. The legislature never intends its authorities to abuse the law or use it unfairly. When legislature enacted sub-section (4) it unequivocally declared its intention of making any alteration in the scheme by the Authority, that is, BDA and not the State Government. It further permitted interference with the scheme sanctioned by it only if it appeared to be improvement. The facts, therefore, that were to be found by the Authority were that the conversion of public park into private nursing home would be an improvement in the scheme. Neither the Authority nor the State Government undertook any such exercise. Power of conversion or alteration in scheme was taken for granted. Amenity was defined in Section 2(b) of the Act to include road, street, lighting, drainage, public works and such other conveniences as the government may, by notification, specify to be an amenity for the purposes of this Act. The Division Bench found that before any other facility could be considered amenity it was necessary for State Government to issue a notification. And since no notification was issued including private nursing home as amenity it could not be deemed to be included in it. That apart the definition indicates that the convenience or facility should have had public characteristic. Even if it is assumed that the definition of amenity being inclusive it should be given a wider meaning so as to include hospital added in clause 2(bb) as a civic amenity with effect from 1984 a private nursing home unlike a hospital run by government or local authority did not satisfy that characteristic which was necessary in the absence of which it could not be held to be amenity or civic amenity. In any case a private nursing home could not be considered to be an improvement in the scheme and, therefore, the power under Section 19(4) could not have been exercised.

49. Manner in which power was exercised fell below even the minimum requirement of taking action on relevant considerations. A scheme could be altered by the Authority as defined under Section 3 of the Act. It is a body

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corporate under Section 3 consisting of the Chairman and experts on various aspects, namely, a finance member, an engineer, a town planner, an architect, the ex-officio members such as Commissioner of Corporation of the City of Bangalore, officer of the Secretariat and elected members for instance, two persons of the State legislature, one a woman and other a scheduled caste and scheduled tribe member, representative of labour, representative of water supply, sewerage board, electricity board, State Road Transport Corporation, two elected councillors etc. and the Commissioner. This authority functions through committees and meetings as provided under Sections 8 and 9. There is no section either in the Act nor any rule was placed to demonstrate that the Chairman alone, as such, could exercise the power of the Authority. There is no whisper nor there is any record to establish that any meeting of the Authority was held regarding alteration of the scheme. In any case the power does not vest in the State Government or the Chief Minister of the State. The exercise of power is further hedged by use of the expression, if 'it appears to the Authority'. In legal terminology it visualises prior consideration and objective decision. And all this must have resulted in conclusion that the alteration would have been improvement. Not even one was followed. The Chairman could not have acted on his own. Yet without calling any meeting of the Authority or any committee he sent the letter for converting the site. How did it appear to him that it was necessary, is mentioned in the letter dated April 21, because the Chief Minister desired so. The purpose of the Authority taking such a decision is their knowledge of local conditions and what was better for them. That is why participatory exercise is contemplated. If any alteration in scheme could be done by the Chairman and the Chief Minister then sub-section (4) of Section 19 is rendered otiose. There is no provision in the Act for alteration in a scheme by converting one site to another, except, of course if it appeared to be improvement. But even that power vested in the Authority not the government. What should have happened was that the Authority should have

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applied its mind and must have come to the conclusion that conversion of the site reserved for public park into a private nursing home amounted to an improvement; then only it could have exercised the power. But what happened in fact was that the application for allotment of the site was accepted first and the procedural requirements were attempted to be gone through later and that too by the State Government which was not authorised to do so. Not only that the Authority did not apply its mind and take any decision if there was any necessity to alter the scheme but even if it is assumed that the State Government could have any role to play, the entire exercise instead of proceeding from below, that is, from the BDA to State Government proceeded in reverse direction, that is, from the State Government to the BDA. Every order, namely, converting the site from public park to private nursing home and even allotment to BMT was passed by State Government and the BDA acting like a true subservient body obeyed faithfully by adopting and confirming the directions. It was complete abdication of power by the BDA. The legislature entrusted the responsibility to alter and approve the scheme to the BDA but the BDA in complete breach of faith reposed in it, preferred to take directions issued on command of the Chief Executive of the State. This resulted not only in error of law but much beyond it. In fact the only role which the State Government could play in a scheme altered by the BDA is specified in sub-sections (5) and (6) of Section 19 of the Act. The former requires previous sanction of the government if the estimated cost of executing the altered scheme exceeds by a greater sum than five per cent of the cost of executing the scheme as sanctioned. And later if the 'scheme as altered involved the acquisition otherwise than by agreement'. In other words the State Government could be concerned or involved with an altered scheme either because of financial considerations or when additional land was to be acquired, an exercise which could not be undertaken by the BDA. A development scheme, therefore, sanctioned and published in the gazette could not be altered by the government."

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11. Once a Master Plan has come into operation under Section 70(5) of the PRTPD Act read with Section 75 of the PRTPD Act, the statutory scheme does not contemplate a permission regime where land use contrary to the operative zoning can be authorised merely by issuance of a CLU. The prohibition contained in Section 79 of the PRTPD Act, read with the written permission requirement in Section 80 of the PRTPD Act and the structured decision-making framework in Section 81 of the PRTPD Act, makes it clear that a CLU is not a source of power to override the Master Plan. A CLU operates as a regulatory permission within the statutory discipline of the Master Plan. It presupposes that the proposed use is permissible under the operative planning framework, or that the framework has already been altered or revised in accordance with the procedure prescribed by the PRTPD Act. The binding character of the Master Plan under Sections 70 and 75 of the PRTPD Act, read with the control on development and land use under Sections 79 to 81 of the PRTPD Act, requires that land use permissibility be determined with reference to the operative zoning prescription. It cannot be displaced by ad hoc permissions.
12. It must be emphasized that when a statute prescribes a particular manner for doing an act, it must be done in that manner and in no other manner. In the present case, where the Master Plan is the governing statutory instrument for land use, a departure which effectively changes land use permissibility must satisfy the statutory procedure for alteration, amendment, or revision contemplated by the PRTPD Act. It cannot rest on internal approvals or administrative convenience. This is also why the High Court's recording that, as on 13.12.2021, the CLU did not have statutory backing, assumes decisive significance. If on the date of its issuance the CLU lacked statutory support to permit the proposed use in the relevant zone, the defect is not a mere irregularity. It goes to the root of jurisdiction. A permission must be lawful when it is granted. It cannot be rendered lawful by a later event unless the PRTPD Act itself so provides.
13. The CLU dated 13.12.2021 also proceeds on the footing that the site falls within the notified Master Plan and is treated as a non-conforming land use zone. In such a situation, a conditional permission issued in the course of the Section 80 of the PRTPD Act and Section 81 of the PRTPD Act framework cannot be used to invert the statutory order

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by first granting a CLU in a zone where the use is not permissible under Section 79 of the PRTPD Act and then seeking to sustain it on the basis of subsequent approvals.

14. We may also note, in this context, that the reliance placed upon conditions contained in the CLU, and the observation that affected persons may pursue remedies if such conditions are violated, cannot answer the foundational objection. Conditions may regulate the manner in which a permission that is otherwise lawful may be implemented; they cannot supply jurisdiction where the proposed land use is impermissible under the operative Master Plan. To accept conditions as a substitute for conformity with the Plan would invert the statutory order by permitting what is prohibited under Section 79 of the PRTPD Act first, and leaving compliance with the Master Plan to future contingencies.
15. It was also urged that the proposed unit would advance industrial development and employment and that the CLU was processed under a single-window mechanism. Such considerations cannot dilute the binding force of the operative Master Plan or the statutory prohibitions governing land use. Administrative facilitation, however efficient, must operate within the four corners of the PRTPD Act, and cannot legitimise a land use that is impermissible under the Plan.
16. The objection founded on alternate remedy or disputed questions of fact does not carry the matter further. The challenge in the present appeals goes to the root of statutory competence and legality, namely, whether a change of land use contrary to the operative Master Plan could be granted at all. Where jurisdictional legality is in issue, the matter cannot be non-suited on the plea that factual aspects may be disputed.
17. For these reasons, we are of the view that the CLU dated 13.12.2021 could not have been granted for the proposed unit when, under the operative Master Plan for Sangrur, the site fell in a rural agricultural zone where the proposed activity was not permissible.

Issue II: Whether the “approval” recorded in the 43rd meeting dated 05.01.2022 could lawfully cure the admitted defect in the CLU and whether such approval is capable in law of operating as an alteration or amendment of the Master Plan under the PRTPD Act

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18. We now turn to the reliance placed on the “approval” recorded in the 43rd meeting of the Punjab Regional and Town Planning and Development Board dated 05.01.2022. The record indicates that the item placed before the Planning Board itself described the proposal as requiring ex post facto approval, and the minutes record that such ex post facto approval was granted. The crucial question, however, is not the label applied by the administration, nor the form in which the approval is described. The determinative question is whether the decision recorded on 05.01.2022 is capable, in law, of operating as an alteration or amendment of the Master Plan so as to retrospectively validate and cure the admitted defect in the CLU dated 13.12.2021.
19. In our considered view, it is not. Once a Master Plan has come into operation under Section 70(5) of the PRTPD Act read with Section 75 of the PRTPD Act, it acquires statutory force and becomes the governing instrument for land use and development within the planning area. Any change which has the effect of altering land use permissibility, whether described as an amendment, modification, or revision, can be brought about only by following the procedure expressly prescribed by the statute. The review and revision mechanism under Section 76 of the PRTPD Act does not operate in isolation. It expressly attracts, by legislative design, the procedural discipline embodied in Sections 70 and 75, including publication, invitation and consideration of objections and suggestions, and formal bringing into operation of the revised position through publication in the Official Gazette.
20. A decision recorded in the minutes of a meeting, or an internal approval accorded by an executive or statutory body, does not by itself amount to an alteration or amendment that has been brought into legal operation as part of the Master Plan framework. Section 76 empowers the initiation of a revisionary process. It does not dispense with the mandatory steps that alone give legal efficacy to a change in the Master Plan. To treat minutes of a meeting as the functional equivalent of a statutory amendment would be to collapse the distinction between a proposal to revise and a revision that has acquired legal force, and would render the procedural safeguards built into the PRTPD Act otiose.
21. This conclusion becomes inescapable where, as in the present case, the asserted “approval” has the effect of permitting an otherwise impermissible industrial activity in a rural agricultural zone, with direct

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consequences for residents, habitations, and a functioning educational institution. Zoning prescriptions under a Master Plan are not mere internal guidelines. They represent a considered legislative balance between competing land uses and are intended to protect public interest. Any departure which dilutes that balance must satisfy the full statutory process prescribed for altering the Plan itself. Executive convenience or post facto endorsement cannot be a substitute for statutory compliance.

22. Equally, the statutory scheme does not contemplate the curing of a jurisdictional defect by retrospective administrative approval. A CLU which is unlawful on the date of its grant for want of statutory authority does not become lawful merely because a later decision purports to validate it, unless the statute expressly confers such a power of retrospective validation. The PRTPD Act contains no such provision. The legality of the CLU must therefore be tested with reference to the law and the operative planning framework as they stood on the date the CLU was granted.
23. Therefore, we hold that where the PRTPD Act occupies the field and prescribes the manner in which an operative planning instrument is to be revised or altered, that manner cannot be substituted by executive decision-making or by treating minutes of a meeting as the equivalent of an amendment brought into operation under the Act. The approach adopted by the High Court, which treats the subsequent approval as curing the illegality of the CLU, cannot be accepted when the statutory structure does not permit legality to be supplied to an act which was unlawful when done, by a later administrative approval which does not itself satisfy the mandatory requirements governing alteration or revision of the Master Plan. The High Court's approach, which proceeds on the premise that an act lacking statutory backing on the date of its issuance may nonetheless be sustained by a subsequent ex post facto approval, is inconsistent with this statutory structure.
24. It was lastly urged that substantial financial investment has been made pursuant to the CLU and that interference at this stage would cause prejudice. We are unable to accept this submission. Expenditure incurred or steps taken in furtherance of a permission that is unlawful or without statutory authority cannot confer legitimacy upon the underlying action. No amount of financial investment can

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justify the continuation of an illegal project that operates in derogation of the statutory planning framework and directly impacts the rights of civilians living in the region.

25. For these reasons, we hold that the “approval” recorded on 05.01.2022 could not lawfully cure the defect in the CLU dated 13.12.2021, and it is not capable, in law, of operating as an alteration or amendment of the Master Plan under the PRTPD Act.

Issue III: Whether the siting norms and environmental safeguards applicable to the proposed unit were complied with in the manner required by law.

26. The present issue arises at the intersection of two distinct, but complementary, safeguards. The first is the requirement of prior environmental clearance under the EIA Notification, 2006 before commencement of construction activity or preparation of land at the site. The second is the siting and proximity discipline applied at the level of pollution control permissions, including the siting distances prescribed by the PPCB notification dated 02.09.1998 for cement plants and grinding units. These safeguards are intended to operate in advance. They are designed to prevent avoidable risk to habitations and sensitive receptors, including educational institutions, and to ensure that regulatory satisfaction is reached on objective material and not on assumption.
27. The record indicates that Respondent No. 9 applied for Terms of Reference with the SEIAA, Punjab, and that Terms of Reference were granted on 28.09.2021 and amended on 25.11.2021. The record also indicates that a public hearing was conducted on 19.04.2022 in connection with the process for environmental clearance, and that environmental clearance has not been granted, with the parties attributing the pendency to interim orders operating in the writ proceedings and thereafter in these appeals. These steps, however, do not dilute the basic position that the requirement of prior environmental clearance under the EIA Notification, 2006 is not a post facto formality. The statutory scheme proceeds on the basis that assessment, public consultation, and appraisal must precede the commencement of construction activity or preparation of land at the site.

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28. Equally, so far as siting is concerned, the PPCB notification dated 02.09.1998 prescribes minimum distances for cement plants and grinding units, including 300 metres from an educational institution and 300 metres from a residential area described as a cluster of 15 pucca houses, apart from other siting parameters. On the material placed before us, Respondent No. 6 has sought to justify the grant of the No Objection Certificate dated 14.12.2021 by stating that it was based on the SDM certification and a site visit dated 17.11.2021. Respondent No. 9 relies upon material which states that the school is beyond the prescribed distance when measured from the periphery of the proposed site and that there is no residential cluster of 15 pucca houses within the prescribed radius. The Appellants, on the other hand, dispute this position and rely upon material to contend that the school and residential habitations are in closer proximity to the proposed site and that the prescribed siting safeguards are attracted. The record also refers to nearby habitations and other establishments in the vicinity. This material, taken as a whole, indicates that the site is not isolated and that the proposed unit is in the vicinity of habitations and an educational institution, which are precisely the kinds of receptors for which siting safeguards exist.
29. A further difficulty arises from the manner in which compliance with distance is sought to be established on the material relied upon by the authorities. Respondent No. 6 acknowledges that the measurement was carried out from the boundary shown by the project proponent and then asserts that the distance would increase if measured from the source of pollution. This approach does not satisfy the minimum regulatory discipline. Siting norms are not satisfied by an assumption that the distance may be more when measured differently. They require demonstrable compliance on the basis of identified emission sources and verified measurements. This is more so when, at the relevant stage, the material placed for consideration did not demonstrably crystallise the emission sources and their configuration in a manner that would permit verified assessment of siting compliance on objective parameters. When the emission sources and their configuration are not crystallised and verified, a conclusion on siting compliance based on boundary measurements cannot be treated as a conclusive regulatory

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satisfaction, particularly where the school and habitations are close to the margin.

30. Respondent No. 9 has also sought to contend that the proposed unit is a clinker grinding unit, that it is assessed at the State level as a Category “B” project, and that it proposes the use of fly ash and control systems such as bag filters. These submissions do not answer the core concern we have. Classification for the purposes of appraisal under the EIA Notification, 2006 does not displace the obligation to comply with siting safeguards. Proposed mitigation measures and conditions in a consent to establish do not substitute the minimum siting standards, nor do they permit the regulator to postpone demonstrable compliance to a later stage. In environmental matters, where a school is in close proximity and where there is material indicating nearby habitations, the decision-maker must proceed on the precautionary approach and must demonstrate, on objective material, that the applicable safeguards have been complied with. This approach is consistent with the principles reiterated by various landmark decisions of this Court in **Vellore Citizens’ Welfare Forum v. Union of India**⁸, **M. C. Mehta v. Union of India**⁹ and **Hospitality Assn. of Mudumalai v. In Defence of Environment & Animals**¹⁰, among others.
31. The submissions advanced on behalf of Respondent No. 6 (PPCB), that the consent to establish/No Objection Certificate was granted on the basis of the SDM’s report and a site visit, and that compliance with the siting guidelines can be verified at a later stage while considering consent to operate, do not meet the legal requirement of demonstrable compliance at the threshold. Preventive safeguards, by their very design, cannot be treated as matters to be tested only after permissions have been granted or after the project has advanced. Where the regulatory framework prescribes minimum buffers from habitations and educational institutions, the satisfaction recorded by the authority must be founded on objective and verifiable measurements, and not on an assumption that compliance can be ensured later.

8 (1996) 5 SCC 647

9 (1997) 3 SCC 715

10 (2020) 10 SCC 589

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32. Likewise, Respondent No. 9's reliance on the grant/amendment of Terms of Reference, the conduct of public hearing, and proposed mitigation measures, does not dilute the requirement that statutory safeguards must operate in advance. Proposed control systems and future-stage compliances cannot substitute the obligation to satisfy siting norms and the discipline underlying prior environmental clearance at the relevant time. Nor can subsequent material or later regulatory developments be invoked to retrospectively validate the legality of permissions already found to be without statutory foundation.
33. For these reasons, we are not satisfied that the siting norms and safeguards, including the PPCB notification dated 02.09.1998 and the regulatory discipline underlying prior environmental clearance under the EIA Notification, 2006, were complied with in the manner required by law on the material presently relied upon. Issue III is accordingly answered in favour of the Appellants.
34. In view of the discussion above, the appeals are allowed.
35. The common judgment and order dated 29.02.2024 passed by the High Court of Punjab and Haryana at Chandigarh in CWP No. 20134 of 2022 and CWP No. 18676 of 2022 is set aside.
36. The Change of Land Use dated 13.12.2021 granted in favour of Respondent No. 9 is quashed. Consequently, the No Objection Certificate/Consent to Establish dated 14.12.2021 issued from the pollution angle in favour of Respondent No. 9, insofar as it proceeds on the basis of the said CLU, is also set aside.
37. Pending applications, if any, shall stand disposed of. No order as to costs.

Part II: For Writ Petition (C) 481 of 2025 and Writ Petition (C) 551 of 2025

38. The appellants in the above civil appeals have also filed the present writ petitions under Article 32 of the Constitution of India. The appellants in Civil Appeal arising out of SLP (Civil) No. 8316 of 2024 has instituted WP(C) No. 481 of 2025 and the appellant in Civil Appeal arising out of SLP (Civil) No. 8495 of 2024 have instituted WP(C) No. 551 of 2025, inter alia, assailing the revised list of industrial sector categorization issued by the CPCB in January, 2025 and the

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consequential notifications issued by the Ministry of Environment, Forest¹¹ and Climate Change¹².

39. During the pendency of the above appeals, the CPCB, in January, 2025, issued a revised list of industrial sector categorisation. Under the revised list, the activity described as “stand-alone grinding unit without CPP (Captive Power Plant)” was reclassified from the “Red” category to the “Orange” category. Shortly thereafter, the MoEF & CC issued Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025, namely the Control of Air Pollution (Grant, Refusal Or Cancellation Of Consent) Guidelines, 2025 and the Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Guidelines, 2025. The Appellants have accordingly instituted WP(C) No. 481 of 2025 and WP(C) No. 551 of 2025 seeking, inter alia, quashing of the revised categorisation and the aforesaid notifications to the extent they relax the applicable regulatory safeguards for such units.
40. We have gone through the material placed on record in the writ petitions, including the revised industrial sector categorisation issued by the Central Pollution Control Board in January, 2025, the Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025 issued by the MoEF & CC, and the submissions advanced by learned counsel for the parties.
41. In our considered opinion, the question that arises for determination in these two Writ Petitions is whether the revised industrial sector categorisation issued by the CPCB in January, 2025, insofar as it reclassifies the activity described as “stand-alone grinding unit without CPP” from the “Red” category to the “Orange” category, together with the consequential relaxation of siting and regulatory safeguards brought about by Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025, can be sustained in law having regard to the constitutional mandate under Articles 14 and 21 of the Constitution of India and the governing principles of environmental jurisprudence.

11 MoEF

12 Climate Change

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Rationale advanced by the CPCB for the revised categorisation

42. The determination of the above issue necessarily requires an examination of the rationale offered by the Central Pollution Control Board for the revised categorisation, the implications of such reclassification on preventive environmental safeguards including siting norms, and the balance that constitutional and environmental law requires to be maintained between developmental considerations and the protection of life, health, and the environment.
43. The CPCB has relied upon a revised classification methodology based on a modified Pollution Index framework, under which industrial activities are assessed on the basis of their potential to cause air pollution, water pollution, and waste generation, and are thereafter assigned a cumulative pollution index. The stated justification for revisiting the 2016 classification is the experience gained over time, increased use of cleaner fuels, adoption of cleaner technologies, and the need to differentiate between integrated industrial operations and standalone units.
44. A central premise of the CPCB's reasoning is that a stand-alone cement grinding unit without a captive power plant has a lower pollution potential than an integrated cement plant involving clinker manufacturing and kiln operations. On this basis, the CPCB has treated such units as a distinct sub-category within the cement sector and has placed them in the "Orange" category upon application of the revised scoring methodology. The CPCB has also stated that the revised methodology was placed in the public domain, representations were invited, and the final framework was adopted after examination by a duly constituted committee.
45. The CPCB has further asserted that the revised categorisation continues to be guided by the precautionary principle and is intended to function as a regulatory tool for consent management, inspection frequency, siting decisions, and environmental oversight, while also incentivising adoption of cleaner fuels and technologies. The PPCB has substantially adopted this position and has stated that it has implemented the revised categorisation in terms of the directions issued by the CPCB.
46. This, in essence, is the rationale advanced by the regulatory authorities in support of the revised categorisation. The validity of

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this rationale, when tested against constitutional requirements and the governing principles of environmental jurisprudence, now falls for consideration.

Assessment of the CPCB's rationale and its legal sustainability

47. Having considered the rationale advanced by the CPCB, we are unable to accept that the reclassification of a "stand-alone grinding unit without CPP" from the "Red" category to the "Orange" category, together with the consequential relaxation of regulatory and siting safeguards, can be sustained in law.
48. The revised categorisation proceeds on a sector-level assessment based on a Pollution Index methodology. While such a framework may serve as a regulatory tool for consent management and inspection frequency, it cannot be treated as determinative where the consequence of reclassification is dilution of preventive safeguards, particularly siting norms intended to protect habitations and sensitive receptors such as educational institutions.
49. The CPCB's principal justification rests on a comparative distinction between integrated cement plants and stand-alone grinding units, on the premise that absence of clinker manufacturing and captive power generation necessarily results in lower pollution potential. This approach, however, does not address the core concern. The relevant question is not whether a stand-alone grinding unit is less polluting than an integrated plant in relative terms, but whether its pollution potential is sufficiently low to justify a regulatory downgrade that materially relaxes safeguards governing proximity to civilian habitations.
50. It must be noted that cement grinding units, even without CPP, involve extensive handling and processing of powdered material, which inherently gives rise to particulate emissions and fugitive dust. These emissions have direct public health implications, particularly where units are located near residential areas and schools. The revised categorisation does not demonstrate, on objective and publicly disclosed material, that such exposure risks have diminished to an extent that warrants dilution of the precautionary standards earlier applied.
51. The reliance on adoption of cleaner fuels and technologies is equally unpersuasive. The revised framework proceeds on generic,

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sector-level assumptions rather than on demonstrated, site-specific performance. Preventive environmental regulation does not permit safeguards to be relaxed on the assumption that mitigation will suffice at a later stage. Where the risk to life and health is foreseeable, safeguards must operate at the threshold.

52. Notably, the CPCB itself recognises that the precautionary principle governs categorisation and that deviation from a mechanical application of methodology is warranted where activities pose a high risk of environmental or ecological harm. This recognition undermines the argument that a uniform application of the revised methodology can justify dilution of siting norms in sensitive contexts. The relaxation of minimum siting distances under Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025 further aggravates the concern. Permitting activities with known particulate emission profiles to be located closer to habitations and educational institutions, without a sector-specific justification demonstrating redundancy of earlier safeguards, cannot be regarded as reasonable or proportionate.
53. We are therefore of the view that the revised categorisation and the consequential regulatory relaxations elevate a generic classification methodology to a position where it overrides preventive environmental safeguards, without adequate regard to exposure risks, local conditions, or the constitutional obligation to protect life and health. Such an approach is inconsistent with the precautionary principle, the doctrine of sustainable development, and the content of Article 21 of the Constitution of India.

Constitutional threshold for interference with regulatory classification

54. As a general rule, this Court exercises circumspection in interfering with technical classifications and regulatory frameworks formulated by expert bodies. Matters such as industrial categorisation and pollution indices ordinarily fall within the domain of specialised authorities, and judicial review is not invoked merely because a different regulatory choice is possible. Intervention is confined to cases where the decision-making process or its consequences transgress constitutional limits.
55. However, this principle of restraint cannot apply where a regulatory classification has the direct and foreseeable effect of diluting

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safeguards that protect fundamental rights. When a classification decision results in a blatant erosion of preventive protections governing exposure to environmental hazards, the issue ceases to be a matter of technical regulation alone and assumes constitutional significance.

56. This Court has repeatedly recognised that while judicial restraint is the norm in matters involving policy choices and expert regulation, environmental adjudication occupies a distinct constitutional space. Where executive or regulatory action has the effect of exposing communities to foreseeable environmental harm or diluting preventive safeguards that protect life and health, judicial intervention is not an act of activism but a discharge of constitutional duty. This position has been consistently affirmed in landmark decisions such as *Vellore Citizens' Welfare Forum v. Union of India* (Supra), *M.C. Mehta v. Union of India (Shriram - Oleum Gas)*¹³, *Indian Council for Enviro-Legal Action v. Union of India*¹⁴, and *A.P. Pollution Control Board v. Prof. M.V. Nayudu*¹⁵, where this Court held that when scientific uncertainty coexists with a credible risk to human health or the environment, courts must err on the side of protection. These decisions underscore that environmental governance is not immune from constitutional scrutiny, and that judicial intervention becomes imperative where regulatory choices undermine the fundamental right to a clean and healthy environment guaranteed under Article 21 of the Constitution of India.
57. In the present case, the revised categorisation and the consequential relaxation of siting safeguards materially affect the level of protection available to civilians, including residents and school-going children, against exposure to industrial pollution. By lowering the regulatory threshold applicable to an activity with known particulate emission characteristics, the revised framework permits such units to be located closer to habitations and educational institutions. The impact is not speculative. It directly implicates public health and safety.

13 (1987) 1 SCC 395

14 (1996) 3 SCC 212

15 (1999) 2 SCC 718

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58. The right to life under Article 21 of the Constitution of India encompasses the right to a clean and healthy environment. Preventive environmental safeguards, including siting norms, are the means by which this right is protected. Where such safeguards are relaxed without a demonstrable and reasoned basis showing that the underlying risk has been materially reduced, the resulting action infringes the substantive content of Article 21. Further, Article 14 of the Constitution of India also comes into the picture. A regulatory downgrade that weakens environmental protection must bear a rational nexus to the object of safeguarding life and health. In the absence of a proportionate and scientifically substantiated justification, such dilution is arbitrary. Arbitrariness that impacts life and health cannot be sustained under constitutional scrutiny.
59. The precautionary principle which was recognized as the law of the land by this Court under Article 21 of the Constitution of India in ***Vellore Citizens' Welfare Forum v. Union of India (Supra)***, and which underlines environmental governance in this country, mandates that where there is a plausible risk of harm, regulatory frameworks must err on the side of protection. In the present case, the revised categorisation prioritises sectoral differentiation over preventive protection, without adequately addressing exposure risks in sensitive contexts. This Court does not interfere with classification merely because it concerns industrial activity. The present intervention is warranted because the impugned actions have the effect of lowering the constitutional minimum of protection guaranteed to affected communities. Where regulatory action compromises fundamental rights under Articles 14 and 21 of the Constitution of India, judicial review becomes a constitutional necessity rather than an intrusion into policy.

Concluding Remarks and Operative Directions

60. Before we proceed to the operative directions, it is necessary to underscore, in clear terms, the constitutional balance that must govern questions of development and environmental protection. Economic development and industrial growth are legitimate and important objectives of the State. However, in a constitutional framework founded on the rule of law, development is not an abstract or absolute goal. It is conditioned by the non-derogable obligation to protect life, health, and environmental integrity. Development that

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undermines these foundational values ceases to be constitutionally permissible development.

61. We believe that the doctrine of sustainable development is not a slogan of compromise but a principle of prioritisation. It requires that when developmental activity poses a credible risk to human health or environmental safety, regulatory frameworks must err on the side of protection. The Constitution does not permit a trade-off where civilian life and health are exposed to foreseeable harm on the assumption that economic benefit or industrial facilitation justifies such exposure. Articles 14 and 21 of the Constitution of India do not tolerate a regulatory calculus that treats environmental safety as negotiable.
62. If regulatory dilution of the kind impugned in the present case were to be accepted, it would mark a fundamental shift in environmental governance. Sector-level reclassification, divorced from exposure realities and local sensitivities, would become a ready instrument to justify siting of polluting activities in close proximity to habitations, schools, and other sensitive receptors. Such an approach would not remain confined to the present case. It would operate as a precedent, enabling progressive erosion of preventive safeguards across regions, with cumulative and irreversible consequences. The law does not permit environmental protection to be weakened incrementally until harm becomes inevitable.
63. Equally important is the recognition that environmental harm, once caused, is often irreversible or incapable of full remediation. Public health consequences, degradation of air quality, and long-term ecological damage cannot be undone by subsequent regulatory correction. It is for this reason that environmental regulation is designed to be preventive rather than reactive. A regulatory framework that allows risk to materialise first and seeks to address consequences later is fundamentally incompatible with constitutional environmental jurisprudence.
64. At the same time, we reiterate that this Court does not ordinarily interfere with technical classifications or policy determinations made by expert bodies. Judicial restraint in matters of regulatory policy remains a settled principle. However, restraint cannot extend to abdication. Where regulatory action results in a lowering of the constitutional minimum of protection guaranteed to citizens,

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particularly in matters affecting life and health, judicial intervention becomes a constitutional obligation. The present case falls squarely within that exceptional category.

65. For the reasons recorded above, we are of the considered view that the revised industrial sector categorisation issued by the CPCB in January, 2025, insofar as it reclassifies the activity described as a “stand-alone grinding unit without CPP” from the “Red” category to the “Orange” category, cannot be sustained in law. The said reclassification, read together with the consequential relaxation of siting and regulatory safeguards brought about by Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025, has the effect of diluting preventive environmental protections in a manner that infringes the constitutional guarantees under Articles 14 and 21 of the Constitution of India.
66. Accordingly, Writ Petition (Civil) No. 481 of 2025 and Writ Petition (Civil) No. 551 of 2025 are allowed to the following extent:
 - I. The revised industrial sector categorisation issued by the CPCB in January, 2025 is quashed insofar as it reclassifies the activity described as a “stand-alone grinding unit without CPP” from the “Red” category to the “Orange” category.
 - II. Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025 issued by the MoEF&CC are quashed insofar as they relax the applicable siting and regulatory safeguards for such units on the basis of the aforesaid reclassification.
67. Consequently, any consent, approval or permission that has been granted solely on the basis of the aforesaid reclassification of “stand-alone grinding unit without CPP” as an “Orange” category activity or on the basis of the relaxed siting and regulatory safeguards introduced by Notifications GSR 84E dated 29.01.2025 and GSR 85E dated 30.01.2025 shall not survive and shall stand withdrawn, and the concerned authorities shall take all consequential steps in accordance with law.
68. We clarify that this judgment shall not preclude the CPCB or the MoEF & CC from undertaking a fresh exercise of classification or regulatory review in accordance with law, provided that any such exercise is supported by a reasoned, transparent, and scientifically substantiated assessment, and is consistent with the precautionary

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principle and the constitutional mandate to protect life, health, and the environment.

69. With the above directions, Writ Petition (Civil) No. 481 of 2025 and Writ Petition (Civil) No. 551 of 2025 stand disposed of.
70. Pending applications, if any, shall also stand disposed of.

Result of the case: Appeals allowed.
Writ Petitions disposed of.

[†]Headnotes prepared by: Nidhi Jain

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v.
Ajay Pal Gupta @ Sonu Chaudhary and Another

(Criminal Appeal No. 957 of 2026)

17 February 2026

[Sanjay Kumar* and K. Vinod Chandran, JJ.]

Issue for Consideration

Whether in the facts and circumstances of the case, the impugned order passed by the High Court granting bail to respondent No.1 extending the parity principle ought to be set aside.

Headnotes[†]

Bail – Offences of pecuniary nature – Factors to be considered – Appellant-complainant filed FIR u/ss.406, 419, 420, 467, 468, 471, 506, IPC, s.409 added later, alleging that he had supplied foodgrains to four accused persons including respondent No.1 (operating under different names), but he was paid only ₹5,02,57,000/- out of the total sum of ₹11,52,38,156/- and; the accused conspired with each other, prepared forged documents with false and fabricated addresses, including Aadhaar Cards, and cheated him – Respondent No.1 was arrested after absconding for over one and a half years – Bail rejected by Sessions Judge – High Court granted bail to Respondent No.1 on the ground of parity with co-accused persons – Challenge to the validity of:

Held: Impugned order set aside – The value of life and liberty of members of society is not limited only to their ‘person’ but would also extend to the quality of their life, including their economic well-being – Various factors taken into consideration while dealing with the application for bail in the context of heinous offences such as likelihood of offences being repeated, danger of justice being thwarted by grant of bail, criminal antecedents of the accused, potential threat to life and liberty of victims/witnesses

* Author

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must necessarily be weighed while dealing with the alleged offenders' pleas for grant of bail in offences of pecuniary nature also, where innocent people are cheated of their hard-earned monies by conmen, who make it their life's pursuit to exploit and feast upon the gullibility of others – Respondent No.1 is a habitual offender – The number of diverse and unconnected aliases, fake IDs and the deliberate changes of identity, including his father's name, clearly manifest his nefarious intention to dupe innocent victims and cheat them – He was granted bail earlier but chose to indulge in the same activities once again, resulting in the registration of multiple FIRs over the years – He is a career criminal and a menace to society – High Court did not even take his past antecedents into consideration – Similarly, his conduct in the context of the pending case was not noted – Having secured bail in one of the FIRs, respondent No.1 chose to abscond, resulting in issuance of a non-bailable warrant, which also brought to light the fact that his surety was not to be found – High Court ought not to have blindly extended the parity principle to him without considering the particular and distinctive features of his individual case. [Paras 19-22, 24]

Code of Criminal Procedure, 1973 – ss.29, 209, 323 – One of the grounds that weighed with the High Court was that the offences against respondent No.1 were triable by a Magistrate:

Held: High Court overlooked the fact that the offences now alleged against respondent No.1 include offences u/s.409 IPC and s.467 IPC also – Punishment for offences under these provisions can extend to imprisonment for life or imprisonment for a term up to ten years – Similarly, some of the other offences entail a possible sentence of imprisonment over three years – A Metropolitan Magistrate has the same powers as a Magistrate of First Class while a Chief Metropolitan Magistrate is equivalent to a Chief Judicial Magistrate – Thus, it would always be open to a Magistrate, if he is of the opinion that any of the offences in the case are exclusively triable by a Court of Sessions, to commit the case to a Court of Sessions u/s.209 or s.323 – Under s.323, such power can be exercised by the Magistrate even during the course of the trial – Therefore, the assumption of the High Court that the case on hand is triable by a Magistrate is premature. [Paras 13, 14]

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Case Law Cited

Neeru Yadav v. State of Uttar Pradesh and Another [2014] 12 SCR 453 : (2014) 16 SCC 508; *Neeru Yadav v. State of UP and Another* [2015] 10 SCR 802 : (2016) 15 SCC 422; *Sudha Singh v. State of Uttar Pradesh and Another* [2021] 4 SCR 95 : (2021) 4 SCC 781 – relied on.

Dolat Ram and Others v. State of Haryana [1994] Supp. 6 SCR 69 : (1995) 1 SCC 349 – referred to.

List of Acts

Penal Code, 1860; Code of Criminal Procedure, 1973.

List of Keywords

Bail; Parity principle; Heinous offences; Ground of parity; Offences of pecuniary nature; Likelihood of offences being repeated; Danger of justice being thwarted by grant of bail; Criminal antecedents of the accused; Potential threat to life and liberty of victims/witnesses; Offences of pecuniary nature; Cheating; Habitual offender; Aliases; Fake IDs; Change of identity; Intention to dupe innocent victims; Challenge to the validity of order granting bail; Foodgrains supplied; Section 29, 209, 323, Code of Criminal Procedure, 1973; Criminal breach of trust.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 957 of 2026

From the Judgment and Order dated 12.11.2025 of the High Court of Judicature at Allahabad, Lucknow Bench in CR MBA No. 9871 of 2025

Appearances for Parties

Advs. for the Appellant(s):

Manish Goswami, Sr. Adv., Rongon Choudhary, Gaurav Shukla, Deshmukh Adith Satish.

Advs. for the Respondent(s):

Siddhartha Dave, Sr. Adv., Ankit Dhawan, Rupraj Banerjee, Mohit Miglani, Namit Saxena.

Rakesh Mittal v. Ajay Pal Gupta @ Sonu Chaudhary and Another**Judgment / Order of the Supreme Court****Judgment****Sanjay Kumar, J.**

1. Leave granted.
2. The appellant is the complainant in FIR No. 0568 dated 29.12.2023, registered under Sections 406, 419, 420, 467, 468, 471 and 506 of the Indian Penal Code, 1860¹, on the file of P.S. Risiya, District Bahraich, Uttar Pradesh. He is aggrieved by the grant of bail to an accused therein., viz., Ajay Pal Gupta @ Sonu Chaudhary, respondent No.1, *vide* order dated 12.11.2025 passed in Criminal Misc. Bail Application No. 9871 of 2025 by a learned Judge of the Allahabad High Court, Lucknow Bench.
3. The case of the complainant was that he had supplied foodgrains to the four named accused in the FIR, including respondent No.1, but he was paid only ₹5,02,57,000/- out of the total sum due and payable to him, i.e., ₹11,52,38,156/-. He claimed that cheques were issued but when those cheques were presented, they were dishonoured for want of funds. He further claimed that his inquiries had revealed that the accused conspired with each other, prepared forged documents with false and fabricated addresses, including Aadhaar Cards, and had cheated him. Documents were filed in proof of respondent No.1 showing his own name and his father's name differently on separate occasions.
4. When notice was ordered in this matter on 24.11.2025, this Court was informed that respondent No. 1 had not yet been released from prison pursuant to the impugned bail order. Noting the same, this Court directed that, if that be so, the impugned order should not be given effect to. In consequence, respondent No.1 still remains incarcerated.
5. We may note that respondent No.1, being accused No.1 in the FIR, was arrested only on 08.08.2025 after absconding for over one and a half years. The learned Sessions Judge, Bahraich, rejected his

1 For short, 'IPC'

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plea for grant of bail, *vide* order dated 29.08.2025 in Bail Application No. 2512 of 2025. Therein, the learned Sessions Judge, apart from noting various other aspects, found that respondent No.1 had deliberately made a false statement before the Court by suppressing the fact that there were three other FIRs registered against him in Uttar Pradesh and Delhi.

6. Respondent No.1 then approached the High Court by way of the subject application on 03.09.2025. By the impugned order, the learned Judge noted his plea that he was entitled to parity, as his co-accused, viz., Devender Pal Singh was granted bail on 07.11.2025 and another co-accused, Uma Shankar Mishra, had been granted anticipatory bail even earlier on 18.08.2025. The learned Judge held that, in the light of the co-accused's bail orders; the period that respondent No.1 had remained in prison; the fact that the chargesheet had been filed; and as the offence was triable by a Magistrate, respondent No.1 was entitled to grant of bail, subject to conditions. This order is the cause for grievance presently.
7. Notably, Criminal Misc. Writ Petition No. 644 of 2024 filed by respondent No.1 before the Allahabad High Court, Lucknow Bench, seeking quashing of the subject FIR No. 0568 of 2023 was dismissed as withdrawn on 30.01.2024.
8. The State of Uttar Pradesh, respondent No.2 herein, filed a counter affidavit. Therein, it stated that after the registration of the FIR on 29.12.2023, after investigation and upon discovery of the ingredients of criminal breach of trust, Section 409 IPC was also added. Notices were stated to have been issued to all the four accused but respondent No.1 and his co-accused, Vijay Pal Gupta, could not be found as the furnished addresses were incorrect and fictitious. The investigation was then transferred to the Crime Branch, Bahraich, from P.S. Risiya, pursuant to the order dated 31.07.2024 of the Senior Superintendent of Police, as the offence involved cross jurisdictional operations resulting in loss of ₹6.5 crores to the complainant. According to the State, respondent No.1 used the following names/aliases – Ajay Pal Gupta, Sonu Chaudhary, Gautam Agrawal, Shubham Gupta, Shivam Agarwal, Kamla Kant Tiwari, Shaurya Dudulani and Sonu Seth. He was finally arrested on 08.08.2025 and three Aadhaar cards, two showing his name as Sonu Chaudhary s/o Sobharam, with different addresses in Delhi, and one showing his name as Gautam Agarwal

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s/o Bhagwan Das Agarwal, with an address in Ghaziabad, Uttar Pradesh, along with a PAN card in the name of Gautam Agarwal s/o Bhagwan Das Agarwal, were recovered from his possession apart from other incriminating documents. All the fake IDs had his picture and even his father's name was changed from Sobharam to Bhagwan Das Agarwal. The chargesheet was filed against him on 23.10.2025.

9. The State pointed out that respondent No.1 had remained a fugitive for more than 20 months since registration of the FIR and despite a picture publication and raids conducted across Delhi and Uttar Pradesh, he remained untraceable until 08.08.2025. It was stated that respondent No.1 was apprehended only after declaration and payment of a reward of ₹51,000/- to facilitate his capture. The State referred to the three known criminal antecedents of respondent No.1 in Uttar Pradesh and Delhi. It stated that, insofar as FIR No. 229 of 2017 registered in Delhi was concerned, respondent No.1 had secured bail and did not co-operate thereafter during the trial. Even the address of the surety furnished by him was found to be fictitious. His co-accused, Vijay Pal Gupta @ Jivan Saini, whose real name was found to be Jivan Kaushik, was also arrested on 12.11.2025. According to the State, respondent No.1 had been operating under different names, as he had as many as 8 to 10 aliases with forged Aadhaar cards and PAN card, making it difficult to track and verify his criminal antecedents comprehensively against multiple jurisdictions. The investigation conclusively established that respondent No.1 was the principal offender and the master-mind behind the offence. The State asserted that the High Court had failed to take a holistic view of the matter while directing his release on bail. It was pointed out that even the surety furnished by him in this case was not found at the given address.
10. In the affidavit filed in support of his application to vacate the stay granted on 24.11.2025, respondent No.1 stated that his name was correctly recorded as Sonu Chaudhary in FIR No.229 of 2017. He further stated that his father's name was correctly mentioned in his Aadhaar card, PAN card, Passport and Vehicle Registration Certificate as Sh. Shobha Ram. In a separate counter affidavit filed on his behalf, it was stated that there were only 2 FIRs registered against respondent No.1, i.e., FIR No.229 of 2020 [*sic* 2017] registered under Sections 420, 467, 468, 471, 506, 120B and 34 IPC on the file of P.S. Geeta

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Colony, District Shahdara, Delhi, and the subject FIR No. 0568 of 2023 under Sections 406, 419, 420, 467, 468, 471 and 501 IPC on the file of P.S. Risiya, District Bahraich, Uttar Pradesh. According to the deponent, when the subject FIR was registered, the details of the accused were provided by the complainant or were procured by the Investigating Officer and respondent No.1, therefore, had no control on how his father's name was shown. Respondent No.1 was stated to have been arrested on 26.05.2017 in connection with FIR No.229 of 2017. He was granted bail on 10.08.2017, but as he failed to appear before the Trial Court, a non-bailable warrant was stated to have been issued against him on 26.04.2025.

11. Though the counter affidavit filed on behalf of respondent No.1 spoke of only 2 FIRs being registered against him, including the subject FIR, the order dated 29.08.2025 passed by the learned Sessions Judge, rejecting the bail application of respondent No.1, indicates that, apart from FIR No. 229 of 2017 and the subject FIR No. 0568 of 2023, FIR No.254 of 2022 and FIR No.31 of 2020 were also registered against respondent No.1. FIR No. 31 of 2020 was registered on the file of P.S. Secunderabad, District Bulandshahr, under Sections 420 and 406 IPC, while FIR No.254 of 2022 was registered on the file of P.S. Commissionerate, Gautam Budh Nagar, Uttar Pradesh, under Sections 406, 420 and 120B IPC. We may also note that FIR No. 229 of 2017 is still dragging on and it appears that charges have not even been framed in that case till date.
12. At this stage, we may note that one of the grounds that weighed with the High Court was that the offences against respondent No.1 were triable by a Magistrate. However, the High Court overlooked the fact that the offences now alleged against respondent No.1 include offences under Section 409 IPC and Section 467 IPC also. Significantly, the punishment for offences under these provisions can extend to imprisonment for life or imprisonment for a term up to ten years. Similarly, some of the other offences for which respondent No.1 has been hauled up for entail a possible sentence of imprisonment over three years.
13. Under Section 29 of the Code of Criminal Procedure, 1973², a Magistrate of First Class can pass a sentence of imprisonment for a

2 For short 'CrPC'

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term not exceeding three years, while a Chief Judicial Magistrate may pass a sentence of imprisonment, excepting imprisonment for a term exceeding seven years or a sentence of death or imprisonment for life. A Metropolitan Magistrate has the same powers as a Magistrate of First Class while a Chief Metropolitan Magistrate is equivalent to a Chief Judicial Magistrate.

14. In that view of the matter, it would always be open to a Magistrate, if he is of the opinion that any of the offences in the case are exclusively triable by a Court of Sessions, to commit the case to a Court of Sessions under Section 209 CrPC or Section 323 CrPC. It may be noted that under Section 323 CrPC, such power can be exercised by the Magistrate even during the course of the trial. Therefore, the assumption of the High Court that the case on hand is triable by a Magistrate is premature.
15. We are also conscious of the fact that this is not a case of cancellation of bail but a challenge to the validity of an order granting bail. Even in cases of cancellation of bail, the power to do so is not just limited to occurrence of supervening circumstances as the Court has the inherent power and discretion to cancel the bail of an accused even in the absence of supervening circumstances (See ***Dolat Ram and others vs. State of Haryana***³). One of the grounds enumerated therein, as relevant for exercise of such power, is where the past criminal record and the conduct of the accused are completely ignored while granting bail.
16. ***Neeru Yadav vs. State of Uttar Pradesh and another***⁴ was a case where bail had been granted to a history-sheeter, charge-sheeted for a number of heinous offences, on the ground of parity. Observing that liberty is a priceless treasure for a human being and is a cardinal value on which civilization rests, this Court cautioned that liberty of an individual would however not be absolute as society, by its collective wisdom and through the process of law, can withdraw liberty that has been sanctioned to an individual when such an individual becomes a danger to the collective and to the societal order. It was further observed that the High Court must exercise its discretion cautiously and when there is likelihood of offences being

3 (1995) 1 SCC 349

4 (2014) 16 SCC 508

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repeated or there is a danger of justice being thwarted by grant of bail, these are factors which should be taken into consideration while dealing with an application for bail. It was further observed that cancellation of bail if the accused misconducted himself or due to some intervening circumstances is in a different compartment altogether from examination of an order granting bail which was unjustified, illegal or perverse. It was held that, if in a case, the relevant factors which should have been taken into consideration while dealing with the application for bail have not been taken note of or it is founded on irrelevant considerations; indisputably, the superior court can set aside such a bail order. *Per* this Court, such a case would belong to a different category and in a separate realm, as it delves into the justifiability and soundness of the order passed by the Court.

17. Again, in ***Neeru Yadav vs. State of UP and another***⁵, this Court observed that a crime, though committed against an individual, may not retain an individual character as the victim may be an individual but, in the ultimate eventuate, it is the society which is the victim. Further, observing that a crime, as is understood, creates a dent in the law-and-order situation and disturbs orderliness, this Court held that an individual can enjoy his liberty which is definitely of paramount value but he cannot be a law unto himself and he cannot cause harm to others. It was held that an individual cannot be a nuisance to the collective or a terror to the society. Reference was made to the observations of E. Barrett Prettyman, Chief Judge of the US Court of Appeals (Retired), which read thus: -

“In an ordered society of mankind there is no such thing as unrestricted liberty, either of nations or of individuals. Liberty itself is the product of restraints; it is inherently a composite of restraints; it dies when restraints are withdrawn. Freedom, I say, is not an absence of restraints; it is a composite of restraints. There is no liberty without order. There is no order without systematised restraint. Restraints are the substance without which liberty does not exist. They are the essence of liberty. The great problem of the democratic process is not to strip men of restraints merely because they are restraints. The great

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problem is to design a system of restraints which will nurture the maximum development of man's capabilities, not in a massive globe of faceless animations but as a perfect realisation, of each separate human mind, soul and body; not in mute, motionless meditation but in flashing, thrashing activity."

Noting that the High Court, in that case, had totally ignored the criminal antecedents of the accused and what had weighed with the High Court was only the doctrine of parity, this Court set aside the bail granted to the accused therein.

18. In ***Sudha Singh vs. State of Uttar Pradesh and another***⁶, a 3-Judge Bench of this Court was dealing with the validity of a bail order passed in favour of an alleged contract killer. This Court found that the High Court had simply ignored the criminal antecedents of that accused. It was observed that though liberty is important, even that of a person charged with crime, it is equally important for the Courts to recognize the potential threat to life and liberty of victims/ witnesses, if such an accused is released on bail.
19. Though the observations made in some of the above cases were in the context of heinous offences, which is not the case presently, we may note that the value of life and liberty of members of society is not limited only to their 'person' but would also extend to the quality of their life, including their economic well-being. In offences of a pecuniary nature, where innocent people are cheated of their hard-earned monies by conmen, who make it their life's pursuit to exploit and feast upon the gullibility of others, the aforestated factors must necessarily be weighed while dealing with the alleged offenders' pleas for grant of bail.
20. In the case on hand, the investigation against respondent No.1, as is borne out by the counter affidavit filed by the State, clearly demonstrates that he is a habitual offender. The number of diverse and unconnected aliases, fake IDs and the deliberate changes of identity, including his father's name, clearly manifest his nefarious intention to dupe innocent victims and cheat them.
21. Further, the fact that respondent No.1 was granted bail earlier but chose to indulge in the same activities once again, resulting in

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the registration of multiple FIRs over the years, demonstrates that he is a career criminal and a menace to society. The impugned order reflects that his past antecedents were not even taken into consideration. Similarly, his conduct in the context of the pending case was not noted. Having secured bail in relation to FIR No. 229 of 2017, respondent No.1 chose to abscond, resulting in issuance of a non-bailable warrant, which also brought to light the fact that his surety was not to be found.

22. In such circumstances, the High Court ought not to have blindly extended the parity principle to him without considering the particular and distinctive features of his individual case. Given the fact that respondent No.1 has not turned over a new leaf, despite the indulgence shown by grant of bail in relation to FIR No. 229 of 2017, as evidenced by the FIRs registered against him over the years, we are of the opinion that letting him loose on society would only pose a risk and hazard to others.
23. The case law cited on behalf of respondent No.1, in the context of the value of liberty and the principles applicable to interference with bail orders, would have to be applied on the strength of the individual facts of each particular case and insofar as the present case is concerned, we find that the same have no application, given his antecedents and his past and present conduct.
24. The impugned order dated 12.11.2025 passed by the Allahabad High Court, Lucknow Bench, granting bail to respondent No.1, therefore, cannot be sustained either on facts or in law. The said order is accordingly set aside. The State shall, however, ensure that the trial in the case is expedited by taking all necessary measures.

The appeal is allowed in the aforesaid terms.

Pending applications, if any, shall stand disposed of.

Result of the case: Appeal allowed.

Rohit Jangde
v.
The State of Chhattisgarh
(Criminal Appeal No. 689 of 2026)

17 February 2026

[Sanjay Kumar and K. Vinod Chandran,* JJ.]

Issue for Consideration

Whether in the facts and circumstances of the case, there was a complete chain of circumstances leading only to the hypothesis of the guilt of the accused without leaving room for any other hypothesis; whether the order of the Trial Court convicting the accused and that of the High Court affirming the same ought to be set aside.

Headnotes[†]

Evidence Act, 1872 – s.27 – Statement of accused made when not in police custody, outside the purview of s.27 – High Court affirmed the conviction and sentence of the accused, the step-father for the murder of his six year-old step-daughter on the basis of the last seen together theory; the ashes and the bony remnants from the charred remains of the child having been recovered on the information supplied by the accused; the skull and teeth recovered from a canal having tallied with the sample DNA profile of the biological parents of the girl child – Interference with:

Held: Order of the Trial Court convicting the accused and that of the High Court affirming the same are set aside – On facts, the last seen together theory fails miserably – Recovery allegedly made u/s.27 is also fraught with inconsistencies – s.27 speaks of information received from a person accused of any offence while in the custody of the police leading to a discovery of a fact being enabled of proof in the trial – The accused at the time of the statement was not in the custody of the police and hence it is removed from the ambit of s.27 – What has been established beyond doubt is only the death of the child whose vertebrae and teeth, recovered from a canal, matched with the DNA profiles obtained from the sample taken from the biological parents – The knowledge

* Author

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of the accused, which led to the detection of the bone remnants though not acceptable u/s.27 would all the same be acceptable evidence u/s.8, which by itself is a weak piece of evidence – The evidence u/s.8 can only offer corroboration and cannot by itself result in a conviction – The suspicion regarding the earlier arrest and incarceration of the accused also would pose serious difficulty in finding a hypothesis of guilt beyond all reasonable doubt – The long gap when there was no complaint made about the missing child and the factum of none having questioned the accused, despite the family and police having been told that she went with the accused tilts the scales in favour of the accused; especially since he was released on 08.10.2018, two days before the FIR was lodged – Moreover, since the *corpus delicti* was not recovered, there is no time of death specified – Benefit of doubt given to the accused – Acquitted. [Paras 10, 12, 18, 19]

Evidence Act, 1872 – ss.27, 8:

Held: There is nothing indicated to show that the accused, who had accompanied his wife to register the missing complaint was even suspected of being responsible for the missing of the child – In any event, this does not pose any difficulty insofar as the deposition of the I.O, PW 15; that he was led to the field and the canal from where the recovery was made, subsequent to which the person was arrested, though not admissible u/s.27, all the same can be brought u/s.8 – The recovery of the bone remnants having been made at the instance of the accused accepted, though at the time of his statement, he was not in police custody, which could only be a link u/s.8, in the chain of circumstances; but his connection with the crime still has to be proved otherwise – The DNA profiles matched only with the piece of vertebrae and the teeth recovered from the canal, while the skull and those recovered from the field, where the body is said to have been burnt, did not match with the samples taken from the parents – Also, the bones recovered were wrapped in a green saree of PW7, which was not attempted to be identified as belonging to her, by confronting the same to the witness, while she was in the box.[Paras 14-16]

Evidence Act, 1872 – s.27 – ‘custody’ – Meaning:

Held: Expression ‘custody’ appearing in s.27 does not mean formal custody and includes any kind of surveillance, restriction

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or restraint by the police – Even if there is no formal arrest made, if a person is within the ken of surveillance of the police, during which his movements are restricted, then it can be regarded as custodial surveillance – In the present case, though the recoveries as per Exts. P3 & P5 Memos were made, in accordance with the confession statement of the accused, Ext. P4 at 10.30 on 13.10.2018, the Arrest/Court Surrender Memo produced at Ex.P27, indicates the arrest of the accused having been made on 13.10.2018 at 22.00 hrs. [Paras 10, 13]

Case Law Cited

Jaffar Hussain Dastagir v. State of Maharashtra [1970] 2 SCR 332 : (1969) 2 SCC 872; *Dharam Deo Yadav v. State of Uttar Pradesh* [2014] 8 SCR 650 : (2014) 5 SCC 509; *State of A.P. v. Gangula Satya Murthy* [1996] Supp. 8 SCR 808 : (1997) 1 SCC 272; *Ramkishan Mithanlal Sharma v. State of Bombay* [1955] 1 SCR 903 : (1954) 2 SCC 516 – referred to.

Durlav Namasudra v. Emperor, 1931 SCC Online Cal 146 – referred to.

List of Acts

Penal Code, 1860; Evidence Act, 1872.

List of Keywords

Botched investigation; Step-father; Murder of step-daughter; Last seen together theory; Section 27, Evidence Act, 1872; Ashes and the bony remnants; Charred remains; Information supplied by accused; Skull and teeth recovered from a canal; Sample DNA profile of the biological parents of the girl child; Interpolation; Matching of DNA profiles of the bone remnants with the DNA profiles of biological parents of deceased child; Missing child; *Corpus delicti* not recovered; No time of death specified; Benefit of doubt; Last seen together theory failed; ‘custody’.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 689 of 2026

From the Judgment and Order dated 30.11.2023 of the High Court of Chhattisgarh at Bilaspur in CRA No. 873 of 2021

Supreme Court Reports**Appearances for Parties**

Advs. for the Appellant(s):

Dr. Rajesh Pandey, Sr. Adv., Chandrika Prasad Mishra, Ms. Prashasti Singh, Ms. Ayushi Pandey, Utsav Madan, Ms. Swati Surbhi.

Advs. for the Respondent(s):

Ms. Ankita Sharma, Arjun D. Singh, Ms. Ishika Neogi, Divya Tripathi.

Judgment / Order of the Supreme Court**Judgment****K. Vinod Chandran, J.**

Leave granted.

2. A botched investigation leaves many questions unanswered and in the present case, the murder of a six-year-old girl went unpunished and her stepfather was incarcerated on mere conjectures. The impugned judgment of the High Court affirmed the conviction and sentence of the accused, the stepfather, on three circumstances. One, the last seen together theory propounded through a neighbour. Then, the ashes and the bony remnants from the charred remains of the child, having been recovered on the information supplied by the accused. And last, the skull and teeth recovered from a canal having tallied with the sample DNA profile of the biological parents of the girl child, establishing death unequivocally. The High Court also emphasized the aspect of no explanation having been offered by the accused regarding his knowledge of the location from which the bony remnants of the deceased were recovered; an incriminating circumstance under Section 106 of the Indian Evidence Act, 1872. Whether these factors would form a complete chain of circumstances leading only to the hypothesis of the guilt of the accused without leaving room for any other hypothesis, is the question arising herein.
3. We have heard Dr. Rajesh Pandey, learned Senior Counsel appearing for the accused and Ms. Ankita Sharma, Advocate-on-Record, appearing for the State. We cannot but appreciate the Government Advocate for undertaking the exercise of preparing, for our perusal, a paper-book containing the entire records, both the vernacular and the translation. The hearing on the earlier occasion also raised

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serious questions as to the custody of the accused, prior to the arrest in the present crime, which persuaded us to pass an order on 14.11.2025, directing the State to produce proof, if any, of the accused having been taken into custody and imprisoned between 05.10.2025 to 10.10.2025. An additional affidavit dated 08.12.2025, filed by the State in compliance of our order, producing an arrest/ Court surrender memo adds to the confusion, making the truth regarding the crime, further elusive.

4. On facts suffice it to notice that the accused was living with his two wives and three children. One of the children was born to the accused from his first wife and the two children of his second wife (PW7) were from her previous marriage with PW17. On 05.10.2018, a quarrel broke out between the accused and PW7, in which PW7 was physically assaulted. This prompted her to leave her marital home and proceed to the home of her parents. PW7 was admitted to a hospital and on her request, her mother PW2 went to her daughter's marital home to pick up the grandchildren. She was, however, informed by the first wife of the accused that the accused had taken the younger child. There was no attempt to find out the missing child and a missing complaint was registered on 11.10.2018 at 13.20 hrs at Sahaspur Lohara Police Station in District Kabirdhan. Later, allegedly on the confession statement of the accused under Section 27 of the Evidence Act, on 13.10.2018, the accused is said to have led the police party to a field from where some burnt bones and ashes were recovered and from a nearby canal a skull and some bones, covered in a green saree were recovered.
5. PW1, the doctor before whom the bone remnants were produced, suggested a chemical examination of the remains, which was carried out under the supervision of PW18, the Senior Scientific Officer. The FSL report marked as Annexure P21A indicated that the DNA profile of the sample taken from PW7 and PW17, the biological parents of the deceased child, matched with the DNA profiles of the vertebrae and teeth recovered from the canal; the skull having not matched, on analysis. PW8, a neighbor of the accused was also examined to show that the accused had taken the child from the house on a motor bike allegedly establishing the last seen together theory. Thus, the circumstances, of the recovery made, the last seen together theory projected and the matching of the DNA profiles, led to the conviction of the accused.

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6. Learned Senior Counsel for the accused on the previous hearing date specifically argued that on 05.10.2018, alleging an assault on PW7 an FIR was registered which led to the arrest of the accused on 05.10.2018 itself, after which he was released from judicial custody only on 08.10.2018. We have looked at the additional affidavit filed, which indicates that the accused was arrested on 06.10.2018 and remanded to judicial custody by the Sub-Divisional Magistrate; the accused having been released from the District Jail, Kabirdham on 08.10.2018 as per the bail order of the Sub-Divisional Magistrate. Having gone through Annexure 2, the Arrest/Court Surrender Memo produced along with the affidavit, we have serious doubts on when the arrest occurred. There is clear interpolation in the date and though at column No. 8, of the FIR, the arrest is shown to have been carried out on 06.10.2018 at 13.40 hrs, in Column No.2 the date and time have been changed from 05.10.2018 and 12.40 to 06 or 08.10.2018 and 13.40. The interpolation on the date is very clear from the documents produced which raises a reasonable doubt as to the arrest of the accused, which could have been at 12.40 hrs on 05.10.2018, seriously hampering the last seen theory as projected by the prosecution. Be that as it may, we will first examine the evidence led at the trial keeping in mind the principle that every faulty investigation will not inure to the benefit of the accused unless serious prejudice is caused thereby and the evidence led is not sufficient to arrive at a finding of guilt, unequivocally.
7. PW2, mother-in-law of the accused spoke about the quarrel between her daughter and the accused and her daughter's admission to the hospital for treatment. She also deposed that she had gone to the house of the accused along with the police, to fetch the grandchildren, when the first wife of the accused informed her that the accused had taken away the second child. Pertinently we have to observe that in chief-examination there is no date mentioned and the whereabouts of the first child of her daughter, who also was staying along with the accused, has not at all been disclosed. PW10, the husband of PW2, who accompanied her to the house of the accused fully corroborated the version of PW2 but again without any date mentioned and also the whereabouts of the first child.
8. In any event, even going by the version of the State, the accused was arrested on 06.10.2018 and released only on 08.10.2018. This has been fully corroborated by PW15, the I.O who spoke of the

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arrest of the accused on 06.10.2018, his remand and later release on 08.10.2018. The last seen theory as projected through PW8 indicates that the child was taken away by the accused, in which circumstance, the crime ought to have occurred on 05.10.2018 or before the arrest of the accused on 06.10.2018. Despite the child having not been found, PW2, PW7 and PW10 did not register any case of missing, and an FIR was first registered on 11.10.2018, when PW7 along with the accused came to the Police Station and registered an FIR regarding the missing child. This assumes relevance especially since the incident of assault was reported to the police, who accompanied PW2 to the house of the accused on the same day, when they were told that the child went with the accused.

9. The accused having been arrested, even accepting the version of the Police, on 06.10.2018, it is strange that no enquiries were made about the missing child. Further the missing complaint is said to have been registered much later on 11.10.2018. The First Information Statement (FIS) by the Sub-Inspector of Sahaspur Lohara Police Station is on information supplied by PW2 who was accompanied by her husband. The oral report spoken of in the FIS was that the six-year-old child went missing at 09.00 P.M. on 06.10.2018, obviously after the accused was arrested. These aspects as borne out from the records puts to peril the prosecution story of the last seen together theory as projected through PW8. PW8 a neighbor of the accused also deposed before Court that she volunteered this information to the Police, seven days after 05.10.2018; when already the said aspect was known to the mother and grandparents of the deceased child as also the Police, by virtue of the information supplied by the first wife of the accused on 05.10.2018 itself. The last seen together theory hence fails miserably.
10. Now we come to the recovery allegedly made under Section 27, which is also fraught with inconsistencies as we would presently indicate. The memorandum under Section 27 of the Evidence Act produced as Ex. P4 indicates the same having been drawn up on 13.10.2018 at 10.30 A.M. The only admissible portion in the said memorandum is : *'I will show you the place... where her bones and ashes are and the place where her skull and bones were..'(sic)*. The police were led by the accused first to a field from where bones with ashes were recovered at 10.55 A.M evidenced by Property Seizure Memo Ex.P5. The canal was searched by three fishermen PW 3 to

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PW 5 who recovered the skull with 8 numbers of tooth of the upper jaw and a piece of bone wrapped in a green color saree, all of which showed evidence of burning as indicated in Ex.P3 Property Seizure Memo at 13.00 on 13.10.2018. Though the recoveries as per Exts. P3 & P5 Memos were made, in accordance with the confession statement of the accused, Ext. P4 at 10.30 on 13.10.2018, the Arrest/ Court Surrender Memo produced at Ex.P27, indicates the arrest of the accused having been made on 13.10.2018 at 22.00 hrs. Section 27 of the Evidence Act clearly speaks of information received from a person accused of any offence while in the custody of the police leading to a discovery of a fact being enabled of proof in the trial. The accused at the time of the statement was not in the custody of the police and hence it is removed from the ambit of Section 27.

11. Section 27, as has been held in **Jaffar Hussain Dastagir v. State of Maharashtra**¹, is in effect a proviso to Section 26 which makes admissible so much of the statement of the accused deposed to by him, leading to the discovery of the fact deposed and connected with the crime, irrespective of the question whether it is confessional or otherwise. The essential ingredient of the provision is that the information given by the accused must lead to the discovery of a fact which is the direct outcome of such information. Secondly only such portion of the information given as is distinctly connected with the said recovery is admissible against the accused. Thirdly, the discovery of the fact must relate to the commission of the offence alleged.
12. A similar situation, as in this case arose before the Calcutta High Court in **Durlav Namasudra v. Emperor**² wherein the information which led to the discovery of the dead body had been given by the accused before they were taken into custody. It was held that Section 27 controls Section 24 to 26 and the first thing that is to be ascertained before its application is whether the information came from a person who was in the custody of the police. It was held that if information came from a person who was not in the custody of the police, then it cannot be brought under Section 27. The Chief Justice passed a concurring judgment but expressed anguish insofar

1 (1969) 2 SCC 872

2 1931 SCC Online Cal 146

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as Section 27 permitted reliance on a statement made to the police which leads to the discovery of a fact, only when the person who gave the information is in custody, which was also observed to be absurd in terms. However, it was also held that till the legislature takes the matter in hand and redrafts the provision, the paradox expressed would continue to be law.

13. The position is somewhat clarified in ***Dharam Deo Yadav v. State of Uttar Pradesh***³, which dealt with the murder of a foreign national by a tourist guide. The I.O having received information that the guide was arriving by a train rushed to the railway station and intercepted him in the platform. On interrogation it was confessed by the accused that he had murdered the victim and the dead body was buried in his house. The I.O thus was led to the house of the accused from where the accused dug up the skeleton which later was proved to be of the victim. It was held that the expression 'custody' appearing in Section 27 does not mean formal custody and includes any kind of surveillance, restriction or restraint by the police. It was held, relying on ***State of A.P. v. Gangula Satya Murthy***⁴ that even if there is no formal arrest made, if a person is within the ken of surveillance of the police, during which his movements are restricted, then it can be regarded as custodial surveillance. It was also held by this Court that even if the recovery of the skeleton was not in terms of Section 27, on the premise that the accused was not in the custody of the police while the statement was made, it would be admissible as '*conduct under Section 8 of the Act*'. In that case there was absolutely no explanation by the accused for the skeleton found buried in his own house.
14. In the present case, the FIR was registered on 11.10.2018 at 13.20 hours and the so-called Section 27 statement was recorded at 10.30 on 13.10.2018, after which the recoveries were made and the arrest carried out later in the night of the 13th. There is nothing indicated to show that the accused, who had accompanied his wife to register the missing complaint was even suspected of being responsible for the missing of the child. In any event, this does not pose any difficulty insofar as the deposition of the I.O, PW 15; that he was

3 (2014) 5 SCC 509

4 (1997) 1 SCC 272

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led to the field and the canal from where the recovery was made, subsequent to which the person was arrested, though not admissible under Section 27, all the same can be brought under Section 8 of the Evidence Act.

15. Apposite also would be a reference to ***Ramkishan Mithanlal Sharma v. State of Bombay***⁵. The charge therein was of commission of dacoity using deadly weapons. The I.O deposed before Court that on information supplied by the first accused, he reached the location where he asked one Bali Ram to dig out a tin box from the mud floor of a house pointed out by the first accused leading to recovery of three revolvers and live cartridges. Since the I.O did not depose on the specific information passed on by the first accused, it was held that the operation of Section 27 though not attracted, *prima facie* there was nothing to prevent that evidence being admitted against the first accused. We extract herewith paragraph 33 of the cited decision:

“33. The evidence of the police officer would no doubt go to show that the accused knew of the existence of the fact discovered in consequence of information given by him. But that would not necessarily show his direct connection with the offence. It would merely be a link in the chain of evidence which taken along with other pieces of evidence might go to establish his connection therewith. This circumstance would therefore be quite innocuous, and evidence could certainly be given of that circumstance without attracting the operation of Section 27.”

[underlining by us for emphasis]

Hence, we are persuaded to accept the recovery of the bone remnants having been made at the instance of the accused, though at the time of his statement, he was not in police custody, which could only be a link under Section 8 of the Evidence Act, in the chain of circumstances; but his connection with the crime still has to be proved otherwise.

16. The next circumstance projected by the prosecution is the matching of the DNA profiles of the bone remnants with the DNA profiles of

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the biological parents of the deceased child. We have to specifically notice that the DNA profiles matched only with the piece of vertebrae and the teeth recovered from the canal, while the skull and those recovered from the field, where the body is said to have been burnt, did not match with the samples taken from the parents. In this context, we also have to notice that the bones recovered were wrapped in a green saree of PW7, which was not attempted to be identified as belonging to her, by confronting the same to the witness, while she was in the box.

17. The learned Senior Counsel for the accused also argued that the matching of the DNA samples was not put to the accused in the Section 313 questioning. PW18 was the Scientific Officer who spoke of the samples having matched with the DNA profiles of the bone and teeth remnants taken from the canal. Question No. 157 specifically was with respect to the blood samples of the mother and father of the deceased having been marked as C1 and C2. Question No. 158 spoke of Ex.A (specifically A-02) and Ex.B DNA profiles and that the alleles were found matching with the DNA profile of Ex.C. Question No. 159 specifically informed the accused of the vertebrae having been marked as A2 and subjected to DNA testing. We are of the opinion that question numbers 157 to 159 informed the accused about the matching of the DNA profiles which was responded to by a bland denial.
18. As of now, we are faced with only two circumstances, the knowledge of the accused regarding the place from which the bone remnants of the child were recovered and the matching of some of it with the DNA profiles of the biological parents of the child. What has been established beyond doubt is only the death of the child whose vertebrae and teeth, recovered from a canal, matched with the DNA profiles obtained from the sample taken from the biological parents. The knowledge of the accused, which led to the detection of the bone remnants though not acceptable under Section 27 would all the same be acceptable evidence under Section 8, which by itself is a weak piece of evidence. The evidence under Section 8 can only offer corroboration and cannot by itself result in a conviction. The suspicion regarding the earlier arrest and incarceration of the accused also would pose serious difficulty in finding a hypothesis of guilt beyond all reasonable doubt. The long gap when there was no complaint made about the missing child and the factum of none

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having questioned the accused, despite the family and police having been told that she went with the accused tilts the scales in favour of the accused; especially since he was released on 08.10.2018, two days before the FIR was lodged. Pertinent also is that since the *corpus delicti* was not recovered, there is no time of death specified. We are hence unable to uphold the conviction of the accused, and he has to be necessarily given the benefit of doubt.

19. The Appeal is allowed. The order of the Trial Court convicting the accused and that of the High Court affirming the same are set aside. The accused shall be released forthwith, if not wanted in any other case.
20. Before we leave the matter, we cannot but record our appreciation for the meticulous preparation of the learned Government Advocate who, with astute vigor addressed arguments despite the major pitfalls in investigation. We cannot but observe that if the investigation had been half as good as the preparation of the State Counsel, the shroud of mystery over the poor child's disappearance and death, could have been unravelled. We also appreciate the efforts put in by the learned Senior Counsel for the appellant, in probing the State to effectively bring forth the inept handling of the investigation.
21. Pending applications, if any, shall stand disposed of.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Divya Pandey

Parameshwari
v.
The State of Tamil Nadu & Ors.

(Criminal Appeal No. 949 of 2026)

17 February 2026

[Rajesh Bindal and Vijay Bishnoi,* JJ.]

Issue for Consideration

Whether the High Court was justified in reducing the sentence awarded to the Private Respondents.

Headnotes[†]

Sentencing – Reducing the sentence in cases of grave offences by enhancing the compensation payable to the victim – Impermissibility – Victim compensation restitutory in nature, not equivalent to or a substitute for punishment – Trial Court convicted the accused persons u/ss.307, 324 and 326, IPC and sentenced them to undergo rigorous imprisonment of three years and a fine of ₹ 5,000/- each (totalling to ₹ 10,000/-) – High Court *vide* impugned judgment maintained the conviction; however, reduced the sentence to the period already undergone, *i.e.*, 2 months, and enhanced the amount of the fine imposed on the Private Respondents from ₹ 10,000/- to a further sum of ₹ 50,000/- each (totalling to ₹ 1,00,000/-) – interference with:

Held: Impugned judgment set aside – Compensation payable to the victim is only restitutory in nature, and it cannot be considered as equivalent to or a substitute for punishment – Punishment is punitive in nature, and its object is to create an adequate deterrence against the said crime and to send a social message to the miscreants that any violation of the moral turpitude of society would come with consequences, which cannot merely be “purchased by money” – The practice of enhancing the compensation payable to the victim and reducing the sentence, especially in cases of grave offence, is dangerous as it might send a wrong message to society that the offenders/accused persons can absolve themselves from their liability by merely paying a monetary consideration – There

* Author

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was prior enmity between the victim and the Private Respondents who had caused injuries to the victim – Further, the testimonies of the complainant, PW2 (the victim), and PW3 (the Appellant) were corroborated by the statements of PW9 (Doctor), who had stated that the victim suffered 4 stab injuries, which were grievous in nature to the extent that, if not given immediate care, could have been life threatening – High Court acted in complete defiance of the law and created a travesty of the established criminal jurisprudence in arriving at its conclusion – It noted that more than 10 ½ years had elapsed since the incident and that the victim had been murdered by some other persons a few years later – Based on these aspects, the High Court modified the sentence awarded to the accused persons – It failed to reason out the circumstances, acting on which, it reduced the sentence for such a heinous offence and thereby, erred in not applying its judicial mind to accurately decide the sentence – Trial Court rightly convicted the Private Respondents u/s.307, 324 and 326 of the IPC as the injuries were grievous and life threatening – This decision was correctly affirmed by the District and Sessions Court – High Court, while exercising its revisionary powers, very ignominiously reduced the sentence of the Private Respondents to the period already undergone – Undue sympathy shown by the High Court herein was unwarranted – The judgment of conviction and sentence passed by the Chief Judicial Magistrate/ Assistant Sessions Judge confirmed by the District Sessions Fast Track Mahila Court affirmed. [Paras 19, 32, 35-38]

Sentencing – Imposition of sentence – Factors to be considered – Misplaced understanding of courts in treating compensation as a substitute of sentence, condemned:

Held: Trend amongst High Courts wherein the sentences awarded to the accused persons by the Trial Court are reduced capriciously and mechanically, without any visible application of judicial mind, deprecated – Factors to be kept in mind by the courts while dealing with imposition of sentence – Proportionality: Adherence to the principle of “just deserts” ought to be the primary duty of the courts – There should be proportionality between the crime committed and the punishment awarded, keeping in consideration the gravity of the offence – Consideration to Facts and Circumstances: Due consideration must be given to the facts and circumstances of the case, including the allegations, evidence and the findings of the trial court – Impact on Society: While imposing sentences, the courts shall bear in mind that crimes essentially impair the social

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fabric of the society (of which the victim(s) is/are an indispensable part) and erodes public trust – The sentence should be adequate to maintain the public trust in law and administration, however, caution should also be taken, and the Court shall not be swayed by the outrage or emotions of the public and must decide the question independently – Aggravating and Mitigating Factors: The courts, while deciding the sentence or modifying the sentence, must weigh the circumstances in which the crime was committed, and while doing so, the court must strike a fair balance between the aggravating and the mitigating factors. [Para 34]

Victim Compensation – Rationale:

Held: The provision of victim compensation finds its roots in victimology, which acknowledges victims as the primary sufferers of the crime and advocates the idea of providing some relief to the victims from their grief and suffering – The rationale behind victim compensation is to rehabilitate the victim for the loss and injury caused to them as a direct consequence of the crime or offence and not to exonerate the offender/accused from their culpability – s.395 of the Bhartiya Nagarik Suraksha Sanhita, 2023 (alternatively Section 357 of the Criminal Procedure Code, 1973) recognises the loss caused to the victim and accordingly provides for granting monetary compensation to the victim – The said provision of victim compensation is not an alternative to the sentence or punishment imposed, however, the compensation is just an addition to the sentence already awarded. [Paras 29, 30]

Criminal Jurisprudence – Punishment – Objective:

Held: The objective of punishment is not to seek vengeance for the crime, rather, it is an attempt to reconstruct the damaged social fabric of society in order to pull back its wheel on the track – The objective of punishment is to create an effective deterrence so that the same crime/actions are prevented and mitigated in future – The consideration to be kept in mind while awarding punishment is to ensure that the punishment should not be too harsh, but at the same time, it should also not be too lenient so as to undermine its deterrent effect. [Paras 21, 22]

Case Law Cited

State of Madhya Pradesh v. Suresh [2019] 5 SCR 836 : (2019) 14 SCC 151; *State of Madhya Pradesh v. Kashiram & Ors.* [2009] 1

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SCR 806 : (2009) 4 SCC 26; *State of Madhya Pradesh vs. Mohan and Others* [2013] 7 SCR 802 : (2013) 14 SCC 116; *Hazara Singh v. Raj Kumar and Others* [2013] 5 SCR 979 : (2013) 9 SCC 516; *Ahmed Hussein Vali Mohammed Saiyed and Another v. State of Gujarat* [2009] 8 SCR 719 : (2009) 7 SCC 254; *Guru Basvaraj Alias Benne Settappa v. State of Karnataka* [2012] 8 SCR 189 : (2012) 8 SCC 734; *State of M.P. v. Saleem Alias Chamaru and Another* [2005] Supp. 1 SCR 562 : (2005) 5 SCC 554; *State of Punjab v. Saurabh Bakshi* [2015] 3 SCR 590 : (2015) 5 SCC 182; *State of Punjab v. Dil Bahadur* [2023] 3 SCR 766 : (2023) 18 SCC 183; *Shivani Tyagi v. State of U.P. & Another* [2024] 5 SCR 36 : 2024 SCC OnLine SC 842 – referred to.

List of Acts

Bhartiya Nagarik Suraksha Sanhita, 2023; Criminal Procedure Code, 1973; Penal Code, 1860.

List of Keywords

Reduction of sentence; Practice of enhancing the compensation payable to the victim and reducing the sentence; Victim compensation; Restitutory in nature, Victim compensation not equivalent to or a substitute for punishment; Reducing sentence in cases of grave offence; Criminal jurisprudence; Punishment; Penology; Victimology; Life-threatening injuries to the victim in an assault; Amount of the fine imposed enhanced.

Case Arising From

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 949 of 2026

From the Judgment and Order dated 18.12.2020 of the High Court of Judicature at Madras at Madurai in CRLRC(MD) No. 121 of 2016

Appearances for Parties

Advs. for the Appellant(s):

A Velan, Ms. Navpreet Kaur, Mritunjay Pathak, Prince Singh.

Advs. for the Respondent(s):

V.Krishnamurthy, Sr. A.A.G., Sabarish Subramanian, M.P. Parthiban, Ms. Priyaranjani Nagamuthu, Bilal Mansoor, Shreyas Kaushal.

Parameshwari v. The State of Tamil Nadu & Ors.**Judgment / Order of the Supreme Court****Judgment****Vijay Bishnoi, J.**

“नृपस्य परमो धर्मः प्रजानां परिपालनम् ।
दुष्टानां ग्रहणं नित्यं नित्यानां च विनाशनम् ॥”

The supreme objective of law is the protection of society and creating a deterrence against crime by imposing adequate punishment.

Leave Granted.

2. This appeal has been preferred by the Appellant challenging the Judgment dated 18.12.2020 (hereinafter referred to as “**impugned judgment**”) passed in **CrI. R.C. (MD) No. 121 of 2016** by the High Court of Judicature at Madras, Madurai Bench (hereinafter referred to as “**the High Court**”) wherein the criminal revision filed by the Respondent No. 2 and Respondent No. 3 (hereinafter referred to as “**Private Respondents**”) was allowed by the High Court. The High Court upheld the conviction of Private Respondents for the offences punishable under Section 307, 326 and 324 of the Indian Penal Code, 1860 (hereinafter referred to as “**IPC**”), but it modified the sentence awarded to them from three years rigorous imprisonment along with a fine of ₹ 5,000/- each (totalling to ₹ 10,000/-) to period already undergone with an enhanced fine of ₹ 50,000/- each (totalling to ₹ 1,00,000/-).

FACTUAL MATRIX

3. As per the prosecution story, Crime No. 142/2009 was registered at Thiruppachethi Police Station, wherein it was alleged that there was previous enmity between the victim and the Private Respondents. On 06.06.2009 at about 03.00 PM, the Private Respondents came with knives, while the other two accused persons came with sticks. The Private Respondents stabbed the victim with knives on the left side of the chest, in the left rib, abdomen, and on the right hand palm. The other accused persons attacked the victim with sticks, causing minor injuries. Further, it was also alleged that the Private Respondents, along with the other accused persons, have used abusive language against the victim.

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4. During the investigation, the Private Respondents and the other accused persons were arrested, and based on the confessional statement of one of the other accused persons, the knives used for committing the offence were discovered. Further, the Police recorded the statements of the victim and other witnesses. After completion of the investigation, a charge sheet dated 25.06.2009 was filed under Sections 294(b), 323, 324, 326, and 307 of IPC against all the accused persons (including the Private Respondents) before the Addl. District Munsif cum Judicial Magistrate Court, Manamadurai.
5. Subsequently, the Addl. District Munsif cum Judicial Magistrate Court, Manamadurai, committed the case to the District and Sessions Court, Sivagangai, which framed charges under Sections 294(b), 326, and 307 of the IPC against Respondent No 2 and under Sections 294(b), 324, and 307 of the IPC against Respondent No 3, and under Sections 294(b) and 323 of the IPC against the other accused persons. Thereafter, the case was transferred by the District and Sessions Court, Sivagangai, to the Chief Judicial Magistrate cum Subordinate Court/ Assistant Sessions Judge, Sivagangai (hereinafter referred to as **"Trial Court"**).
6. During the trial, the complainant Rajendran (hereinafter referred to as **"PW1"**), deposed that he knew the accused persons, including the Private Respondents, as they belonged to his village. Further, PW1 reiterated the complaint and stated that he took the victim to the Thiruppachethi Police Station and lodged the complaint. Further, the Appellant herein was examined as PW3, and the victim was examined as PW2. Additionally, Dr. Prabhakaran, who was examined as PW9, identified that the victim had sustained four stab injuries, and that these types of injuries, if not immediately treated, could be life-threatening.
7. After analysing all the evidence produced before it, the Trial Court *vide* its final order and judgment dated 28.11.2013, convicted the Private Respondents under Section 307, 326 and 324 of the IPC. The Trial Court held that the evidence of PW1, PW9, and the Appellant herein were corroborating the evidence of the Victim. Further, the other accused persons were acquitted of the charge under Section 323 of the IPC, as the prosecution failed to prove their guilt beyond a reasonable doubt. Additionally, the Trial Court acquitted all the accused persons, including the Private Respondents, of the charge framed under Section 294(b) of the IPC.

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8. Accordingly, the Trial Court sentenced the Private Respondents to undergo rigorous imprisonment of three years and to pay a fine of ₹ 5,000/- each, and failing which to undergo a simple imprisonment for a period of one month, under Section 307 of the IPC. It further held that there was no requirement to award separate sentences under Sections 326 and 324 of the IPC.
9. Aggrieved, the Private Respondents filed Crl. Appeal No. 55/2013 before the District Sessions Fast Track Mahila Court, Sivagangai, challenging the judgment and final order dated 28.11.2013 passed by the Trial Court.
10. The District Sessions Fast Track Mahila Court, Sivagangai *vide* judgment and final order dated 23.02.2016, dismissed the appeal preferred by the Private Respondents and upheld the conviction and sentence awarded by the Trial Court. The District Sessions Fast Track Mahila Court, Sivagangai, held that the Private Respondents with the motive and intention to murder the victim, have inflicted the injuries on the victim. Additionally, they had the knowledge that causing such bodily injury is sufficient in the ordinary course of nature to cause death, and hence, the charge under Section 307 of IPC is proved beyond doubt. Further, it was also held that the occurrence of the incident had been sufficiently corroborated by the oral evidence and medical evidence on record.
11. Aggrieved, the Private Respondents preferred Criminal Revision bearing Crl. R.C. (MD) No.121 of 2016 before the High Court against the judgment dated 23.02.2016 passed by the District Sessions Fast Track Mahila Court, Sivagangai. During the pendency of the same, the victim passed away on 10.04.2017 under circumstances not germane to the present case. It appears that during the pendency of the Criminal Revision bearing Crl. R.C. (MD) No.121 of 2016, the Appellant herein (wife of the victim) was impleaded as Respondent No. 2 pursuant to the order dated 13.08.2019 passed by the High Court.
12. Before the High Court, it was contended by the Private Respondents that more than 10 ½ years had elapsed since the occurrence of the alleged incident, and some other persons had also murdered the victim. The Private Respondents did not challenge their guilt; however, they depicted their willingness to pay a sum of ₹ 1,00,000/- (₹ 50,000/- each) to the Appellant herein.

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13. Accepting the aforesaid contentions raised on behalf of the Private Respondents, the High Court *vide* impugned judgment, confirmed the conviction of the Private Respondents but modified the sentence from rigorous imprisonment for three years to the period of imprisonment already undergone by them, i.e., two months. Further, the High Court also enhanced the amount of the fine imposed on the Private Respondents from ₹ 5,000/- each (totalling to ₹ 10,000/-) to a further sum of ₹ 50,000/- each (totalling to ₹ 1,00,000/-). The impugned judgment is reproduced hereinbelow for reference:

“ORDER

1. The revision petitioners were prosecuted for the offences under Sections 294(b), 323, 324, 326 and 307 of I.P.C. on the file of the Chief Judicial Magistrate/Assistant Sessions Judge, Sivagangai.

2. In support of the charges, the prosecution examined as many as ten witnesses. The case of the prosecution is that the accused herein stabbed the victim in the abdomen. The victim was said to have been in hospital for about 20 days. P.W.1 was the complainant. P.W.2 was the injured witness. P.W.3 who is the second respondent herein is the wife of P.W.2. The trial Judge, after going through the evidence on record came to the conclusion that the prosecution had proved its case beyond reasonable doubt. Vide Judgment dated 28.11.2013, the learned trial Judge convicted both the petitioners herein for the offences under Section 307 of I.P.C. and sentenced each of them to undergo three years Rigorous Imprisonment. Fine of Rs.5,000/- was also imposed. Though they were also convicted for the other charges, no separate sentence was awarded. Though there were two other accused in this case, namely, accused Nos.3 and 4, they were acquitted. The same was put to challenge in C.A.No.55 of 2013. Vide Judgment dated 23.02.2016, the learned appellate Judge confirmed the conviction Judgment of the trial Court and dismissed the appeal. Challenging the same, this criminal revision case came to be filed.

3. Even before commencing the argument, the learned counsel appearing for the revision petitioners submitted

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that having regard to the evidence on record, he would not challenge the finding of guilt. He only seeks modification in the matter of sentence. He pointed out that the occurrence had taken place way back in June 2009. More than 10½ years have elapsed. The petitioners did not come under any adverse notice either before or after the occurrence. The victim had been murdered by some other persons a few years later. The petitioners are willing to pay a sum of Rs. 1,00,000/- as compensation (Rs. 50,000/- each) to the wife of the victim.

4. The petitioners had been in prison for about two months. Taking note of all these aspects, even while confirming the conviction imposed on the petitioners, the sentence of imprisonment imposed on the petitioners is modified to the period already undergone by them. The fine amount of Rs. 5,000/- each imposed on them is enhanced and the petitioners are directed to pay a further sum of Rs. 50,000/- each (Totally Rs. 1,00,000/-). The enhanced fine amount will be paid by the petitioners within a period of eight weeks from the date of receipt of a copy of this order. The enhanced fine amount to be paid by the petitioners will be handed over by the Court below to the wife of the victim as compensation. The second respondent herein Parameshwari, wife of the victim is represented by her counsel. If the petitioners fail to deposit the enhanced fine amount, they will have to undergo one year Rigorous Imprisonment by way of default sentence.

5. In this view of the matter, the sentence imposed by the impugned Judgment is modified and this criminal revision case is partly allowed.”

CONTENTION OF THE PARTIES

14. Learned Counsel for the Appellant, Mr. A Velan, herein primarily contended that the reduction of sentence to the period already undergone by the High Court is illegal and misplaced. It was submitted that the sentence must be commensurate with the seriousness of the crime, as held by this Court in **State of Madhya Pradesh vs. Suresh** reported in (2019) 14 SCC 151, wherein it was observed that

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it is the duty of the Court to award just and adequate punishment to the wrongdoer, in proportion with the gravity of the crime. Reliance was also placed on the judgment of this Court passed in ***State of Madhya Pradesh vs. Kashiram & Ors*** reported in (2009) 4 SCC 26, mentioning that mere lapse of time is not a mitigating factor. Additionally, with regard to compensating the victim's family, it was contended that additional compensation to a victim who has passed away is fruitless. The learned counsel, thus, contended that by relying on irrelevant factors and reducing the sentence without cogent reasons, the High Court exceeded its revisional jurisdiction.

15. Mr. V. Krishnamurthy, Learned Additional Advocate General (hereinafter referred to as “**AAG**”) for the State of Tamil Nadu, in tandem with the arguments led by the counsel of Appellant, submitted that the High Court failed to state cogent reasons for such a reduction in sentence, which is an essential requirement as reiterated by this Court in ***State of Madhya Pradesh vs. Mohan and others*** reported in (2013) 14 SCC 116. The learned AAG has also stated that freeing the accused of punishment would lead them to flee from justice and might harm society as a whole. It was further submitted that the punishment must be commensurate with the gravity of the crime and that herein, the High Court, while exercising its revisionary powers, showed undue sympathy in reducing the sentence. He has also pointed out to the fact that a three-year sentence as imposed by the trial Court would not be improper based on the heinous nature of the crime.
16. Mr. M.P. Parthibhan, learned counsel appearing for the Private Respondents have contended before us that the judgment of the High Court could not be faulted with as the High Court had passed the order of reducing the sentence after due consideration of all the relevant factors including the time lapsed since the incident, the death of the victim (attributable to murder in some other incident), and the antecedents of the Private Respondents. It was further contended that the Private Respondents were willing to pay ₹ 1,00,000/- (₹ 50,000/- each) as compensation to the family of the victim and accordingly, the High Court had rightly reduced the sentence from rigorous imprisonment for three years to the period already undergone, i.e., 2 months and increased the amount of fine from ₹ 10,000/- (₹ 5,000/- each) to ₹ 1,00,000/- (₹ 50,000/- each). It was further contended by the learned counsel for Private Respondents that the High Court precisely took note of all the relevant factors in reducing

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the sentence and increasing the fine amount so as to reinforce the spirit of the criminal justice system by affording the opportunity for reformation to the Private Respondents.

ANALYSIS

17. To appreciate the contentious submissions made at the bar, we have meticulously perused the petition and appreciated the materials on record and the judgments of the subordinate Courts. The only question that requires determination in this appeal is whether the High Court was justified in reducing the sentence awarded to the Private Respondents.
18. It is required to be stated outrightly that the Trial Court convicted the accused persons under Section 307, 324 and 326 of the IPC and sentenced them to undergo rigorous imprisonment of three years and a fine of ₹ 5,000/- each (totalling to ₹ 10,000/-). The High Court vide impugned judgment maintained the conviction; however, it reduced the sentence to the period already undergone, i.e., 2 months, in a case wherein the accused persons inflicted life-threatening injuries to the victim in an assault.
19. We are constrained to observe that the High Court acted in complete defiance of the law and created a travesty of the established criminal jurisprudence in arriving at its conclusion. The High Court in the impugned judgment noted that more than 10 ½ years had elapsed since the incident and that the victim had been murdered by some other persons a few years later. Based on these aspects, the High Court modified the sentence awarded to the accused persons. Apart from the above, the High Court failed to reason out the circumstances, acting on which, it reduced the sentence for such a heinous offence and thereby, erred in not applying its judicial mind to accurately decide the sentence.
20. Before we jump into the merits of the case, it is quintessential to touch upon the foundational aspects of criminal jurisprudence, including punishment, penology and victimology.
21. While deliberating upon the desirability of punishment, Prof. HLA Hart observed:

“We do not live in society in order to condemn though we may condemn in order to live.” (HLA Hart’s Punishment and Responsibility, pp. 182)

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The objective of punishment is not to seek vengeance for the crime, rather, it is an attempt to reconstruct the damaged social fabric of society in order to pull back its wheel on the track.

22. The objective of punishment is to create an effective deterrence so that the same crime/actions are prevented and mitigated in future. The consideration to be kept in mind while awarding punishment is to ensure that the punishment should not be too harsh, but at the same time, it should also not be too lenient so as to undermine its deterrent effect.
23. This Court, in the judgment of **Hazara Singh vs. Raj Kumar and others** reported in (2013) 9 SCC 516, held that the cardinal principle of sentencing policy is that the sentence imposed on an offender should be commensurate to the crime committed and be proportionate to the gravity of the offence. This Court therein held as under:

“11. The cardinal principle of sentencing policy is that the sentence imposed on an offender should reflect the crime he has committed and it should be proportionate to the gravity of the offence. This Court has repeatedly stressed the central role of proportionality in sentencing of offenders in numerous cases.

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17. We reiterate that in operating the sentencing system, law should adopt the corrective machinery or deterrence based on factual matrix. The facts and given circumstances in each case, the nature of the crime, the manner in which it was planned and committed, the motive for commission of the crime, the conduct of the accused, the nature of weapons used and all other attending circumstances are relevant facts which would enter into the area of consideration. We also reiterate that undue sympathy to impose inadequate sentences would do more harm to the justice system to undermine the public confidence in the efficacy of law. It is the duty of every court to award proper sentence having regard to the nature of the offence and the manner in which it was executed or committed. The court must not only keep in view the rights of the victim of

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the crime but also the society at large while considering the imposition of appropriate punishment.”

(emphasis supplied)

24. This objective was also reiterated by this Court in a catena of judgments (see: **Ahmed Hussein Vali Mohammed Saiyed and Another vs. State of Gujarat** reported in (2009) 7 SCC 254); **Guru Basvaraj Alias Benne Settappa vs. State of Karnataka** reported in (2012) 8 SCC 734 and various others) wherein it was held that the object of awarding appropriate sentences is that society should be protected and the crimes should be deterred. The balancing has to be done between the rights of the accused and the needs of the society at large.
25. This Court in the judgment of **State of M.P. vs. Saleem Alias Chamaru and Another** reported in (2005) 5 SCC 554 was dealing with the validity of the judgment of the High Court wherein the High Court had reduced the sentence awarded to the accused (in conviction under Sections 307 and 330 of the IPC) from 5 years to the period already undergone, i.e., six months and 23 days. This Court, therein, while setting aside the judgment of the High Court, held that undue sympathy shown towards the accused while imposing an inadequate sentence would do more harm to society and erode the trust of the public in the justice system. The Court therein held as follows:

“...6. Undue sympathy to impose inadequate sentence would do more harm to the justice system to undermine the public confidence in the efficacy of law and society could not long endure under such serious threats. It is, therefore, the duty of every court to award proper sentence having regard to the nature of the offence and the manner in which it was executed or committed, etc. This position was illuminatingly stated by this Court in Sevaka Perumal v. State of T.N. [(1991) 3 SCC 471 : 1991 SCC (Cri) 724 : AIR 1991 SC 1463]

7. After giving due consideration to the facts and circumstances of each case, for deciding just and appropriate sentence to be awarded for an offence, the aggravating and mitigating factors and circumstances in which a crime has been committed are to be delicately

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balanced on the basis of really relevant circumstances in a dispassionate manner by the court. Such act of balancing is indeed a difficult task. It has been very aptly indicated in Dennis Counce McGautha v. State of California [402 US 183 : 28 L Ed 2d 711 (1971)] that no formula of a foolproof nature is possible that would provide a reasonable criterion in determining a just and appropriate punishment in the infinite variety of circumstances that may affect the gravity of the crime. In the absence of any foolproof formula which may provide any basis for reasonable criteria to correctly assess various circumstances germane to the consideration of gravity of crime, the discretionary judgment in the facts of each case, is the only way in which such judgment may be equitably distinguished.

8. The object should be to protect society and to deter the criminal in achieving the avowed object of law by imposing appropriate sentence. It is expected that the courts would operate the sentencing system so as to impose such sentence which reflects the conscience of the society and the sentencing process has to be stern where it should be.

9. Imposition of sentence without considering its effect on the social order in many cases may be in reality a futile exercise. The social impact of the crime e.g. where it relates to offences against women, dacoity, kidnapping, misappropriation of public money, treason and other offences involving moral turpitude or moral delinquency which have great impact on social order and public interest, cannot be lost sight of and per se require exemplary treatment. Any liberal attitude by imposing meagre sentences or taking too sympathetic view merely on account of lapse of time in respect of such offences will be resultwise counterproductive in the long run and against societal interest which needs to be cared for and strengthened by a string of deterrence inbuilt in the sentencing system.

10. The court will be failing in its duty if appropriate punishment is not awarded for a crime which has been committed not only against the individual victim but also

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against the society to which the criminal and victim belong. The punishment to be awarded for a crime must not be irrelevant but it should conform to and be consistent with the atrocity and brutality with which the crime has been perpetrated, the enormity of the crime warranting public abhorrence and it should “respond to the society’s cry for justice against the criminal”.

26. The view taken by this Court in **Saleem** (supra) has been consistently reiterated by this Court in a series of judgments, including **State of Punjab vs. Saurabh Bakshi** reported in (2015) 5 SCC 182, **State of Punjab vs. Dil Bahadur** reported in (2023) 18 SCC 183 and several others.
27. This Court, while again discussing the same issue in **Suresh** (supra) reiterated that the Courts must keep in mind several factors, while imposing or reducing the sentence of any accused. The Court therein also held that sentencing is awarding just and adequate punishment to the wrongdoer, and is the primary duty of the courts. The relevant portion of the said judgment is reproduced herein under:

“11. In State of M.P. v. Ghanshyam Singh [State of M.P. v. Ghanshyam Singh, (2003) 8 SCC 13 : 2003 SCC (Cri) 1935] , relating to the offence punishable under Section 304 Part I IPC, this Court found sentencing for a period of 2 years to be too inadequate and even on a liberal approach, found the custodial sentence of 6 years serving the ends of justice. This Court underscored the principle of proportionality in prescribing liability according to the culpability; and while also indicating the societal angle of sentencing, cautioned that undue sympathy leading to inadequate sentencing would do more harm to the justice system and undermine public confidence in the efficacy of law. This Court observed, inter alia, as under: (SCC pp. 19-21, paras 12-15, 17 & 19)

“12. Therefore, undue sympathy to impose inadequate sentence would do more harm to the justice system to undermine the public confidence in the efficacy of law and society could not long endure under such serious threats. It is, therefore, the duty of every court

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*to award proper sentence having regard to the nature of the offence and the manner in which it was executed or committed, etc. This position was illuminatingly stated by this Court in *Sevaka Perumal v. State of T.N.* [*Sevaka Perumal v. State of T.N.*, (1991) 3 SCC 471 : 1991 SCC (Cri) 724]*

13. Criminal law adheres in general to the principle of proportionality in prescribing liability according to the culpability of each kind of criminal conduct. It ordinarily allows some significant discretion to the Judge in arriving at a sentence in each case, presumably to permit sentences that reflect more subtle considerations of culpability that are raised by the special facts of each case. Judges, in essence, affirm that punishment ought always to fit the crime; yet in practice sentences are determined largely by other considerations. Sometimes it is the correctional needs of the perpetrator that are offered to justify a sentence, sometimes the desirability of keeping him out of circulation, and sometimes even the tragic results of his crime. Inevitably, these considerations cause a departure from just deserts as the basis of punishment and create cases of apparent injustice that are serious and widespread.

14. Proportion between crime and punishment is a goal respected in principle, and in spite of errant notions, it remains a strong influence in the determination of sentences. The practice of punishing all serious crimes with equal severity is now unknown in civilised societies, but such a radical departure from the principle of proportionality has disappeared from the law only in recent times. Even now for a single grave infraction drastic sentences are imposed. Anything less than a penalty of greatest severity for any serious crime is thought then to be

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a measure of toleration that is unwarranted and unwise. But in fact, quite apart from those considerations that make punishment unjustifiable when it is out of proportion to the crime, uniformly disproportionate punishment has some very undesirable practical consequences.

15. After giving due consideration to the facts and circumstances of each case, for deciding just and appropriate sentence to be awarded for an offence, the aggravating and mitigating factors and circumstances in which a crime has been committed are to be delicately balanced on the basis of really relevant circumstances in a dispassionate manner by the court. Such act of balancing is indeed a difficult task. It has been very aptly indicated in McGautha v. California [McGautha v. California, 1971 SCC OnLine US SC 89 : 28 L Ed 2d 711 : 402 US 183 (1971)] that no formula of a foolproof nature is possible that would provide a reasonable criterion in determining a just and appropriate punishment in the infinite variety of circumstances that may affect the gravity of the crime. In the absence of any foolproof formula which may provide any basis for reasonable criteria to correctly assess various circumstances germane to the consideration of gravity of crime, the discretionary judgment in the facts of each case is the only way in which such judgment may be equitably distinguished.

17. Imposition of sentence without considering its effect on the social order in many cases may be in reality a futile exercise. The social impact of the crime e.g. where it relates to offences against women, dacoity, kidnapping, misappropriation of public money, treason and other offences involving moral turpitude or moral

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delinquency which have great impact on social order and public interest cannot be lost sight of and per se require exemplary treatment. Any liberal attitude by imposing meagre sentences or taking too sympathetic a view merely on account of lapse of time in respect of such offences will be resultwise counterproductive in the long run and against societal interest which needs to be cared for and strengthened by a string of deterrence inbuilt in the sentencing system.

19. Similar view has also been expressed in Ravji v. State of Rajasthan [Ravji v. State of Rajasthan, (1996) 2 SCC 175 : 1996 SCC (Cri) 225] . It has been held in the said case that it is the nature and gravity of the crime but not the criminal, which are germane for consideration of appropriate punishment in a criminal trial. The court will be failing in its duty if appropriate punishment is not awarded for a crime which has been committed not only against the individual victim but also against the society to which the criminal and victim belong. The punishment to be awarded for a crime must not be irrelevant but it should conform to and be consistent with the atrocity and brutality with which the crime has been perpetrated, the enormity of the crime warranting public abhorrence and it should 'respond to the society's cry for justice against the criminal'."

(emphasis supplied)

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13. Therefore, awarding of just and adequate punishment to the wrongdoer in case of proven crime remains a part of duty of the court. The punishment to be awarded in a case has to be commensurate with the gravity of crime as also with the relevant facts and attending circumstances. Of

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course, the task is of striking a delicate balance between the mitigating and aggravating circumstances. At the same time, the avowed objects of law, of protection of society and responding to the society's call for justice, need to be kept in mind while taking up the question of sentencing in any given case. In the ultimate analysis, the proportion between the crime and punishment has to be maintained while further balancing the rights of the wrongdoer as also of the victim of the crime and the society at large. No straitjacket formula for sentencing is available but the requirement of taking a holistic view of the matter cannot be forgotten.

14. In the process of sentencing, any one factor, whether of extenuating circumstance or aggravating, cannot, by itself, be decisive of the matter. In the same sequence, we may observe that mere passage of time, by itself, cannot be a clinching factor though, in an appropriate case, it may be of some bearing, along with other relevant factors. Moreover, when certain extenuating or mitigating circumstances are suggested on behalf of the convict, the other factors relating to the nature of crime and its impact on the social order and public interest cannot be lost sight of."

28. At this juncture, it is also imperative for us to mention that retribution is not the ultimate aim of our criminal justice system, rather it hinges on principles of reformation and restitution. The criminal justice system aims to achieve the twin objectives of creating a deterrence against crime and also providing an opportunity for reformation to the offender. Due consideration has also been provided by our legal system to the rights of the victim, who essentially are the first sufferers of the crime.
29. Section 395 of the Bhartiya Nagarik Suraksha Sanhita, 2023 (herein referred to as "**BNSS**") (alternatively Section 357 of the Criminal Procedure Code, 1973) recognises the loss caused to the victim and accordingly provides for granting monetary compensation to the victim. The said provision of victim compensation is not an alternative to the sentence or punishment imposed, however, the compensation is just an addition to the sentence already awarded.
30. The provision of victim compensation finds its roots in victimology, which acknowledges victims as the primary sufferers of the crime

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and advocates the idea of providing some relief to the victims from their grief and suffering. The rationale behind victim compensation is to rehabilitate the victim for the loss and injury caused to them as a direct consequence of the crime or offence and not to exonerate the offender/accused from their culpability.

31. The practice of enhancing the compensation payable to the victim and reducing the sentence, especially in cases of grave offence, is dangerous as it might send a wrong message to society that the offenders/accused persons can absolve themselves from their liability by merely paying a monetary consideration.
32. Compensation payable to the victim is only restitutory in nature, and it cannot be considered as equivalent to or a substitute for punishment. Punishment is punitive in nature, and its object is to create an adequate deterrence against the said crime and to send a social message to the miscreants that any violation of the moral turpitude of society would come with consequences, which cannot merely be “*purchased by money*”.
33. It would be apt to discuss the judgment of this Court in the ***Shivani Tyagi vs. State of U.P. & Another*** reported in 2024 SCC OnLine SC 842, wherein this bench through one of us (Rajesh Bindal, J.) while concurring with the judgment was dealing with a horrendous situation where in an offence related to acid attack, the High Court suspended the sentence of the accused in lieu of payment of ₹ 25 lakhs to the victim for medical treatment. The High Court went to the extent of directing the payment to be deposited with the court when the victim refused to accept the said amount. This Court while setting aside the judgment of the High Court termed that such payment was kind of “Blood Money” to the victim by the offenders. The relevant extracts from the said judgment are reproduced herein below:

“22. From the facts it can safely be noticed that there is no question of acceptance of money by the victim as she has challenged the order of suspension of sentence of the private respondents.

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27. The impugned order passed by the High Court is perused. Specifically the order dated 21.02.2024 passed in

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the Correction Application. The order does not suggest that there was any consideration of the parameters laid down by this court for grant of bail or suspension of sentence. Instead, the High Court had noticed and directed that the convicts have offered to pay compensation to the victim for grant of suspension of sentence, which when she refused to accept, was directed to be deposited in the court. It was in a way kind of “Blood Money” offered by the convicts to the victim for which there is no acceptability in our criminal justice system.”

34. The misplaced understanding of various courts in treating compensation as a substitute of sentence is both a matter of concern and a practice which should be condemned. We have observed a trend amongst various High Courts wherein the sentences awarded to the accused persons by the Trial Court are reduced capriciously and mechanically, without any visible application of judicial mind. Considering the gravity of the situation as thus, we have culled out certain basic factors, which are to be kept in mind by the courts while dealing with imposition of sentence, in line with the view taken by this Court in the aforementioned cases. The said factors are enunciated as below:
- A. **Proportionality:** Adherence to the principle of “*just deserts*” ought to be the primary duty of the courts. There should be proportionality between the crime committed and the punishment awarded, keeping in consideration the gravity of the offence.
 - B. **Consideration to Facts and Circumstances:** Due consideration must be given to the facts and circumstances of the case, including the allegations, evidence and the findings of the trial court.
 - C. **Impact on Society:** While imposing sentences, the courts shall bear in mind that crimes essentially impair the social fabric of the society (of which the victim(s) is/are an indispensable part) and erodes public trust. The sentence should be adequate to maintain the public trust in law and administration, however, caution should also be taken, and the Court shall not be swayed by the outrage or emotions of the public and must decide the question independently.

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- D. **Aggravating and Mitigating Factors:** The courts, while deciding the sentence or modifying the sentence, must weigh the circumstances in which the crime was committed, and while doing so, the court must strike a fair balance between the aggravating and the mitigating factors.
35. In the present case, the testimonies on record of the PW1 (the complainant), PW2 (the victim), and PW3 (the Appellant herein), when taken conjointly, clearly establishes existence of prior enmity between the victim and the Private Respondents herein who had caused injuries to the victim. Further, these testimonies have been corroborated by the statements of PW9 (Doctor), who had stated that the victim suffered 4 stab injuries, which were grievous in nature to the extent that, if not given immediate care, could have been life-threatening.
36. We have carefully considered the decisions of the Trial Court, and are of the view that the Trial Court rightly convicted the Private Respondents under Sections 307, 324 and 326 of the IPC as the injuries were grievous and life-threatening. This decision was further affirmed, correctly so, by the District and Sessions Fast Track Mahila Court, Sivagangai.
37. Thereafter, the High Court, while exercising its revisionary powers, very ignominiously reduced the sentence of the Private Respondents to the period already undergone. The High Court was so undesirous to even glance through the fact that the Trial Court had already taken into consideration all the relevant factors while imposing the sentence and showed adequate leniency while awarding sentence of rigorous imprisonment for three years only, whereas the maximum punishment permissible for the offence under Section 307 of the IPC is ten years. Additionally, the undue sympathy shown by the High Court herein was totally unwarranted, and such displays of overt sentiments risk undermining the administration of justice, as it is imperative that justice is not merely done but also seen to be done.
38. In light of the above discussion, we are of the view that the impugned judgment warrants interference and is, therefore, set aside. Further, the judgment of conviction and sentence dated 28.11.2013 passed by the Chief Judicial Magistrate/Assistant Sessions Judge, Sivagangai and later confirmed by the District Sessions Fast Track Mahila Court, Sivagangai, are affirmed. The appeal stands allowed.

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39. We direct that the Private Respondents must surrender before the Trial Court within four weeks from today and shall serve the remaining part of the sentence awarded to them. The Trial Court shall ensure that they serve the remaining sentence, after adjustment of the period already undergone by them. In case the Private Respondents fail to surrender within the stipulated time, the Trial Court shall take appropriate steps as permissible under the law to ensure compliance of the above stated directions.
40. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeal allowed.

[†]Headnotes prepared by: Divya Pandey

Priyanka Kumari and Ors.
v.
The State of Bihar and Ors.

(Civil Appeal No. 797 of 2026)

18 February 2026

[Rajesh Bindal* and Vijay Bishnoi, JJ.]

Issue for Consideration

The appellants herein were dismissed from the post of librarian on which they were appointed by the State of Bihar. It was on account of the fact that the degree obtained by them from the University of Technology and Science, Raipur, Chhattisgarh, was declared invalid as the Chhattisgarh Niji Kshetra Vishwavidyalaya Act, 2002 under which the University was established, was later on declared to be *ultra vires*.

Headnotes[†]

Chhattisgarh Niji Kshetra Vishwavidyalaya Act, 2002 – The University in question (mentioned at serial no.23) was granted recognition by the State of Chhattisgarh under the provisions of the 2002 Act – After getting admission in the aforesaid University, the appellants passed out with a degree of Bachelor of Library Science (B.Lib) in the year 2004 – The aforesaid Act was declared to be *ultra vires* by this Court *vide* order dated 11.02.2005 – Thereafter, the State of Bihar issued an advertisement for recruitment to the post of librarians and appellants were selected – PIL was filed raising an issue that certain persons have been appointed as librarians on the basis of qualification obtained by pursuing the courses from the University, which was not a recognized institution – PIL was dismissed – However, the State took action and the services of the appellants were terminated – Correctness:

Held: What is evident from the facts of the case is that the University from which the appellants had studied had been set up under the 2002 Act enacted by the Chhattisgarh State Legislature – The aforesaid Act was declared to be *ultra vires* by this Court *vide* order dated 11.02.2005 – Till such time, the students had been

* Author

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studying and passing out – At the time of declaration of the said Act to be *ultra vires*, this Court had protected the students who were still studying – They were directed to be transferred to alternative institutions recognized by the State – Considering the aforesaid fact and also that in the factual situation in hand, the appellants cannot be said to be at fault as they had studied in the University, which has been set up under the 2002 Act enacted by the State Legislature – Hence, they should not be deprived of the benefits of the degree obtained by them while studying in the University – It is not the case of the State that the University in which the appellants studied was bogus or no study was actually imparted – Accordingly, the orders *vide* which the services of the appellants were terminated is declared as illegal – Appellants are directed to be reinstated back in service, with continuity – However, they are not entitled to any back wages. [Paras 16-18]

Case Law Cited

Prof. Yashpal and Anr. v. State of Chhattisgarh and Ors. [2005] 2 SCR 23 : (2005) 5 SCC 420; *Anil Bhimraj Purane v. The Union of India and Others*, Writ Petition No. 9039/2012; *Goan Real Estate and Construction Limited & Anr. v. Union of India & Ors.* [2010] 3 SCR 1160 – referred to.

List of Acts

Chhattisgarh Niji Kshetra Vishwavidyalaya Act, 2002.

List of Keywords

Education; Degree; Protection of students; Benefits of degree; Service Law; Termination; University; Unrecognised University; Reinstatement; Back wages.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No. 797 of 2026

From the Judgment and Order dated 11.04.2019 of the High Court of Judicature at Patna in LPA No. 671 of 2018

With

Civil Appeal No(s). 798 and 799 of 2026

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Appearances for Parties

Advs. for the Appellant(s):

Navniti Prasad Singh, Sr. Adv., Rizwan Ahmad, Shakeel Ahmed, Abhishek Kumar, Shivam Yadav, Mohd Tauheed, Gopal Jha, Jitesh Kumar, Umesh Kumar Yadav, Ms. Shireesha Sharma.

Advs. for the Respondent(s):

Pranjal Sharma, Samir Ali Khan.

Judgment / Order of the Supreme Court

Judgment

Rajesh Bindal, J.

1. The appellants in Civil Appeal No. 797 of 2026 are aggrieved against the judgment dated 11.04.2019, passed by the High Court¹ in Letters Patent Appeal No. 671 of 2018. The High Court dismissed the appeal against the order of the Single Judge dated 22.02.2018 passed in Civil Writ Petition No. 6827 of 2016, thereby affirming the termination of services of the petitioners therein.
 - 1.1 The appellants in Civil Appeal No. 798 and 799 of 2026 are before this Court, aggrieved against the dismissal of Letters Patent Appeal No. 567 of 2018 by the High Court vide order dated 01.11.2022. The High Court dismissed the aforesaid LPA relying upon earlier order dated 11.04.2019 passed in LPA No. 671 of 2018, since both the matters involved same issue.
2. Briefly, the facts are that the appellants approached the High Court challenging their dismissal from the post of librarian on which they were appointed by the State of Bihar. It was on account of the fact that the degree obtained by them from the University of Technology and Science, Raipur, Chhattisgarh,² was declared invalid as the Chhattisgarh Niji Kshetra Vishwavidyalaya Act, 2002³ under which the University was established, was later on declared to be *ultra vires*.

¹ High Court of Judicature at Patna

² For short "the University"

³ For short "the 2002 Act"

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3. Briefly, the facts available on record are that the 2002 Act was enacted by the Chhattisgarh State Legislature providing for establishment of self-financing universities to promote higher education in the State. The University in question was granted recognition vide order dated 04.02.2002 by the State of Chhattisgarh under the provisions of the 2002 Act. On 28.05.2004, a public notice was issued enlisting the names of the universities that have been established under the 2002 Act, wherein the name of the University in question is mentioned at Serial No. 23. After getting admission in the aforesaid University, the appellants passed out with a degree of Bachelor of Library Science (B.Lib) in the year 2004. Even the Central Government vide communication dated 26.01.2004 issued by the Ministry of Human Resources Development, Government of India, had recognized the courses conducted by the University.
4. A Writ Petition was filed in this Court by Professor Yash Pal, former Chairman of the University Grants Commission (UGC), challenging the competence of the Chhattisgarh State Legislature to enact the 2002 Act. Vide judgment dated 11.02.2005,⁴ the 2002 Act was declared to be *ultra vires*, by this Court.
 - 4.1 In 2009, the State of Bihar issued an advertisement for recruitment to the post of librarians. On 22.05.2010, the appellants were selected as librarians and were working satisfactorily on the post. A Public Interest Litigation (PIL)⁵ was filed before the High Court raising an issue that certain persons have been appointed as librarians on the basis of qualification obtained by pursuing the courses from the University, which was not a recognized institution. The writ petition was dismissed on 15.05.2014 as it lacked foundational facts. However, the State had taken action and as a result thereof, the services of the appellants were terminated vide order dated 22.08.2015. Challenging the same, writ petition⁶ was filed before the High Court, which was dismissed on 22.08.2018. The order passed

4 Prof. Yashpal and Anr. v. State of Chhattisgarh and Ors. (2005) 5 SCC 420

5 Writ Petition No. CWJC No. 19959/2010

6 CWJC No. 6827/2016

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by the Single Judge was upheld in intra-court appeal⁷ vide order dated 11.04.2019. Challenging the aforesaid order, the present appeal has been filed.

5. Mr. Navniti Prasad Singh, learned senior counsel for the appellants submitted that after the 2002 Act was enacted, the University was established. It was duly recognized and even the education being imparted by it, was recognized by the Central Government. The appellants passed out in the year 2004. Writ Petition was filed before this Court, challenging legislative competence of the Chhattisgarh State Legislature to enact the 2002 Act. This Court vide judgment dated 11.02.2005 had struck down the 2002 Act. It is mentioned in the aforesaid judgment that the students who are studying in the University will have to be shifted to other recognized universities in the State, so that their career does not suffer. This clearly makes out a case that this Court was conscious of the fact that the management which had set up the University was not at fault, as it was established under the 2002 Act enacted by the State, which was later struck down by this Court. The students who were studying should not suffer. Taking analogy therefrom, even the students who had passed out earlier, even their degrees and certificates have to be protected.
 - 5.1 Learned counsel has referred to a judgment of the Bombay High Court in **Anil Bhimraj Purane Versus The Uniion of India and Others**,⁸ where identical issue was involved pertaining to the University in question and the relief was granted to the petitioner therein. He further referred to the judgment of this Court in **Goan Real Estate and Construction Limited & Anr. v. Union of India & Ors.**,⁹ in support of the argument that the earlier judgment in **Professor Yash Pal's case (supra)** has to be read on the principle of prospective overruling. Meaning thereby, the actions taken prior to the judgment of this Court declaring the 2002 Act to be *ultra vires*, have to be protected.
6. On the other hand, learned counsel for the State submitted that once the 2002 Act has been struck down, any certificates / diplomas

7 LPA No. 671/2018

8 Writ Petition No. 9039/2012

9 [2010] 3 SCR 1160

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or degrees awarded by the University will become unrecognized. On the declaration of the 2002 Act to be *ultra vires* on account of legislative incompetence, no relief can be granted to any of the students even if they had earlier passed out from the University. Principles of prospective overruling cannot be applied in the case in hand. When the appellants made applications for selection to the post of librarians in the year 2010, they very well knew about the fact that their degrees had been declared to be invalid as the 2002 Act under which the University was established and in which they studied, had been declared to be *ultra vires*. It is clearly evident from the judgment in **Professor Yash Pal's case (supra)**, that protection was granted only to the student, who were still studying in the University and not to those who had already passed out. There is no merit in the present appeal. The same deserves to be dismissed.

7. Heard learned counsel for the parties and perused the paperbook.
8. The undisputed facts of the case in hand can be summed up briefly. The State of Chhattisgarh enacted Chhattisgarh Niji Kshetra Vishwavidyalaya Act, 2002. The University of Technology and Science, Raipur, was established under the aforesaid Act. It is also claimed that a public notice was issued on 28.05.2014 by the Chhattisgarh Niji Kshetra Vishwavidyalaya Regulatory Commission, Government of Chhattisgarh, Education Department, detailing the list of universities established under the 2002 Act and the name of the University finds mention therein. The appellants passed out in the year 2004 from the University after obtaining Bachelor's degree in Library Sciences (B.Lib). It is also evident from a letter dated 26.01.2004, from the Government of India, Ministry of Human Resource Development that the Degrees/ Diplomas/ Certificates including pre-University Courses (equivalent to 10+2) awarded by the University were recognized for higher studies and employment.
9. Professor Yash Pal, former Chairman of UGC filed a writ petition before this Court on 04.12.2003 challenging the validity of the 2002 Act on the ground of legislative incompetence of the Chhattisgarh State. Vide judgment dated 11.02.2005, Sections 5 and 6 of the 2002 Act were declared *ultra vires*. As a consequence, all such universities ceased to exist.

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10. In 2009, an advertisement was issued by the State of Bihar for selection to the post of librarians. The appellants were selected and appointed on 22.05.2010. A PIL was filed before the High Court raising an issue that some persons have been appointed as librarians on the basis of certificates received from an institution, which was not recognized. As the writ petition lacked foundational facts to show that the University was bogus, the same was dismissed on 15.05.2014. It was claimed by the counsel for the appellant that though the writ petition was dismissed but the State took action otherwise. The services of the appellants were terminated vide order dated 22.08.2015 in the light of directions issued by Joint Secretary, Education Department, Bihar vide letter dated 16.07.2015.
11. While dealing with the arguments raised by the learned counsel for the parties, it would be relevant to refer to the final findings recorded by this Court in the ***Professor Yash Pal's case (supra)*** in paragraphs 64 and 65 thereof. The same are extracted below:

“64. As a consequence of the discussion made and the findings recorded that the provisions of Sections 5 and 6 of the Act are ultra vires and the gazette notifications notifying the universities are liable to be quashed, all such universities shall cease to exist. Shri Amarendra Sharan, learned Additional Solicitor General has submitted that UGC had conducted an inquiry and it was found that most of the universities were non-existent, but the report was not placed before the Court as the complete exercise had not been done. Learned counsel for the universities have seriously disputed this fact and have submitted that the universities are functioning. We have not gone into this question as it is purely factual. In order to protect the interests of the students who may be actually studying in the institutions established by such private universities, it is directed that the State Government may take appropriate measures to have such institutions affiliated to the already existing State universities in Chhattisgarh. We are issuing this direction keeping in mind the interest of the students and also Sections 33 and 34 of the Act, which contemplate dissolution of the sponsoring body and liquidation of a

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university whereunder responsibility has to be assumed by the State Government. It is, however, made clear that the benefit of affiliation of an institution shall be extended only if it fulfils the requisite norms and standards laid down for such purpose and not to every kind of institution. Regarding technical, medical or dental colleges, etc. affiliation may be accorded if they have been established after fulfilling the prescribed criteria laid down by All India Council of Technical Education, Medical Council of India, Dental Council of India or any other statutory authority and with their approval or sanction as prescribed by law.

65. In view of the discussions made above, Writ Petition (C) No. 19 of 2004 (*Prof. Yashpal v. State of Chhattisgarh*) and Writ Petition (C) No. 565 of 2003 [For directions passed earlier, see below] (*Gopalji Agarwal v. Union of India*) are allowed and provisions of Sections 5 and 6 of the Chhattisgarh Niji Kshetra Vishwavidhyalaya (Sthapana Aur Viniyaman) Adhiniyam, 2002 are declared to be ultra vires and are struck down. As a consequence of such declaration, all notifications issued by the State Government in the gazette in the purported exercise of power under Section 5 of the aforesaid Act notifying the universities (including Respondents 3 to 94) are quashed and such universities shall cease to exist. If any institutions have been established by such universities, steps may be taken for their affiliation to already existing State universities in accordance with the direction contained in para 64 above. Parties would be at liberty to approach the High Court if any dispute arises in implementation of this direction. All writ petitions, civil appeals and transferred cases filed by the private universities are dismissed.”

12. A perusal of the aforesaid paragraphs shows that this Court had finally struck down the provisions of Sections 5 and 6 of the 2002 Act. However, in order to protect the interest of the students who may be studying in the institutions established by the private universities, the State Government was directed to take appropriate measures to get the institutions affiliated with the existing State universities.

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Meaning thereby, the career of the students who were still studying in the institutions set up by the University, the establishment of which had been set aside, in view of striking down of the 2002 Act, was protected.

13. The issue before this Court is regarding the students who had passed out prior to the filing of the writ petition in ***Professor Yash Pal's case (supra)***. Nothing has come on record to suggest that the University in which the appellants studied was non-existent. Meaning thereby, they must have studied and after passing the examination, had got their degrees.
14. It is also a fact evident from record that despite there being judgment in ***Professor Yash Pal's case (supra)***, which was in public domain, when the appellants applied for the post of librarian and were selected in the year 2010, their candidature was not rejected on the ground that the degree is from a university, established under the 2002 Act, which was struck down. Rather, they were appointed and continued working for a period of more than 5 years.
 - 14.1 It is also a fact evident from the record that the Writ Petition No.19559 of 2010 was filed in the High Court in the year 2010 only raising an issue that some of the private respondents in the aforesaid writ petition, had been appointed as librarians on the basis of certificates from a unrecognised institution. Meaning thereby, the issue was well within the knowledge of the State, immediately after the appointment of various candidates on the post of librarians. Even otherwise, the writ petition was finally dismissed by the High Court on 15.05.2014 as the same was lacking foundational facts to prima facie establish that the institution from which the private respondents in the aforesaid petition had passed out, was a bogus institution. Still, as claimed by the counsel by the appellant, the State had taken action and terminated the services of the appellants.
15. Firstly, we may refer to the Division Bench judgment of the High Court of Bombay in ***Anil Bhimraj Purane's case (supra)*** on which reliance has been placed by the learned counsel for the appellant. The petitioner therein had passed his pre-University course from an Extension Center of the University in the year 2004. On the

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basis thereof, the petitioner therein got admission in Bachelor of Homeopathic Medicine and Surgery (BHMS) course. Nearly 4 years after he got admission, a communication was issued to him to get recognition letter from the University so as to consider the eligibility of the petitioner therein for further course of action. The same was challenged. The Bombay High Court held that the petitioner therein had submitted his marksheet and the migration certificate issued by the University at the time of taking admission. On consideration thereof, he was admitted. The judgment of this Court in **Professor Yash Pal's (supra) case** was also referred to. However, while holding that there was no misinterpretation or fraud on the part of the petitioner therein, his admission was held to be valid.

16. What is evident from the facts of the case is that the University from which the appellants had studied had been set up under the 2002 Act enacted by the Chhattisgarh State Legislature. The aforesaid Act was declared to be *ultra vires* by this Court vide order dated 11.02.2005. Till such time, the students had been studying and passing out. At the time of declaration of the said Act to be *ultra vires*, this Court had protected the students who were still studying. They were directed to be transferred to alternative institutions recognized by the State. Considering the aforesaid fact and also that in the factual situation in hand, the appellants cannot be said to be at fault as they had studied in the University, which has been set up under the 2002 Act enacted by the State Legislature. Hence, they should not be deprived of the benefits of the degree obtained by them while studying in the University. It is not the case of the State that the University in which the appellants studied was bogus or no study was actually imparted.
17. While recording the aforesaid findings, the next question would be about the relief to which the appellants are entitled to. From the facts on record, it is evident that the services of the appellants were terminated only for the reason that the institution in which they had studied was declared to be unrecognised. Accordingly, the orders vide which the services of the appellants were terminated have to be declared as illegal. Ordered accordingly.
18. As a consequence, the impugned order passed by the High Court is set aside. The Writ Petition filed by the appellants before the High Court is allowed. They are directed to be reinstated back in service,

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with continuity. However, considering the fact that they have not performed their duties for the intervening period, and it cannot be said to be a case where only the respondent-State is at fault, in our view, they should not be entitled to any back wages.

19. The appeals are accordingly allowed.
20. Pending application(s), if any, shall stand disposed of.

Result of the case: Appeals allowed.

[†]Headnotes prepared by: Ankit Gyan

Gobind Singh and Ors.

v.

Union of India and Ors.

(Civil Appeal No(s). 5168-5169 of 2011)

09 March 2026

[Vikram Nath* and Sandeep Mehta, JJ.]

Issue for Consideration

Whether the High Court's omission to expressly adjudicate the application filed u/Or.XLI, r.27 of CPC while deciding the first appeal has resulted in any manifest injustice or miscarriage of justice so as to warrant interference by this Court.

Headnotes[†]

Code of Civil Procedure, 1908 – Or.XLI, r.27 – Appellant instituted suit seeking a declaration of title and a decree of permanent injunction against the respondents-defendants – Trial Court decreed the suit – Respondent-defendants preferred first appeal before the High Court – During the pendency of the appeal, the appellant-plaintiffs filed an application u/Or.XLI, r.27 of the CPC seeking to place on record certified copies of the General Land Register maintained by the respondent-defendants – The High Court allowed the appeal filed by the respondent-defendants – Aggrieved, the appellant-plaintiffs instituted a review petition before the High Court primarily on the ground that the application for additional evidence was not decided – The High Court dismissed the review petition and application for additional evidence – Correctness:

Held: The High Court has committed no error in rendering the impugned judgments – The appellate court may permit additional evidence only upon being satisfied that the conditions expressly stipulated under Order XLI Rule 27 of CPC are fulfilled – The parties do not possess any vested or automatic right to seek admission of additional evidence at the appellate stage – The appellant-plaintiffs were, from the outset, fully aware that the respondent-defendants had not been impleaded as parties in the earlier civil suit instituted by their predecessors – Having founded their claim upon a decree which was *non-est* insofar as the respondent-defendants were

* Author

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concerned, it was impermissible for the appellant-plaintiffs to seek to introduce additional evidence at the appellate stage to cure the inherent defects in their case – The present suit being one for declaration of title, it was incumbent upon the appellant-plaintiffs, if they indeed possessed a valid title, to adduce their best and complete evidence at the stage of trial before the court of first instance, where such evidence could have been produced as a matter of right – Further, even at the stage of the earlier suit instituted by the predecessors-in-interest of the appellant-plaintiffs, their consistent case was one of lawful title to the suit property – No plea of adverse possession was ever raised – The additional evidence, namely, the entries in the General Land Register, is a mere recording of the land in suit as private land in the GLR does not in any manner benefit the appellants claim of ownership – Whereas, the respondent-defendants have traced their title to the decision of the Union of India dated 17.07.1953, pursuant to which the suit land, along with other immovable properties, vested in the respondent-defendants in terms of title, ownership and possession – The application for additional evidence was thus rightly rejected by the High Court. [Paras 11, 11.4, 11.8, 11.10, 11.11, 11.15]

Code of Civil Procedure, 1908 – Or.XLI, r.27:

Held: Rule 27, being couched in negative terms, makes it abundantly clear that parties to an appeal are not entitled to adduce additional evidence, whether oral or documentary, save and except in the circumstances expressly enumerated therein – The provision contemplates only three eventualities in which additional evidence may be permitted: first, where the court which passed the decree has refused to admit evidence which ought to have been admitted; second, where the party seeking to adduce such evidence establishes that, notwithstanding the exercise of due diligence, the evidence was not within its knowledge or could not have been produced at the time when the decree under appeal was passed; and third, where the appellate court itself requires any document to be produced or any witness to be examined in order to enable it to pronounce judgment or for any other substantial cause. [Para 11.3]

Case Law Cited

Union of India v. Ibrahim Uddin [2012] 8 SCR 35 : (2012) 8 SCC 148; *State of Karnataka v. K.C. Subramanya* [2013] 10 SCR 144 : (2014) 13 SCC 468 – relied on.

Gobind Singh and Ors. v. Union of India and Ors.**List of Acts**

Code of Civil Procedure, 1908.

List of Keywords

Order XLI Rule 27 CPC; General Land Register (GLR); Adverse Possession; Trespassers; State Ownership; Additional evidence; Revenue records; Inherent defect in case; Declaration of title; Valid title; Documentary evidence; Title; Ownership: Possession; unscrupulous litigants.

Case Arising From

CIVIL APPELLATE JURISDICTION: Civil Appeal No(s). 5168-5169 of 2011

From the Judgment and Order dated 12.08.2009 and 15.03.2011 of the High Court of Madhya Pradesh at Gwalior in FA No. 80 of 1996 and RP No. 300 of 2009, respectively.

Appearances for Parties

Advs. for the Appellant(s):

Anupam Lal Das, Sr. Adv., Kunal Verma, Mrs. Yugandhara Pawar Jha, Bhanu Thakur, Ms. Swati Mishra.

Advs. for the Respondent(s):

K M Nataraj, A.S.G., V Chitambresh, Sr. Adv., Mukesh Kumar Maroria, Rajan Kumar Chourasia, Mrs. Swati Ghildiyal, Anuj Srinivas Udupa, Bhuvan Kapoor, Chitransh Sharma, Mrs. Rekha Pandey, Abhimanyu Singh, GA, Harmeet Singh Ruprah, Anil Hooda.

Judgment / Order of the Supreme Court**Judgment**

Vikram Nath, J.

1. The present appeals, by special leave, are directed against the judgment dated 12th August, 2009, and the subsequent judgment rendered in review on 15th March, 2011, by the High Court of Madhya Pradesh, Bench Gwalior,¹ in First Appeal No. 80 of 1996 and Review

¹ Hereinafter, referred to as "High Court".

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Petition No. 300 of 2009, respectively whereby the appeal filed by the Union of India was allowed and the review of the appellant was dismissed. By the aforesaid orders, the judgment and decree dated 25 March 1996 passed by the Court of the Vth Additional District Judge, Gwalior², in Civil Suit No. 5-A of 1990 was set aside and the suit was dismissed.

2. The appellants³ herein instituted in Civil Suit No. 5-A of 1990, seeking a declaration of title and a decree of permanent injunction against the defendants⁴. Respondent Nos. 1 to 4 were arrayed as defendant Nos. 1 to 4, respectively, in the said suit.

FACTS OF THE CASE: -

3. The facts, insofar as they are necessary for the disposal of the present appeals, are set out hereinafter: -
 - 3.1. The case of the appellant-plaintiffs is that the land bearing Survey No. 2029, admeasuring 8 Bighas and 10 Biswas, situated in Patwari Halqa No. 51, opposite Baaj Cinema Hall, Murar, Pargana and District Gwalior, is owned and possessed by them. It is alleged that on 4th December, 1989 officers of the respondent-defendants entered upon the suit property with the intent to remove the wire fencing erected thereon, the two shops constructed by the plaintiffs, as well as the standing crops on the said land.
 - 3.2. In this backdrop, the appellant-plaintiffs instituted a civil suit, being Civil Suit No. 55A of 1989⁵, on 5th December, 1989 before the Civil Court, seeking a declaration of title and a decree of permanent injunction restraining the defendants from interfering with the suit property. The appellant-plaintiffs asserted that the suit property constituted their ancestral property and that their forefathers had been in continuous ownership and possession thereof for the preceding fifty years.

2 Hereinafter, referred to as "Civil Court".

3 Hereinafter, referred to as "appellant-plaintiffs".

4 Hereinafter, referred to as "respondent-defendants".

5 Re-numbered later as "5-A of 1990".

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- 3.3. The Trial Court, *vide* judgment dated 26th March, 1996, decreed the suit, holding that the title, ownership and possession of the suit property vested in the appellant-plaintiffs, and that the respondent-defendants had failed to establish any title thereto.
- 3.4. Aggrieved by the said decree, the respondent-defendants preferred first appeal before the High Court. During the pendency of the appeal, the appellant-plaintiffs filed an application under Order XLI Rule 27 of the Code of Civil Procedure, 1908⁶, seeking to place on record certified copies of the General Land Register maintained by the respondent-defendants. It was the case of the appellant-plaintiffs that the said documents would demonstrate that the suit property stood recorded as private land.
- 3.5. The High Court, *vide* judgment dated 12th August, 2009, allowed the appeal preferred by the respondent-defendants, holding that the appellant-plaintiffs had claimed perfection of title on the basis of a decree passed in an earlier suit to which the respondent-defendants were not parties.
- 3.6. Aggrieved thereby, the appellant-plaintiffs instituted a review petition before the High Court primarily on the ground that the application for additional evidence had not been decided. The High Court, however, by judgment dated 15th March, 2011, dismissed not only the review petition but also the application for additional evidence and affirmed the judgment rendered in the first appeal, while imposing costs of Rs.2,000/-.
4. It is in these circumstances that the appellant-plaintiffs have approached this Court.

SUBMISSIONS ON BEHALF OF THE PARTIES: -

5. Shri Anupam Lal Dass, learned Senior Counsel appearing on behalf of the appellants, assailed the judgments passed by the High Court and advanced the following submissions: -
 - 5.1. That the High Court acted contrary to law in proceeding to decide the appeal on merits without first adjudicating upon the application filed by the appellant-plaintiffs under Order XLI Rule 27 of CPC for leading additional evidence.

6 For short, "CPC".

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- 5.2. That the predecessors-in-interest of the appellant-plaintiffs had instituted a civil suit against the State seeking a declaration of title, which was decreed by a court of competent jurisdiction, and that the said judgment has since attained finality.
- 5.3. That the material on record clearly establishes that the appellant-plaintiffs have remained in continuous and uninterrupted possession of the suit property since the time of their forefathers, and have, therefore, perfected title thereto by way of adverse possession.
- 5.4. On these premises, the appellant-plaintiffs prayed that the present appeals be allowed and that the impugned judgments of the High Court be set aside.
6. *Per contra*, Shri V. Chitambresh, learned Senior Counsel appearing for the respondents, strongly opposed the submissions advanced on behalf of the appellants and advanced the following contentions: -
 - 6.1. That the land comprising Morar Cantonment, within which the suit property is situated, vested in the Union Government in the year 1953 upon transfer of ownership from the State Government.
 - 6.2. That the *ex parte* decree passed in the earlier civil suit against the State of MP instituted by the predecessors-in-interest of the appellant-plaintiffs would not be binding on the Union, having been rendered in the absence of the respondent-defendants, who were neither impleaded nor afforded an opportunity of being heard in the said suit.
 - 6.3. The application for additional evidence was misplaced and without any merit. It did not fall within the four corners of the principles and parameters laid down in the Order XLI Rule 27 CPC. The same has been rightly rejected by the High Court while deciding the review petition.
 - 6.4. On these grounds, the respondent-defendants vehemently urged that the present appeals be dismissed and the impugned judgments of the High Court be affirmed.

ANALYSIS AND DISCUSSION: -

7. We have heard the learned senior counsel appearing for the parties and have carefully perused the material placed on record.

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8. The limited question that arises for consideration is whether the High Court's omission to expressly adjudicate the application filed under Order XLI Rule 27 of CPC while deciding the first appeal has resulted in any manifest injustice or miscarriage of justice so as to warrant interference by this Court.
9. In order to properly appreciate the controversy involved, it would be apposite to advert to the reasoning adopted by the courts below. While decreeing the suit instituted by the appellant-plaintiffs, the Trial Court recorded the following findings: -
 - i. That it was an undisputed fact that, in respect of the suit property, a decree dated 9th July, 1984, had already been passed by a competent court in favour of the predecessors-in-interest of the appellant-plaintiffs.
 - ii. That upon an appraisal of the material placed on record, the appellant-plaintiffs were found to be in possession and occupation of the suit property in the capacity of owners thereof.
 - iii. That the respondent-defendants failed to place on record any documentary evidence to substantiate their claim of ownership or possession over the suit property.
 - iv. That the objection raised by the respondent-defendants regarding the alleged failure of the plaintiffs to disclose the source of their title was rejected, as the documentary evidence on record sufficiently established that the plaintiffs held ownership over the suit property and had been in continuous possession and occupation thereof for a considerable length of time thus consequently, the plaintiffs' ownership stood proved.
10. When the said decree was assailed by the respondent-defendants before the High Court by way of an appeal, the High Court, while allowing the appeal, recorded the following findings: -
 - i. That the earlier suit instituted by the predecessors-in-interest of the plaintiffs against the State of Madhya Pradesh was decreed *ex parte* by the Civil Court, without the respondent—Union of India having been impleaded as a party to the said proceedings. It was not binding on the Union of India.
 - ii. That from the pleadings and evidence adduced in the present suit, it emerged that the plaintiffs' claim over the suit property

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was founded on adverse possession, predicated on their alleged possession of the land since the time of their forefathers. Their could not be any perfection of rights by adverse possession against the State/Union howsoever long may be the possession.

- iii. That the plaintiffs failed to discharge the burden of proving ownership over the suit property, having neither produced any documentary evidence nor examined any witness to establish the point of time at which their forefathers came into possession of the land and on what basis.
 - iv. That the plaintiffs had sought to claim perfection of title on the basis of adverse possession in the earlier suit filed by their predecessor and, by doing so, procured a decree of declaration without impleading the respondent-defendants. Consequently, the said decree was held to be not binding on the respondent-defendants, and the plaintiffs were found not to have acquired ownership in the eyes of law.
 - v. While deciding the review petition the application for additional evidence was also dismissed as being without any merit.
11. In our considered view, the High Court has committed no error in rendering the impugned judgments and, for the reasons that follow hereinafter, we are not persuaded to interfere and are, accordingly, inclined to dismiss the present appeals.
- 11.1. It is true that the High Court, while delivering the judgment dated 12th August, 2009, did not advert to the application filed by the appellant-plaintiffs under Order XLI Rule 27 of CPC. However, when the said judgment was assailed by way of a review petition, the appellant-plaintiffs specifically contended that the judgment could not be sustained on account of the High Court's failure to consider the application seeking to adduce additional evidence. The High Court, by its subsequent judgment dated 15th March, 2009, dismissed the review petition and, in the process, also rejected the application filed under Order XLI Rule 27 of CPC as being without any merit.
 - 11.2. In order to properly appreciate the controversy involved, it is necessary to first advert to the statutory provision applicable to the case at hand. Order XLI Rule 27 of CPC reads as follows: -

Gobind Singh and Ors. v. Union of India and Ors.**“27. Production of additional evidence in Appellate Court.—**

(1) The parties to an appeal shall not be entitled to produce additional evidence, whether oral or documentary, in the Appellate Court. But if –

(a) . . .

(aa) the party seeking to produce additional evidence, establishes that notwithstanding the exercise of due diligence, such evidence was not within his knowledge or could not, after the exercise of due diligence, be produced by him at the time when the decree appealed against was passed, or

(b) . . .

the Appellate Court may allow such evidence or document to be produced, or witness to be examined.

(2) Wherever additional evidence is allowed to be produced by an Appellate Court, the Court shall record the reason for its admission.”

(emphasis supplied)

- 11.3. Rule 27, being couched in negative terms, makes it abundantly clear that parties to an appeal are not entitled to adduce additional evidence, whether oral or documentary, save and except in the circumstances expressly enumerated therein. The provision contemplates only three eventualities in which additional evidence may be permitted: *first*, where the court which passed the decree has refused to admit evidence which ought to have been admitted; *second*, where the party seeking to adduce such evidence establishes that, notwithstanding the exercise of due diligence, the evidence was not within its knowledge or could not have been produced at the time when the decree under appeal was passed; and *third*, where the appellate court itself requires any document to be produced or any witness to be examined in order to enable it to pronounce judgment or for any other substantial cause.

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- 11.4. Accordingly, it is only upon satisfaction of any of the aforesaid three contingencies that an application under Order XLI Rule 27 of CPC can be entertained. Sub-rule (2) of the said provision further mandates that where the appellate court forms an opinion that additional evidence is required to be admitted, it must record the reasons for such admission. While elucidating the scope and object of Order XLI Rule 27 of CPC, this Court, in *Union of India v. Ibrahim Uddin*,⁷ undertook an exhaustive analysis of the provision. The relevant extract is reproduced hereinafter: -

“36. The general principle is that the appellate court should not travel outside the record of the lower court and cannot take any evidence in appeal. However, as an exception, Order 41 Rule 27 CPC enables the appellate court to take additional evidence in exceptional circumstances. The appellate court may permit additional evidence only and only if the conditions laid down in this Rule are found to exist. The parties are not entitled, as of right, to the admission of such evidence. Thus, the provision does not apply, when on the basis of the evidence on record, the appellate court can pronounce a satisfactory judgment. The matter is entirely within the discretion of the court and is to be used sparingly. Such a discretion is only a judicial discretion circumscribed by the limitation specified in the Rule itself.

. . .

38. Under Order 41 Rule 27 CPC, the appellate court has the power to allow a document to be produced and a witness to be examined. But the requirement of the said court must be limited to those cases where it found it necessary to obtain such evidence for enabling it to pronounce judgment. This provision does not entitle the appellate court to let in fresh evidence at the

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appellate stage where even without such evidence it can pronounce judgment in a case. It does not entitle the appellate court to let in fresh evidence only for the purpose of pronouncing judgment in a particular way. In other words, it is only for removing a lacuna in the evidence that the appellate court is empowered to admit additional evidence.

. . .

41. The words “for any other substantial cause” must be read with the word “requires” in the beginning of the sentence, so that it is only where, for any other substantial cause, the appellate court requires additional evidence, that this Rule will apply e.g. when evidence has been taken by the lower court so imperfectly that the appellate court cannot pass a satisfactory judgment.”

(emphasis supplied)

Thus, a holistic reading of the aforesaid decision makes it clear that the appellate court’s inquiry, while considering an application for leading additional evidence, is confined to examining whether such evidence is necessary to remove a lacuna in the case. More importantly, the appellate court may permit additional evidence only upon being satisfied that the conditions expressly stipulated under Order XLI Rule 27 of CPC are fulfilled. The parties do not possess any vested or automatic right to seek admission of additional evidence at the appellate stage. Consequently, the provision has no application where the appellate court is in a position to render a satisfactory and reasoned judgment on the basis of the evidence already available on record.

- 11.5. In ***State of Karnataka v. K.C. Subramanya***,⁸ the appellants therein had moved an application before the appellate court under Order XLI Rule 27 of CPC seeking leave to produce a

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map of the area to establish that the disputed land constituted a public road. This Court, while affirming the High Court's decision to reject the said application, held as follows: -

“4. . . .

On perusal of this provision, it is unambiguously clear that the party can seek liberty to produce additional evidence at the appellate stage, but the same can be permitted only if the evidence sought to be produced could not be produced at the stage of trial in spite of exercise of due diligence and that the evidence could not be produced as it was not within his knowledge and hence was fit to be produced by the appellant before the appellate forum.

5. It is thus clear that there are conditions precedent before allowing a party to adduce additional evidence at the stage of appeal, which specifically incorporates conditions to the effect that the party in spite of due diligence could not produce the evidence and the same cannot be allowed to be done at his leisure or sweet will.”

(emphasis supplied)

This Court thus categorically held that unless the requirements stipulated under Order XLI Rule 27 of CPC are strictly satisfied, a party cannot be permitted to adduce additional evidence at the appellate stage. Such permission cannot be granted as a matter of course, nor can additional evidence be introduced at the whim or convenience of a litigating party.

- 11.6. Where the appellate court permits additional evidence to be adduced, Order XLI Rule 27(2) of CPC casts a mandatory obligation upon the court to record the reasons for such admission. In *Ibrahim Uddin* (*supra*), this Court elucidated the rationale underlying the requirement of recording reasons in the following terms: -

“42. Whenever the appellate court admits additional evidence it *should record its reasons* for doing so (sub-

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rule (2)). It is a salutary provision which operates as a check against a too easy reception of evidence at a late stage of litigation and the statement of reasons may inspire confidence and disarm objection. Another reason of this requirement is that, where a further appeal lies from the decision, the record of reasons will be useful and necessary for the court of further appeal to see, if the discretion under this Rule has been properly exercised by the court below. *The omission to record the reasons must, therefore, be treated as a serious defect.* But this provision is only directory and not mandatory, if the reception of such evidence can be justified under the Rule.”

- 11.7. The procedural framework under Order XLI of CPC makes it abundantly clear that an appeal is ordinarily to be decided on the evidence adduced before the Trial Court. The Appellate Court is not expected to embark upon a fresh fact-finding exercise or permit production of additional evidence as a matter of routine. Where the Appellate Court is satisfied that the material already available on record is sufficient to enable it to pronounce judgment, it is well within its jurisdiction to confine its consideration to the evidence forming part of the record of the courts below.
- 11.8. In the present case, the High Court, upon an examination of the evidence adduced by the parties, proceeded to analyse the decree passed in the earlier civil suit instituted by the predecessors-in-interest of the appellant-plaintiffs. The High Court observed that the said decree was not binding upon the respondent-defendants, as they had not been impleaded as parties to those proceedings. Consequently, no legal sanctity could be attached to any subsequent entries made in the revenue records on the strength of the said decree, including the mutation of the plaintiffs’ names therein.
- 11.9. Once the said finding recorded by the Trial Court was set aside, whereby the entire claim of ownership of the appellant-plaintiffs rested upon the earlier decree and the consequent entries in the revenue records, the onus squarely shifted upon the appellant-plaintiffs to independently establish their title to the suit property.

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- 11.10. The appellant-plaintiffs were, from the outset, fully aware that the respondent-defendants had not been impleaded as parties in the earlier civil suit instituted by their predecessors. Having founded their claim upon a decree which was *non-est* insofar as the respondent-defendants were concerned, it was impermissible for the appellant-plaintiffs to seek to introduce additional evidence at the appellate stage to cure the inherent defects in their case. The present suit being one for declaration of title, it was incumbent upon the appellant-plaintiffs, if they indeed possessed a valid title, to adduce their best and complete evidence at the stage of trial before the court of first instance, where such evidence could have been produced as a matter of right.
- 11.11. Further, even at the stage of the earlier suit instituted by the predecessors-in-interest of the appellant-plaintiffs, their consistent case was one of lawful title to the suit property. No plea of adverse possession was ever raised against the respondent-defendants. The appellants wish to rely upon the additional evidence, namely, the entries in the General Land Register maintained by the respondent-defendants to show that the suit property is recorded as private land. Such an endeavour, at the appellate stage and in the absence of foundational pleadings, is wholly impermissible in law. Mere recording of the land in suit as private land in the GLR does not in any manner benefit the appellants claim of ownership.
- 11.12. Once the appellant-plaintiffs asserted that they derived valid title to the suit property through their forefathers, the burden lay squarely upon them to substantiate such claim by producing cogent title deeds in support thereof. However, no such documentary evidence was forthcoming.
- 11.13. On the other hand, the consistent stand of the respondent-defendants from the inception has been that the appellant-plaintiffs are rank trespassers and encroachers upon the suit property. The respondent-defendants have specifically denied the assertion that the appellant-plaintiffs or their predecessors had been in enjoyment of the suit property for the preceding fifty years prior to the institution of the suit.

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- 11.14. Further, the respondent-defendants have traced their title to the decision of the Union of India dated 17th July, 1953, pursuant to which the suit land, along with other immovable properties, vested in the respondent-defendants in terms of title, ownership and possession. This assertion stands fortified by the Gazette Notification dated 4th November, 1954, issued by the erstwhile State of Madhya Bharat, which also recognises that the suit land and other properties with title, ownership and possession vested in the respondent-defendants.
- 11.15. The above discussion will also reflect that even if the additional evidence in the form of GLR is accepted, the same will have no impact on the findings returned by the High Court. The application for additional evidence was thus rightly rejected by the High Court.
- 11.16. Before parting, we deem it appropriate to record our disapproval of the unscrupulous litigants such as appellant-plaintiffs and their predecessors and the manner in which they have conducted themselves. The material on record indicates that the earlier suit instituted by the predecessors-in-interest of the appellant-plaintiffs culminated in a decree passed without impleading the respondent-defendants, who were the lawful owners of the suit property. The attempt to secure a decree behind the back of the true owner is a circumstance that cannot be lightly brushed aside. It is also not without significance that appellant-plaintiff No. 1, Govind Singh, was employed in the office of the Commissioner at the relevant time. The proximity of events, namely, the passing of an *ex-parte* decree followed by the expeditious mutation of revenue entries in favour of the appellant-plaintiffs, casts a shadow over the bona fides of the proceedings.
- 11.17. In such a backdrop, when the appellant-plaintiffs themselves asserted title on the basis of long and continuous possession through their predecessors, the subsequent attempt to introduce additional evidence at the appellate stage assumes little legal significance. Once the trial had concluded and the decree was under challenge in appeal, the appellants could not be permitted to fill the gaps in their case by seeking to adduce further material to fortify a claim that was fundamentally flawed.

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12. For the foregoing reasons, we find no infirmity in the judgments rendered by the High Court.
13. Accordingly, the judgments dated 12th August, 2009, in First Appeal No. 80 of 1996 and 15th March, 2011, in Review Petition No. 300 of 2009 passed by the High Court of Madhya Pradesh at Gwalior are hereby affirmed.
14. Consequently, the present appeals stand dismissed.
15. Pending application(s), if any, shall also stand disposed of.

Result of the case: Appeals dismissed.

[†]Headnotes prepared by: Ankit Gyan

Dr. Sushil Kumar Purbey & Anr.

v.

The State of Bihar and Ors.

(Criminal Appeal No. 1234 of 2026)

09 March 2026

[Vikram Nath* and Sandeep Mehta, JJ.]

Issue for Consideration

Issue arose whether the High Court erred in granting the relief of quashing solely to sister-in-law, on the ground that the allegations against her were general in nature, while declining the same relief to the appellants-parents-in-laws.

Headnotes[†]

Code of Criminal Procedure, 1973 – s.482 – Penal Code, 1860 – ss.341, 323, 498A and 34 – Dowry Prohibition Act, 1961 – ss.3 and 4 – Dowry case against in-laws – Quashing of criminal proceedings – FIR by complainant-wife against her husband, parents-in-law-appellants, and sister-in-law alleging that she was subjected to persistent torture and cruelty, on account of dowry demands, that the husband physically assaulted her, and on the day FIR was filed, accused persons, attempted to strangle her – Seperate complaint filed before Judicial Magistrate making further allegations against the accused persons – Appellants filed application for anticipatory bail, which was allowed – Judicial Magistrate took cognizance of the offences – Petition by parents-in-laws and sister-in-law seeking quashing of the order whereby Judicial Magistrate taking cognizance of the offences – High Court quashed the proceedings against sister-in-law, however dismissed the petition as regards the appellants – Correctness:

Held: High Court erred in restricting the quashing of criminal proceedings only to the sister-in-law – Comparative reading of the FIR reveals that the allegations levelled against the sister-in-law and those against the appellants are, in all material particulars,

* Author

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identical – FIR does not assign any specific or overt act to either appellant; there are no particular dates, places, or individual acts attributed to them – Lone allegation that stands separately against the appellants is that they would quarrel does not constitute a criminal offence and cannot, by itself, sustain cognizance of the offences for which the appellants have been summoned – Standard applied by the High Court in quashing proceedings against the sister-in-law, on the ground that the allegations against her were general and omnibus, applies with equal force to the appellants, and there is no principled basis for distinguishing between them – Husband filed the divorce petition as early as 21 months after the marriage – Criminal complaint against appellants was, however, lodged nearly a year after the filing of the divorce petition – Though this delay, standing alone, would not constitute a sufficient ground for quashing the criminal proceedings against appellants, however, viewed in conjunction with the absence of any specific allegations attributable to them, the delay lends credence to the submission that the criminal complaint against the in-laws may have been instituted by way of a counter-blast to the divorce proceedings initiated by the husband – When these considerations are read together, continuation of the criminal proceedings against the appellants cannot be sustained – High Court erred in applying different standards to persons who stand on an identical footing insofar as the nature of the allegations against them is concerned – Since the allegations against the appellants and sister-in-law are, in substance, the same, the reasoning that led the High Court to quash the proceedings against sister-in-law ought equally to have led to the quashing of proceedings against the appellants – Impugned order, to the extent that it declined to extend such relief to the appellants, cannot be sustained and set aside. [Paras 10, 11]

List of Acts

Penal Code, 1860; Dowry Prohibition Act, 1961; Hindu Marriage Act, 1955; Code of Criminal Procedure, 1973.

List of Keywords

Dowry demands; Anticipatory bail; Cognizance of the offences by Judicial Magistrate; Quashing of proceedings.

Dr. Sushil Kumar Purbey & Anr. v. The State of Bihar and Ors.**Case Arising From**

CRIMINAL APPELLATE JURISDICTION: Criminal Appeal No. 1234 of 2026

From the Judgment and Order dated 08.08.2023 of the High Court of Judicature at Patna in CRLM No. 70355 of 2022

Appearances for Parties

Advs. for the Appellant(s):

Shivam Singh, Rohit Kumar Singh, Lal Babu Singh, Rana Prashant, Akash Kumar, Mahender Rathour.

Advs. for the Respondent(s):

Bharat Sangal, Sr. Adv., Anshul Narayan, Mrs. Vineeta Singh, Anshuman Harsh, Prem Prakash, Hemant Kumar Tripathi, Nagarkatti Kartik Uday.

Judgment / Order of the Supreme Court**Judgment**

Vikram Nath, J.

1. Leave granted.
2. The present appeal arises from the judgment and order dated 8th August 2023 passed by the High Court of Judicature at Patna in Criminal Miscellaneous No. 70355 of 2022. By the impugned order, the High Court quashed the criminal proceedings against one of the accused, namely, the sister-in-law of the complainant (respondent no. 3), while declining to extend the same relief to the present accused-appellants, who are the father-in-law and mother-in-law of the complainant (respondent no. 2).
3. The facts giving rise to the present appeal, shorn of unnecessary details, are as follows:
 - 3.1. The complainant married Dr. Rishi Raj, the son of the present appellants, on 8th July 2019.
 - 3.2. On 31st March 2021, the husband instituted a divorce petition against the complainant under Section 13 of the Hindu

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Marriage Act, 1955¹, before the Principal Judge, Family Court, Darbhanga, Bihar.

- 3.3. On 18th March 2022, the complainant submitted a written report, on the basis of which First Information Report² No. 81/2022 was registered under Sections 341, 323, 498A and 34 of the Indian Penal Code, 1860³, and Sections 3 and 4 of the Dowry Prohibition Act, 1961⁴, at Police Station Lalit Narayan University, District Darbhanga, Bihar, against the husband, the two appellants herein, and the sister-in-law.
- 3.4. The complainant alleged that, soon after the marriage, she was subjected to persistent torture and cruelty, particularly on account of demands for a BMW car and other valuable articles, which she was unable to fulfil. It was further alleged that the husband physically assaulted her, and that on 18th March 2022, the accused persons, acting in concert, tied a sheet around her neck and strangled her with the intent to cause her death.
- 3.5. The complainant additionally filed Complaint Case No. 790/2022 before the Chief Judicial Magistrate, Hajipur, Vaishali, Bihar, wherein she made further allegations against the same accused persons.
- 3.6. The appellants filed an application for anticipatory bail, which was allowed by the Trial Court vide order dated 12th April 2022.
- 3.7. Pursuant to the investigation arising out of FIR No. 81/2022, the police report was submitted on 5th June 2022.
- 3.8. The Judicial Magistrate, vide order dated 7th September 2022, took cognizance of offences under Sections 341, 323, 498A and 34 of the IPC and Sections 3 and 4 of the Dowry Act against the husband, the appellants herein, and the sister-in-law, in L.M.N.U. P.S. Case No. 81 of 2022.

1 In short "HMA"

2 In short "FIR"

3 Hereinafter, referred to as "IPC".

4 Hereinafter, referred to as "Dowry Act".

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- 3.9. On 23rd November 2022, the appellants, along with the sister-in-law (respondent no.3), filed a petition under Section 482 of the Code of Criminal Procedure, 1973⁵ seeking quashing of the order dated 7th September 2022, whereby the Judicial Magistrate had taken cognizance of the aforesaid offences.
- 3.10. The High Court, by the impugned order, partly allowed the petition for quashing, but only insofar as the sister-in-law of the complainant was concerned. The High Court held that the allegations against her were general and omnibus in nature, and therefore insufficient to sustain criminal proceedings. However, the petition was dismissed with respect to the present appellants being the father-in-law and mother-in-law of the complainant with the High Court taking a view that prima facie case had been made out against them.
- 3.11. Aggrieved by the said order, the present appellants have approached this Court.
4. We have heard the learned counsel appearing for the appellants, the learned counsel for the respondent-State, and the learned senior counsel for the complainant-Respondent No. 2 at length, and have also perused the material placed on record.
5. Learned counsel for the appellants submits that the High Court erred in confining the grant of quashing relief solely to sister-in-law, on the ground that the allegations against her were general in nature, while declining the same relief to the appellants. It is contended that the allegations against the present appellants are equally general and omnibus and that no specific role has been attributed to them in the complaint. It is accordingly submitted that the criminal proceedings against the appellants also merit quashing. It is further submitted that the FIR in question is, in substance, a counter-blast to the divorce petition filed by the husband. In this regard, it is pointed out that whereas the FIR makes no mention of any dowry in the form of a motor vehicle, the complainant within a period of twelve days, supplemented and improved upon her initial version in the complaint filed before the Chief Judicial Magistrate, adding fresh allegations

5 Hereinafter, referred to as "CrPC".

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to the effect that her family had given a Maruti car as dowry. It is submitted that such material improvements to the initial account cast serious doubt on the credibility of the complaint.

6. Per contra, the learned senior counsel for the complainant submits that the allegations against the present appellants are specific and cannot be characterised as general or omnibus. It is further submitted that the trial is at an advanced stage and that the recording of prosecution evidence is already underway. Attention is also drawn to the fact that the High Court has directed the Trial Court to conclude the proceedings within a period of one year. In view of these circumstances, it is urged that the appellants ought to be required to face trial and that this Court should not interfere with the criminal proceedings at this stage.
7. Having considered the submissions advanced by the parties and upon a careful perusal of the material on record, we are of the view that the High Court fell into error in restricting the quashing of criminal proceedings only to the sister-in-law (respondent no.3). A comparative reading of the FIR reveals that the allegations levelled against the sister-in-law and those against the present appellants are, in all material particulars, identical. The FIR does not assign any specific or overt act to either appellant; there are no particular dates, places, or individual acts attributed to them. The lone allegation that stands separately against the present appellants is that they would quarrel. This, however, does not constitute a criminal offence and cannot, by itself, sustain cognizance of the offences under Sections 341, 323, 498A & 34 of the IPC and Sections 3 & 4 of the Dowry Act for which the appellants have been summoned. The standard applied by the High Court in quashing proceedings against the sister-in-law, on the ground that the allegations against her were general and omnibus, applies with equal force to the present appellants, and there is no principled basis for distinguishing between them.
8. It is further pertinent to note that the marriage was solemnised in July 2019, and the husband filed the divorce petition as early as March 2021. The criminal complaint against the appellants was, however, lodged only in March 2022, nearly a year after the filing of the divorce petition. Though this delay, standing alone, would not

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constitute a sufficient ground for quashing the criminal proceedings against the appellants. However, viewed in conjunction with the absence of any specific allegations attributable to them, the delay lends credence to the submission that the criminal complaint against the in-laws may have been instituted by way of a counter-blast to the divorce proceedings initiated by the husband. When these two considerations are read together, we are satisfied that the continuation of the criminal proceedings against the present appellants cannot be sustained.

9. Before moving forward, we consider it necessary to clarify that the observations made hereinabove are confined to the question of the maintainability of the criminal proceedings against the present appellants, and must not be construed as an expression of any opinion on the merits of the case as a whole. The criminal proceedings against the husband shall continue in accordance with law. We note, in this context, that the husband did not seek quashing of the proceedings against him before the High Court under Section 482 of the CrPC; it was only the present appellants and the sister-in-law who did so. The husband is also not before this Court in the present appeal. We therefore find no occasion to comment upon the allegations levelled against him, and the proceedings against him shall be governed by law.
10. In view of the foregoing, we are of the considered opinion that the High Court erred in applying different standards to persons who stand on an identical footing insofar as the nature of the allegations against them is concerned. Since the allegations against the present appellants and the sister-in-law are, in substance, the same, the reasoning that led the High Court to quash the proceedings against the sister-in-law ought equally to have led to the quashing of proceedings against the present appellants. The impugned order, to the extent that it declined to extend such relief to the appellants, cannot be sustained.
11. Accordingly, the impugned judgment and order dated 8th August 2023 passed by the High Court is set aside to the extent that it refused to quash the criminal proceedings against the present appellants. Consequently, all proceedings arising out of L.N.M.U. P.S. Case No. 81 of 2022, registered under Sections 341, 323, 498A and 34 of the

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Indian Penal Code, 1860, read with Sections 3 and 4 of the Dowry Prohibition Act, 1961, are hereby quashed insofar as the present appellants are concerned.

12. In the result, the present criminal appeal is allowed in the above terms.
13. Pending application(s), if any, stand(s) disposed of.

Result of the case: Criminal appeal allowed.

[†]Headnotes prepared by: Nidhi Jain

